

HALLOWED HERITAGE

BY

**DOROTHY MARGARET
TORPEY**

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HERITAGE: THE LIFE OF VIRGINIA ***

HALLOWED HERITAGE



Hallowed Heritage:

THE LIFE OF VIRGINIA



by

DOROTHY M. TORPEY

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FRANCIS C. HAMMOND HIGH SCHOOL
ALEXANDRIA, VIRGINIA

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TO
MY MOTHER AND BILL
*whose encouragement and understanding
were inspirational*



INTRODUCTION

From the founding of the first permanent English settlement in America at Jamestown to the present-day launching of the country's largest ships at Hampton Roads, the name "Virginia" suggests a geographical area which has formed the background for innumerable local, state, national and international events. An understanding of "The Life of Virginia"—geographical, historical, economic, cultural and political phases of living—should result in a better appreciation of the unique role played by Virginia in the development and progress of the United States of America.

—D. M. T.

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HALLOWED HERITAGE



1

Geographical Life

Location and Topographical Regions

The Commonwealth of Virginia is located in the eastern part of the United States, approximately midway between the North and the South, and it is classified geographically as a South Atlantic State. The shape of the state suggests an irregular triangle: the base of the triangle, the southern boundary of the state which divides it from North Carolina and Tennessee; the left side or western side, dominated by the Blue Ridge, the Appalachian and the Allegheny Mountains; and the right side or eastern side, the Coastal Plain.

Virginia is bounded on the north by West Virginia, Maryland and the Potomac River which forms the boundary between Virginia and Maryland and Virginia and the District of Columbia; on the east by the Potomac River, Maryland, the Chesapeake Bay, and the Atlantic Ocean; on the south by North Carolina and Tennessee; and on the west by Kentucky and West Virginia.

The area of the state is approximately 40,815 square miles. This area places Virginia thirty-sixth in rank in area among the States of the Union. Approximately 2,000 square miles of this area consist of water. The southern boundary extends approximately 450 miles from east to west and the distance from north to south is approximately 200 miles at its widest point. The geographical center of Virginia is at a point eleven miles south of east of the town of Amherst in Appomattox County. The highest point is Mount Rogers located in Smyth and Grayson Counties with an elevation of 5,719 feet. The lowest altitude is sea level along the Atlantic Coast. The average elevation of the state is 950 feet.

Topographically, Virginia may be conveniently divided into five major regions:

(1) the South Atlantic Coastal Plain—As the name suggests, this region extends along the coast from the Atlantic Ocean to the Fall Line Zone. The Fall Line Zone refers to a section where the streams pass from the rocky areas of the mountain region or high land to the level area or low land; at such points, falls or rapids develop. The Great Falls of the Potomac in Maryland and in Virginia, the Falls of the Rappahannock at Fredericksburg, the rapids of the James River at Richmond and the Falls of the Appomattox at Petersburg illustrate the concept of the Fall Line. Consequently, the so-called Fall Line extends from Washington, D. C., through Alexandria, Fredericksburg, Richmond, Petersburg and Emporia in Virginia. Thus, the South Atlantic Coastal Plain region of Virginia is located along the Atlantic seacoast from the Potomac River at Alexandria to the North Carolina boundary line and as far west as the Fall Line Zone. The width of this area varies from 35 miles to 120 miles. This region is also called "Tidewater" Virginia because the level land here is so low that the ocean tides may often be seen in the inland streams. "Tidewater" Virginia includes five peninsulas formed by the Chesapeake Bay, the Potomac, the Rappahannock, the York and the James Rivers. These five peninsulas are:

a. the Eastern Shore—Although most of Tidewater Virginia is located on the western side of the Chesapeake Bay, a unique peninsula called the Eastern Shore extends southward from Maryland and is separated from the rest of Virginia by the Chesapeake Bay. Thus, in order to travel by land from the mainland of eastern Virginia to the Eastern Shore, it is necessary to travel via Maryland.

b. the Northern Neck—This peninsula lies between the Potomac and the Rappahannock Rivers and is only 22 miles at its widest point.

c. the Middle Peninsula—This peninsula lies between the Rappahannock and the York Rivers.

d. the Peninsula of the Lower York-James Peninsula or the Williamsburg Peninsula—This peninsula is located between the York and James Rivers.

e. the Norfolk Peninsula—This peninsula is located between the James River and the Virginia-North Carolina boundary line. In general, the

land in this region is a flat plain. The tidal rivers mentioned previously are actually estuaries of Chesapeake Bay and they flow periodically inland. Therefore, they are an unusual combination of waters from the Bay itself and from the Atlantic Ocean whose pressure pushes the tides inland. The strong influence of geography upon occupations in this region is exemplified by the importance of commercial fishing (especially oysters, scallops, clams and crabs), ocean transportation (the large area of deep water in the Chesapeake Bay encourages ocean-going commercial ships to seek inland ports in this region—especially around Hampton Roads), truck farming (the clay loam soil and the sandy loam soil here provide excellent productivity of potatoes, early vegetables, corn and hay), and the manufacturing of fertilizer (particularly from fish and fish scraps), bricks (an abundance of sand and gravel encourages the making of bricks), pulpwood, railroad ties, barrel staves and other lumber products (60% of the Tidewater area is covered with forests).

(2) the Piedmont Plateau—This region extends from the Coastal Plain westward to the foot of the Blue Ridge Mountains. The word "Piedmont" literally means "at the foot of the mountain." A plateau is defined as a high lowland; therefore, this section is higher in elevation than the Coastal Plain region. This area is characterized by rolling hills and many swift streams. The width of the plateau varies from forty miles in Northern Virginia to one hundred ninety miles in the southern part, gradually broadening as one travels southward. The plateau rises gradually from an elevation of 200-700 feet at the eastern end of the plateau until, at the foot of the Blue Ridge Mountains, it reaches approximately 1500 feet near the Virginia-North Carolina border. The Piedmont area located south of the James River is known as the Southside. Agriculture is the chief occupation because, in general, this land is fertile due to the presence of limestone soils and clay deposits. Large amounts of tobacco are grown here. The Piedmont also has a great variety of rocks, including granite and soapstone which are currently commercially important.

(3) the Blue Ridge and Valleys—Although the Blue Ridge Mountains are a part of the Appalachian Range, they are, geographically, sufficiently significant to afford them a separate listing in a

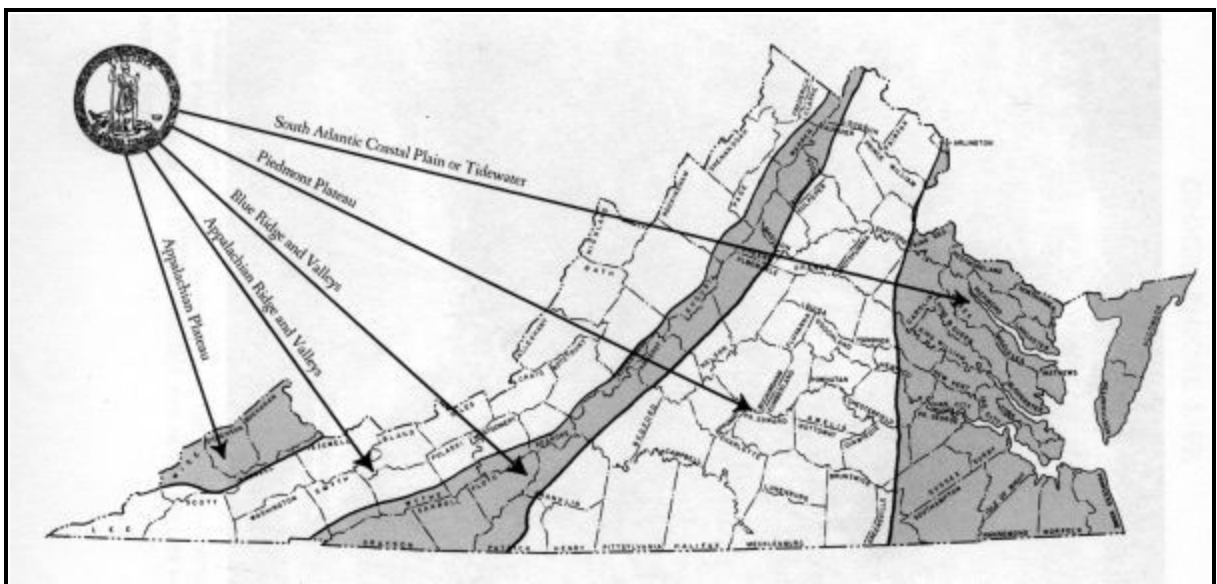
topographical description of Virginia. The Blue Ridge Mountains, located between the Potomac and the Roanoke Rivers, cross Virginia in a northeast-southwest direction and are from three to twenty miles wide. The Blue Ridge of Virginia originates at the junction of the Potomac and the Shenandoah Rivers and continues southwestward to the North Carolina line. From a distance the mountain ridges usually appear to be covered with a blue haze; therefore, the term "Blue Ridge" is believed to have originated from such an observation in early colonial Virginia days. This region constitutes a distinct contrast to the Piedmont area since the ridges appear abrupt yet lofty in height: in the northern half of Virginia, Stony Man Ridge (4,010 feet) and Hawksbill (4,049 feet); in the central part, Peaks of Otter (Flat Top—4,001 feet and Sharp Top—3,875 feet) and in the southwestern part, White Top Mountain (5,520 feet) and Mount Rogers (5,719 feet), the highest point in Virginia. In the southern part, the Blue Ridge becomes a rugged plateau with stony land and jagged ravines unsuited for commercial agricultural pursuits. This entire area is heavily forested with white pine, white oak, poplar, hemlock, black oak, yellow pine, chestnut, locust and chestnut oak trees. The famous Skyline Drive in the Shenandoah National Park extends one hundred miles along the crest of the Blue Ridge Mountains in this area from Front Royal to Waynesboro.

(4) the Appalachian Ridge and Valleys—This region is located west of the Blue Ridge and Valleys. The Appalachian Ridge consists primarily of a narrow strip of land thirty-five to one hundred miles wide. The Allegheny Mountains border Virginia along the west and numerous high, narrow ridges are found here. The Appalachian Valley in Virginia, like the Blue Ridge, originates at the junction of the Potomac and Shenandoah Rivers. This valley extends for approximately three hundred and fifty miles to the borderline of Tennessee. The eastern part of this valley is often referred to as the Great Valley or the Valley of Virginia. This valley is actually a series of valleys separated by crosswise ridges and drained by five rivers: the upper James, Roanoke, New, Holston and Powell. An abundance of limestone makes the soil exceptionally fertile and productive. In the northern part of the Valley of Virginia is the famous Shenandoah Valley, about 150 miles long and ten to twenty miles wide, divided in the north by the Massanutten

Mountain, a high ridge approximately forty-five miles long. There is a great variety of soils found here, and most of them have a fair degree of plant fertility. Corn and winter wheat are the agricultural specialties of the Shenandoah Valley. Other valleys included in the Valley of Virginia are the Abingdon Valley, Dublin Valley, Fincastle Valley, Powell Valley, Roanoke Valley, New River Valley, Holston Valley and Clinch Valley.

(5) the Appalachian Plateau—This region is located in southwestern Virginia and is often referred to as the Southwestern Plateau or Allegheny Plateau. It extends only a short distance into Virginia and consists mainly of rough, rugged terrain. Water gaps, gorges, sandstone walls, rock formations and dense forested areas make southwestern Virginia's scenery distinctly different and picturesque. The Cumberland Mountains form its western boundary. Coal-mining is the chief occupation in this region, and this is the area where the largest and most productive coal-fields of Virginia are located. Lumbering is also carried on extensively. In addition, some cattle, hogs, corn and vegetables are raised here.

The combination of these five regions suggests a one-word description of Virginia's topography, namely, diversified.



Topographical Regions of Virginia



VIRGINIA STATE CHAMBER OF COMMERCE

Natural Tunnel

Unique Features

Each state of the United States generally has at least a few geographical oddities or unusual geographical formations. Virginia has been richly endowed with caverns, springs, unusual rock formations and a dense, swampy wilderness.

The chief caverns are called Endless (near New Market), Grand (at Grottoes), Luray (near Luray)—the largest in Virginia, Massanutten (near Harrisonburg), Melrose (near Harrisonburg), Shenandoah (near New Market) and Skyline (near Front Royal). These caverns are of limestone formation and contain stalagmites (upward-projecting forms on a cavern floor) and stalactites (downward-projecting forms from a cavern ceiling) in diverse shapes and colors. The Blowing Cave in Bath County received its name from the inhalation of cold air during the winter and the expulsion of cold air during the summer.

Burning Spring is located in Wise County and is so named because of the liquid flames which seethe through the surface of the earth in this area from unknown sources. Crystal Spring in Roanoke received its name from the approximately five million gallons of crystal water per day which likewise appear from some unknown source.

The famous Natural Bridge of Virginia is considered one of the seven natural wonders of the new world. It is located near Lexington in Rockbridge County (the county so-named because of the existence of the bridge of rock) and is a bridge of stone ninety feet long and two hundred and fifteen feet high spanning a gorge cut by Cedar Creek. So unique is this formation that Indian lore relates that it was referred to as "the Bridge of God." In this same region, in Patrick County, may be seen crystals in the shape of crosses in certain rock strata. So rare is their structure and clarity that they are often called "Fairy Stones" or "Cross Stones."

The Natural Tunnel located in Purchase Ridge near Big Stone Gap and Bristol is a tunnel approximately nine hundred feet long, one hundred and fifty feet wide and one hundred feet high, carved by flowing water through solid mountain terrain. The tunnel itself includes a reverse curve, and, at the present time, railroad tracks and Stock Creek waters run through it.

Crabtree Falls in Nelson County, Central Virginia, is believed to be one of the highest waterfalls east of the Mississippi River. These falls are formed by a branch of the Tye River, the South Fork, descending two thousand feet below in cascade formation.

The Great Falls of the Potomac, located on the boundary between Virginia and Maryland, is one of the highest waterfalls east of the Rockies with an elevation of ninety feet.

The Natural Chimneys located at Mt. Solon are seven large towers of stone carved by erosion out of a mountain. These rock strata are so straight and so symmetrical that they resemble a series of chimneys suggesting their name. Two of the chimneys have tunnels carved through the bases, and cedar trees appear to grow out of the rock.

The Great Dismal Swamp, approximately fifteen hundred square miles in area, is shared by Virginia and by North Carolina. It is noted for its dense tropical growth, its fur-bearing game (particularly, black bear), its massive timber varieties and its disorderly plant vegetation. Juniper trees, sometimes called red cedar, and cypress trees are abundant around Lake Drummond in the Great Dismal Swamp. The swamp is more easily accessible from Virginia than from North Carolina.

In addition to the above natural wonders, there are numerous mineral springs, canyons, mountain peaks and deep gorges. Virginia has nine State Parks including Douthat State Park (near Clifton Forge), Fairystone State Park (near Bassett and Martinsville), Hungry Mother State Park (near Marion), Seashore State Park (near Cape Henry), Staunton River State Park (near South Boston and Halifax), Westmoreland State Park (near Montross and Fredericksburg), Claytor Lake State Park (near Dublin and Radford), Prince Edward Lake State Park (near Burkeville) and Pocahontas Memorial State Park (near Richmond and Petersburg). The Breaks Interstate Park controlled by Virginia and Kentucky has scenery so similar to the Grand Canyon that it is often referred to as "The Grand Canyon of the South." The Virginia area of the Breaks is located in the northern part of Dickenson County. Virginia also has a prominent National Park, Shenandoah National Park, established in 1935, which consists of approximately 193,000 acres. This park includes the beautiful Skyline Drive. Cumberland Gap National Historical Park is located in parts of Kentucky and Tennessee as well as in Virginia.

Rivers and Lakes

Because of the varied topography, there are many swift streams which are available (although not yet completely utilized) for water power. Virginia has parts of eight different river systems within its boundaries. They are the Potomac River (including its chief tributary, the Shenandoah), the

Rappahannock River (including its chief tributary, the Rapidan), the York River, the James River (including its tributaries, the Chickahominy and the Appomattox), the Meherrin, Nottoway and Blackwater Rivers (the chief tributaries of the Chowan River in North Carolina), the Roanoke River (including its chief tributary, the Dan), the New River and the Holston, Clinch and Powell Rivers (the chief tributaries of the Tennessee River System). These rivers furnish excellent waterpower and drainage.

In addition to these important rivers, Virginia has several valuable lakes. Included among these are: Crystal Lake near Cape Henry, Lake Drummond (the largest body of fresh water in the state, approximately five square miles in area and twenty-two feet in altitude) in the heart of the Dismal Swamp and in the highest part of the Dismal Swamp, Lake Jackson near Centerville, Mountain Lake near Blacksburg (thirty-five hundred feet above sea level and noted for the clarity of its water), Pedlar Lake in Long Mountain Wayside Park, Claytor Lake near Pulaski, Bear Creek Lake near Richmond, Bedford Lake at Bedford and Prince Edward Lake in Prince Edward State Park. Some of these lakes are noted for their fish, especially bass and trout, while others contribute primarily to the scenic grandeur of Virginia.

Climate

The climate of Virginia is classified as continental—characterized by frequent moderate extremes in temperature and a medium length summer growing season. Since elevation generally affects climatic conditions, the temperature in the Piedmont Plateau and Appalachian Ridge sections varies according to the altitude. In the Piedmont and Appalachian areas, during the winter months the temperatures are lower than on the plains; likewise, in the former areas, greater seasonal contrasts occur. In general, the climate of the entire state is mild with few extremes in temperature. The average temperature is approximately 40 degrees Fahrenheit, winter; 60 degrees Fahrenheit, spring and fall; and 80 degrees Fahrenheit, summer. The greatest ranges of temperature occur in the Piedmont and in the Great Valley. Snow falls very infrequently except in the mountain areas and usually is of short duration whenever it appears.

With respect to annual precipitation, the average rainfall for Virginia is approximately forty-five inches, with variations in different regions. In some regions it is as high as forty-nine or fifty inches and, in others, as low as thirty-six or thirty-seven inches. Rainfall typically is abundant and well-distributed throughout the year. The heaviest rainfall usually occurs, however, during the summer. As a result of the climatic conditions of temperature and precipitation, the growing season varies from approximately one hundred and fifty to two hundred and ten days. Consequently, agricultural products are well diversified.

Natural Resources

The economic destiny of a region is greatly influenced by its natural resources as well as by its location. It has already been pointed out that Virginia has a most desirable location. Virginia also has numerous natural resources.

One resource so influential that it often shapes the economic pattern of a state is soil. Virginia is fortunate in having numerous types of soil: rich, black loam; light, sandy loam; clay and sand loam; limestone and clay soils. Most of these soils are easily adaptable to cultivation, and the use of crop rotation and of marl (a soil neutralizer) has fostered extensive production.

Forests constitute approximately three-fifths or 60% of Virginia's total land area. There are many hardwood and softwood varieties in Virginia. The term, "hardwood," is sometimes a misleading one because a few of the so-called "softwood" trees are actually hard in substance. Hardwood trees shed their leaves annually, and they are called deciduous trees. Since softwood trees bear cones, they are called coniferous trees. The southern or yellow pine is the leading softwood or coniferous tree which thrives in Virginia because of the sandy soil of the coastal plain. Other softwoods are red spruce, hemlock, red cedar and cypress. Hardwoods include oak, chestnut, locust, hickory, walnut, gum, white ash, magnolia and dogwood. Although the forests are scattered throughout the state, the Tidewater, Piedmont and western portions of the state have the largest forested area.

Fish are plentiful in Virginia because of the Atlantic Ocean, the Chesapeake Bay and the numerous rivers and mountain streams. Virginia usually ranks annually among the first ten states in the value of its fisheries. The principal

fish are oysters and clams in Chesapeake Bay, blue crabs and shrimp in the Tidewater area, scallops in seacoast inlets, bays, bream, perch, pike, carp, catfish in inland waters and speckled and rainbow trout in mountain streams. Menhaden fish, found near the surface of the water, are inedible but are now being used for making fertilizer and oil in Virginia.

The amount of waterpower is above average in Virginia due to many swift streams and rivers and the high elevation. This resource combined with an ample supply of steam coal has resulted in the production of electric power in Virginia at a much cheaper rate than in many other states. Furthermore, it is estimated that Virginia industry at the present time is using only approximately 10 per cent of its available waterpower supply.

With respect to minerals, approximately one hundred and fifty kinds have been found in Virginia, and approximately forty have been mined and quarried recently. However, Virginia ranks nineteenth in United States mineral production and provides approximately 1.25% of the total United States mineral value.

The most valuable and most abundant mineral resource found in Virginia is coal. There are four types: bituminous (soft), anthracite (hard), semi-bituminous and semi-anthracite. The bituminous coal far surpasses the other types in quantity. The coal supply is found primarily in three areas: (1) the Piedmont region—the Richmond Basin and the Farmville area—bituminous; (2) the west side of the Great Valley of Virginia—anthracite and semi-anthracite and (3) the Southwestern Plateau—bituminous and semi-bituminous. The first coal to be mined in the United States was located near Richmond in 1745. At the present time, Virginia ranks sixth in the United States coal production and is believed to have more coal seams now available than any other mining district in the United States. Coal is mined most frequently in Buchanan, Wise and Dickenson Counties.

Various types of stone resources rank second in financial value of minerals. These include:

Calcareous marl (an earthy deposit containing usually lime, clay and sand)—in the Tidewater section—used as a soil neutralizer

Cement rock—limestone, marl, shale and clay—in the Coastal Plain and in Augusta, Botetourt, Norfolk and Warren Counties—used in forming portland cement and masonry cement

Dolomite (a brittle calcium magnesium carbonate)—in the Valley west of the Blue Ridge Mountains—used as a source of magnesium, for the manufacture of refractories, for building and crushed stone

Granite—in the Piedmont and Blue Ridge provinces—used for building monumental stone, crushed stone and paving blocks

Greenstone (a dark-green crystalline rock)—in Lynchburg and in the Piedmont area—used for crushed stone and one particular type is used for ornamental stone

Limestone—west of the Blue Ridge, in the Appalachian Valley and in the far west of the state—used in the production of lime and for manufacturing chemicals, for cement, as a soil conditioner, for crushed stone and rock wool insulation

Marble—in Rockingham, Rockbridge, Scott and Giles Counties—used extensively for monumental stone: jet black, green, white, red, reddish-brown, blue, gray, blue-gray, pink and variegated (different colors within one type); the pink marble is similar to the Tennessee marble and is found primarily in Smyth County

Shale (a fragile rock resembling slate)—in the Valley—used in the manufacture of bricks, portland cement and rock wool

Sandstone—Oriskany sandstone in Frederick and in Rockingham Counties—chief source for the manufacture of all glass

Slate—in Piedmont or eastern slope of the Blue Ridge Mountains, in Albemarle and Buckingham Counties—used chiefly for roofs, baseboards, blackboards, switchboards, sidewalks, flagstones and asphalt shingles

There are several miscellaneous minerals which, when combined, rank third in financial value of minerals in the state. These miscellaneous minerals

include:

Aplite—among Piedmont crystalline rocks along the Piney River in Amherst County—used in the ceramic and glass industry—Virginia ranks first in quantity and in value

Bauxite—in Augusta County—used for manufacturing aluminum, chemicals and abrasives

Gypsum—in Smyth and Washington Counties—used primarily for the manufacture of cement, plaster of paris, wallboards, fillers and chalk

Iron ore—in central and southwestern parts of the state—used in furnaces for the extraction of the metal itself

Kyanite—in Buckingham, Charlotte and Prince Edward Counties—used in the manufacture of high-temperature refractories, used by metallurgical and glass industries, for insulators, for spark plugs, porcelains, boiler furnaces and in the ceramics industry—Virginia ranks first in quantity and in value

Manganese—in central and southwestern parts of the state—in Augusta, Bland, Smyth, Giles and Wythe Counties—used in the manufacture of steel, dry batteries, chemicals, ceramics, fertilizer, drier in varnish and printer's ink

Petroleum—in Lee and Scott Counties—used primarily for fuel

Salt—in southwest—in Smyth and Washington Counties—used in the manufacture of various industrial chemicals and for specialized use in food, clay, dye, glass and paper industries; the brine used in manufacturing chlorine and soda ash

Soapstone—in Albemarle, Franklin and Nelson Counties—used for the manufacture of switchboards, electric insulators, insecticides (ground soapstone) and for industrial and research laboratories

Talc—in Fairfax and in Franklin Counties—used as paint extender and as pigment, paper and rubber filler, ceramic products, lubricant, dusting material and abrasives

Titanium concentrates—in Nelson, Hanover and Amherst Counties—these minerals consist of ilmenite (used chiefly in the manufacture of

pigments and to a slight extent in making steel) and rutile (used mainly for coating on electrical welding rods); titanium is used for increasing the hardness, strength and durability of steel and is sometimes used in making pottery, china and stainless steel—Virginia ranks third in titanium concentrates

Sand and gravel, used primarily for roadbuilding and general construction projects, rank fourth in value. Most of the sand and gravel is located along the Coastal Plain, especially in Henrico, Chesterfield, Prince George and Princess Anne Counties. Sand and gravel are also used for "fill," for engine sands, railroad ballast and glass. Clay (excluding that type used in the manufacture of pottery) ranks fifth in financial value. Clay deposits are widespread throughout Virginia—especially in Botetourt, Buckingham, Chesterfield, Henrico and Prince William Counties—and vary from red to light-colored to white. They are used chiefly for brick and tile construction.

With respect to metals, Virginia mines the following:

Barite—widespread deposits—used in the preparation of oil well drilling, muds, chemicals

Diatomite—Tidewater section—an earthy material used as an insulator, as a filter medium for oils, in sugar refining

Feldspar—widespread deposits—chiefly in Amelia, Bedford and Prince Edward Counties—used chiefly in the ceramics industry for making pottery and in the manufacture of glass, enamelware, enamel brick, and as an abrasive in soaps and cleansers

Gold—northeast Piedmont and Blue Ridge Plateau—little gold at present but the best developed gold deposits are located in Fauquier, Buckingham, Culpeper, Goochland, Louisa, Orange, Spotsylvania and Stafford Counties—chief uses of gold include as a bullion for backing of United States currency, in the manufacture of jewelry, in the process of gilding, lettering, plating, and in the chemical industry

Lead and Zinc—lead: in Albemarle, Spotsylvania, Louisa and Wythe Counties—used in the manufacture of paint, in storage batteries, cable covering and as an alloy; zinc: in Scott, Wythe, Rockingham and

Spotsylvania Counties—used for producing metallic zinc, for galvanizing and (when alloyed with copper) for making brass

Mica—among the crystalline rocks of the Piedmont Provinces—white mica called muscovite is used chiefly for electric insulation, for coating wallpaper, for roofing paper, in lubricants and in heat-resistant windows; sheet mica is used in electronic equipment—in Amelia, Bedford, and Henrico Counties

Natural gas—in Buchanan and Dickenson Counties—used for fuel and power

Pyrite—widespread deposits, particularly in Carroll County—used for its sulphur content in the manufacture of sulfuric acid—Virginia ranks second in quantity

Tungsten—in Mecklenburg County—used for making high-speed tool steel and munitions

Wool-rock—in the Valley of Virginia and the Ridge provinces—used for the manufacture of rock wool for heat and sound insulation

As civilization progresses and new inventions are created, the demand for natural resources will increase. As new processing methods are devised, Virginia will undoubtedly increase the development of such resources.

Human Resources

The natural resources of a state assume a comparatively minor role unless there are human resources to develop and to utilize them. The present population of Virginia is approximately 3,900,000 people. This figure represents a gain of approximately 17% in the last decade. Virginia now ranks sixteenth in population among the fifty states of the United States. Of this total population, approximately 40% in 1960 lived in incorporated localities having a population of 25,000 or more, an increase of approximately 4% over 1950; approximately 78% are white and 22% are non-white. Of the non-white population, approximately 21% are Negroes and the remainder consists primarily of Indians, Chinese and Japanese. Most of the survivors of the Mattaponi and Pamunkey Indians now live on reservations in King William County and the Chickahominy Indians in New

Kent and Charles City Counties. Of the white population in Virginia, only 1.03% is foreign-born.

Density of population refers to the average number of people per square mile in a state. Density is found by dividing the total population of a state by the total land area of the state. The density of population in 1960 was 96. The counties of Fairfax (southwest of, and adjacent to, Arlington County) and of Henrico (adjacent to Richmond) more than doubled their population from 1950 to 1960.

From 1880 to 1930, while the population was increasing rapidly in most states of the United States, it was increasing very slowly in Virginia—only a 5% increase. During this period, there was a large migration from Virginia to other regions of the United States, primarily to seek better employment opportunities. Of this emigration, 65% consisted of non-whites. This emigration practically ceased during the 1930's. During the Great Depression, agricultural workers who had made up the large proportion of the previous emigration realized the futility of migrating to urban areas beyond the state, already overcrowded with unemployed people. Although manufacturing activities in the nation declined during this period, in Virginia such activities increased, causing the number of employees in manufacturing to increase in Virginia. At the same time, governmental activities within Virginia and in areas adjacent to Virginia greatly expanded, thus affording more opportunities for additional employment in Virginia than in many other states of the Union during this time.

In the 1940's Virginia had a percentage rate of population growth of 23.9%, the highest percentage rate since the first census of 1790. This growth was partly a result of a high birth rate, a low death rate and the greatest net immigration of people in Virginia's history since the colonial period. Approximately 216,900 persons became residents of Virginia during this decade. At the same time, there was a high rate of development of employment opportunities in Virginia as manufacturing, mining, tourist trade, wholesale and retail trades and service industries expanded rapidly. The chief factor, however, in the immigration increase was the widespread increase of federal government employment, civilian and military.

The total population of the state increased by 18% during the decade 1950-1960. However, during the same decade, Virginia changed in population

rank from the fifteenth place among the forty-eight states to the sixteenth place among the fifty states. The ten most populated cities in Virginia are Norfolk, Richmond, Newport News, Portsmouth, Roanoke, Alexandria, Hampton, Lynchburg, Danville and Petersburg. During the past decade, the population of three cities has been materially increased through annexation. In 1952, Hampton, Phoebus and Elizabeth City County consolidated into the first class city of Hampton. In the same year, Warwick County became a city also. In 1955, Norfolk became the largest city in population in the state when it annexed the Tanners Creek Magisterial District of Norfolk County. In 1958, the cities of Warwick and Newport News were officially consolidated into the one large city of Newport News which now ranks third in population.

S U M M A R Y

Since Virginia borders the Atlantic Ocean and is located almost halfway between the northern and southern boundaries of the United States, it has a very favorable geographical location. An abundance of mountain and plain areas, rivers and lakes, a moderate climate and the presence of varying altitudes from sea level to 5,719 feet furnishes Virginia with five distinct topographical regions and much scenic beauty. Several unique geographical features found in Virginia such as Burning Spring, Natural Bridge, Natural Tunnel, Crabtree Falls, Natural Chimneys, several caverns and the nine state parks, in addition to the well-known Shenandoah National Park, help to make Virginia a most desirable tourist area. A variety of natural resources such as soil, forests, fish, waterpower, coal, miscellaneous minerals and metals promote numerous occupations within the boundaries of Virginia. Ranking thirty-sixth in area and sixteenth in population among the states of the United States, Virginia has an attractive environmental location with a large diversity of skills among its inhabitants. Thus, Virginia is well-endowed geographically and has many potential resources for future progress.

2

Historical Life: 1584-1775

Exploration and Colonization

Through the efforts of John Cabot who explored the coast of North America in 1497, according to a patent granted to him by King Henry VII, England had a substantial claim to New World territory. Attempts at founding an English colony in America, however, were not made until 1583 when Sir Humphrey Gilbert received permission from Queen Elizabeth to settle a colony in the area now known as Newfoundland. This attempt was unsuccessful and Sir Humphrey Gilbert and his colleagues drowned during a storm at sea on their return voyage. Nevertheless, Gilbert had selected a site for a colony and had claimed the island for England. The proprietary patent which Gilbert had received from Queen Elizabeth was renewed and passed to his half-brother, Sir Walter Raleigh.

In 1584, the name "Virginia" was given to the area of land claimed by John Cabot, an area extending from Roanoke Island 600 miles in an arc formation. Some historians state that Raleigh himself named the area "Virginia" in honor of Queen Elizabeth, the Virgin Queen, while others indicate that Queen Elizabeth herself named it in her own honor. From 1584 to 1591, Raleigh made numerous attempts with the use of his personal fortune to establish an English colony on Roanoke Island—located off what is now known as the North Carolina coast—but his efforts were futile and the so-called "Lost Colony" resulted. In 1587, after Raleigh's second group of colonists had arrived at Roanoke Island (the first group having returned to England after unsurmountable difficulties had beset them), they established a settlement there. This was the settlement where the first child of English parents was born in America. Her name was Virginia Dare (named in honor of her birthplace) and she was the granddaughter of John White, Governor of the settlement. When the colonists' provisions became low, Governor White returned to England for additional ones. Four years passed before he returned to the settlement because of the War between

England and Spain, and upon his return, he found no settlers on the island. Various areas and locations were searched in vain and only one possible clue was ever found: the letters, "CROATAN," carved on a tree. These letters spelled the name of an island which had been inhabited by friendly Indians of the same name. Thus, the "Lost Colony" remains an historical mystery which has never been solved.

The many sincere efforts on the part of Sir Walter Raleigh plus the vast sums of money which he spent for these colonization attempts convinced the English people that colonization was too complicated an activity for individuals to pursue alone. Since the English government did not desire to undertake these settlement projects, charters were issued by King James I to stock and joint-stock companies. Under this system, each stockholder bought a certain number of shares. If the company succeeded, each stockholder earned a profit based upon the number of shares he owned. On April 10, 1606, the Virginia Charter was granted under which two companies were incorporated: the London Company consisting mainly of men from London and the Plymouth Company consisting mainly of men from Plymouth and neighboring towns. The charter granted them the right to settle in the area in that part of the American coast known as "Virginia" between 30 and 45 degrees north latitude and as far inland as 100 miles. The London Company was granted for settlement the coast between 34 and 41 degrees north latitude and fifty miles north and south of the point of settlement; the Plymouth Company was granted the coast between 38 and 45 degrees north. The overlapping area between 38 and 41 degrees could be settled by either company as long as the company did not colonize within 100 miles of a settlement established by the other. The charter also guaranteed the colonists and their descendants all rights, privileges and franchises enjoyed by Englishmen living in England at this time.

The government of the colony established by the Virginia Charter was to consist of a Superior Council of thirteen members in England and a Resident or Inferior Council in the colony itself, with complete administrative powers and political control reserved for the King. Each landholder was required to pay an annual quitrent to the Crown and was forbidden to carry on trade with any foreign country without a license. Before the charter was signed, in order to encourage a large number of stockholders, the London Company agreed to make each subscriber to its

stock who paid twelve pounds and ten shillings the "lord of 200 acres of land" which would be owned by "him and his heirs forever." Consequently, the company raised sufficient money to finance a colonizing expedition, and, shortly after the charter had been signed officially by the King, the company sent its first emigrants on the way.

The settlements of the Plymouth Company were unsuccessful. The London Company had six hundred fifty-nine members, many of whom were knights, aristocrats and gentlemen of learning as well as the usual merchant and middle class citizens. In general, there were two groups of stockholders: the adventurers who purchased the stock but remained in England, and the planters who personally established the colony and then lived in it. Although the company was primarily organized for profit making, it was also expected to help the mother country, England, by supplying her with products which she herself could not produce. Some of the colonists sincerely desired to acquaint and convert the Indians to Christianity. The leader of the London Company organization was Bartholomew Gosnold and his chief associates were Edward Maria Wingfield, a rich merchant, Robert Hunt, a clergyman, George Percy, a poet and scholar, and John Smith, a versatile individual.

On December 6, 1606, the London Company dispatched three ships from Blackwell, London, England: the Sarah Constant (or Susan Constant), captained by Sir Christopher Newport, the Admiral of the fleet; the Goodspeed (or Godspeed), captained by Bartholomew Gosnold; and the Discovery (or Discoverer), captained by John Ratcliffe. These ships carried one hundred twenty passengers, men and boys, only sixteen of whom died on the long journey to Virginia. This is a very small number lost when one considers the size and type of ships used, the extremely long voyage which lasted approximately four months, over the Atlantic Ocean at its greatest width, the lack of proper food and drinking water and the severe storm which the fleet encountered off the Florida coast. This storm blew them off their intended course to two capes which appeared guarding a huge bay. The settlers sighted these capes on Sunday, May 6, 1607 and named them Cape Henry for Henry, Prince of Wales, eldest son of James I, and Cape Charles for Charles, the Duke of York, another son of James I. The bay was Chesapeake Bay, so-named by the Indians. They sailed up a river tributary, called Powhatan by the Indians, to the bay and then to a peninsula located

about fifty miles above its mouth. This site is believed to have been chosen because the water was deep enough to allow the ships to dock close to the shore and because a peninsula could be comparatively easily defended against Indian attacks. Here the settlers landed on May 24, 1607 and established the first permanent English settlement in America. They called the settlement Jamestown in honor of their King, James I, and called the river on which they had traveled the James River. There, the minister, Parson Robert Hunt, standing under a ship's canvas sail stretched between four trees, led a thanksgiving service to God on behalf of all the passengers for their safe arrival in America. He also had the privilege of celebrating the first Holy Communion in America. Thus, the settlement of Jamestown became the "Cradle of the Republic" because it was the birthplace of the area now known as the United States as well as of the State of Virginia.

The colonists had been given sealed written instructions concerning their local governmental leaders, and these instructions were not to be opened until the ships reached Virginia. The council members had no power to make laws but were appointed to see that the laws approved by the King were enforced. Since John Smith had shown strong leadership qualities, had frequently criticized the management of the ships, and had exerted much influence on the voyage to America, he had aroused jealousy on the part of some of the other voyagers. As a result, the accusation was made that he was desirous of becoming the King of Virginia. Fearing that he might assume too much political power, his cohorts arrested him upon the pretense of treason and mutiny and imprisoned him on shipboard until the end of the journey. When the unsealed instructions were read, the first Resident Council consisted of Bartholomew Gosnold, George Kendall, John Martin, Christopher Newport, John Ratcliffe, John Smith and Edward Maria Wingfield, president of the first council. John Smith was later charged with sedition, acquitted, and finally restored to his rightful council position.

In addition to naming the members of the Resident Council, the written instructions for the colonists provided that all the colonists should work for a "common store." This rule resulted in a great hardship because some of the physically able and capable colonists left the tasks of planting, building, and performing of additional necessary duties to others. Some of the colonists were gentlemen by profession, unaccustomed to hard physical labor, and interested mostly in finding gold or attaining a quick fortune and

then returning to England. A majority of the colonists, however, worked hard and, after building a fort for protection, continued to construct a storehouse, a church and log huts for residences. The morale of the colonists became very low when the food supplies became scanty; diseases of fever and dysentery appeared due to the humid, marshy, mosquito-laden land area; and Indian attacks became common. With arrows tipped with deer's horn and with sharp stones, the Indians had shot at the colonists, severely injuring Captain Gabriel Archer and one of the sailors. However, the first large organized Indian attack occurred in the latter part of May when two hundred Indians attacked the settlers. They were finally driven back through the efforts of the colonists under the leadership of Captain Edward Maria Wingfield.

Captain John Smith, Captain Christopher Newport and twenty other settlers decided to explore the general area of the Jamestown region. From June to September, they journeyed the entire length of the Chesapeake Bay and they witnessed the eastern shore of the bay, the Potomac River, the Great Falls, the Susquehanna River, the Rappahannock River, the York River and the Chesapeake River. Smith carefully drew a map of the entire area and called it a "Map of the Chesapeake." He sent it to England via Captain Newport, and it was later published in London.

The courage and persistent hard work of the settlers and the leadership of Captain John Smith were invaluable. Captain John Smith maintained harmony in the Council, encouraged friendly relations with the Indians (eventually to the extent of getting corn, an absolute necessity, from them) and changed the "common store" policy to a "no work-no eat" policy which had most effective results on the indolent settlers. In 1608, he wrote a fascinating narration about the founding of the Virginia Colony which he entitled "A True Relation." He is sometimes referred to as the "Father of Virginia" because of his participation in so many activities: a governmental official (president of the Council from September 1608 to September 1609), a diplomat in his relations with the Indians, a leader in attempting to maintain peaceful, cooperative relations among the settlers themselves, an observing prisoner of the Indians (during which time he learned much of their culture and experienced the miraculous saving of his life by the Indian girl, Pocahontas) and a writer who tried to picture the happenings of the settlers in an enjoyable fashion.

In addition to saving Smith's life, Pocahontas helped the Virginia settlers by having corn and venison brought to them and, later, by warning John Smith of a proposed Indian attack. After John Smith returned to England, Pocahontas stopped visiting the colony, and the Indians soon refused to bring any more corn to the colonists. Pocahontas was eventually captured by a Jamestown settler, Captain Samuel Argall, through the trickery of an Indian who betrayed her in return for a "copper Kettle and some trinkets." She was held as a hostage in Jamestown in an effort to restore peace between the Indians and the English. This strategy was so successful that friendly relations were re-established. Two years later, in April, 1614, Pocahontas married John Rolfe, an English gentleman, at the Jamestown Church. Pocahontas had met and had become well acquainted with John Rolfe during her captivity at Jamestown. She had been baptized at the Jamestown Church and had been given the name of Rebecca. They lived for a while at Jamestown and then at Varina, Rolfe's plantation. Three years after their marriage, Rebecca and John and their baby, Thomas, age one, traveled to England, accompanied by approximately a dozen Indians who desired to be educated in England. Rebecca was received royally at the court, and she was so well-mannered and charming that this lady who had grown up in the wilderness of Virginia was readily accepted by London Society. When Captain John Smith heard of her arrival in England, he informed Queen Anne of the great help furnished to the Virginia Colony by this Indian maiden during her youth. Pocahontas then became Lady Rebecca and remained in England for over a year. As they were getting ready to return to Virginia, Lady Rebecca died suddenly and was buried in St. George's Church at Gravesend, England. Today, two beautiful stained-glass windows may be seen in this church, a gift of the Colonial Dames of Virginia, as a token of gratitude for services rendered to the Colony of Virginia by Princess Pocahontas.

John Ratcliffe and Captain John Smith succeeded to the presidency of the council after Captain Wingfield. While Smith was president of the council, King James I granted another charter for Virginia in 1609 upon the reorganization of the London Company. This charter provided that: (1) the area of Virginia was henceforth to include all the land on its eastern coast 200 miles north and 200 miles south of Old Point Comfort and extending from the Atlantic Ocean west and northwest to the Pacific Ocean; therefore, Virginia included at this time land now found in Ohio, Illinois, Indiana,

Maryland, North Carolina, West Virginia, Kentucky, Wisconsin and part of Minnesota; (2) a Resident Council was to be established which would have the power to distribute land, make all laws and appoint all officers for Virginia's government; membership in the council was to result from election by the members of the company in England, a majority vote being required for the election; and (3) the colonists were to take the Oath of Supremacy making the Church of England the only recognized church of the colony.

In the same year, Captain John Smith bought a tract of land located near Richmond from the Indian Chief, Powhatan, and there he founded a settlement which he called "None Such." He named it thus because he believed there was "none such" site as scenically beautiful anywhere. This site was formerly Emperor Powhatan's summer court location.

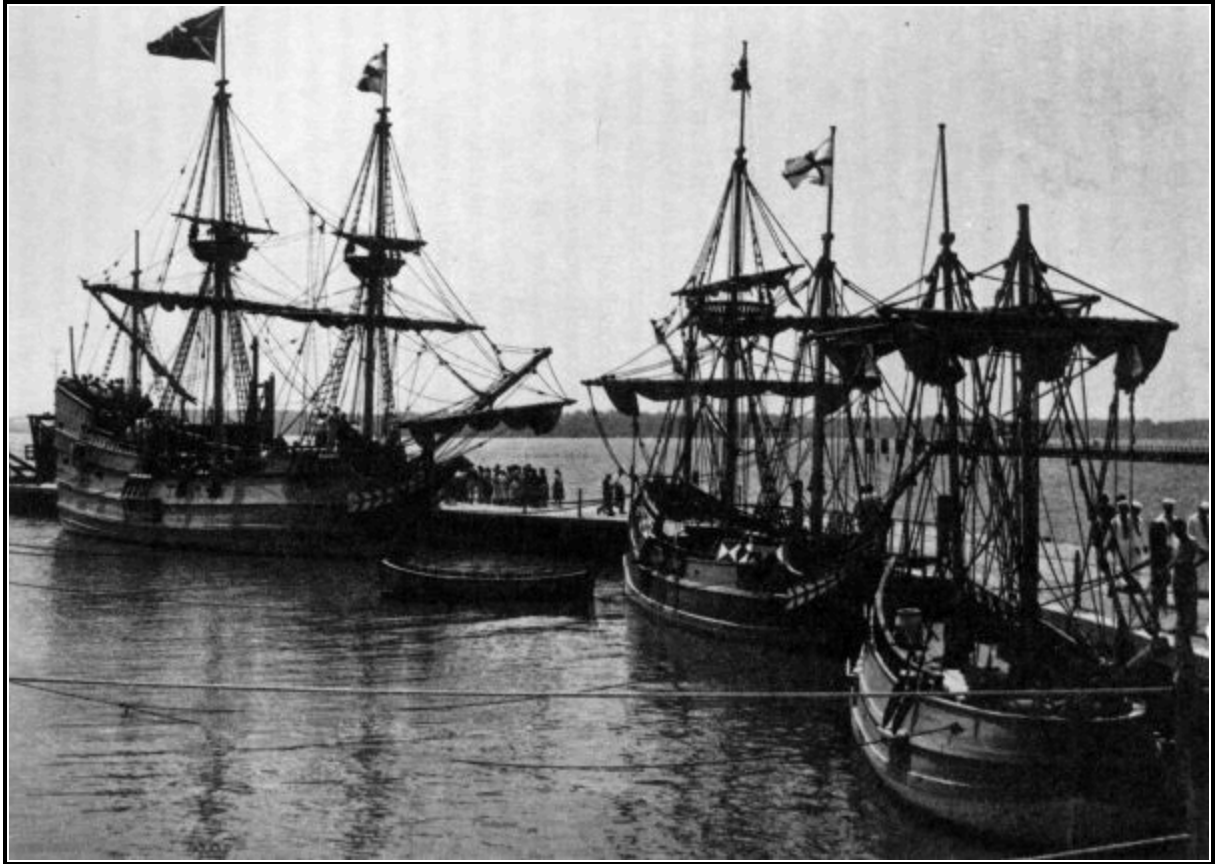
In the same year also Thomas West, Lord de la Warr (Delaware), became the "Lord Governor and Captaine Generall" of the Virginia colony. Although he held this office until June 1618, he remained in England during this time because of ill health with the exception of the period June 1610-March 1611. In May 1610, Sir Thomas Gates, the first Governor of the colony of Virginia, arrived at Jamestown. Captain George Percy had succeeded Captain Smith as president of the Council. Starvation from a lack of food supplies followed, and the population of the colony was reduced from 500 to 60 people. These sixty were approximately fourteen miles away from Jamestown on their way back to England when some of Lord de la Warr's ships arrived bringing food and fifty additional settlers. Lord de la Warr was responsible also for having a trading post established at Hampton. Today, Hampton is the oldest continuous Anglo-Saxon settlement still in existence in the United States.

A short time later, Sir Thomas Dale (better known as "Marshall") arrived from England as Governor of the colony. He was considered a harsh Governor because his martial law administration was characterized by severe punishment for wrongdoing. However, he was responsible for having common property divided among the colonists and for allowing them to own their shares privately. He ordered that three acres of land be given to every man. In return for this land, the owner was required to give six bushels of corn each year to the colony. The owner then was allowed to keep the rest of his crops, two acres of which had to be planted in corn

before any tobacco could be raised. This action was the first official recognition of the right of owning property in America and such action resulted in much more industrious efforts put forth on the part of the new owners.

In 1611, Sir Thomas Dale founded the third settlement in Virginia: Henricopolis or the City of Henricus (named for the eldest son of King James I, Prince Henry). Approximately 350 settlers, mostly German laborers, soon colonized there. Two years later, Governor Dale was also responsible for a settlement being established at the site of the junction of the Appomattox and James Rivers. It was called New Bermuda or Bermuda Hundred because of its similarity to the British Island of Bermuda. For many years this settlement served as a convenient shipping point and the present city of Hopewell is an outgrowth of this early site.

In 1612, a third charter was granted by King James I for the Virginia Colony. This was a most liberal charter as it abolished the Superior Council and gave full governing powers of the colony directly to the London Company members, thus making the company a self-governing corporation. The name was changed from the London Company to the Virginia Company. The company was to hold four meetings each year in London, and these meetings were called meetings of the General Court or "Quarter Courts." At such meetings, the officers were to be elected by the stockholders and the laws of the colony were to be passed. The General Court also had the power to manage the business of the company and to appoint the Governor and councillors for the Virginia colony. The charter extended the eastern seaboard boundary to include the Bermudas and, in addition, gave the company the authority to hold lotteries for its own benefit.



VA. DEPT. OF CONSERVATION AND ECONOMIC DEVELOPMENT

Reproductions of Susan Constant, Godspeed and Discovery

In the same year, John Rolfe began experimenting at Varina, his plantation, with some tobacco seeds brought from the West Indies or from South America. Pocahontas helped Rolfe in this task by teaching him the necessity of keeping the young, tender leaves protected from the cold and by showing him how gently the young tobacco plants must be transplanted. Rolfe became the first white man to raise tobacco successfully in Virginia. Then the problem of curing tobacco in such a manner that it could reach England without spoilage faced him. After some experimentation, his shipment was the first one to reach England in good condition. As a result, tobacco became the first important money crop and export of Virginia. In addition to the price the planters received for this product, the production of tobacco created employment for merchants and shippers. After Rolfe's success in growing and curing tobacco, it was grown by practically everyone in a variety of places: fields, gardens, between graves and, in some instances, in the streets of Jamestown. Prosperous times had finally

arrived at Jamestown. When the Englishmen at home realized the profit and excellent opportunities available in tobacco growing, many journeyed to Virginia and began tobacco raising. Previously, the settlers' occupations had consisted primarily of farming (especially the cultivation of grapes) and of the manufacture of potash, soap, glass and tar. The successful growing of tobacco caused a tremendous increase in the population of the colony and in the amount of tobacco shipped from Virginia. This infant tobacco production was the background for the present day high rank of Virginia in tobacco production.

In 1616, the company allowed each settler to have 100 acres of land for his personal use. A few years later, a 50-acre tract of land was awarded to each settler who paid his own fare to America and an additional 50 acres for every pioneer he brought with him. This land arrangement, called the "Head-Right" system, formed the basis of the Virginia land system. This system resulted in the creation of large estates, and in the 1650's the average size land grant in Virginia was approximately 500 acres. Such areas were commonly called plantations, and the owners of such plantations, known as Virginia planters, ultimately became the dominant influence in the Virginia government. Some of these early plantation owners were William Byrd, Thomas Warren, William Fitzhugh and Abraham Wood.

After the Virginia Company had been given full governmental control of its colony, there were some members in the General Court who believed that Virginia settlers themselves should be given more freedom. When these liberal-minded individuals gained control of the company, their leader, Sir Edwin Sandys, was responsible for obtaining ratification of "The Great Charter of Privileges, Orders and Laws" by the General Court on November 28, 1618. In 1619, Sir Edwin Sandys was elected head of the company and he immediately sent Sir George Yeardley as Governor to Virginia to put the charter into effect in order that the settlers would enjoy self-government. Because of the sincere efforts put forth by Sir Edwin Sandys on behalf of this self-government in Virginia, he is often referred to as the "Father of Representative Government in America."

According to the Great Charter, the Virginia Colony was to be governed by two councils: one to consist of the Governor and his advisers chosen in England by the Virginia Company itself and the other council to consist of representatives, called Burgesses, chosen by the Virginia settlers

themselves. Governor Yeardley carried out his instructions to have the free inhabitants of the Virginia Colony choose representatives to help him and his advisers in matters concerning taxation and laws for the welfare of the settlers. The settlements were organized into four "incorporations" or "parishes" with Jamestown, the titular capital city of the colony: City of Henricus, Charles City, James City and Kiccowtan (later called Elizabeth City). These parishes were then further divided into eleven districts called boroughs, hundreds or plantations. Each of these districts was asked to elect two Burgesses as representatives in their local government.

Governor Yeardley, therefore, called the first representative legislature in America to meet in the little church at Jamestown, July 30, 1619. This first General Assembly of Virginia consisted of the Council, the upper house, and the House of Burgesses, the lower house. This group was the first popular assembly in the New World. There was a delay in the initial meeting because the local elections had to be postponed until after the plowing and sowing of seeds had been done. The session lasted six days and then adjourned because of the severe heat. The session began with a prayer by the minister and the Governor and Council members sat in the front pews of the church. John Pory was the presiding officer of this first General Assembly and he was called the Speaker. Each burgess was called by name and then given the oath of supremacy in recognition of the sovereignty of King James I. After the oath had been taken, he officially entered the Assembly. Two burgesses were refused membership in the Assembly due to an unusual land patent condition. One of these prospective burgesses had been legally excused from obeying colonial laws by his land grant terms. The action of refusal was significant because it created the precedent that the Virginia Assembly has the right to decide the qualifications of its own members and to expel members even if they have been sworn in and admitted to the Assembly if conditions so warrant.

Although the session was very brief, much was accomplished, including the acceptance of the charter by the General Assembly members. Since this charter was the foundation of the laws used by the General Assembly to rule the Virginia Colony, it was called a constitution and was the first written constitution promulgated in our country. Other petitions presented at this time are indications of the trend of thought of these political leaders: former grants of land should be confirmed and new grants made to the early

settlers, shares of land should be given to all male children born in Virginia, rents of the ministers' lands should be made payable in commodities instead of money, a sub-treasurer should be appointed to live in the colony, and men should be sent to build a college in the colony. Other laws passed by the Assembly itself concerned the punishment of idlers, gamblers and drunkards, the payment of church dues, the religious duty of the colonists, the regulation of trade, the relations of whites to Indians, the regulation of the duties of ministers and the conduct of servants. The Assembly also levied a tax of one pound of tobacco on every male inhabitant over sixteen years of age, the tax to be used for the payment of services of its officers (speaker, clerk, sergeant and provost marshal of James City). The Governor then adjourned the Assembly until March 1, 1620.

In addition to the regular settlers at Jamestown, from time to time indentured servants came to America. They were individuals who signed contracts called "indentures" whereby they agreed to work as apprentices or tenant farmers for a stated time in return for their paid passage to America. On August 30, 1619, a ship that looked like a Dutch man-of-war but actually was believed to be a pirate craft came to Jamestown with a cargo of twenty Negroes which it sold to the Governor and the colonists. This was the first recorded selling of slaves in the area now called the United States. The Negroes seemed to be more easily adaptable to hard, manual labor than the Indians or indentured white servants had been. The need for labor which could endure the intense sun of the tobacco fields made the Negroes much more desirable than the whites since they seemed to endure these conditions more satisfactorily.

During the same year, another historical milestone occurred in Virginia when a ship arrived at Jamestown with sixty young women from England. Each bachelor who desired a bride had to pay 120 pounds of tobacco for his bride's passage. The young women stayed at the married planters' homes until their marriage. These brave women made happy homes and helped shoulder the responsibilities so that community life in Virginia became more settled. They wrote such cheerful, courageous accounts of their life in Virginia that a second shipload soon followed and more homes were rapidly established.

In July 1621, the London Company issued to Virginia a code of written laws and a frame of government patterned after the English type: the

Governor of the colony was to be appointed by the company, a Council was to be appointed by the company, and a House of Burgesses was to be elected by the colonists themselves. Whenever making laws, the councilors and burgesses were to sit together. A law would be proposed, debated and, if passed, be submitted to the Governor for his approval. The company in England would have the final ratification or rejection. The right of petition and the right of trial by jury were guaranteed. A unique feature was the provision that the burgesses had the power of vetoing any objectionable acts of the company. Thus, additional political rights were furnished to the colonists by this so-called Virginia Constitution of 1621.

At noon on March 22, 1622, the "Great Massacre" occurred. Complete annihilation of all the Jamestown inhabitants by the Powhatan Indian Confederacy was prevented primarily by the warning of an Indian convert, a boy named Chanco. The settlement of Henricopolis (now called Dutch Gap) was completely destroyed: 347 men, women and children—approximately one-third of the total population of the colony—were slain at this time under the strategy of Opechancanough, the leader of the Indians. An ironic happening of the Great Massacre was that one of the victims was George Thorpe, superintendent of the planned college and university of colonial Virginia. He had been a member of Parliament who had sold his estate in England and had come to Virginia to spend his personal fortune and the rest of his life for the conversion and the education of the Indians. By 1619 the General Assembly had set apart 10,000 acres of land for the construction and support of a college for educating Indian youth in "true religion, moral virtue, and civility." The College of Henrico, the first formal educational institution of higher learning in the English colonies, was also destroyed during this Indian Massacre. So strong was the vengeance of the British upon the Indians that no more serious trouble with the Indians occurred until 1644.

Some influential people in England who did not approve of a British colony in America tried to encourage the King to abolish the Virginia Company's charter. The Great Massacre gave King James I the opportunity he sought, and, since the company had been unable to pay its dividends, he finally annulled the company's charter on May 24, 1624. Virginia thus became the first royal or crown colony in England's history. The greatest change under the new governmental setup was that now the King, rather than the Virginia

Company, appointed the Governor and the councilors, thus making the Governor a royal Governor rather than a company official. King James I died the following year and his son, Charles I, succeeded to the throne. Two years later, the King authorized the General Assembly to meet, primarily in order that he could obtain the excellent monopoly of the Virginia tobacco trade. Much to his surprise, the colonists refused to grant him such monopoly, and, as a result, he did not authorize another meeting for twelve years.

From 1629 through 1632, two more provinces were carved from Virginia by royal grants: the Province of Carolina to Sir Robert Heath and the Province of Maryland to Lord Baltimore. The Virginians had not protested much against the grant to Sir Robert Heath, but they did protest strongly against the grant to Lord Baltimore. The leader of this protest was William Claiborne who had previously organized a colony and a trading post on part of the Maryland grant area.

In 1634, the Virginia Colony was politically reorganized from four parishes to eight shires or counties: Accawmack (an Indian name meaning "the-across-the-water-place"; the name was later changed to Northampton, an English county name and the two present counties of Accomack and Northampton occupy the same original site), Charles City (named for King Charles), Charles River (changed to York in 1642-43 in honor of the Duke of York), Elizabeth City (formerly Kiccotan—named for Princess Elizabeth, daughter of King James), James City (named for King James), Henrico (named for Prince Henry, son of King James), Warrosquyoake (changed to Isle of Wight in 1637—some of the early patentees had come from the Isle of Wight in the English Channel: the word, "wight," means a passage or channel; therefore, it means "island of the channel"), and Warwick River (changed to Warwick in 1642-1643, named after the Earl of Warwick who was a prominent Virginia Company member). These counties were the second oldest unit of local government in the United States, the New England town being the first. The long distances between plantations and the difficult transportation facilities on land and on the rivers discouraged the use of the New England Town Meeting type of local government in the Virginia Colony. The counties themselves were patterned after the English counties. At this same time, suffrage was extended to all free male citizens for electing members of the House of Burgesses and county officials.

On February 12, 1634, Benjamin Syms of Elizabeth City County gave 200 acres of land plus 8 cows for the establishment of a free school for white children. This was the first legacy for the promotion of public school education, and Elizabeth City County was the birthplace of the Virginia public school system.

In 1642 Sir William Berkeley arrived in Virginia as a royal Governor. Until this time, there had been much religious tolerance in the Virginia Colony although the Church of England was the Established Church of the Colony. The religious laws were liberal, and other religions had existed without interference. Sir Edwin Sandys had encouraged some Separatists (Puritans) to live in Virginia, and by the time of the dissolution of the Virginia Company charter, thirteen parishes had been created and many clergymen had been active in the colony. Governor Berkeley was an extremely strong defender of the King and of the Church of England and disliked the Quakers and the Puritans very much. He was directly responsible for driving most of them from the Virginia Colony by enforcing a statute of 1643 which provided that no individual who disbelieved the doctrines of the English Church could teach, publicly or privately, or preach the gospel within the limits of Virginia.

In 1644 another Indian massacre occurred resulting in the death of 300-500 Virginians. This massacre was led by the aged, famous Indian leader, Opechancanough. It took place on Holy Thursday and the Puritans believed that this was a direct act of God as punishment for their previous treatment in Virginia. The settlers finally dispersed the Indians, destroyed their villages and destroyed the Powhatan Confederacy which had consisted of approximately fifty tribes. Opechancanough was later shot and killed.

In the following year, the General Assembly allowed the election of vestries by the qualified voters of each parish regardless of their religious faith. As counties were organized in Virginia, parishes likewise were established and vestries continued to be elected by the qualified voters. The vestry was the governing body of the parish, and although its membership number varied between the parishes, the number was finally fixed at twelve. They were self-perpetuating, and could only be removed by the General Assembly. They had the power to select a rector as well as to carry on regular parish duties. Under this arrangement, the Established Church was part of the county government with the officers of a parish having civil as well as

religious duties and authority. Some of the civil duties included levying tax rates on parish inhabitants to raise revenue for carrying out their objectives, maintaining roads to and from the church, keeping the vital statistics (records of births, marriages, deaths, et cetera) and aiding the poor.

During this period, the British Parliament began feuding with King Charles. The Virginians strongly favored the King, and after he was beheaded, the General Assembly passed a law recognizing Charles II, the former King's exiled son, as the lawful King of England. In return for their loyal support upon behalf of his father and himself, Charles II bestowed the title of "The Old Dominion" on the Virginia Colony, the only American colony ever to receive such an honor. Parliament tried to combat this loyalty to the King by appointing two Virginians, William Claiborne and Richard Bennett, as commissioners whose duty was to influence Virginia and gradually bring it under Parliamentary control. Parliament then provided them with an armed force. Governor Berkeley made military preparations also, but negotiations finally ended in a peaceful settlement without resorting to open hostilities in Virginia. Individuals who had favored the King during the Civil War in England between the Parliament and the King were called Cavaliers. Since Virginia had remained loyal to the King throughout this period, many Cavaliers had sought refuge in Virginia at this time. This action caused the Virginia Colony to receive the nickname of the "Cavalier State."

In 1650, Mary, Margaret and Giles Brent erected homes on Aquia Creek, Virginia. They were the first English Catholic inhabitants of Virginia. In this same area, twenty-six years later, the first English-speaking Catholic colony of Virginia was settled. In 1677, a Catholic Church was erected here. After their nephew, George Brent, and others had been successful in obtaining a Proclamation from James II guaranteeing religious freedom on the 30,000 acres of the Brenton Tract, many settlers came to this area. Today, a large bronze Crucifix can be seen near the highway in Stafford County as a reminder of the religious efforts of the Brent Family.

The Commonwealth and the "Golden Age"

The Virginia Colony finally received a charter of self-government during Oliver Cromwell's rule in England and became the Commonwealth of Virginia on March 12, 1651. The Treaty of Jamestown provided that

Virginians would be guaranteed the freedoms and privileges of the English people in return for a recognition of the Puritan Commonwealth of Cromwell in England. The colony prospered under Governors Richard Bennett, Edward Digges and Samuel Matthews from 1652-1660. By 1660, the population of the Virginia Colony was approximately 33,000 or over four times as much as in 1640. Many of this number consisted of Cavaliers. The population which first had centered around Jamestown, along the James River to the junction of the James and Appomattox Rivers and along the navigable inlets, now had broadened into the Tidewater area. As tobacco production and the use of tobacco increased and as soil fertility became exhausted, more land was added to the individual farms until large plantations appeared almost common. Class society in Virginia changed, generally, from a middle-class one to two distinct classes: the wealthy plantation owner who could afford such personal workers as slaves and servants and the tenant farmer who worked for a plantation owner. In return for his services, he was usually allowed to have a small plot of ground for his own use and a small farm on which to live. When the Cavaliers, mostly wealthy gentlemen, migrated to Virginia, they brought added aristocracy to the Virginia Colony.

In the meantime, other counties had been formed in Virginia. An area which had been settled originally in Upper Norfolk was named Nansemond County in 1642. "Nansemond" is an Indian word meaning "fishing point or angle." In 1648, the county of Northumberland was formed from a large Indian district formerly known as Chickacoan and it was named for Northumberland County, England. From this large area, one hundred sixteen counties were later formed. Within a twenty-five year period, seven additional counties were created: Gloucester County (formed from York and named for the third son of Charles I, Henry-Duke of Gloucester), New Kent County (formed also from York and believed to have been named either for the English Kent or for Kent Island), Lancaster County (from York and Northumberland), Surry (from James City County), Westmoreland (from Northumberland and later an addition from James City County), Stafford (from Westmoreland) and Middlesex (from Lancaster)—the latter five named in honor of English counties. The formation of many new counties during this time illustrates the great increase in population which took place.

When Charles II became King of England in 1660, Britain's colonial policy changed. Previously, the colonies had been more or less neglected, and interest in England had been chiefly centered upon religion, intellectual achievement and local issues. After the Civil War in England, the importance of the colonies seemed more apparent, competition in setting up and controlling colonial empires was greater and mercantilism became the key theory accepted by the leading countries of Europe. Mercantilism was based upon the idea that the colonies existed for the benefit of the mother country and that they had specific obligations or responsibilities to fulfill, namely: (1) to produce the articles which the mother country needs and which are impossible for the mother country to produce; (2) to supply the mother country with foodstuffs which she needs, (3) to furnish a market for the mother country's manufactured goods, and (4) to export colonial goods in mother country ships only. Earlier in 1651, Parliament had passed a law prohibiting foreign vessels from trading with the American colonists. This law had been aimed primarily at the Dutch. It also stated that all products sent by the American colonies to England or sent from one colony to another had to be carried in either English or American ships. However, there had not been strict enforcement of this law in Virginia.

The Navigation Acts of 1660 and 1663 were passed providing that goods imported into the colonies had to be carried by English, Irish or American ships. The act further stated that certain "enumerated articles" or exports could be sent only to the British Isles or to the English possessions: for example, tobacco, sugar, apples, wool, indigo and dyewood. The list was increased as time passed, and the ill feeling of the Virginia Colony as well as the other English colonies in America toward the mother country can be fully understood, especially since higher prices for their articles could be obtained from foreign countries. The second Navigation Act required that all European goods destined for the American colonies be sent to England and then shipped to America in English ships. Thus, England tried to maintain a monopoly of her colonial trade. The prosperity of the Virginia Colony was affected greatly by these acts. Virginia's economy at this time was almost completely dependent upon its export tobacco trade which was far in excess of the amount of tobacco which England needed. The Navigation Acts virtually closed all the markets except England and its possessions to Virginia tobacco. As a result, the English market was suddenly flooded with Virginia tobacco. There was much excess tobacco in

Virginia itself, some tobacco even rotting on the farms. The price of tobacco accordingly dropped from fourpence a pound to a halfpenny per pound by 1667. Virginia, as well as the other American colonies, at times violated the above regulations and sent some of its goods directly to other European countries in order to survive these economic blows. Thus, the Restoration Period which the Virginians had favored had some unexpected results for them. After the Virginians had urged Sir William Berkeley to resume the governorship prior to the Restoration, he had gone to England to intercede for the colonists concerning the tobacco trade and the other Navigation Acts, but his efforts had been futile.

Another surprise was received by the Virginians at this time. While Charles II was in exile in France in 1649, he granted more than five million acres of land lying between the Potomac and the Rappahannock Rivers to four Cavalier friends. This grant was called the "Northern Neck Proprietary" of Virginia. Twenty years later, he granted a new charter for the same territory to the surviving grantees. These actions were unknown to the colonists, and much of this same land had been settled under patents issued by the Colony itself. When the colonists learned of the new charter, there was much protest, and some of the colonists tried to buy out the grantees' interests. However, in most cases, their efforts were in vain. This grant was later referred to as the Fairfax Proprietary or Fairfax Grant. In 1673, the colonists found out that King Charles II had bestowed the rest of the Colony as a gift upon the Earl of Arlington and Lord Culpeper for thirty-one years. This eventually had no lasting ill effects upon the colonists because Lord Culpeper later purchased the Earl of Arlington's interest and King Charles himself bought back the entire area from him for a six hundred pounds per year pension. Lord Fairfax V became the owner in 1689 and the proprietary itself was abolished by the Virginia General Assembly in 1786.

In 1671, two explorers, Thomas Batts and Robert Fallon, traveled by horseback from Fort Henry (present Petersburg area) up the Roanoke Valley and across the Blue Ridge Mountains until they reached the top of the Allegheny Mountains. They proceeded to the New River and to an area in the present town of Narrows in Giles County. In order to claim this land for their King, Charles II of England, they had their Indian guides peel the bark off of four trees and then burn a symbol—the initials of King Charles, of Governor William Berkeley and of Colonel Abraham Wood (who was

responsible for this expedition)—on each tree with a pair of marking irons. Thus, they took possession of this land and all the area west of it in the King's name and provided a basic claim of land in Southwest Virginia.

In this same year, a unique attitude concerning public education was expressed by royal Governor Berkeley when he stated: "I thank God, there are no free schools or printing presses and I hope we shall not have them these hundred years: for learning has brought disobedience and heresy, and sects into the world, and printing has divulged them, and libels against the best government. God keep us from both."

In 1672, Parliament passed an act compelling each ship which left the colonies for Europe to post bond that it would deliver its cargo in England or otherwise pay the required duty. Colonial customs collectors were to be appointed whose chief duty was to supervise this trade. An export duty was to be paid on certain "enumerated" articles—tobacco, indigo, sugar, apples, dyewood and later, naval stores, molasses, lumber and hides—if such articles were sent from one colony to another. Strict enforcement of this act would have dire results on the Virginia colonists because their ships had been carrying products from the West Indies and from Virginia to northern ports and then to Europe. The colonists began to be extremely dissatisfied with the mother country.

Governor Berkeley at this time was aggravating the home situation of the Virginia colonists. He had limited suffrage to freeholders and householders only, had strongly influenced the election of Assembly members to individuals who were personal friends and who favored the King's policies and had been keeping the Assembly technically in session for fourteen years without any elections taking place. The grievance about which the colonists felt the most bitter, however, was the inadequate protection of the frontier from the Susquehannock Indian attacks. After these Indians had attacked a plantation owned by Nathaniel Bacon and had killed his overseer and one of his servants, Bacon decided that the colonists themselves should take organized action against the Indians since the Governor had practically ignored the attacks. One possible reason for the Governor's hesitancy in interfering in these Indian affairs was the high profit which he was receiving from the Indian fur trading. Many of Bacon's neighbors agreed with him, and they prepared to be the aggressors against the Indians. Bacon asked the Governor for permission to do so and for a military commission

for himself as the leader. Both requests were refused, and Bacon and his friends were declared rebels by the Governor. Consequently, Bacon and his followers decided to take matters into their own hands without the Governor's permission. They proceeded and successfully defeated the Indians. This action aroused Governor Berkeley who immediately considered Bacon a traitor, and a civil war or rebellion resulted.

Bacon, in the meantime, had been elected as a member of the House of Burgesses, and he went to Jamestown to participate in the Assembly. Upon his arrival, he was arrested, brought to the State House and charged with being a rebel. Governor Berkeley and the King's Council discussed Bacon's activities, and Bacon agreed to apologize for his actions if the Governor would grant him his commission. The Governor agreed, but Bacon felt that the Governor had no intention of carrying out his promise for a commission. Bacon discussed this meeting with his neighbor friends who decided to accompany him to Jamestown where he was to receive his commission. Bacon and approximately four hundred planters marched to the State House at Jamestown and demanded his commission. When none was forthcoming, he ordered his men to aim their guns at the windows of the State House where the House of Burgesses sat. At this drastic move, the Burgesses quickly prepared the commission paper and persuaded Governor Berkeley to sign it and then issued it to Bacon. Bacon and his followers then returned home. Governor Berkeley thereupon decided to fight Bacon and his associates. Berkeley then departed from Jamestown and crossed the York River to Gloucester where he called upon his friends to help him. Upon hearing that Bacon was approaching Gloucester, Berkeley fled across the Chesapeake Bay to Accomack. In August 1676, Bacon and his followers signed an agreement whereby they all pledged to fight any and all soldiers that Governor Berkeley might order from England to the colony. After some Indians living near Richmond made new attacks upon the settlers there, Bacon and his friends captured the Indian fort and killed or imprisoned the remaining Indians.

While Bacon was thus engaged, Governor Berkeley with eight hundred soldiers and eighteen ships in the James River had occupied Jamestown. Bacon proceeded next to Jamestown and defeated Governor Berkeley's forces there. Governor Berkeley and many of his soldiers fled to the ships and sailed away. Bacon realized that although he had won on land, he

would have no chance of holding out an attack from the ships. Therefore, he and his friends burned the State House and the rest of the capital, Jamestown, to prevent Governor Berkeley from repossessing it. Bacon had become ill with a fever and died shortly afterwards in October at the home of a friend in Gloucester County. Governor Berkeley had twenty-three of Bacon's followers put to death, but the principle for which they fought remained alive: "the people must be heard." Bacon's Rebellion is remembered in history primarily as a revolt of the plain, common man against a privileged few. Governor Berkeley was later recalled to England, and, upon his return, instead of being treated as a hero by the King, he was regarded with contempt.

In 1682, tobacco had been grown so extensively in Virginia that the price of tobacco on the London market had declined rapidly. When the British government refused a request from the Virginia colonists to either restrict tobacco acreage or order a temporary cessation of its growth, tobacco riots occurred in Virginia. During many nights, thousands of young tobacco plants throughout the colony were destroyed. Finally, after the execution of six tobacco plant cutters, the riots ceased. Eventually, the customs duty on tobacco was increased tremendously, and taxes in Virginia were increased at the same time.

In 1682, John Buckner established the first printing press in Virginia at Jamestown. His printer was William Nuthead who published several papers and two sheets of the acts of the Assembly of November 1682, supposedly without a license. The Colonial Council issued an order prohibiting anything from being printed until the King had given his permission as there was strong opposition against "the liberty of a press." Consequently, in December 1683, when King Charles II prohibited all printing in Virginia, William Nuthead moved his printing press to St. Mary's City, Maryland.

From 1691 to 1703, seven additional counties were formed in the Virginia Colony: Norfolk County (created from Lower Norfolk which had become extinct and named for Norfolk County in England which is also located on the water), King and Queen County (created from New Kent County and named for the joint rulers of England: King William III, Prince of Orange, and Queen Mary), Princess Anne County (created also from Lower Norfolk and named for Princess—later Queen—Anne of England), Essex (created from the then extinct Rappahannock County and named either for Essex

County, England or the Earl of Essex), Richmond (created also from the then extinct Rappahannock County and either named for territory resemblance to Richmond, Surry County, England or in honor of an English Earl or Duke of Richmond), King William County (created from King and Queen County and named for William of Orange, King of England), and Prince George County (created from one of the original eight shires—Charles City County—and was named for Prince George of Denmark, Queen Anne's husband).

As mentioned previously, education in the Virginia Colony was generally thought of as a family responsibility, not as a community one. Nevertheless, by 1690, some families decided that there should be an educational institution for higher learning in Virginia in order that their sons would not have to travel abroad to obtain such an education. A conference was held in Jamestown to consider the founding of a college in the Virginia Colony. Those present led by Colonel John Page drew up plans for such an institution and asked the Governor and the King's Council to explain to the rulers of England and to Parliament the purpose and the need of a college in Virginia and to make a request for financial contributions for such an enterprise. Reverend James Blair, a Scotch minister in Virginia, went to England to ask King William III and Queen Mary for their consent. He stayed in England for two years and, upon his return, had a royal charter and numerous contributions consisting of land, special tax funds and personal finances which had been encouraged and strongly supported by King William and Queen Mary. Donations from interested colonists themselves increased the building fund considerably. On February 8, 1693, the official charter for the college was granted. The college was named William and Mary College in honor of the King and Queen who had granted its charter. Out of respect for King William who belonged to the House of Orange, the official college colors were designated as orange and white. The General Assembly selected Middle Plantation as the most suitable location for the college and the plans for the original building were drawn up by the now-famous architect, Sir Christopher Wren. The Wren Building, named in his honor, was constructed by 1698 and it is the oldest academic structure still in existence. William and Mary College was the second oldest college established in America: Harvard College, located in Cambridge, Massachusetts, having been established in 1636. The first regular faculty consisted of six professors and Reverend Blair, who had

personally raised much of the fund for the college, became its first president.

After the burning of Jamestown during Bacon's Rebellion, the State House was rebuilt, but it burned again in October 1698. Since the Assembly then had no meeting place, it met in 1699 at the private residence of Mrs. Sarah Lee and in a building of William and Mary College. At one meeting, Governor Francis Nicholson suggested that the capital be moved to Middle Plantation. After a successful vote, the seat of the Virginia Colony government was officially moved from Jamestown, the first capital, to Middle Plantation, the name of which was changed to Williamsburg in honor of King William III. Plans for the State House were immediately made and the main street was named Duke of Gloucester Street, in honor of the Duke of Gloucester who was Queen Anne's oldest son. The first official Capitol building was constructed at one end of the main street and the College of William and Mary had been constructed at the other end.

In 1698, a Scotsman, Francis Makemie, a Presbyterian missionary, migrated from Pennsylvania to Accomack County, Virginia, where he held services in his home. He was soon arrested for not having a license to preach, but he was so sincere in his religious beliefs that he was later awarded a license. He is the founder of Presbyterianism in Virginia and, near Temperanceville, one may see a monument consisting of a stone figure of Francis Makemie attired in his usual clerical garb.

Shortly before the beginning of the eighteenth century, the General Assembly passed an act requiring an import tax of twenty shillings upon each Negro imported into the Virginia Colony. England, however, opposed such action and, as additional laws were passed by the Virginia General Assembly levying high import taxes on slaves, she consistently vetoed them. The number of Negroes in Virginia increased as the production and the value of tobacco increased until, by 1700, there were approximately 7,000 Negroes out of 72,000 inhabitants within the colony. The colonists expressed their desire to prohibit or at least restrict the importation of Negroes in 1713, but the mother country would not authorize the Virginia Colony to forbid slave importation.

Another law passed at this time provided that any settler could buy an unlimited area of land from the colony itself at the cost of five shillings per

fifty acres. This action was referred to as a "Treasury Right." Therefore, the "Head-Right" system was no longer the most common method of acquiring land settlements in the Virginia Colony. The population of the Virginia Colony was predominantly English and all types of social classes were now represented here: from the aristocratic nobles to the uncouth convicts. With the influx of the Cavaliers and with the reputation of the prosperity of the Virginia Colony, the number of middle class and upper class residents increased considerably during the Eighteenth Century until such residents soon made up a majority of the inhabitants. By 1700, the population of Virginia was approximately 70,000 including about 5,500 Negroes.

By 1710, the practice had been established of allowing the Governor of a British Colony to remain in England and to appoint deputies to live in the colony and actually to rule the colony. At this time, Alexander Spotswood arrived in Virginia as a royal Governor, technically the Deputy to Lord George Hamilton, Earl of Orkney, the official Lieutenant and Governor-General of the Virginia Colony. He was the first royal Governor to live in the new Governor's Palace at Williamsburg. Governor Spotswood remained in this position for twelve years and was responsible for many improvements and much progress in the Virginia Colony. He encouraged and helped carry out the beautifying of Williamsburg, the new capital city. Ravines were filled, streets leveled, some college buildings, a public magazine (a storehouse for arms and ammunition) and a church were erected primarily due to his influence. Since he believed in developing the natural resources of Virginia, he had iron foundries established along the Rapidan River, near Fredericksburg. As a result, the first mining village in Virginia, Germanna, located near the Blue Ridge Mountains, came into existence. This village was named in honor of the German miners who came to Virginia to work the iron mines and in honor of the German ruler, Queen Anne.

In 1716, the Governor and some friends started out to explore the Northwest. They stopped at Germanna to shoe the horses as protection for them on the rocky, mountain roads. The Governor traveled by stagecoach from Williamsburg to Germanna. Here he changed to horseback and accompanied by two groups of rangers and four Indian guides, in addition to the original group, he traced the Rapidan River to its headwaters and then proceeded to climb the east side of the Blue Ridge Mountains. They

reached the top near Swift Run Gap and, from this summit, viewed the great Shenandoah Valley and the Allegheny Mountains about twenty miles away. They spent the night there on the summit and then descended the west slope of the mountain, finally arriving at a river which they called Euphrates. This same river is known today as the Shenandoah River, an Indian name meaning "Daughter of the Stars." As had happened earlier on the Batts-Fallon expedition, a volley of gunfire was shot, and Governor Spotswood claimed possession of the land in the name of George I, then King of England. The highest mountain peak which they had climbed they called Mount George in his honor, and the next highest one was called Mount Alexander in honor of the Governor himself. The expedition had been such a pleasant one for the Governor that legend states that he sent to England for small individual golden horseshoe pins with diamonds symbolizing the nailheads and presented one to each of his companions on this memorable trip, bestowing upon them the title of "Knights of the Golden Horseshoe." Governor Spotswood also was a most able diplomat with the Indians, and he tried conscientiously to help them get better educated. For example, he sent white teachers to help them to develop their handicraft and the arts of civilization, and later, he encouraged many of the Indian boys to attend William and Mary College where they could specialize in their particular abilities. Spotswood was later appointed Postmaster General for the Colonies and was responsible for initiating a postal system extending from Charleston to Boston. Colonel Hugh Drysdale succeeded him as Governor for the next four years.

In 1716, the first theater in America was built by William Levingston at Williamsburg. It was constructed for the acting of "Comedies, Drolls and other kind of stage plays ... thought fitt to be acted there." Mary Stagg, the wife of Charles Stagg, who was the manager of the theater, is considered the first theatrical leading lady in America. Although many British actors and musicians were participants in this theater, it often suffered from financial stress. Thus, twenty-nine years later, this theater was donated to Williamsburg to be used as a town hall.

In 1722, Williamsburg, the capital of Colonial Virginia (1699-1780), became the first incorporated municipality in Virginia. It became the leading political, economic, educational and social center of the colony, especially during legislative sessions. Eight years after Williamsburg had

been incorporated, William Parks arrived there as a public printer. He set up the first permanent printing press in Virginia and approximately six years later, Virginia's first colonial newspaper, the "Virginia Gazette," was printed.

Colonel Robert Carter, President of the Council, succeeded Governor Drysdale in July 1726. Carter was a very wealthy man whose land holdings—300,000 acres total—were second in Virginia only to the Fairfaxes. Because of his enormous wealth and arrogant manner, he was nicknamed "King" Carter.

In 1728, William Byrd II was the leader of a survey group which followed the Virginia-North Carolina borderline from the Atlantic Ocean two hundred and forty miles westward. This action provided Virginians with knowledge of the type of terrain and its potentiality along this important borderline.

It was in the period 1730-1760 that a majority of the beautiful brick and stone plantation mansions were constructed. The wealthy families preferred the country-side. Some of the mansions built at this time included Westover (William Byrd family), Stratford Hall (Thomas Lee family), Ampthill (Archibald Cary family), Carter's Grove (Robert Carter Burwell family) and Mount Airy (John Tayloe family).

Sir William Gooch was acting chief executive of Virginia for twenty-two years, 1727-1749. His greatest project during this period was the development of settlements in the Shenandoah Valley. At the beginning of the Eighteenth Century, some Scotch-Irish, Germans and French Huguenots settled in Virginia. The Scotch-Irish had migrated first to Pennsylvania and to New Jersey. Upon hearing about the beautiful valley seen by Governor Spotswood, they decided to settle there. Their main settlement was located in the area now included in the Winchester and Staunton areas and in the counties of Augusta and Rockbridge. It became so densely populated with people originally from Northern Ireland that it was called the "Irish Tract." Later, additional Scots direct from Scotland migrated here in large numbers. Germans had already migrated in large numbers to Germanna, the mining town. The French Huguenot immigrants settled mainly along both sides of the James River at Manakintown. Thus, the Shenandoah Valley and the area

beyond the Blue Ridge and the Allegheny Mountains were colonized primarily by the Scotch-Irish, German, and French Huguenots.

Two years later, the Quakers organized a church at Hopewell which is the oldest church in northern Virginia. Six years later, the oldest Lutheran church in the South was built in Madison County by some of the Germans from Germanna. Its financial support originally came from friends in Germany, and it was called Hebron Church.

In 1749, Augusta Academy was founded by the Presbyterians in Augusta County, and it was the first classical school located west of the Blue Ridge Mountains. Its name was later changed in 1775 to the patriotic title of Liberty Hall. This academy was the forerunner of the Washington and Lee University.

Colonel Thomas Lee was acting Governor from 1749 to 1751. He encouraged westward expansion in the Virginia Colony and believed that the French should be expelled from America. He was the father of the most famous family in Virginia history: the Lee family. He built the now-famous family homestead, Stratford, in Westmoreland County in 1725-1730. During his governorship, some wealthy Virginians formed the Ohio Company whose purpose was to settle a colony west of the Allegheny Mountains on a tract of land 500,000 acres in size. Four years later, the company constructed a fort at the junction of the Allegheny and Monongahela Rivers where the present city of Pittsburgh is now located. One hundred and twenty miles north of this fort, the French proceeded to construct Fort LeBoeuf on the Allegheny River. Since many Virginians and other Englishmen from other colonies had been settling in the Ohio Valley, they became much alarmed at the construction and occupation of this French fort. Consequently, the British-Americans began to observe carefully the activities of the French in this region. Colonel Lee had the unusual distinction of being the only Virginian to have a Crown Commission of Governor awarded to him even though he died before the commission reached him.

From 1721 to 1750, nineteen new counties were created: Hanover (formed from New Kent and named for the Duke of Hanover who later became King George of England), Spotsylvania (formed from Essex, King William and King and Queen Counties and named for Lieutenant Governor Spotswood),

King George (formed from Richmond and later a part of Westmoreland County and named for George I, King of England), Goochland (formed from Henrico County and named for William Gooch, the Lieutenant-Governor of Virginia at the time), Caroline (formed from Essex, King and Queen and King William Counties and named for Queen Caroline, George II's wife), Prince William (formed from Stafford and King George Counties and named for William Augustus, Duke of Cumberland), Brunswick (formed from Prince George and parts of Surry and Isle of Wight Counties and named for the Duchy of Brunswick in Germany), Orange (formed from Spotsylvania and named for William, Prince of Orange, an English king), Amelia (formed from Prince George and Brunswick Counties and named for Princess Amelia, King George II's youngest daughter), Fairfax (formed from Prince William County and named for Lord Fairfax), Frederick (formed from Orange County and named for Frederick, Prince of Wales, George II's son and George III's father), Louisa (formed from Hanover County and named for King George II's daughter, Princess Louisa, who was also the wife of King Frederick V of Denmark), Albemarle (formed from Goochland County and named for William Anne Keppel, the second Earl of Albemarle, Governor-General of the Colony who remained in England during the entire time), Augusta (formed from Orange and named for Princess Augusta, wife of Frederick, Prince of Wales, George III's father), Lunenburg (formed from Brunswick and named for one of George I's titles: Duke of Brunswick-Lunenburg), Chesterfield (formed from Henrico and named for the famous Lord Chesterfield, Philip Dormer Stanhope), Culpeper (formed from Orange County and named for Lord Thomas Culpeper, Governor of Virginia, 1680-1683), Southampton (formed from Isle of Wight County and named for Henry Wriothesley, the third Earl of Southampton and a leading member of the Virginia Company) and Cumberland (formed from Goochland County and part of Buckingham County and named in honor of William Augustus, Duke of Cumberland).

By 1750, the Virginia colony was enjoying prosperity. Numerous large plantations had come into existence. As more and more soil became impoverished due to a lack of crop rotation, non-use of fertilizer and the intensive planting of the tobacco crop which requires a rich soil, additional land was purchased and added to the existing homestead. Consequently, plantations of 100,000 to 300,000 acres became common, especially around the Tidewater area. The larger the tobacco plantation, the greater the need

for cheap labor became apparent. Consequently, the number of Negro slaves increased in Virginia until by 1750, there were approximately 115,000 Negroes and approximately 170,000 free whites. The increase in huge plantations caused the middle class tobacco farmer to migrate westward as he could not successfully compete with the larger tobacco planters. The Virginia plantation owners had become accustomed at this time to allowing the London tobacco merchants to act as their bankers: they would order their necessities, supplies and luxuries (glass, silver, china) via their tobacco credits. Such a system furnished an immediate advantage for the plantation owners but also created a situation whereby the Virginia planters became heavily indebted financially to the London merchants. The plantation owners also became the influential individuals within the colony—politically, economically and socially. Thus, Virginia at this time was practically ruled by an aristocracy. Although the governing power of the assembly had increased gradually, the political power of the commoner or average citizen had not increased accordingly. Membership in the Virginia Council was considered a position of the greatest prestige and was almost an hereditary position. The two required qualifications were wealth and social position. The era of aristocratic living which predominated in the Virginia Colony between 1700-1750 is often referred to as the "Golden Age" of Virginia's colonial history.

The Pre-Revolutionary War Era

While Robert Dinwiddie was the acting Governor of Virginia, the English and French rivalry in colonial settlements was becoming bitter in America. In 1753, Governor Dinwiddie selected George Washington to visit General St. Pierre, the commander in charge of the French fort at Presque Isle on the shore of Lake Erie, and to inform him that the Ohio country belonged to the English and that he should withdraw his troops from there at once. Dinwiddie sincerely believed that the land upon which the French fort had been built was English territory. Washington and four comrades rode on horseback from Williamsburg to Fredericksburg where he hired Jacob Vanbraam as an interpreter since Washington could not speak French. They rode to Alexandria where Washington purchased food and essential equipment because there were no towns between Alexandria and Winchester. Two weeks later he reached Winchester, after having made the

dangerous crossing of the unbridged Shenandoah River. At Winchester, Washington hired a well-known guide, Christopher Gist, to assist him on his journey to Fort LeBoeuf where the French General had arrived to supervise its fortifications. Two Indian traders also accompanied him. They traveled to Maryland and to Pennsylvania until they reached the French fort, Fort LeBoeuf. The destination was approximately five hundred miles from Williamsburg. Although St. Pierre was polite and friendly, Washington was informed that the French had been ordered to eject every Englishman from the Ohio Valley and that the French had the rightful claim to such territory. Before he departed, Washington noticed a large fleet of birch-bark canoes and boats of pine and was convinced that a war between the English and French would be necessary to settle the dispute over the control of the Northwest.

Washington returned to Williamsburg in January 1754, and reported to Governor Dinwiddie a detailed account of his journey. Washington then prepared a written report which persuaded the members of the General Assembly to realize the seriousness of this matter. Colonel Joshua Fry, with Washington second in command, marched with a troop of one hundred and fifty men against the French in the Ohio Valley. On March 28, near Great Meadows, Washington's group killed the French commander, Coulon de Jumonville, and killed or captured all his soldiers except one. On March 31, 1754, Washington was granted a commission as Lieutenant Colonel of the Virginia Regiment, which he later received at Gadsby's Tavern in Alexandria. In the meantime, Colonel Fry had died suddenly from an accidental fall, and Washington had succeeded to the command.

Fort Necessity, near Farmington, Pennsylvania, a crude structure of defense, was in the process of being constructed by the Virginians at the forks of the Ohio River when seven hundred French soldiers appeared, outnumbering the Virginian troops by at least four hundred men. Washington and his troops were forced to surrender, were allowed to leave with the honors of war and finally trudged back to Winchester. The Battle of Great Meadows and the Battle of Fort Necessity were of historical importance because they marked the beginning of the French and Indian War in America, they were actually the first fighting attacks in the Seven Years War in Europe between the English and the French, and they provided the first real combat fighting experience for George Washington who was only twenty-two years old at

the time. The French proceeded to occupy Fort Necessity and after improving it considerably, they changed its name to Fort Duquesne, in honor of Canada's governor.

The following summer, in 1755, Washington returned with a larger army to the Ohio area. Two regiments, one thousand, of British regulars had been sent from England under the command of General Edward Braddock. These soldiers arrived at Alexandria from England, and Washington, having been assigned as an aide-de-camp to General Braddock, joined them there. A conference of five royal Governors—Dinwiddie (Virginia), Morris (Pennsylvania), Sharp (Maryland), DeLacey (New York) and Shirley (Massachusetts)—was held at the Carlyle House in Alexandria on April 14 to formulate plans for the protection of the western frontier against the French and Indian raids along the Ohio River. After much discussion, a campaign plan was adopted whereby General Braddock was to capture Fort Duquesne and expel the French from the Ohio Valley. At this same conference, the suggestion was made that the British Ministry could levy taxes on the colonies to help pay the expense of the war.

Braddock and his troops marched westward from Alexandria into western Pennsylvania near Fort Duquesne through dense wilderness from April 12 to July 9. General Braddock had been accustomed to fighting the European tactics way, but he was wholly unfamiliar with Indian and ambush fighting. Washington anxiously warned Braddock of ambush possibilities, but Braddock continued to have his army march in regular step in close order and in full uniform regalia through the underbrush. Indian scouts daily reported the progress of Braddock's army to the French at Fort Duquesne. When the British troops were within eight miles of the fort, they were attacked by the French and the Indians. The Virginia soldiers, many of whom were experienced in wilderness fighting, ran for cover behind the trees. Braddock, however, ordered his men to keep their formation and fire simultaneously. Thus, they were easy targets for the French and the Indians. Finally, they became so frightened at this unusual type of fighting that they broke ranks and tried to flee. Half of Braddock's 1600 troops were killed or wounded, Braddock himself being fatally wounded in action. This defeat occurred on July 9, 1755.

In addition to this military slaughter, numerous Cherokee Indian raiding parties took place from 1759-1760 in the Shenandoah Valley of Virginia

where homes were burned and men, women and children were killed unmercifully. Washington was put in charge of this frontier campaign with his headquarters at a fort in Winchester. Eventually, the General Assembly of Virginia raised troops of its own for its defense. The General Assembly then passed a law whereby a "Scalp Market" was established, and anyone bringing male scalps of hostile Indians above the age of twelve years to the market would receive ten pounds per scalp in 1755 to forty-five pounds per scalp in 1758 when the law expired. In July, the British General John Forbes with a large number of English soldiers and some Cherokee allies went to Fort Duquesne via Philadelphia. They were rejoined in September by Colonel Washington. Fort Duquesne was finally won by the English and colonial and Indian soldiers, and Washington, himself, raised the British flag over its ruins on November 25, 1758, ending the Indian attacks also on the frontier. Fort Duquesne had its name changed to Fort Pitt in honor of William Pitt the Elder, a British statesman, who had given ample support to Virginia's colonial policies. Thus, the inhabitants of Virginia played their role in the French and Indian War, apparently a misnomer because the war was actually fought between the French and the Indians and the British and the Indians.

In December 1763, Patrick Henry distinguished himself as a young lawyer by challenging the authority of Parliament and the King in a case commonly called the "Parsons' Cause." The Church of England was the established church of Virginia, and the people were taxed for the parsons' salaries. Because coin money was scarce in the colonies, Virginia, like the other colonies, had adopted the custom of paying their clergymen in tobacco. One disadvantage of this system was the fluctuation of the value of the tobacco, based upon the law of supply and demand. Whenever there was a tobacco crop failure, the value of tobacco increased considerably. This occurred in 1758 when there was so little tobacco available that the House of Burgesses passed a law stating that all debts payable ordinarily in tobacco might be paid in money at the rate of two pence per pound of tobacco. The parsons' salary was 16,000 pounds of tobacco. When the above law was passed allowing the parsons to be paid in money, they felt that it was unfair because tobacco at that time was more valuable at the rate of six pence per pound of tobacco than the money value itself. Furthermore, the parsons had had to accept the same amount of tobacco when the prices had previously declined. King George agreed with the parsons and

requested that they be given their 16,000 pounds of tobacco or else a sum of money equivalent to the amount which 16,000 pounds of tobacco would be worth. Such an order was contrary to the law passed by the House of Burgesses and was a continuation of a custom which England had been using of "disallowing" a law passed by the colonial legislature. The Burgesses refused to accept the "disallowing" of their law; in turn, the parsons, knowing that the King had favored their opinion in the matter, took their problem to the Hanover County Court as they believed they were entitled to the back pay for the time which the House of Burgesses' law was in effect. The court had ruled that the parsons were entitled to the back pay and was ready to proceed with the problem of deciding upon the amount which it believed was due each parson.

When this case was first brought to the court for consideration, the individual citizens of the colony tried to obtain the services of a lawyer who would fight against the parsons. Since such a lawyer would be fighting not only against the parsons but against the King himself, some of the lawyers, when asked to act as attorney against the parsons, refused the offer. Patrick Henry, who was only twenty-seven at the time and practically an unknown individual as far as law was concerned, accepted the offer. The self-educated Hanover County resident surprised the people in the court when he began to speak, at first hesitatingly and then most confidently. He first criticized the parsons for trying to take advantage of the scarcity of the tobacco which caused its extraordinarily high price. He then dared to speak against the British Parliament and the King for usurping the power of "disallowing" a law passed by the Virginia legislature. The following quotation illustrates the strong language which he used to express his attitudes in these matters: "The king, by ... disallowing acts of this salutary nature, from being the Father of his people degenerates into a Tyrant, and forfeits all the rights to his subjects' obedience." Thus, he questioned the right of the King to veto a colonial law. He followed these words with comments concerning the rights and privileges of the colonists and the unjust taxing of the colonists for goods brought to the Virginia Colony from England. The jury handed down the verdict that the parsons were entitled to their back pay but awarded damages of one penny to each parson. As a direct result of this case, Patrick Henry became famous and he became a member of the Virginia House of Burgesses shortly afterward. He had

dramatically, though unexpectedly, expressed the attitude of most of the colonists toward Parliamentary and royal control of their colony.

In spite of Patrick Henry's strong protests against the taxes imposed upon the colonists, Parliament passed the Stamp Act in 1765 whereby the colonists were required to put stamps of differing value upon wills, deeds, mortgages, newspapers, almanacs, advertisements, college diplomas and all other legal documents. This tax was not directly levied for protection as the regular duty tax on imports had been but was levied for revenue purposes. The revenue from the sale of these stamps was to be used in paying the governmental cost in the territory acquired from the French and Indian War and for defending the colonists. Previous acts and taxes had affected a comparatively small number of colonists and usually only one or two social classes. The Stamp Act, however, affected practically every class, particularly editors, lawyers and parsons who usually exert strong influence upon any group of people. The Stamp Act was the controversial issue at the time Patrick Henry became a member of the Virginia House of Burgesses. Some of the members felt that Parliament had the right to tax the colonists and others felt that it was illegal for them to do so. Patrick Henry offered five resolutions against the Stamp Act to the effect that the "General Assembly of the colony have the only sole and exclusive right and power to levy taxes." A fiery discussion then occurred over these resolutions, and, after hearing the heated arguments on both sides on May 29, 1765, Patrick Henry rose in the House and described Virginia as being tethered in chains under the rule of Parliament and the King. Then he shouted: "Caesar had his Brutus, Charles I, his Cromwell, and George III...." Here he was interrupted by cries of "Treason! Treason!" Very calmly he finished the sentence by saying "may profit by their example. If this be treason, make the most of it!" Patrick Henry's brilliant oratory persuaded public opinion again, and his "Virginia Resolves" against the Stamp Act were passed by a majority of one vote. Such a small majority seems insignificant, but these Resolves were publicized throughout the colonies and played an important part in creating serious opposition to England throughout the British colonies. Soon similar resolutions were adopted in the other colonies.

The first Colonial Congress was called to meet in New York City in October 1765 to form a plan of resistance to the Stamp Act. Although delegates from nine colonies attended, Virginia was not represented because

the Virginia legislature had adjourned before Massachusetts had sent its invitation circular to her. However, Virginia approved a three point program of this "Stamp Act Congress" at its next legislative session: namely, a Bill of Rights, a statement of grievances and the principle of no taxation without actual representation. The colonists believed that, since they had no actual representation in Parliament, there could be no taxation except that authorized by their individual legislatures. Therefore, the members of the Stamp Act Congress adopted petitions to the King, the House of Commons and the House of Lords asking repeal of the Stamp Act. This congress was the first significant step in the direction of unity for the British colonies in America. In addition to this orderly method of opposition, in some of the colonies mob violence, rioting and even personal molesting of the stamp officials took place.

On February 8, 1766, the Northampton County Court severely opposed the Stamp Act by stating that "the said act did not bind, affect or concern the inhabitants of this colony, inasmuch as they conceive the same to be unconstitutional, and that the said several officers may proceed to the execution of their respective offices, without incurring any penalties by means thereof."

On February 27, 1766, a group of one hundred and fifteen planters met at Leedstown in the Northern Neck to publicly oppose the Stamp Act. A series of resolves or resolutions written by Richard Henry Lee but presented by Thomas Ludwell Lee, his brother, were passed by those present. These resolves condemned the Stamp Act and defiantly acclaimed the rights which they considered essential to civil liberty. These resolves are usually referred to as the Leedstown or Westmoreland Resolves because they were presented at Leedstown which is located in Westmoreland County. In March of the same year a pamphlet, entitled "An Enquiry into the Rights of the British Colonies," was written and circulated by Richard Henry Bland which strongly opposed the Parliamentary measures and stated that the colonies were bound to England directly by the King and not by Parliament. Therefore, Bland concluded that Parliament technically had no jurisdiction over the American colonies.

Finally, on March 18, 1766, Parliament repealed the Stamp Act but at the same time passed the Declaratory Act stating that Parliament had the authority to pass laws for the colonies "in all cases whatsoever." In their

triumph over the repeal of the Stamp Act, many of the colonists overlooked the strong, powerful wording of the Declaratory Act.

Soon after the repeal of the Stamp Act, the Townshend Acts were passed in 1767. They were called the Townshend Acts because the British Chancellor of the Exchequer (a position similar to the present-day United States Secretary of the Treasury) who originated them was Charles Townshend. The acts placed a duty (an external tax) upon glass, paper, painters' colors, white lead and tea. The revenue collected from these duties was to be used for the payment of salaries of judges and other colonial officials in the attempt to make such positions less influenced by the colonial legislature. The colonists objected strongly to the Townshend Acts, again stating that the taxes so collected were for the purpose of revenue and not for protection.

The merchant class of the large cities in the colonies and the Virginia planters in particular were so strongly affected by these acts that they formed a retaliatory organization called the Non-Importation Association. Although Lord Botetourt, the royal Governor of Virginia at this time, dissolved the Virginia Assembly, and individual members met privately at the Raleigh Tavern in Williamsburg and agreed to enter into such a non-importation agreement. This group agreed not to import slaves, wines or goods from Great Britain unless the objectionable taxes were abolished. This agreement caused a great reduction in the number of imports from Great Britain to these colonies. Since Virginia had the largest amount of commerce trade in England at this time, this method proved effective. Acts of violence even occurred in some of the colonies—for example, the Boston Massacre. Finally, on March 5, 1770, the Townshend Acts were repealed with the exception of the tax on tea: three pence per pound. This tax was retained supposedly to assert the right of Parliament to tax the colonists whenever it so desired.

In spite of this repeal, friction between colonial legislatures and royal Governors continued. Under the leadership of Samuel Adams of Massachusetts, Committees of Correspondence were appointed in 1773 whose chief objective was to keep the various colonies informed by correspondence of the events occurring within their colony which were contrary to the rights and privileges of the colonists. The Virginia General Assembly appointed a Committee of Correspondence under the leadership

of Richard Henry Lee, Thomas Jefferson, Patrick Henry and George Mason. The condition which caused this permanent committee to be organized at this time was the continuous threat of England to force Americans to be tried in England for offenses against the law. These committees within the various colonies became very active and persuasive. The British soon abandoned their idea of sending Americans to England to be tried. However, these committees increased rapidly in number as the grievances of the colonists increased, and they gradually created a feeling of unity in the colonies as a result of a better understanding of common problems.

The next act which is believed to have led directly to the Revolutionary War is the Tea Act. After the three pence per pound tax on tea was levied, some of the colonists bought their tea from smugglers who had purchased it from the Dutch East Indies. In 1773, in an attempt to curb this illegal trade and to help create a monopoly of the tea trade for the East India Company, Parliament passed a law allowing this company to ship tea from Asia directly to the American colonies without bringing it to English warehouses first, as had previously been the regulation. This situation resulted in the East India Company selling its tea cheaper than the other companies. In spite of this change, Parliament refused to repeal the three pence duty tax on tea which still had to be paid by the colonists.

The American colonists realized the scheme of England, and not wanting to admit the right of Parliament to tax them even under these conditions, they decided not to submit to the payment of the duty tax. When the ships from the East India Company sent cargoes of tea to Charleston, Philadelphia, New York and Boston, some of it was stored indefinitely (at Charleston), some was returned (from Philadelphia and from New York City) and the rest was dumped into the Boston Harbor on December 16, 1773. The famous Boston Tea Party caused Parliament to pass the "Intolerable Acts" as punishment for the colonists of Massachusetts: (1) the Boston Port Bill closed the port of Boston to all trade until the colonists there had paid for the tea which had been destroyed and had agreed to obey the laws of Parliament and to maintain peace in the future, (2) the Massachusetts Government Act changed the charter of Massachusetts so that more governing power was in the hands of the royal officials and much less in the hands of the colonists, (3) the Administration of Justice Act provided that British officials in Massachusetts who had been charged with serious

violations of colonial laws were from that time on to be sent to England for their trial and (4) an act provided that any colonial Governor was empowered from that time on to quarter British soldiers in barns or vacant buildings whenever the need arose. The first of these acts was to go into effect on June 1, 1774. Therefore, the colonists realized that something had to be done immediately if their resentment and ill feeling was to be recognized by Parliament and acted upon accordingly.

A description of the Boston Tea Party first reached Virginia from a visitor to the old Market Square in Alexandria. The Virginia House of Burgesses was in session when the Virginians learned of the "Intolerable Acts." Led by Thomas Jefferson, Patrick Henry and Richard Henry Lee, the members of the House of Burgesses passed a resolution designating June 1, the day on which the "Intolerable Acts" were to be enforced, as a day of fasting and prayer to God to encourage Parliament to abandon its unwise punitive policy towards the people of Massachusetts. When Governor Lord Dunmore, who had succeeded upon the death of Governor Botetourt, heard of this resolution, he dissolved the House of Burgesses. Before all the members had left Williamsburg, a messenger arrived from Boston with a circular letter which pleaded with the colonies for united support and which suggested the cessation of all trading relations with Great Britain. The twenty-five Burgesses members, who were in the Apollo Room of the Raleigh Tavern when the letter arrived, discussed its contents and decided that it was too important a matter for the Committee of Correspondence to assume complete responsibility. Consequently, they asked the counties to appoint deputies to a special convention to be held on August 1, 1774 at Williamsburg for a two-fold purpose: to consider the possibility of complete cessation of trade with Great Britain and to choose delegates to a proposed Continental Congress. Peyton Randolph, Speaker of the House of Burgesses, is believed to have been the leader of this special convention movement. The actual summons was signed by Thomas Jefferson, George Washington and Henry Lee. The calling of this First Virginia Convention is most significant in American history as well as in Virginia history because it was a positive action on the part of the American colonists to assert the people's sovereignty over and against the King's authority.

The convention at Williamsburg which began August 1, 1774 lasted for six days and representatives attended from fifty-six counties and four boroughs.

Each county sent two delegates and each borough, one. Peyton Randolph was chosen as president of the convention. The convention members agreed to purchase no goods, with the exception of medicine, from Great Britain after November 1, 1774 and agreed neither to import slaves nor to buy imported slaves after November 1. Seven members were selected to represent Virginia at a Continental or General Congress: Richard Bland, Benjamin Harrison, Patrick Henry, Richard Henry Lee, Edmund Pendleton, Peyton Randolph and George Washington. The convention delegates also stated that unless American grievances were diminished by August 10, 1775, all exports of Virginia products to Great Britain would be stopped. It was at this convention that a written treatise on American rights was prepared for the convention by Thomas Jefferson. This paper, later entitled "A Summary View of the Rights of British America," was published by the Virginia convention and was responsible for making Jefferson's great ability as a writer well known. This pamphlet was a forerunner of the Declaration of Independence.

While the colonists were having political and economic difficulties with Great Britain, other domestic difficulties were occurring on the frontiers. As mentioned previously, the Piedmont area of Virginia, located between the Fall Line and the Appalachian Mountains, was actually the first American frontier. People who settled there came originally for several purposes: to acquire fertile but cheap land, to enjoy new personal freedom (in many cases, the settlers were former indentured servants), to carry on fur trade with the Indians, to obtain fresh pasture land for cattle and to establish plantations. After the Piedmont area became heavily settled, the westward movement continued. The settlements in the Shenandoah Valley of Virginia followed directly after the crossing of the Blue Ridge Mountains. In the late 1760's, William Bean, a Virginian, constructed the first cabin along the Watauga River, and later, James Robertson and John Sevier pioneered in the Watauga Valley. Settlements were also made at this time along the fertile Holston River Valley in eastern Tennessee. During this period, Daniel Boone explored the Cumberland Gap area and started a settlement in the region now known as Kentucky. While he was taking a group of approximately eighty settlers to this region, he was attacked by a band of Indians. The group decided to return to North Carolina with the exception of the Boone family, and they stopped near the Kentucky-Tennessee border.

Indian uprisings were common until the soldiers of Virginia defeated them in Lord Dunmore's War. As the settlers pushed westward, more and more of the Indians' hunting grounds were being seized and used for farming. Since the Indians felt that this was most unjust treatment, they resorted to making war upon the settlers. In 1774, many frontier Indian raids occurred involving the Shawnees, Cherokees, Mingos, Delaware and Wyandots. One incident which had great repercussion was the killing of nine members of the family of John Logan, a friendly Mingo chief, by a group of white settlers. This incident caused the Indians to be extremely revengeful.

When Lord Dunmore became the new royal Governor, the settlers appealed to him for protection and asked that he send military troops at once. He decided personally to command one group of troops at the Forks of the Ohio River and he ordered Major Andrew Lewis, a pioneer's son of Augusta County whose father had founded Staunton, Virginia, to raise a force of Virginia troops and bring them to a meeting-place located at Camp Union (now known as Lewisburg, West Virginia). With approximately 1100 men, General Lewis started on his march to the Ohio River in September 1774 to fight the Indians. After nineteen days of marching, they arrived at Point Pleasant, the site at which the Kanawha River empties into the Ohio River, approximately 160 miles from their starting point. General Lewis and his troops waited four days and heard no word from Lord Dunmore although he had ordered them to this particular position. On October 10, two of Lewis' men went hunting, strictly against his orders. Two miles from camp they were attacked by the Shawnee Indians, and one of them was killed. The other escaped, rushed back to the camp and reported to General Lewis that he had observed "four acres of ground" of Indians. General Lewis then commanded his men to form two lines of battle, one to be under the leadership of his brother, Colonel Charles Lewis, and the other under the leadership of Colonel William Fleming. He himself was to be the supreme commander. The battle began immediately, and after the Indians rushed forward the first time, Charles Lewis was killed and Colonel Fleming was wounded. The Indian leader was Chief Cornstalk who was a popular and powerful Indian warrior. However, after fighting all day, the Indians finally retreated across the Ohio River, and the Virginians were considered the victors of the Battle of Point Pleasant or the Battle of Great Kanawha because they were not driven back by the Indians. Consequently, Lord Dunmore's War was fought without his presence, although it is believed that

he may have been negotiating a peace treaty with the Indians simultaneously at some distant place. The winning of this war by the Virginians made the winning of the west much easier for the later settlers.

On September 5, 1774, the first Continental Congress was called by Virginia, and invitations were issued by Committees of Correspondence. The purpose of this Congress was "to deliberate and determine wise and proper measures, to be by them recommended to all the colonies, for the recovery and establishment of their just rights and liberties, civil and religious, and the restoration of union and harmony between Great Britain and the colonies most ardently desired by all good men." The Continental Congress began in Carpenters' Hall, Philadelphia, on September 5, 1774 with 56 members present. Two-thirds of these were lawyers, and the membership itself consisted of representatives of both the liberal and the conservative groups although the majority appeared to be in the former group. The Virginian, Peyton Randolph, was unanimously elected President of the First Continental Congress. During the Congress, Patrick Henry expressed the need for unity when he exclaimed: "The distinctions between Pennsylvanians, New Yorkers and New Englanders are no more. I am not a Virginian but an American." Concerning its chief accomplishments, the Congress (1) drew up a Declaration of Rights (a series of resolutions declaring that the colonists were entitled to certain rights: life, liberty and property, the right to vote their own taxes and the right to trial by jury; that these rights had been violated by the King and by Parliament since 1673; that unjust taxes and standing armies had been imposed upon them and their local assemblies unfairly interfered with by Parliament; that their repeated petitions for a redress of their grievances had been practically ignored in England) and (2) adopted "a non-importation, non-consumption and non-exportation agreement" called the Continental Association Plan. It should be noted that complete separation from England was not demanded at this time but rather cooperation from, and peace under, English rule. The session lasted approximately seven weeks, and then on October 26, 1774, after a motion had been passed setting May 10, 1775 as the date of a second congress meeting, the session was adjourned to await a reply from the King of England.

The resolutions passed by this Congress were circulated throughout the colonies for their approval. All sections of the Virginia colony approved

them, even sections as far west as the area now occupied by the State of Kentucky. Two illustrations of such approval are the Fairfax Resolutions and the Fincastle Resolutions. The freeholders of Fairfax County met in Alexandria in July 1774 and passed the so-called Fairfax Resolutions, written by George Mason. The Fairfax Resolutions or Resolves, as they are sometimes called, reflected Virginia's attitude toward taxation, Parliament and even the King. In January 1775, at Lead Mines, Fincastle County seat, the freeholders met and prepared a paper congratulating and thanking the Virginia delegates for their part in the First Continental Congress. These Fincastle Resolutions also included strong written opposition to English tyrannical power.

In November 1774, Virginia had a tea party, similar in purpose to Boston in that it was an act of defiance against Great Britain's tea tax. On November 7, the Virginians discovered that a British ship, "Virginia," which had docked in the York River at an earlier date, contained tea cargo. The Committee of Safety for York County immediately sent to the House of Burgesses (which was meeting at Williamsburg) a message in the form of a protest against accepting this tea for sale in the colony. The Committee received a reply to the effect that the matter would be discussed in the House and an answer would be forthcoming the next Monday morning. Large groups of people gathered at Yorktown where the boat had been docked and waited for the reply. The House of Burgesses failed to send the reply, and the captain of the ship declared that he had received no message. The Committee waited a while longer and then proceeded to throw the tea out of the ship's hold into the York River. By this time, the Yorktown inhabitants had been informed of the "Intolerable Acts" which had been passed to punish the inhabitants of Boston. Therefore, they filled the ship with necessary supplies and sent it to the Bostonians. This incident was another example of the methods by which the colonists were learning to unite and to help each other in their common objectives.

When the American colonists began to carry out the non-importation agreement, the British merchants were very much affected: for example, the import trade from Great Britain to the American colonies declined about 95% by 1775. The Americans had some great British leaders on their side, but they were definitely in the minority. Edmund Burke and William Pitt urged that the "Intolerable Acts" be repealed and predicted that war was

approaching with the American colonies if most of the objectionable laws were not repealed at this time. Burke and Pitt were overruled, however, in Parliament. Thus, the breach between the American colonies and the mother country became wider as time passed.

Continued growth in the number of counties reflected increases in population and a trend toward the rising importance of community life. From 1750 to 1775, several additional counties were formed: Halifax (formed from Lunenburg and named for George Montagu Dunk, Second Earl of Halifax and the first Lord of the Board of Trade), Dinwiddie (formed from Prince George County and named for Lord Dinwiddie, acting Lieutenant Governor of the Virginia Colony from 1751-1758), Prince Edward (formed from Amelia County and named for Edward Augustus, Prince of Wales), Bedford (formed from Lunenburg and part of Albemarle County and named for John Russell, Fourth Duke of Bedford, Secretary of State in Great Britain from 1748-1757), Sussex (formed from Surry County and named for Sussex County, England), Loudoun (formed from Fairfax County and named for John Campbell, Fourth Earl of Loudoun, Commander-in-Chief of the British forces during the latter part of the French and Indian War and Governor-General of the American Colonies from 1756 to 1763), Fauquier (formed from Prince William County and named after Francis Fauquier, Lieutenant Governor from 1758 to 1768), Buckingham (formed from Albemarle County and named probably for the Duke of Buckingham), Charlotte (formed from Lunenburg and named for Princess Charlotte Sophia of Mecklenburg, George III's queen), Mecklenburg (formed from Lunenburg and named in honor of the same queen, Charlotte of Mecklenburg-Strelitz), Pittsylvania (formed from Halifax County and named for Sir William Pitt, a famous English statesman who was pro-American toward the British Colonies in America), Botetourt (formed from Augusta County and part of Rockbridge County and named for Norborne Berkeley, Lord Botetourt, Governor of Virginia from 1768 to 1770) and Amherst County (formed from Albemarle County "and certain islands in the Fluvanna River" and named for Sir Jeffrey Amherst, Governor-General of Virginia, 1759-1768).

S U M M A R Y

The historical Life of Virginia from 1584 to 1775 illustrates the "trial and error" method of learning to live cooperatively, comfortably and profitably in the New World. The inhabitants of the "Cradle of American Civilization" were faced with severe personal handicaps, problems of government (many of which had to be solved in an original fashion), explorations into untrodden and often uncivilized areas, the task of establishing a land economy, rebellions of the common man against the privileged few and the establishment of a culture and way of life adapted to the type of environment and peoples living in the area. The efforts of such leaders as John Smith, John Rolfe, Edwin Sandys, George Yeardley, Benjamin Syms, Thomas Eaton, James Blair, Alexander Spotswood, Thomas Lee, Robert Dinwiddie, George Washington, Patrick Henry, Richard Bland, Richard Henry Lee, Thomas Jefferson, Peyton Randolph and Andrew Lewis helped unite the colonists in Virginia in their development of democratic living.

During this period, the first representative legislative assembly in America was held, the first group of Negro slaves were imported to America, the first group of unmarried women arrived in the colonies, the first royal colony of England was organized, a county system of local government was established, the Commonwealth of Virginia was created, the second oldest college in America was founded, the first theater in America was built, many of the most beautiful plantation houses were constructed, the British became the dominant colonists in America, slavery became an accepted characteristic of plantation life, fifty-four counties were formed and strong opposition of the colonists in Virginia to political and economic control by the British King and Parliament was becoming very apparent. The first special Virginia Convention held in Williamsburg to determine the extent of Virginia's boycott of British goods and to choose delegates to a Continental Congress and the York River Tea Party at Yorktown exemplified mounting opposition. The stage of life in Virginia seemed naturally set for specific action against strict foreign regulation and control.

3

Historical Life: 1775-1860

The Revolutionary War Era

A second Virginia Convention was held from March 20 to March 27, 1775 at St. John's Church, Richmond. Peyton Randolph was again chosen president of the convention. The members of this convention soon were divided into distinct groups: (1) the conservative group, led by Peyton Randolph, which deplored radical thinking and actions and still favored reconciliation with the mother country, England, and (2) the aggressive group, led by Patrick Henry, which believed conciliation and compromise were no longer possible or feasible and advocated military preparedness within the colony.

On the first day, March 20, Patrick Henry delivered his famous speech, the most significant and oft-repeated section stating: "Gentlemen may cry: Peace! Peace! but there is no peace. The war is actually begun!... Is life so dear or peace so sweet as to be purchased at the price of chains and slavery? Forbid it, Almighty God! I know not what course others may take, but, as for me, give me liberty, or give me death!" This fiery speech combined with his others earned for Patrick Henry the title, "The Tongue of the Revolution" or "The Mouthpiece of the Revolution." The first three days passed without either group committing itself. On the fourth day, however, a resolution was adopted bestowing thanks upon the Assembly of Jamaica for its petition to the King on behalf of the American colonies and stating an ardent desire for peace. Patrick Henry then proposed an unusual resolution to follow the preceding one, namely: the establishment of "a well-regulated militia, composed of gentlemen and yeomen." His brilliant oratorical powers of persuasion caused the resolution to be carried, and the military resources of the colony were immediately directed to be organized and made efficient. The convention also appealed to all the people for contributions for the relief of the Bostonians because they were "suffering in the common cause of American freedom." Later at this convention,

delegates to the Second Continental Congress were elected: Patrick Henry, Thomas Jefferson, Richard Henry Lee, Peyton Randolph and George Wythe.

On April 21, 1775, Governor Dunmore, who had unsuccessfully tried to prevent the Richmond convention from taking place in order that delegates could not be elected to attend the Second Continental Congress, became very much aroused over the bitter feeling of the colonists toward Great Britain. He decided that he could break down some of the colonial assuredness and resistance against the King and against his personal orders if he could remove from the powder magazine at Williamsburg the munition powder which belonged to the colony. Therefore, he ordered twenty sailors from a British ship anchored at Williamsburg to obtain this powder. They hid in the Governor's Palace; during the night, they visited the magazine, removed all the powder which they could fit into the Governor's wagon and took it to their armed ship, the "Fowey," in the harbor for safekeeping. When the colonists learned the next morning of this activity, a company of Hanover volunteers, led by Patrick Henry, marched upon Williamsburg and forced the King's sailors to compensate by giving bills for the value of the powder taken from the magazine. Governor Dunmore was then beseeched to pay for the cost of the powder, at least in sterling. He finally paid this amount because of the persistence of Patrick Henry. Only strenuous efforts on the part of Patrick Henry's personal friends kept him and the local militia from imprisoning the Governor himself for such action. Patrick Henry was declared an outlaw by Governor Dunmore. Anti-British feeling rapidly increased on the part of the colonists after this incident.

Approximately a week after this unpleasant incident, John Paul Jones, a Scottish-Virginian who was a resident of Fredericksburg, recommended that the colonies should have an official navy. He was a former British seaman, and he offered his services to the colonies at this time in an attempt to raise a naval force. The Second Continental Congress later appointed a Naval Committee whose chief duty was to organize a naval force. At its invitation, John Paul Jones explained to the Committee the great strength of the British Navy and the futility of the colonists to try to compete with it. He stated, however, that, if the colonists had fifteen ships armed with guns, these could be successfully utilized to annoy British ships. His suggestion was accepted, and thirteen frigates plus two brigs made up the first American

Navy. John Paul Jones received the first naval commission at Independence Hall on December 22, 1775. Therefore, he is often referred to as "The Father of the American Navy."

Before the Second Continental Congress was due to meet, the Battle of Lexington and Concord (near Boston) had taken place on April 19, 1775. After this "shot heard 'round the world," the Americans were most sympathetic toward their fellow-colonists of Massachusetts. On May 10, 1775, the Second Continental Congress began in Independence Hall, Philadelphia. Although there was a majority of the members who now believed a revolution was inevitable, there were also many conservatives who preferred compromise of any type rather than war. This congress proceeded to take necessary steps for organizing and equipping an American army. On June 16, 1775, it assumed control of the colonial forces already formed in Cambridge, Massachusetts, after the Battle of Lexington and Concord. It appointed George Washington as Commander-in-Chief of this American Continental Army and assumed complete responsibility for the salaries and supplies of the servicemen.

On June 1, 1775 Governor Dunmore called the Virginia House of Burgesses together for the purpose of discussing some British proposals originated by Lord North. The members did not favor these, however, and proceeded to suggest the levying of a tax of five pounds per head on each imported slave as an attempt to raise revenue for payment of the recent Lord Dunmore War with the Indians. In order to protect the slave trade benefits for England, the Governor vetoed this proposal. This action was his last veto in the Colony of Virginia. Later that month, Lord Dunmore, sensing the sincerity of the Americans in this revolution, feared for his royal governorship life. Consequently, on June 8, he fled from Williamsburg to a British man-of-war ship, the "Fowey," in the Yorktown harbor. His flight practically dissolved the royal government in Virginia. The Virginia Assembly asked Governor Dunmore to return under its protection but he refused to do so. His refusal to return after an official petition had been issued was considered by the Virginians as abdication on his part from office. Thus, when it adjourned on June 20, 1775, the last Virginia colonial General Assembly ended.

On July 3, 1775, Washington took official command of the American Continental Army at Cambridge, Massachusetts, and his first military

objective was to drive the British away from Boston. After he had been there a few weeks, he visited some troops for inspection. Upon inquiring about the place of origin of one company, he was surprised and delighted to hear the answer, "General, from the Banks of the Potomac." The speaker was Daniel Morgan, who had accompanied his corps of riflemen from Winchester, Virginia to Boston, 600 miles distance in twenty-one days without a single death. Morgan had fought with Washington during the French and Indian War and had participated in the war against the Indians in the Ohio Valley campaign. Washington was so happy to see these fellow-Virginians that he took time from his busy schedule to shake hands personally with each member of the corps. After Morgan and his troops had participated successfully in the Massachusetts Campaign, he later sent them to Canada for the Quebec campaign. This campaign unfortunately resulted in a defeat for the Americans, and Morgan was taken prisoner. Although Morgan was offered a commission in the British army while he was imprisoned, he violently rejected the offer. Although he remained a prisoner for a long time, he rejoined the American Army as soon as he was free to do so. The famous American victory at the Battle of Saratoga is now accredited to the military strategy and tactics of General Daniel Morgan. Another important later victory for which he was directly responsible was the Battle of Cowpens in South Carolina. He is one of the many great military men furnished by the colony and by the state of Virginia.

From July 17 to August 26, 1775, the Third Virginia Convention was held. The meeting place was Richmond, and Peyton Randolph was elected president of the convention. George Mason had been appointed to succeed George Washington at this convention because Washington was busily engaged as Commander-in-Chief of the American Army. Since Governor Dunmore had already fled from the colony, the royal government had been theoretically dissolved and Virginia gained the status of an independent state. Therefore, the members of this convention believed that they had to assume responsibility for governing Virginia under the circumstances. Consequently, the one hundred and fifteen delegates present proposed acts and passed them as laws called ordinances. Ordinances passed contained the following provisions: (1) the organization of military forces for the defense of Virginia into two regiments; (2) the creation of an executive body called the Committee of Safety to act as the government while the convention was in recess; (3) a plan for adequate revenue for the

provisional government and for the Army of Virginia; (4) the establishment of executive county committees; (5) the regulation of the election of delegates to future conventions; (6) the election of new representatives to a future Continental Congress, and (7) the division of Virginia into sixteen military districts.

On August 17, 1775, the first Committee of Safety for Virginia was appointed by the Virginia Convention of July 1775. It consisted of eleven members, namely, Richard Bland, Carter Braxton, William Cabell, Paul Carrington, Dudley Digges, Thomas Ludwell Lee, George Mason, James Mercer, John Page, Edmund Pendleton and John Tabb. Edmund Pendleton was the chairman of this committee. Various members of the Committee of Safety actually ruled Virginia from the time it ceased to be a British colony until it officially became an independent state.

On December 1, 1775 the Fourth Virginia Convention was held at Richmond, but soon after the convention had become organized, it moved to Williamsburg. Edmund Pendleton was elected president of the convention. The chief problem of this convention was military protection and security for Virginia in the face of war. The army was increased from two regiments to nine regiments with an enlistment requiring two years of military service. The chief measures passed during the Fourth Virginia Convention of December 1775-January 1776 included the appointment of a commission of five men in each county to try cases of those individuals believed to be enemies of America, the creation of an admiralty court to hear cases involving maritime or naval affairs, the granting of permission for county courts to elect a sheriff for a one-year term and the issuing of special instructions to the Virginia delegates to the next Continental Congress to encourage the opening of American ports to the commerce of all foreign nations except Great Britain and the British West Indies. It was also decided at this convention to allow the Virginia troops to be merged or absorbed into the Continental Army and to have future military officers commissioned by the Continental Congress rather than by individual state or colonial legislatures. Another Committee of Safety for Virginia was named: nine members were re-appointed and two new members were substituted. Edmund Pendleton was still the chairman and the other committee members were Richard Bland, William Cabell, Paul Carrington, Dudley Digges, Joseph Jones, Thomas Ludwell Lee, James Mercer, John

Page, John Tabb and Thomas Walker. On January 20, 1776, the convention adjourned.

During the convention, another Lord Dunmore episode took place. Lord Dunmore had become a real threat to the Virginians because, after he had fled from Williamsburg and from Yorktown, he armed many Negroes and persuaded them to fight for the King in return for their future freedom. He commanded a force which at this time was in possession of Norfolk and its adjacent areas. Eight days after the convention began, Lord Dunmore dispatched a few of his British regulars to attack some of the Virginian troops under Colonel William Woodford. These Virginians had constructed a breastwork along the southern branch of the Elizabeth River, approximately twelve miles from Norfolk. Colonel Woodford's Virginia troops killed almost all the British regulars, much to the surprise of Lord Dunmore, who quickly retreated to a part of the British fleet docked in Norfolk harbor. Later, while the convention was still in session, on January 1, 1776, Lord Dunmore with a small land and sea force bombarded and burned Norfolk itself which consisted of about 6,000 residents at the time. Many houses were completely burned and others badly damaged. St. Paul's Church was the only building to survive this bombardment and embedded cannon balls in the south wall of the church may still be seen which were fired from the ships in the harbor. Dunmore and his forces finally sailed up the Chesapeake Bay and stationed themselves off Gwynn's Island, near the present Mathews County mainland. From this area, Dunmore and his friends made repeated plunder attacks along the coast of Virginia until summer.

During the same month of January, a dramatic episode occurred at Woodstock. John Peter Gabriel Mühlenberg, an ex-German soldier who had migrated to Virginia and had become a minister, was very strongly pro-Virginia and very strongly anti-British King. He had received a military commission as a colonel from General George Washington due to his past military experience. His duty was to form a regiment of Germans living in the valley. On this particular Sunday, he ascended the pulpit and began to preach concerning the theme, "There is a time to every purpose ... a time to war and a time to peace!" He proceeded to describe the unjust treatment which the American colonies had received from the British King and the Parliament. At the conclusion of his sermon, he stated: "There is a time for

all things—a time to preach and a time to pray; but there is a time to fight, and that time has come now." With these surprising words, he threw back his minister's attire and stood fully clothed in the blue and buff uniform of a Continental Colonel with the official sword at his side. He immediately descended from the pulpit and, in a very short time, had enlisted three hundred citizens within this small community in the Eighth Virginia Regiment. Thus, Mühlenberg earned for himself the title of the "Fighting Parson" and with his regiment marched directly to help the South Carolina Army. The regiment was later referred to as the German Regiment because it was made up solely of German Americans. It served with great honor during the Revolutionary War. Mühlenberg himself had the distinction of being with General Washington when Cornwallis surrendered at Yorktown.

The Fifth Virginia Convention, now called the Virginia Constitutional Convention, began on May 6, 1776 at Williamsburg. By this time, the British had been driven out of Boston and out of the New England area in general. The American attempt to invade Canada had been unsuccessful, but the British had been defeated in North and South Carolina. Public opinion in Virginia which had been only "lukewarm" to complete separation from England at the early stages of the war now became very strongly in favor of it—particularly after the bombardment and burning of Norfolk. Most of the delegates had been instructed before coming to the convention to work toward two specific objectives: American independence and a representative government for Virginia. There were one hundred and thirty-one delegates present at this convention, representing sixty-six counties and corporations. Some of the outstanding members at this convention were James Madison, Edmund Randolph and Archibald Cary.

The various sections of Virginia were represented at the Fifth Convention. The type of clothing worn at the convention made the sections easily recognizable: there was an outstanding contrast between the homespun, practical clothing of the frontiersmen and the fancy British-made clothing of the wealthy traders and plantation owners. The convention members elected delegates to the Continental Congress and instructed them to propose American independence from England. The delegates chosen were George Washington, John Blair, James Madison, George Mason, James McClurg, Edmund Randolph and George Wythe. On May 15, a resolution was introduced by Archibald Cary and passed which declared the colony of

Virginia a free and independent State. Immediately the British flag was lowered from the Capitol at Williamsburg and the colonial colors were raised instead. At this same convention, on May 27, Archibald Cary presented to the members the "Declaration of Rights" prepared by George Mason for this convention. This document stated the fundamental rights of English colonists as well as of Englishmen.

On June 12, 1776 Mason's "Declaration of Rights" was unanimously adopted. Its principles were considered so important that they were later the basis of the Bill of Rights in the United States Constitution and eventually were used as the background for state constitution Bills of Rights. The Virginia Bill of Rights is often referred to as the "Magna Charta of Virginia." George Mason also recommended the original motto of the official seal of the State of Virginia at this convention: "Sic Semper Tyrannis"—"Thus Always (or ever) to Tyrants."

In the same session, James Madison actively participated in a discussion concerning religious liberty and tolerance. He proposed a clause in the Virginia Bill of Rights to allow the "free exercise of religion" because he strongly believed that the state should have no coercive power over religious thought. This clause was adopted, and James Madison for the first time attracted state-wide attention to his thinking and philosophy.

Once the idea of independence from England was formally expressed and a specific objective was established, the Virginians at this convention proceeded to write a state constitution for Virginia. This constitution, the first written state constitution, was officially adopted on June 29, 1776, making this the birth date of the State of Virginia. Since George Mason was primarily responsible for the actual wording of the constitution, he is called the "Father of the Virginia Constitution." Virginia was organized as the Commonwealth of Virginia, the name believed patterned after the Commonwealth of England, the title acquired by the government of England after its Civil War. The first constitution for Virginia provided for a bicameral (two-house) legislature: the Senate and the House of Delegates. Membership in these groups was to be by election by the qualified voters. Each county was to choose two delegates annually to represent them and one-fourth of the Senate was to be elected annually. The combined balloting of the House and the Senate was to determine the election of the Governor (whose term was to be one year with a maximum three years possible), an

eight-man Council of State and members of the Congress of the United States. A general system of courts was created. Patrick Henry was elected the first Governor of the Commonwealth of Virginia and he served from 1776 to 1779. The Commonwealth of Virginia was now ready to function, and the new government went into effect immediately. The Williamsburg Convention which began May 6, 1776 adjourned on July 5, 1776.

While this convention was in session, the Second Continental Congress was meeting at the State House, now called Independence Hall, in Philadelphia. On June 7, 1776 Richard Henry Lee, a Virginian, introduced a resolution "that these United Colonies are, and of right ought to be, free and independent States, that they are absolved from all allegiance to the British crown, and that all political convention between them and the State of Great Britain is, and ought to be, totally dissolved." The motion was seconded and urged strongly by John Adams of Massachusetts. The usual discussion and argumentation period followed, and it became obvious that six states hesitated to vote favorably for the resolution at this time. Consequently, the official voting was postponed for three weeks, but Lee's resolution was adopted by the Congress on July 2, 1776. However, a committee of five was selected on June 10 to draw up a declaration of independence: Thomas Jefferson (Virginia), Benjamin Franklin (Pennsylvania), John Adams (Massachusetts), Roger Sherman (Connecticut) and Robert H. Livingston (New York). Although Thomas Jefferson was one of the youngest Continental Congressmen, he was selected as the chairman of this committee. Since only a few deletions in the original plan drawn up by Jefferson were made by the other members of the committee, the writing of the formal Declaration of Independence is justly attributable to Thomas Jefferson, the Virginian. This Declaration of Independence coupled with his "A Summary View of the Rights of British America" later earned for Thomas Jefferson the title "The Pen of the Revolution."

The logical, thorough reasoning behind the content of the Declaration is easily apparent. The first part of this document describes the nature and the purpose of a government and the belief that a people have the right to change their government when it no longer fulfills the purpose for which it was created. Then Jefferson enumerated the various acts of the King and of the British Parliament which the American colonists considered most unfair and contrary to the purpose of the original founding of the colonies, as

justification for their desire to change their type of government. The next section reaches a conclusion from the previous two sections: namely, that the colonists are renouncing their allegiance to the King and are declaring that "these colonies are, and of right ought to be, Free and Independent States."

On July 4, 1776 twelve states had voted for the adoption of the Declaration of Independence. The thirteenth one, New York, accepted it on July 9. On July 19, a resolution was adopted by the Second Continental Congress to have the July 4 Declaration engrossed on parchment entitled "The unanimous Declaration of the thirteen United States of America" and, upon its completion, to have it signed by each member. Fifty of the fifty-six members signed the official document by August 2, and, of the remaining six signers, two were Virginians: George Wythe who signed it later in August and Richard Henry Lee who signed it in September. The seven Virginia delegates who signed the Declaration of Independence were Carter Braxton (farmer), Benjamin Harrison (farmer), Thomas Jefferson (lawyer), Richard Henry Lee (farmer), Francis Lightfoot Lee (farmer), Thomas Nelson, Jr. (soldier) and George Wythe (lawyer).

After Richard Henry Lee had introduced his independence resolution, he proposed another one suggesting that a permanent central government be created for the new United States. A committee was appointed to draw up such a plan and, in 1777, it submitted the Articles of Confederation to Congress. From 1775 to 1781, the Continental Congress acted as the central governing body of the United States.

After Lord Dunmore had bombarded Norfolk in January 1776, he went up the Chesapeake Bay to Gwynn's Island, near the present-day Mathews County mainland. With about 500 men he set up a camp there in May 1776. General Andrew Lewis, whom he had fought previously along the Ohio River, encamped with a small Virginia army on the shore opposite the island on July 8. Although it was very difficult to plant the cannon on the sandy shores, the next day General Lewis and his troops fired upon the camp and the fleet and badly damaged many of the ships. However, when his men invaded the island on the next day, they found it evacuated. Lord Dunmore had sailed away from Virginia taking with him the last governorship endowed with royal power. Thus, the Battle of Gwynn's Island or Cricket Hill was famous because of its effect of driving the last

royal Governor from Virginia. It was, in a sense, ironic that Patrick Henry, who had been detested by Lord Dunmore while Dunmore was Governor of Virginia, became the first elected Governor of the Commonwealth of Virginia.

During the governorship of Patrick Henry, population growth was again apparent by the formation of eight new counties in 1777-1778. These counties were: Montgomery (formed from Fincastle County and, later, parts of Botetourt and Pulaski and named for General Richard Montgomery—an American Revolutionary officer), Fluvanna (formed from Albemarle County and named for Queen Ann), Washington (formed from Fincastle County and, later, parts of Montgomery, named for George Washington and having the distinction of being the first locality in the United States so named), Powhatan (formed from Cumberland County and named for Powhatan, the father of Pocahontas), Rockbridge (formed from Augusta and Botetourt Counties and named in honor of the Natural Bridge—a natural wonder of Virginia), Rockingham (formed from Augusta County and believed named for the Marquis of Rockingham, England's Prime Minister), Shenandoah (originally, Dunmore County and named for the Indian-named Shenandoah River which translated means "Beautiful Daughter of the Stars") and Henry (formed from Pittsylvania County and named in honor of Patrick Henry).

George Rogers Clark, an older brother of William Clark of the well-known Lewis and Clark expedition, had explored and had surveyed much of the territory south of the Ohio River in the area now called Kentucky: at this time, it was the western part of Fincastle County. He believed that this section was ready to become an independent county and felt that, under such political status, the settlers could better organize and protect themselves. Only the Virginia Assembly could authorize the formation of this new county in 1776. Clark, therefore, called the settlers together, explained his objective for Kentucky and succeeded in getting John Gabriel Jones and himself elected as delegates to make a personal visit to the Virginia General Assembly at Williamsburg. The trip was long, difficult and dangerous, and to their dismay, the Assembly had already adjourned before they arrived. Being a determined individual, however, Clark decided to talk to the newly elected Governor, Patrick Henry, at his home. Hence, he traveled to Hanover County, discussed his problem with the Governor and

sought permission to fight the Indians of the Kentucky area and to secure powder for the settlers' muskets. His trip was successful and, on December 7, 1776, the western part of Fincastle County was authorized to become the County of Kentucky in Virginia.

The British had been helping and encouraging Indian raids at this time in Kentucky, along the border settlements of Virginia and in the Illinois area. Clark believed that the Illinois area rightfully belonged to Virginia and felt that it must be conquered in order to attain peace for the Virginia settlers. The reports of official observers convinced him that this land could be invaded and captured with little effort. He returned to Williamsburg to get Governor Henry's approval for this objective and was happy to be commissioned to raise several companies of soldiers to be used in the invasion of the Illinois territory. Clark obtained his troops, and, after traveling north through Virginia and then westward to the Ohio River, they floated down the Ohio River on rafts and in boats. They landed near Louisville on the northern bank of the Ohio and marched westward approximately two hundred miles to Fort Kaskaskia. On July 4, 1778, they captured Fort Kaskaskia and its leader, Colonel Henry Hamilton. Marching another 150 miles northeastward, on February 25, 1779 they captured Fort Vincennes on the banks of the Wabash River. The post of Cahokia was also captured. In honor of his great bravery and extremely difficult marching, Clark was entitled the "Hannibal of the West." This entire area was known as the Northwest Territory, and these conquests of Clark and his troops gave Virginia complete claim for the control of this area as part of the Virginia state at the end of the American Revolution in 1783. Without such conquests, England would undoubtedly have held this territory after the Revolution, and it would probably have been an important part of Canada today. Simultaneously, the capture of these forts reduced the danger of Indian attacks considerably.

When the city of Philadelphia was about to be occupied by British troops on September 18, 1777, the famous Liberty Bell was taken from the State House in Pennsylvania for safekeeping. It was camouflaged with the heavy baggage of the American army in a supply train of 700 wagons and was carefully guarded by two hundred Virginian and North Carolinian cavalry-mounted troops. It was hidden in the Zion Church in Allen town,

Pennsylvania, until June 27, 1778 when it was returned to its tower in Independence Hall.

During the same month and year, Henry Lee, a native of Westmoreland County, Virginia, who had been a captain in Colonel Thomas Bland's legion of Virginia cavalry, joined Washington's army in Pennsylvania. His personal achievements were many in this assignment and his excessive courage was noted by Washington. He was soon promoted to major and was given special command of three troops of horsemen plus an infantry company. He became a great annoyance to the British while they were on the march as well as in camp. This comparatively small group became so distinguished that they earned the tide of "Lee's Legion" and Henry Lee was nicknamed "Light Horse Harry" Lee. He later captured an important British post at Paulus Hook, New Jersey, and fought diligently also in South Carolina, North Carolina and Georgia. He was awarded a gold medal by the Continental Congress for his brilliant cavalry exploits during the Revolutionary War.

On May 9, 1779, a Britisher, General George Collier, arrived at Hampton Roads with approximately 2,000 troops. They used Portsmouth as a base and after making several raids in that area, destroyed not only the American navy yard at Portsmouth (called Gosport at this time) but also large supply deposits stored there. After awaiting reinforcements from General Henry Clinton in New York, they decided to abandon Virginia because they believed a Virginia blockade had prevented these reinforcements from arriving. Upon their departure, the inhabitants of Virginia were once more able to carry on necessary and important trade with the West Indies.

During this same year, a most unusual naval feat occurred in the Revolutionary War. John Paul Jones was in command of an American ship called the "Bonhomme Richard" off the coast of England when he spotted a British warship, the "Serapis." After fierce fighting between the two ships, although his own ship sank, he captured the "Serapis" and sailed away in it. Virginia had the honor of providing the greatest naval hero of the Revolutionary War, John Paul Jones.

Thomas Jefferson was the second elected Governor of the Commonwealth of Virginia. He held this office during most of the Revolutionary War Period. In addition to peace and military warfare, Jefferson had personal

interest in religion and in education. In 1779, he wrote a proposed "Statute of Virginia for Religious Freedom." He believed that the State Constitution had not included practical religious liberty although the theory of religious freedom had been guaranteed. Jefferson's proposal was finally passed by the General Assembly of Virginia in 1785. It is considered as one of the greatest Virginia documents because it guaranteed religious freedom to all.

While serving as Governor, Jefferson proposed a plan for education called "A Bill for the More General Diffusion of Knowledge." He based this plan upon the premise that democracy would be more successful if greater numbers of individuals were educated. The plan was an attempt on his part to encourage the establishment of free public schools for the children of the wealthy and the poor alike. This proposal suggested three years of free elementary schooling for all children regardless of their social or financial condition, free secondary education for those individuals who were mentally equipped to gain from this experience and free higher education for those who had displayed above average scholastic qualifications. The bill was not passed, but it resulted in a consideration of the possibility of public education at this time. Another example of Jefferson's enthusiastic interest in education was his personal establishment, in 1779, of a chair of law at William and Mary College in honor of a former teacher, a great lawyer and a personal friend, George Wythe. As a result, George Wythe had the distinction of being the first professor of law in the United States in the first law school in America.

While Jefferson was still Governor, the capital was moved in 1780 from Williamsburg to Richmond in an effort to escape the invading British soldiers and to provide a safer place of protection for the future. Lord Cornwallis, at this time, was proceeding with his plans to move north through the Carolinas to Virginia. Cornwallis had had a great victory at Camden, South Carolina, and had decided to persuade many of the western mountain people to fight on behalf of the British. Americans who favored the British in this revolution were called "Tories" and those who favored the Americans were called "Patriots."

Cornwallis sent Major Patrick Ferguson and approximately a thousand Tories to threaten these mountain folk in North Carolina and Southwest Virginia to the extent of marching over their land, causing destruction and hanging their leaders unless they discontinued their past resistance to the

British army. Two American military frontiersmen, Colonel John Sevier and Colonel Isaac Shelby, decided to organize a group of riflemen and attack Ferguson before he had the opportunity to cross the mountains and attack them. They contacted Colonel William Campbell whose duty had been to protect the lead mines in Wythe County whose resources were being mined and smelted for equipment for the American soldiers. Colonel Campbell was invited to join Colonel Sevier and Colonel Shelby in their attack against Ferguson. He accepted and later was selected by the officers as their commander. Ferguson heard of their plan and selected a wooded mountain ridge on the border between North Carolina and South Carolina, called King's Mountain, for his battlefield. Ferguson's troops far outnumbered Colonel Campbell's troops and were much better equipped with military supplies. Colonel Campbell's troops, however, defeated the British badly on October 7, 1780. Major Ferguson and two hundred other Britishers were killed in battle. This Battle of King's Mountain is often called the turning point of the Revolutionary War in the South because not only did it upset the military strategy of Cornwallis but it also encouraged the southern patriots at a time when the morale had been low. Colonel Campbell was promoted to a Brigadier-General as a direct result of this battle. The British in the meantime had sent General Alexander Leslie to Portsmouth with approximately 3,000 troops. After the severe British defeat at King's Mountain, he left Portsmouth and headed his troops south to join Cornwallis.

Morale in Virginia at this time was very low because there was a great shortage of clothing, military equipment and supplies, there was a lack of money in the state treasury, Virginia soldiers were fighting outside their state and British soldiers in large numbers were stationed in eastern and central Virginia. General William Phillips and Cornwallis had seized and destroyed property valued at ten million dollars in eastern Virginia alone by the spring of 1781.

Meanwhile, by March 1, 1781, the Articles of Confederation had been ratified by all the states and thereby became the basis for the central government of the United States. Since Maryland had refused to ratify the Articles until the states which owned large western land-holdings would cede them to the central government, Virginia, following a pattern of New York State, surrendered most of its large holding claims in 1784. By this

action, Virginia ceded the Northwest Territory to the new nation, the United States. The entire region beyond the Ohio River (now comprising the states of Ohio, Indiana, Illinois, Michigan and Wisconsin) had rightfully been claimed by Virginia and cession to the United States for the beginning of its public domain was a most generous gesture on the part of Virginia. This action played an important part in creating a stronger feeling of unity on the part of the thirteen original colonies and in giving Virginia another nickname, "Mother of States."

The Confederation Congress was later faced with the problem of raising revenue for the new government under the Articles of Confederation and for payment of debts caused by the Revolutionary War. The Northwest Territory which Virginia had ceded to the central government had become part of the national domain, public lands of the United States. Congress decided to sell some of this land to obtain necessary revenue. It passed the Land Ordinances of 1785 and 1787, which became practically the written bases for the rest of the frontier settlements. The plan which was the forerunner of these ordinances concerning the public domain was proposed by Thomas Jefferson and enacted on April 23, 1784. In his plan, he outlined the territorial status preceding statehood and originated the idea of dividing the public domain into districts before statehood could be achieved. Two years later, the Confederation Congress gave a grant of 150,000 acres of land to George Rogers Clark and his followers as a reward for their great services in conquering the Northwest Territory and in establishing the only legal claim to this land on behalf of the United States. Virginia also reserved the ownership of 6,000 square miles of land called the Virginia Military District (presently located in the southern part of Ohio).

While General William Nelson, commander of the Virginia forces, was recruiting additional militia in the counties near the coast, twenty-seven British ships entered the Chesapeake Bay and headed for the mouth of the James River. Since Governor Jefferson believed Richmond was not militarily prepared for such an attack, he had the only five brass cannon of the capital city thrown into the river and had the remaining arms and ammunition taken seven miles from Richmond to Westham. On July 4, the Governor evacuated from Richmond and most of the inhabitants did likewise. On the next afternoon, General Benedict Arnold, the American traitor who had joined the British forces, accompanied by nine hundred

British soldiers captured and burned Richmond unopposed. For two days the British burned and destroyed public and private property and later returned leisurely to Portsmouth.

Subsequently, as some of the British vessels attempted to sail up the Appomattox River, General Smallwood accompanied by three hundred American soldiers armed only with muskets attacked the British fiercely and drove them down the river. A short time later, General William Phillips brought additional British troops to combine with those of Arnold and took command over General Arnold. The combined forces marched first to Petersburg and then to Manchester (now, South Richmond). Lafayette had been placed in charge of the defense of Virginia at this time and he arrived in Richmond two days after Phillips had arrived. When General Phillips heard that Lafayette was in Richmond, he changed his mind and decided not to attack this city. In the meantime, Colonel Simcoe had been sent by General Arnold to Westham where he destroyed the military stores and the foundry. During this same period, General Phillips had sent General Arnold to Chesterfield Court House where he destroyed the barracks and burned the flour as they had previously burned the tobacco at Petersburg. As General Phillips was proceeding down the James River towards Chesapeake Bay, he received a message from General Cornwallis ordering him to meet with his forces at Petersburg so Phillips returned to Petersburg. Four days after he had arrived, General Phillips died of a fever in Petersburg and General Arnold succeeded to the command once more.

General Arnold, however, realized the hatred of the Virginians toward him for the burning and destruction for which he was responsible in Richmond. Consequently, after his army had united with Cornwallis' troops at Petersburg, he asked for a transfer to New York. Cornwallis, who disliked Arnold himself, granted the request. When Lafayette was informed of the tremendous number of British soldiers massed in Petersburg, he realized that it would be futile for his comparatively small force of 3,000 men to try to combat them. Consequently, he retreated slowly from Richmond towards Fredericksburg where he was joined by General Anthony Wayne. Cornwallis who had expected to trap Lafayette and his army was surprised by the orderly retreat and decided not to attack Richmond again as the legislature had already withdrawn to Charlottesville. On May 10, 1781, as the British neared Richmond, Governor Jefferson had ordered the General

Assembly, which was then in session, to leave Richmond and continue the session at Charlottesville on May 24. Thus, Charlottesville for a brief time was the official capital of Virginia. Governor Jefferson's home, Monticello, was used as a guest house for many of Jefferson's legislative friends. Cornwallis decided to capture Jefferson who was at his home at Monticello, approximately three miles from Charlottesville, to seize the legislators at Charlottesville and to destroy a large quantity of military stores at a place called Point-of-Fork (at the junction of the Rivanna and James Rivers). Cornwallis believed that such a plan, if successfully carried out, would result in the complete surrender of the State of Virginia. Therefore, Cornwallis divided his cavalry into two groups: one commanded by Colonel John G. Simcoe who was to proceed to Point-of-Fork and the other commanded by Colonel Banastre Tarleton who was to proceed to Charlottesville, approximately seventy miles from his headquarters. After accomplishing these objectives, Tarleton was to continue to Point-of-Fork and help Colonel Simcoe.

General Baron Von Steuben heard about Simcoe's plan and was able to have all the military stores hauled across the river before his arrival. Simcoe, however, used military strategy in this instance which worked most successfully: he had his men spread out, cut down trees and build large camp-fires at great distances apart thus giving the impression that all of Cornwallis' army was on this campaign. General Steuben observing the large radius of camp concluded that Cornwallis' entire force was across the river. Consequently, he had his lighter baggage moved and had his troops evacuate the area. Simcoe destroyed all the heavy baggage and military stores and returned successfully to Cornwallis the next morning.

The British soldiers under Colonel Tarleton stopped for refreshments in Louisa County at a place called Cuckoo Tavern. The tavern keeper had an American soldier son, Captain Jack Jouett of the Virginia Militia, who happened to be at the tavern but out of sight of tavern visitors on that particular Sunday afternoon. He observed the two hundred and fifty British soldiers, overheard some of their personal conversations and their casual references to their military mission. He waited until the British had departed from the tavern and then he traveled on horseback over a different road—forty miles of brush and thicket, field and forest, vines and brambles. He rode without delay although the scars of some of the branches which struck

him in the face as he was riding so rapidly became permanent ones. He believed that the British would probably make another stop for refreshments at the home of Dr. William Walker, the only one in the vicinity. Thus, he took time out to warn them of Tarleton's plans and to urge them to delay the British as long as possible. Jouett reached Monticello at dawn, roused the inhabitants within and informed them of Tarleton's plan. Jefferson and his guests fled on horseback and Mrs. Jefferson and their three children escaped to a neighbor's house by carriage. As the British rode up one side of the steep hill of Monticello, the Governor and his friends reached the bottom of the hill on the other side. Jouett then safely led the Governor's party via a secluded road to Staunton, which became another temporary capital. In the meantime, Tarleton had tarried before coming to Monticello to burn a wagon train filled with Continental Army supplies and had stopped as predicted at Castle Hill, the home of the Walkers. Mrs. Walker fed the soldiers before the officers, thus causing an added delay in their departure. Jack Jouett can be truly classified as the "Paul Revere of the South." The Assembly members were so appreciative of the courage and perseverance of Jouett that they subsequently presented him with a sword and a pair of pistols.



RICHMOND CHAMBER OF COMMERCE

Gunston Hall

Home of George Mason, Author of "Declaration of Rights"

On July 4, 1781, General Cornwallis and his troops left Williamsburg, fought an inconsequential battle at Greenspring (near Jamestown) and then crossed the James River to Portsmouth where he proceeded to Yorktown. By September 1781, he had approximately eight thousand soldiers garrisoned on the peninsula at Yorktown. He had selected this site because he thought it was a secure one: the Chesapeake Bay was on the east, the York River on the north and the James River on the south. Actually, he had placed his soldiers in a most penetrable trap.

Marquis de Lafayette played an important part in the Revolutionary War. An outstanding example of foreign help received by the Americans, Lafayette had volunteered at the age of nineteen to serve in the American Army in 1777. After arriving from France in North Carolina, he rode horseback to Philadelphia to appear personally before the Continental

Congress to offer his services to the American colonies. He had been appointed a Major-General by Congress and had been placed on Washington's staff. He had fought in the Battle of Brandywine Creek (Pennsylvania) and had been seriously wounded. His outstanding bravery had been recognized by Washington and they had begun a strong friendship which was to continue throughout their lives. He had endured with Washington the terrible winter at Valley Forge, Pennsylvania (1777-1778) and acted as a morale builder to Washington's disheartened forces. He had been the hero at the Battle of Monmouth, New Jersey. After France had officially recognized the independence of the United States, Lafayette had returned to France, and, after encouraging many French soldiers to help the Americans fight, he had rejoined Washington. In 1781, Washington had sent him to defend and protect Virginia where he had cleverly pursued Cornwallis from near Charlottesville to Yorktown. After his role in the final strategy of Yorktown defense and his return to France, one can understand why Virginians consider Lafayette one of their heroes and have a famous bust of him created by the great sculptor, Jean Antoine Houdon, located in the rotunda of the State Capitol Building in Richmond.

As soon as Lafayette had noticed Cornwallis gathering his troops at Yorktown, he realized the possibility of surrounding Cornwallis and his forces since Lafayette was so well acquainted with this terrain. He immediately informed Washington of this situation and Washington quickly headed for his home state. In the meantime, General Lafayette surrounded Cornwallis and his troops on the south and on the west. Simultaneously, a fleet of twenty-five French warships from the West Indies under command of Admiral de Grasse sailed up the Chesapeake Bay with 3,000 French troops. This movement prevented Cornwallis from either receiving British reinforcements or from escaping out to sea. General Washington, after feigning an attack against General Henry Clinton in New York, rapidly moved his army southward, joined with the forces of General Count de Rochambeau. Washington soon attacked the British on the north and on the west. Although Cornwallis realized that he was completely surrounded by American and French forces, he and his troops fought valiantly for weeks.

The home of General Thomas Nelson, the Governor of Virginia at this time, was located in Yorktown. General Cornwallis had taken possession of this house for his headquarters at Yorktown. Out of deference to the Governor,

the American soldiers had refrained from firing upon it. However, General Nelson ordered them to fire upon the house, regardless of its sentimental value, because it housed British officers. The first shot killed two British officers and a cannon ball still embedded in one wall may be observed today in the Nelson House at Yorktown.

Finally recognizing the futility of fighting any longer, on October 17, 1781, General Cornwallis requested a parley, ordered a cease firing, and exchanged messages with Washington. At two o'clock of the next afternoon, Cornwallis selected the Moore House in Yorktown for a discussion of surrender terms: this house was out of range of the firing and conveniently located. The British, the French and the Americans sent representatives for the consultation, John Laurens representing the Americans. After long discussion and debate, the articles of capitulation were agreed upon and the generals signed them the next day. At twelve o'clock on October 19, 1781, the British signing was done by General Cornwallis and Thomas Symonds, the American signing by General Washington, and the French signing by General Rochambeau and Count de Barras for Count de Grasse. On October 19, at 2 p.m., as agreed upon by the surrender terms, the British army of 7,000 troops left Yorktown and laid down their arms at Surrender Field, just south of the town. They marched between two long lines of the French on one side and the Americans on the other side. General Charles O'Hara, the leader of the British, apologized to Washington for the non-appearance of Lord Cornwallis who was reported ill. The Battle of Yorktown ended the Revolutionary War although the peace treaty was not signed until 1783.

In this same year, the American army was demobilized. George Washington bade farewell to his officers at Fraunces' Tavern, New York City, on December 4, resigned on December 23 and returned to Mt. Vernon to retire. Already he had won the admiration of the new nation for his continued courage, bravery and great military strategy so ably exemplified during the American Revolutionary War. He also had earned the well-deserved title: "The Sword of the Revolution."

The Adoption of the United States and State Constitutions

By 1785, the Americans began to realize that the Articles of Confederation were too weak to become effective. The central government did not have sufficient political power to govern, the lack of a single executive resulted in a lack of leadership, the Confederation Congress could make laws but had no power to enforce them, the Congress could issue paper money and coins but had no power to buy gold and silver for backing this money and the Congress could levy taxes but had no power to collect them. There was no provision for a national court system. In order to pass a law, nine states had to agree in its favor; in order to amend the Articles, all thirteen states had to agree. Under the Articles of Confederation, the government was a confederacy in which each state retained its own political authority and the central government was responsible to the states. The control of foreign and interstate commerce was left entirely to the individual states. Chaos and confusion resulted. Consequently, in 1785, George Washington invited some representatives from Maryland and from Virginia to meet with him to discuss the problem of a stronger central government and to settle a dispute which had arisen concerning the navigation of the Potomac River.

The conference started at the City Tavern (later known as Gadsby's Tavern) in Alexandria and was later continued at Mount Vernon, home of Washington. During the discussion, Washington stated that there should be a common money system for all the states as well as a common plan for regulating domestic and foreign commerce. James Madison was one of the Virginians present, and he felt that there must be other problems of common interest to all the states. Therefore, when the next General Assembly met in January 1786, Madison proposed that representatives from all the states should meet at Annapolis, Maryland on September 11, 1786 to discuss trade problems and other areas of mutual interest. The Virginia legislature, therefore, invited all the states to send representatives to Annapolis to attempt to formulate a uniform currency and commerce system for all the states.

In September 1786, only five states sent delegates to the Annapolis meeting: Virginia, Delaware, New York, New Jersey and Pennsylvania. These delegates, nevertheless, suggested that a convention be held on May 25, 1787 at the State House in Philadelphia for the purpose of revising the Articles of Confederation. After this recommendation had been submitted to the Confederation Congress, it hesitatingly invited all the states to meet the

next year at Philadelphia. Virginia sent seven delegates to this Philadelphia convention: George Washington, John Blair, James Madison, George Mason, James McClurg, Edmund Randolph (Governor at this time) and George Wythe.

Seventy-three individuals had been chosen as delegates from the twelve states, but only fifty-six members were present at the convention. All the states were represented at the convention except Rhode Island. When the convention began on May 25, 1787, George Washington was unanimously chosen President of the convention to preside over the meetings and rules of procedure were adopted. It is significant to note the absence of three of the Virginia Revolutionary Period leaders: Richard Henry Lee, Thomas Jefferson and Patrick Henry. Lee declined membership because he believed that, since he was a member of the Confederation Congress and since he thought the revised Articles would be submitted to this Congress for approval, he should not become a member of the Convention to revise the same and, subsequently, be a member of the Confederation Congress which would be asked to pass upon the revised plan. Jefferson was the United States Minister to France at this time and was out of the country. Although Patrick Henry had been elected as a delegate to the convention, he had refused to accept the assignment because he was skeptical about governmental changes which the convention might make. Two Virginians who were present made written comments concerning the type of individuals who represented their states as follows:

(1) George Mason (in a letter to his son)—"America has certainly, upon this occasion, drawn forth her first characters.... The eyes of the U. S. are turned upon this assembly, and their expectations raised to a very anxious degree." Mason's personal attitude toward the responsibility of being a state delegate at this convention is summarized in this remark: "I would not serve upon pecuniary reasons alone in this convention for a thousand pounds a day."

(2) James Madison—"It contains in several instances the most respectable characters in the U. S., and in general may be said to be the best contribution of talents the States could make for the occasion."

The meetings were held secretly behind closed doors because of the grave problems which the convention had to solve. After the delegates began to discuss the necessary changes which had to be made, they realized the impossibility of simply revising the Articles of Confederation and the absolute necessity of writing a new constitution which would make the central government a much stronger political power. James Madison, a most profound student of government, is considered as the most influential member of the convention. He was the most active speaker at the convention and he kept careful notes of the entire session. Madison is regarded as the "Father of the United States Constitution."

One of the first questions to be decided at the convention was the type of organization of the government. Governor Edmund Randolph presented Madison's "Virginia" Plan recommending a strong, central government and one in which each state would be represented in proportion to its population. This plan is sometimes referred to as the "Large State" Plan because most of the larger states favored it: according to this plan, the more population a state had, the greater the representation. The small states had their plan also: it was presented by William Paterson of New Jersey and is known as the "Paterson" or "New Jersey" or "Small State" Plan. The small states favored states' rights rather than a strong, central government and believed that each state should be represented equally regardless of its population. The "Great Compromise" which was finally adopted was a combination of both plans: a bicameral legislature called Congress was to be created consisting of (1) the House of Representatives with membership from each state based upon the population of the state and (2) the Senate with membership based upon equal representation from each state—two Senators from each state. The plan of government finally adopted provided for a strong central government but with the state governments retaining essential reserve powers.

After the Constitution had been completed on September 17, 1787, it was submitted to the Confederation Congress with the recommendation that Congress inform each state legislature about the Constitution and ask for state ratification. The Constitutional requirement for making the document effective was ratification by nine states. Washington was very eager for the Constitution of the United States to be adopted. He wrote many personal letters favoring its adoption including a public letter in which he reminded

the states that each state must be willing to make certain concessions for the benefits of the country as a whole.

Thirty-nine of the fifty-six delegates signed the Constitution. Only three of the six delegates from Virginia signed it: George Washington, John Blair and James Madison. Madison, in fact, was consulted for an opinion on almost every phase of the Constitution. During the campaign period for and against ratification, Madison joined Alexander Hamilton and John Jay of New York and contributed to a series of essays called "The Federalist." The essays included a discussion of the meaning of the various provisions of the Constitution and attempted to prove that the federal or central government would not misuse the power granted to it. Madison wrote twenty of the eighty-five essays contained in "The Federalist." This series of essays is believed to have influenced more people to favor the adoption of the Constitution than any other written or oral effort.

The most influential writings against the adoption of the Constitution were authored by Richard Henry Lee in his "Letters of a Federal Farmer." George Mason and Edmund Randolph refused to sign the Constitution of the United States because it contained no bill of rights, it did not provide either for the immediate prohibition of slave traffic or for the eventual abolition of slavery and, in their opinion, gave Congress too much control over navigation and tariff policies. Edmund Randolph, Governor of Virginia and a delegate at the Philadelphia Convention, played an unusual role: he did not sign the Constitution himself because he did not approve of the final document but he did urge the State of Virginia to accept it because he believed that a union of states was necessary. James McClurg and George Wythe did not sign it because they were absent, but they did encourage the ratification of the Constitution by Virginia.

On June 2, 1788, a Virginia State Convention was held in Richmond to determine whether or not Virginia would accept the new Constitution of the United States. There were one hundred and sixty-eight official delegates present, and they elected Edmund Pendleton president of the convention. Sectionalism appeared obvious in the state at this time: the Piedmont area and the southwest area which did not have many slaves opposed ratification while the Tidewater area and the northwest area favored the adoption of the Constitution. James Madison, John Marshall (who actually explained much of the Constitution to the members of the convention), Edmund Randolph,

George Wythe and General "Light Horse Harry" Lee spoke on behalf of the Constitution; George Mason, Patrick Henry, Richard Henry Lee, James Monroe and William Grayson spoke very strongly against it. The chief arguments against ratification were that the central government had been given far too much power and the individual states far too little power, that the commerce clause was too powerful and that the continuance of the slave trade was permitted. Finally, after Madison had agreed to suggest and to urge adoption of many amendments, the Virginia convention ratified the Constitution of the United States by the close vote of 89 to 79 on June 26, 1788. It is interesting to note that, at this time, the State of Virginia included the present area of Virginia and the area now included in the States of Kentucky and of West Virginia.

The State of Virginia missed by five days the honor of being the necessary ninth state to ratify the Constitution, New Hampshire having this honor. As Virginia became the tenth state to ratify it, the following declaration was officially recorded: "We, the Delegates of the People of Virginia, ... Do, in the name and in behalf of the People of Virginia, declare and make known, that the powers granted under the Constitution, being derived from the People of the United States, may be resumed by them whensoever the same shall be perverted to their injury or oppression, and that every power not granted thereby remains with them and at their Will; that therefore no right of any denomination can be canceled, abridged, restrained, or modified by the Congress ... or any department or Officer of the United States, except in those instances in which power is given by the Constitution for those purposes: and that, among other essential rights, the liberty of Conscience and of the press cannot be canceled, abridged, restrained or modified by any Authority of the United States." This declaration expressed fear on the part of Virginians concerning the new Constitution. At the same time, the members of the Virginia convention proposed forty amendments which became the bases of the ten amendments of the Bill of Rights in the Constitution of the United States: James Madison introduced the first nine amendments and Richard Henry Lee, the tenth amendment, to the Constitution of the United States—all eventually adopted in 1791.

Between 1783 and 1789, on the domestic scene, Virginia had gained five new counties: Campbell (formed from Bedford County and named for General William H. Campbell, the hero of the Battle of King's Mountain),

Greensville (formed from Brunswick County and, later, parts of Sussex County and named for General Nathaniel Greene or Sir Richard Grenville), Franklin (formed from Bedford and Henry Counties and, later, parts of Patrick and named for Benjamin Franklin), Russell (formed from Washington County and named for General William Russell, a military hero also at the Battle of King's Mountain in the Revolutionary War) and Nottoway (formed from Amelia County and named for an Indian tribe, "Nottoway"—the word meaning "snake or enemy"). Two years later, Patrick County was formed from Henry County and was named in honor of the patriot, Patrick Henry.

Another domestic problem during this period concerned the boundary dispute between Pennsylvania and Virginia. When the Penns colonized Pennsylvania, they claimed the 39th degree parallel as their southern boundary. Virginia, however, claimed all the territory as far north as the 40th degree parallel including the choice section of Fort Pitt (now the site of Pittsburgh). After Pennsylvania authorities had established courts at Hanna's Town (now Greensburg), Governor Dunmore of Virginia sent Dr. John Connelly to establish a rival court with competing magistrates in 1773. The struggle for ownership of this area was temporarily postponed during the American Revolution, although the Virginia courts continued to remain in session in western Pennsylvania from 1774 to 1780. Finally, negotiations took place, and an agreement was adopted to allow a survey to be made in the region and to accept a boundary recommended by the joint boundary commission. The Mason and Dixon Line was extended to the southwest corner of Pennsylvania in 1784; the western boundary line of Pennsylvania was permanently agreed upon in 1785-1786.

In the following year, in December, an historical event took place which contributed greatly to science. James Rumsey, a native Marylander who had moved to Bath, Virginia (now Berkeley Springs, West Virginia), was interested in boat-building and in the possibility of steam propulsion. After the Virginia General Assembly had given him exclusive permission to navigate specific types of boats constructed by himself on the state waterways for ten years, he successfully transported six individuals for the first time in a steamboat four miles up the Potomac River near Shepherdstown. Rumsey continued to experiment with additional steamboats on the Potomac. In order to obtain financial assistance, he

traveled subsequently to London and ironically died there before his second boat, the "Columbia Maid," had been completely constructed. This event occurred twenty years before Robert Fulton made his historic trip up the Hudson River in the "Clermont."

By 1789 George Washington had retired to Mount Vernon and had become a gentleman farmer at the time of the adoption of the Constitution. He was overseeing his fields on horseback one day when a messenger arrived from New York City informing him that his name had appeared unanimously on the ballot of every elector, electing him as the first President of the United States—"The Father of His Country." The American people still remembered his great leadership qualities during the Revolutionary War and during the Constitutional Convention. Thus, Washington was faced with a most difficult task: to make a new government work successfully though it was practically only in outline form and even though there was opposition and criticism awaiting the first President. Washington was also informed that the new government was to begin operating on March 4, 1789 and that Congress desired that he arrive in New York City for his inauguration on that date.

It took the Congressmen themselves longer to arrive from their various states, however, than they had expected. John Adams, the Vice-President, did not arrive until April 22 from Massachusetts to take his oath of office. Washington had much farther to travel than did John Adams and had many preparations to make before leaving Mount Vernon. He visited Fredericksburg to bid his mother farewell and traveled via stagecoach through Maryland, Delaware and Pennsylvania to New York. Roads were in poor condition making traveling very slow and Washington was such a prominent figure that he was stopped along the way by his old friends, especially in New Jersey. One significant incident was his welcome at Trenton, New Jersey, part of which consisted of a presentation of flowers by thirteen young ladies dressed in white, symbolic of the thirteen stars of the flag of the United States and of the thirteen states that had honored him by electing him to the Presidency. When he arrived at the New York ferry, thirteen sailors in red, white and blue uniforms were waiting to row him across the Hudson River to New York City. On April 30, 1789, Washington took his official oath of office in Federal Hall as the first President of the United States. A marble statue stands today on the spot on Wall Street

where this event took place. New York became the first capital city of the United States. Since the capital was changed to Philadelphia in the following year, Washington was the only President of the United States to be inaugurated in New York City.

State and National Events (1789-1860)

Since Washington was a strong believer in the Constitution of the United States and had put forth much effort in getting it ratified, he tried conscientiously to set up a government satisfactory to all Americans. He wisely used his talent of recognizing individuals with a particular skill when he selected his first cabinet to advise him: Thomas Jefferson (Virginia), Secretary of Foreign Affairs, Alexander Hamilton (New York), Secretary of the Treasury, and Henry Knox (Massachusetts), Secretary of War. Edmund Randolph, a Virginian, was appointed Attorney-General, but this office did not become a cabinet post until 1814. The men holding these positions for the first time had a heavy responsibility in deciding specifically the range of duties each position should include and in properly carrying out these duties.

The practice of "log-rolling," defined as the "joining together of politicians to mutually further each other's plans of activities," was followed at this early time of our new government. The question had arisen in Congress whether or not Congress should assume the state debts, most of which had been accumulated during the Revolutionary War. The Congressmen who favored such assumption believed that such action would not only tend to strengthen security and confidence of the American people in their new government but would also make it easier for the United States to borrow money, either at home or from a foreign country. Since Virginia and many of the Southern States had already assumed and had paid most of their debts, the Virginia legislature opposed this bill strongly in 1790 and believed that it placed an unjust hardship upon the State. This state legislative objection was the first official action of a state against a federal bill. Since the Northern States preferred a location in the north for the national capital, Hamilton and Jefferson encouraged their friends to vote for each other's proposals. Hamilton's friends in the north voted for locating the

capital along the Potomac in return for Jefferson's friends in the south voting for the assumption of state debts by the national government.

There had been discussion for a long time about changing the location of the national capital from New York City to a more central location along the Atlantic seaboard. When a site along the Potomac River was finally agreed upon, Maryland and Virginia agreed to cede part of its land for the establishment of a Federal District to become the seat of government of the United States. On December 3, 1789, Virginia ceded thirty and three-quarters square miles of land including the town of Alexandria and part of Fairfax County. The stone locating the original southern corner boundary, officially laid by Dr. Elisha Cullen Dick, may still be seen near Jones Point, Alexandria.

Early efforts to commercialize waterways materialized in 1790. One of the earliest commercial canals built in either Virginia or in the United States as a whole was the James River Canal. It was constructed by the James River Company, and, although it was only seven miles in length, it connected Richmond with Westham and was parallel to the James River. This marked the beginning of the canal-building era in the United States.

An event which affected the United States and the State of Virginia occurred in 1792 when Kentucky was admitted into the Union as the fifteenth state (Vermont had entered as the fourteenth one in 1791). This action deprived the State of Virginia of approximately 75,000 inhabitants, of 40,395 square miles of territory and of nine counties. Kentucky was originally part of Fincastle County, Virginia and later had gained status as an independent county in Virginia, called Kentucky County. Virginia gave the necessary consent for the independence of Kentucky, required before statehood could be granted. The boundaries of the State of Virginia thereafter remained fixed from 1792 until 1861 when West Virginia became a separate state.

Washington, during his Presidency, showed his ability to lead in civilian affairs as well as in military affairs. His diplomatic ability predominated in the torn loyalty toward England and toward France when these nations fought each other in 1793: he issued the Neutrality Proclamation whereby the United States would take neither side in this conflict. Throughout his two terms, he created precedents and made decisions of lasting value for the

United States. Such a precedent was his refusal to run for a third time as President of the United States, a precedent which was not broken until 1940 when Franklin D. Roosevelt accepted the nomination for the Presidency.

While Washington was President, the population of Virginia continued to grow. Six new counties were created during this period: Wythe (formed from Montgomery County with later additions from Montgomery and Grayson Counties and named in honor of George Wythe, a Virginia signer of the Declaration of Independence, a famous lawyer and the first Professor of Law in the United States), Mathews (formed from Gloucester County and named for Major Thomas Mathews of the Revolutionary War), Bath (formed from Augusta, Botetourt and Greenbrier Counties and named because of the medicinal springs located in the area), Grayson (formed from Wythe County and, later, additions from Patrick County and named for Colonel William Grayson, a United States Senator from Virginia), Lee (formed from Russell County and, later, additions from Scott County and named for General Henry Lee, Governor of Virginia, as well as an outstanding military leader), and Madison (formed from Culpeper County and named for James Madison, a state legislator and member of the United States House of Representatives during this period).

After John Adams had been elected to the Presidency in 1796, the Democratic-Republican Party began to use the typical political method of attacking the party in power, namely the Federalists, through newspaper articles and through written pamphlets. Since many of the foreigners who had come to America at this time were Democratic-Republican in their political beliefs, numerous articles criticizing President John Adams and his administration were written by them. In order to combat these political attacks, the Federalist leaders were responsible for getting two most unusual laws passed: the Alien and Sedition Laws. The Alien Act provided that the residence time required of foreigners for naturalization (the process whereby a foreigner becomes a citizen) was to be fourteen years instead of five years and that the President was henceforth authorized to imprison or deport without trial foreigners whom he considered dangerous to the peace and safety of the United States or to allow others to remain. The Sedition Act stated that any person convicted of defaming, either by spoken or by written word, the government of the United States or the President of the

United States or the Congress of the United States was subject to a fine of not more than \$2,000 and to imprisonment for not more than two years.

Several Federalists considered the passage of these laws unjust. Thomas Jefferson, the Vice-President of the United States at the time of their passage, decided to attract the attention of voters to the passage of such laws. He drew up resolutions in 1789 which stated that: (1) the Alien and Sedition Laws were unconstitutional because the President of the United States had no power to imprison or deport any person without a judicial trial and because Congress did not have the right to limit the freedom of speech and of press and (2) since the Union was a compact of states and since the federal government had only the particular powers granted to it by the states, each state had the right to decide the constitutionality of Congressional laws. Because these resolutions were first introduced into the Kentucky legislature, they were later called the Kentucky Resolutions. At the same time, James Madison drew up similar resolutions which were introduced into the Virginia Assembly. The Virginia Resolutions are significant since they explain the theory of "strict construction" (that the federal government has only those powers specifically delegated to it) and they illustrate the strong "states' rights" feeling which existed in the State of Virginia. Virginia and Kentucky were the only two states to openly protest the Alien and Sedition Acts. Many of the northern states denied on this occasion the right of a state to judge a federal law. They affirmed, on the contrary, the belief that only the federal courts can decide the constitutionality of a federal law.

On December 14, 1799, George Washington died at Mount Vernon where he had retired after his Presidency. His military genius and brilliant statesmanship are probably best summarized in the "Funeral Oration upon President Washington" by Henry Lee in his now-famous phrase: "First in War, First in Peace and First in the Hearts of His Countrymen."

In 1800, Virginia was considered first among the sixteen states of the Union (Vermont, Kentucky and Tennessee having been admitted into the Union before 1800) in wealth and in population: 447,800 whites and 359,777 Negroes. The influence of Virginia in the political, economic and social life of the country was a profound one. The majority of residents now consisted of "average" individuals who regarded the democratic ideas of Thomas Jefferson as a basic philosophy for everyday living. The polite courtesy and

hospitality of the olden days still remained, but many of the traditional, dignified ceremonies had become outmoded. The descendants of the aristocratic planters of the early nineteenth century were usually people of limited means and limited acreage because the war and its aftermath had decreased much of their wealth. However, the typical Virginian who could afford it still preferred to live in the country, own horses, dogs and fine cattle, enjoy fox hunting and the social gatherings of friends, celebrate traditional activities and understand and cherish the rich heritage which was theirs.

In 1800, Thomas Jefferson, a native of Shadwell, Virginia, was elected third President of the United States. He was the first President to be inaugurated at Washington, D. C. His ideas concerning government were so numerous and thought-provoking that his political philosophy has been termed "Jeffersonian Democracy." He had strong faith in the ability of the common man, believed in government economy and practiced this belief throughout his administration. He exhibited his broadmindedness by allowing many government officials of opposite political party beliefs to retain their same positions after he became President and he was a strong advocate of States' Rights. After Jefferson became President, he appointed John Marshall of Germantown and Richmond as Chief Justice of the Supreme Court of the United States. Marshall had been a member of the state legislature, an outstanding lawyer, a Congressman and had served as Secretary of State under President John Adams. John Marshall remained Chief Justice for thirty-four years and holds the record for length of service on the Supreme Court of the United States. He was personally responsible for creating a strong foundation for the Supreme Court. Although he was the second Chief Justice of the Supreme Court, it was during his judgeship that for the first time, a Congressional law was declared unconstitutional in the case of Marbury versus Madison. This decision greatly strengthened the theory of judicial review of national legislation. It is interesting to note that John Marshall was as strong a Federalist as his cousin, Thomas Jefferson, was a strong "States' Rights" man.

While Jefferson as President was solving national problems, his home state was solving problems, too. In August 1800, Virginia had its first organized slave insurrection. Led by Gabriel, approximately one thousand slaves in the area around Richmond decided to march on Richmond and massacre the

white inhabitants there. However, at the scheduled time for the march to begin, a severe rainstorm delayed the march. During the delay, Pharaoh, one of the Negroes, decided to warn the Richmonders of their impending disaster. In spite of the heavy rains and the fact that it became necessary for him to swim certain swollen streams without being caught by one of his own group, he continued to Richmond and warned the authorities in time. He informed them of the proposed plan to kill the male inhabitants, capture the women inhabitants, seize the public arms and create a general slave insurrection. Consequently, the conspirators, including Gabriel, were caught, convicted and executed. The Virginia Assembly rewarded Pharaoh for his courageous act by giving him complete freedom.

While the State of Virginia was increasing its counties, the United States was beginning to expand beyond its original boundary established after the Revolutionary War. President Jefferson had heard rumors that Spain had ceded Louisiana back to France in secret diplomatic relations. If true, such a condition could ruin American trade along the Mississippi River and could suggest a possibility of a French empire in America. Jefferson decided to have the government of the United States purchase the Island of Orleans, near the mouth of the Mississippi River. After the United States Ambassador to France had been unable to purchase only the Island of Orleans, Jefferson sent James Monroe, a native of Westmoreland County, to assist the Ambassador. In 1803, the treaty making the purchase of Louisiana, that vast area of land west of the Mississippi, official was ratified by the United States. This purchase added 827,000 square miles to the area of the land under the jurisdiction of the United States government at the cost of \$15,000,000.

President Jefferson was also very much interested in the Oregon Country. He had made frequent attempts to have this region explored but all his attempts were unsuccessful. However, after the purchase of Louisiana, he persuaded the federal government to finance, by means of a \$2500 appropriation, an official government expedition to make the first overland route to the Pacific Ocean and to explore the region which the United States had recently acquired. He selected Captain Meriwether Lewis of Ivy, Virginia, to head this expedition and Lieutenant William Clark, a very close Virginian friend of Lewis' to accompany him. Their group left St. Louis in the spring of 1804, traveled up the Missouri River, spent a rigid winter in an

area now located in North Dakota, continued traveling up the Missouri in the spring of 1805, crossed the Rocky Mountains, and built and paddled canoes until they reached the mouth of the Columbia River in November, 1805. There they built a fort near the present site of Astoria. They remained on the Pacific Coast during the winter and returned to St. Louis in 1806. Lewis and Clark were aided considerably in their travel route directions by an Indian woman guide, Sacajawea. This expedition to the Northwest furnished the best claim of the United States in later ownership disputes with England.

Aaron Burr, long the political opponent of Alexander Hamilton, lived in Petersburg. In 1807, Burr was accused of a conspiracy to invade Mexico, to snatch it from Spanish control and to establish an independent Mexican government with himself as the self-appointed ruler. Furthermore, he was accused of having laid plans for setting up a government in the western territory of the United States with the objective of eventually organizing this area into a separate, independent government with himself the self-appointed ruler. Burr was officially tried on a charge of treason at the State Capitol Building in Richmond. Chief Justice John Marshall was the presiding judge. Jefferson, who had disliked Burr for political reasons for a long time and who believed that Burr was guilty of the aforementioned treasonous actions, wanted Burr convicted. Although the trial involved many political entanglements, Burr was finally acquitted.

During the same year, Virginia made national headlines again when the "Leopard-Chesapeake" Affair took place. France and Britain had been having personnel problems with their navy crews, each accusing the other of trying to encourage desertions. Britain had sent a fleet over to Norfolk in an attempt to intercept some French ships harbored in the Chesapeake Bay. One of the British ships had its entire crew desert, and it was believed that they had dashed to Norfolk and would be hiring out soon on a French or American ship. The British captain of the fleet had been informed that these crew members supposedly had enlisted on the "Chesapeake," a new American naval vessel. A British vessel, the "Leopard," was ordered to search the "Chesapeake" outside the jurisdiction of the United States. Consequently, the "Leopard" followed the "Chesapeake" out beyond Cape Henry and then demanded that the "Chesapeake" be searched by British officers. When the "Chesapeake," under the command of Commodore

James Barron, denied having any deserters and refused the right to search, the "Leopard" approached very closely the "Chesapeake" and fired at it broadside. Three Americans were killed, seventeen others wounded and four deserters were surprisingly found aboard the "Chesapeake." Although many Americans clamored for war as a result of this incident, Jefferson, who still preferred peace, retaliated by having Congress pass the Embargo Act whereby no American ship could depart for any foreign port. Jefferson believed the lack of American exports would cause the countries of Europe to cease the practice of impressment of American seamen. The Americans, however, suffered more from this act than did the French and the British; eventually, it was repealed and a law was passed allowing American vessels to trade with any country except England and France. By the end of Jefferson's administration, nevertheless, the American people were very restless, and in some sections of the country war was believed to be inevitable with England or with France.

On March 4, 1809, Virginia had another one of her sons, James Madison, inaugurated as President of the United States. He was born in Port Conway, Virginia, and, after graduating from Princeton, he had fought in the Revolutionary War. He had served in the state legislature, had been a member of the Second Continental Congress, had been a member of the Constitutional Convention in Philadelphia where he had earned the title "Father of the Constitution of the United States" and had contributed to the "Federalist" papers encouraging the adoption of the Constitution. After serving in the United States House of Representatives, he had retired from national politics and had centered his interest upon state government functions. He had written the "Virginia Resolutions" and had served as United States Secretary of State at the request of President Jefferson. Therefore, he came to the Presidency well prepared to assume presidential duties.

In contrast with his desire for peace, Madison held the office of President of the United States during the War of 1812 with England. Only a few battles were fought near Virginia in this war. The British had as one of their objectives the capture of the City of Norfolk. George Cockburn, a British Admiral, entered Chesapeake Bay with a fleet of approximately 1800 men, and they plundered many plantations along the coast of Maryland and Virginia. An American ship, the "U. S. S. Dolphin," was captured by the

British ship, "St. Domingo," in the Rappahannock River. A sea battle was later fought at Craney Island, located at the entrance of Norfolk Harbor where American sailors, marines and militia men were defending the small island. As the British rowed toward the island shore on barges, heavy artillery fire sank many of the boats causing hundreds of the Britishers to drown. The British subsequently withdrew and Norfolk escaped serious damage. The British soon desired to attack Hampton. They successfully pillaged the town and proceeded to the Carolinas. Several Virginians participated in the War of 1812 and the students of Hampden-Sydney College, as in the Revolutionary War, volunteered as an entire student body to fight for their country.

Virginia became a famous place of refuge during the War of 1812. When the British invaded Washington in August 1814, President Madison and his wife, Dolly Madison, fled from the White House on August 24 to Salona, a house located in Falls Church. It is believed that Dolly Madison crossed the Chain Bridge over the Potomac River and traveled rapidly over the secondary roads until she finally reached the house of Reverend and Mrs. William Maffitt. Dolly Madison carried with her the Declaration of Independence and the famous portrait of George Washington painted by Gilbert Stuart. Mrs. Maffitt quickly admitted Dolly Madison, and the President himself and some of his cabinet members arrived later with Reverend Maffitt. They could see the burning White House from the Maffitt residence. Although the President had to depart shortly afterwards, Dolly Madison stayed there for the duration of the war.

After his Presidency had ended, James Madison returned to Montpelier, the family homestead near Orange, where he lived until his death in 1836.

While Madison was occupied with national affairs, there were several important events happening in his home state. In 1809-1810, a Literary Fund for Virginia was established as an aid to public education by providing money for school expenses. The state legislature under the direction of Governor John Tyler, Sr., provided that "all escheats (land the title to which was reclaimed by the state), confiscations, penalties and forfeitures, and all rights in personal property found derelict (deserted or abandoned) should be appropriated to the encouragement of learning." As time passed, this fund expanded considerably and was used to improve elementary education. Only the most proficient students were allowed to attend public secondary

schools. The General Assembly encouraged the establishment of classical schools and academies via revenue secured from lotteries. In 1816, the Federal Government paid \$1,210,550 to Virginia in return for a loan granted to the Federal Government by Virginia for the defraying of expenses incurred during the War of 1812. This payment was allotted to the Literary Fund.

From 1800 through 1816, the State of Virginia had four new counties formed: Tazewell (formed from Wythe and Russell Counties and named for Henry Tazewell, a United States Senator), Giles (created from Montgomery, Monroe and Tazewell Counties and named for William Branch Giles, a Congressman from Virginia who served four terms), Nelson (formed from Amherst County and named for General Thomas Nelson, military leader and Governor of Virginia in 1781), and Scott (formed from Lee, Russell and Washington Counties and named for General Winfield Scott, lawyer and military leader).

In 1811, Richmond suffered from a dreadful tragedy. Richmond had grown in approximately twenty-five years from a village to a thriving city. As the capital city of the state, it had become a center of wealth, social activities and entertainment. The leading actors and actresses of the country played at the Richmond Theater with pride. On the evening of December 26, 1811 as a play was in progress, the scenery at the back of the stage caught fire. When an actor shouted "The house is on fire!", chaos and confusion resulted. In addition to the flames which rapidly roared through the theater, the panic and hysteria contributed to the death of seventy-three individuals, including Governor George W. Smith and many other distinguished citizens. Gilbert Hunt, a slave, is credited with saving approximately twenty women and children by catching them as they were hurled to safety from flaming windows. The doors of this theater had been constructed in such a way that they only opened inwardly. Thus, when the audience madly rushed for an exit, numerous individuals were crushed since the doors could not be opened outwardly. As a result of this terrible tragedy, theater doors in Virginia and in other states were constructed in the future to open outwardly from the inside. A structure of stuccoed brick, known as Monumental Church, has been built by the architect, Robert Mills, upon the site of the old theater, and on a monument at the door is an inscription bearing the names of those who died in this incident.

In 1816, thirty-five western counties of Virginia held a convention at Staunton and demanded that the General Assembly be informed of their grievances and be asked to adjust same. After the War of 1812, the western counties believed that the State Constitution of 1776 was no longer appropriate and that the earlier counties, in spite of their longer political experiences, were greatly over-represented in proportion to their population as compared with the population of the western counties. One particular criticism was the representation plan of membership in the General Assembly. Although the white population was much greater in number west of the Blue Ridge than in the east, the western counties had only four delegates in the Assembly in comparison to thirteen delegates from the east. Therefore, these convention delegates demanded a revised or new state constitution which would include fair treatment, in their opinion, for the western counties of Virginia. The Staunton convention of 1816 caused other residents of Virginia, especially the politicians, to realize that this mountainous area was increasing in population and in interest in state and in national affairs and that it expected a similar increase in power and in influence in the state government of Virginia.

In 1817, James Monroe was inaugurated the Fifth President of the United States. A native of Westmoreland County, Monroe had had considerable political and diplomatic experience before becoming President. He had been a practicing lawyer in Fredericksburg, a Revolutionary War participant who had been wounded in the Battle of Trenton, New Jersey, a delegate to the Virginia Constitutional Convention at Williamsburg, a member of the Virginia General Assembly, a United States Senator, an American envoy to France, a Governor of Virginia, a United States Minister to France where he helped negotiate the Louisiana Purchase, a United States Minister to Spain, a United States Secretary of State and a United States Secretary of War under President Madison. His two presidential terms are often referred to as the "Era of Good Feeling" because wars and international disputes were unknown in this period.

Foreign policy was a highlight of Monroe's two years. A treaty with Spain in 1819 transferred East Florida to the United States, included an official admission that West Florida rightfully belonged to the United States, provided that the United States would assume and pay claims of citizens of the United States against the Spanish government amounting to five million

dollars and defined the boundary of the Louisiana Purchase. Another incident taking place in this general area of the United States was the permission granted by the government of Mexico to Stephen Fuller Austin, a native of Austinville, Virginia, to establish a settlement for colonization on a land grant in Texas. He became the leader of the section and participated in so many happenings in the history of Texas that later, the capital, Austin, was named in his honor.

While Monroe was President, Congress had a difficult situation to face. Missouri applied for admission to the Union in 1819. Since there were eleven free and eleven slave states in the Union at this time, there was equal representation in the Senate from the North and from the South. However, the North had increased much more rapidly in population than had the South with the result that there were 105 Northern representatives in the House of Representatives and only 81 Southern representatives in the same body. Therefore, the South did not want any additional free states admitted to the Union at this time to upset the equal balance in the Senate. Consequently, a bill which had been proposed to admit Missouri to the Union with the understanding that slavery was to be abolished there directly upon such admission failed to pass in the Senate. In the same year, Maine, a free state, applied for statehood. Slavery had become a significant sectional issue by 1819 and Henry Clay, a native of Hanover County, proposed the now-famous Missouri Compromise of 1820: Maine was to be admitted as a free state, Missouri as a slave state; slavery was to be forever excluded in the rest of the Louisiana Purchase Territory north of the parallel of 36° 30' (southern boundary of Missouri). Although Henry Clay, later known as the "Great Pacificator" or "Peacemaker" because of his ability to make compromises in difficult situations, moved to Kentucky in his "twenties," he studied law with the famous Virginia lawyer, George Wythe, and acquired many of his political beliefs in Virginia. President Monroe signed the Missouri Compromise expressing his approval of this bill.

A new trend in foreign policy was formulated by President Monroe, with the help of his Secretary of State, John Quincy Adams, in his annual message to Congress on December 2, 1823. The Monroe Doctrine, as it was later termed, stated that there was to be no further European colonization in the Western Hemisphere, that no European nation was to interfere in the government of any nation in the Western Hemisphere and that violation of

either of the previous principles would be considered unfriendly to the government of the United States. In return, the government of the United States would not interfere in the governments of Europe.

From the time of the Revolutionary War, societies opposed to slavery were organized in the United States. Religious and non-religious groups favored the emancipation of the slaves, but the greatest problem facing those who favored freedom for the slaves was the finding of a suitable environment for the freed, uneducated Negroes. The South which had the greatest number of Negroes would have favored emancipation much more readily if this problem could have been solved satisfactorily. Washington and Jefferson both opposed slavery and Washington in his will provided for the freeing of his slaves upon the death of his wife. Jefferson proposed that the Negroes be freed and then sent out of the United States. Monroe likewise strongly opposed slavery and suggested that the Negroes be allowed to settle in an independent country of their own.

In 1816, an American Colonization Society was formed which was granted permission by the Congress of the United States to send emancipated volunteer Negro slaves to Liberia, Africa where they could organize an independent country of their own. The Virginia legislature heartily supported this project. Bushrod Washington, a nephew of George Washington, served as one of the presidents of this national colonization society. John Marshall was the first president of the state branch at Richmond. The capital of Liberia, an independent republic since 1847, is Monrovia, named in honor of James Monroe, who personally urged the establishment of this independent country for Negroes.

On March 4, 1825, the "Virginia Dynasty" ended, and President Monroe returned to his home state, Virginia, where he remained until the death of his wife. Virginia had earned the title of "Mother of Presidents" because it had furnished four of the first five Presidents of the United States: George Washington, Thomas Jefferson, James Madison and James Monroe. By 1825, Virginia had lost its first rank in population to New York State, primarily because of the large number of immigrants in the North. The population of Virginia, however, had passed the million mark.

During Monroe's presidency, an ex-President of the United States undertook a task in his home state which he had patiently waited to perform. In 1819,

the Virginia legislature passed an act establishing a state university in Virginia. Jefferson had worked very hard to get this personal ambition of his realized because he believed that a state has the obligation of educating its citizens. He constantly discussed his idea with influential men of the time and was elated when the University of Virginia was finally created by law. Jefferson personally recommended the accepted site of Central College in Charlottesville, drew up the plans for the university building and grounds, chose the materials for construction, selected the workmen and then assumed the responsibility of personally supervising and directing the actual building project. One of the outstanding architectural characteristics of the University grounds is the famous Serpentine Wall designed and built by Jefferson himself. Jefferson's interest did not cease with the supervision and construction of the buildings but extended to the intellectual area with his outlining the course of study which was followed carefully at the University for several years. The University of Virginia was opened for students for the first time in 1825 with an enrollment of forty students and seven faculty members. It has continued to be an outstanding institution for higher education in the United States. This institution, unlike the former ones in America, was independent of a church and was the first institution to offer the elective system of subject matter, allowing students to make their choice with music and liberal arts first included in any curriculum of higher education. Jefferson thus participated significantly in the education field in addition to making political, historical and inventive contributions.

In 1829 the citizens of Virginia voted for a special state convention to be held for the purpose of drafting a new state constitution. When the delegates met in Richmond on October 5, ex-President James Madison was selected as President of this Virginia Convention. Other notables present included ex-President Monroe, Chief Justice Marshall and John Randolph. It was soon obvious that there were two distinct types of delegates: the eastern "conservatives" and the western "reformers." Debates and discussions became so heated that this convention is often compared to the federal convention of 1787 which exposed sharp differences between the North and the South as separate sections. Governor William B. Giles, A. P. Upshur, Benjamin Leigh, John Randolph and Littleton Waller represented the east or Tidewater section while Alexander Campbell, John R. Cooke, Philip Doddridge and Charles Faulkner represented the western or mountainous counties. The most objectionable features of the State Constitution of 1776,

in the opinion of the western counties delegates, were the following: (1) the voting requirement of freehold land tenure, (2) the election of the Governor by the state legislature rather than by the voters themselves, (3) the actual carrying out of some of the Governor's duties by a nine-man Council of State, (4) the equal representation in the House of Delegates from each county regardless of population, and (5) a procedure in the local and state courts which often resulted in favoritism. The easterner combatted the criticism about representation with the fact that he paid much higher taxes on his land (in some instances as much as nine times more per acre). After lengthy discussions, the new state constitution was finally written and recommended for adoption. The following changes were included: (1) voting was extended to leaseholders and householders, (2) the Governor was chosen by a joint ballot of the Senate and the House of Delegates, (3) the power and the responsibility of the Governor was increased and the number of men and the powers of the Council of State were decreased, (4) the representation of the western counties in the Assembly was increased slightly, and (5) state courts were slightly revised but county courts were practically unchanged. The Constitution of 1829 was adopted, and John Floyd was the first Governor elected under the new system.

The strong feeling of states' rights in Virginia became apparent once more. When President Andrew Jackson threatened to use armed force upon South Carolina in his attempt to coerce South Carolina into paying Federal taxes, according to the Tariff of 1828 ("The Tariff of Abominations"), Virginians became very alarmed. John Randolph, a sick man at the time, traveled throughout the country denouncing Jackson's coercive attitude. Virginia then sent Benjamin Watkins Leigh to South Carolina to try to bring peace within the Union again and to prevent South Carolina from seceding from the Union. Governor John Floyd of Virginia stated that federal troops would meet armed opposition if President Jackson ordered them to march through Virginia to South Carolina and to force South Carolina to pay the exorbitant tariff rates. Henry Clay's compromise tariff law providing for gradually reduced tariff rates prevented possible secession from occurring at this time.

In August 1831, a Negro preacher of Southampton County, Nat Turner, started a local slave insurrection by persuading the Negro slaves that it was time to kill the white people. Sixty whites, mostly women and children, were killed before the rebellion could be suppressed. Nat Turner and twelve

of his accomplices were hung. Many Virginians believed that Nat Turner's Rebellion took place as a direct result of the writings of William Lloyd Garrison of Massachusetts who published the "Liberator," a newspaper which demanded the immediate abolition of slavery. The southerners, in general, were so aroused by this rebellion that southern legislatures passed laws prohibiting slaves from being taught to read. In fact, a reward was offered for Garrison himself. Many southern states passed resolutions requesting the northern states to forbid the publication of abolitionist papers. In 1832 at a regular session of the Virginia General Assembly, an act was proposed whereby all slaves born after July 4, 1840 were to be free and to be removed from the State of Virginia. The act was defeated in the House of Delegates by a close vote of 67 to 60.

In 1831, Cyrus Hall McCormick of Rockbridge County invented the "Virginia Reaper," a mechanical harvester which could harvest wheat at a much faster rate than previously harvested by hand with a sickle or a cradle. He did not get it patented, however, until three years later. This was a most significant invention for the State of Virginia as well as for the nation as a whole. The Virginia Reaper affected grain, as the cotton gin had affected cotton, by making it possible for grain to be grown and harvested in much larger quantities. When Virginians first used the reaper, Virginia's total wheat production increased so rapidly that Virginia ranked fourth among the wheat-raising states in 1840. However, the climate and soil of the West were more conducive to wheat-raising than in Virginia, and, when the western farmers heard about the Virginia Reaper, they were anxious to acquire such a machine for their own use. The usual journey for such reapers included a wagon trip from Rockbridge County over the Blue Ridge Mountains to Scottsville, a canal trip from there to Richmond, a boat trip from Richmond down the James River to the Atlantic Ocean, from Norfolk an ocean trip to New Orleans and then a boat trip up the Mississippi and Ohio Rivers to their specific destination in Kentucky or Ohio—a water trip of approximately 3,000 miles. Since the demand for his invention was much greater in the West, McCormick moved from Virginia to Chicago to build his factory in order that he could reduce his shipping costs considerably. However, one may still see one of the original binders at Walnut Grove, the restored McCormick homestead located near Midway, Virginia.

In 1836, Samuel Houston, a native Virginian of Rockbridge County who had migrated to Texas, became the heroic leader at the Battle of San Jacinto in the Texas Revolt from Mexico. General Houston with a small group of Texans captured Santa Anna, President of Mexico, in this battle and forced him to grant Texas its independence from Mexico. Houston became the first President of the Republic of Texas and, later, the first Governor of the State of Texas after its annexation to the United States. The City of Houston was named in his honor.

On November 11, 1839, the Virginia Military Institute, the first state military school in the United States, was founded at Lexington. This school was located adjacent to the Washington Academy which is now known as Washington and Lee University. The Virginia Military Institute was greatly appreciated because it was no longer necessary for the Southern young men to travel to West Point for military training and discipline. V. M. I. opened originally with twenty-three cadets and two teachers: Francis Smith and J. T. L. Preston, a lawyer who is accredited with having the concept of a state military institute. It became the first normal school in the state because during the first year of its existence, the state legislature passed a law stating that the training of teachers was to be considered as its chief objective. When the War between the States took place, V. M. I. supplied the Confederate forces with many of its military leaders, earning for itself the title, "The West Point of the Confederacy." At the Battle of New Market in 1864, V. M. I. cadets led by General John C. Breckinridge defeated the Union Army by the remarkable capture of a Union battery.

From 1822 to 1850 thirteen additional counties had been created: Alleghany (formed from Bath, Botetourt and Monroe Counties and named for the Indian word, "Alleghany" meaning "Lost"), Page (formed from Rockingham and Shenandoah Counties and named in honor of John Page, Virginia Governor [1802-1805]), Floyd (formed from Montgomery County and later, part of Franklin County and named for John Floyd, Virginia Governor [1830-1834]), Smyth (formed from Washington and Wythe Counties and named for Alexander Smyth, Inspector-General of the Army in 1812 and a Congressman), Rappahannock (formed from Culpeper County and named for the Rappahannock Indian tribe which lived along the Rappahannock River which flows in this county), Clark (formed from Frederick and named for General George Rogers Clark), Warren (formed

from Shenandoah and Frederick Counties and named for Major General Joseph Warren who died in the Battle of Bunker Hill), Roanoke (formed from Botetourt County and named for the term, "Roanoke," which was used by the colonists to indicate the shell-beads which the Indians used for money and for decoration), Greene (formed from Orange County and named for General Nathaniel Greene of the Revolutionary War), Pulaski (formed from Montgomery and Wythe Counties and named for Count Casimir Pulaski, Revolutionary War Polish Patriot), Carroll (formed from Grayson County and named in honor of Charles Carroll of Carrollton), Appomattox (formed from Buckingham, Prince Edward, Charlotte and Campbell Counties and named from the Indian word, "Appomattox," meaning "tobacco plant country") and Highland (created from Pendleton and Bath Counties and named for the extremely high altitude of this mountainous area).

In 1841, William Henry Harrison became the ninth President of the United States and John Tyler became the Vice-President of the United States. Both were born in Charles City County, approximately twenty-four miles from Richmond. William Henry Harrison had successfully defeated the Indian chief, Tecumseh, and his brother, "The Prophet," at Tippecanoe River in Indiana. From this experience he earned the title, "Old Tippecanoe" which became a part of the 1840 presidential campaign slogan: "Tippecanoe and Tyler too." William Henry Harrison has a most unique distinction in the history of the United States in that he served the shortest term of any President—March 4, 1841 to April 4, 1841. Upon his death from pneumonia, believed contracted during the inauguration ceremonies, the other Virginian, John Tyler, succeeded to the Presidency. Tyler had been a Congressman, a state legislator, a Governor of Virginia and a United States Senator before becoming President. During his term of office, the United States and Canada agreed upon a final boundary in the Treaty of Washington. Tyler approved the annexation of Texas to the Union near the end of his Presidential administration.

The annexation of Texas to the United States caused bitter feeling between Mexico and the United States. In the Mexican War which followed, two Virginians, General Zachary Taylor of Orange County and General Winfield Scott of Dinwiddie County, participated in an outstanding manner: the former, in charge of the campaign at Monterey and at Buena Vista and the

latter, in charge of the campaign at Vera Cruz and Mexico City. Other Virginians who received first-hand military experience during the Mexican War were Robert E. Lee, Thomas J. Jackson and Joseph E. Johnston.

On September 7, 1846, the land including the town of Alexandria (originally Belhaven) which Virginia had ceded to Congress in 1789 was retroceded to Fairfax County. In the following year, Alexandria County was formed from that part of the District of Columbia which had formerly been a part of Fairfax County and the town of Alexandria became the county seat. Five years later, the town of Alexandria became the city of Alexandria through a charter regulation of the General Assembly, and its status as an independent city (not subject to county jurisdiction) was granted.

While Alexandria was changing from a town to a city, another Virginian was elected President of the United States. Zachary Taylor, a native of Orange County, became the twelfth President of the United States. He had achieved national fame during the Mexican War and had earned the title "Old Rough and Ready." He defeated his military colleague, General Winfield Scott, at the Whig convention by winning the presidential candidacy and proceeded to defeat Martin Van Buren for the Presidency. After serving only sixteen months of his term, he died of typhus on July 9, 1850. The most important issue during his administration was the slavery controversy.

As in the slavery issue in 1820, Henry Clay once more proposed a compromise measure in an attempt to prevent, or at least postpone, a secession movement. The Compromise of 1850 was eventually passed and is often referred to as the "Omnibus Bill" because it included many miscellaneous provisions, namely: (1) California was to be admitted as a free state, (2) slavery limitation in the Mexican cession land was to be decided upon by the residents of the particular area involved, (3) Texas was to pay ten million dollars for giving up its claim to territory west and north of its present boundary, (4) slave trade but not slavery was to be prohibited in the District of Columbia, and (5) a more effective fugitive slave law was to be passed and to be enforced.

While the United States government had numerous national problems with which to cope during this period, Virginia had several governmental problems. In 1850-1851, a second state constitutional convention was held.

The age-old feud concerning representation, voting qualifications and election of the Governor continued until, finally, a compromise was reached. Main provisions of the compromise were: (1) every white male citizen, except the insane, minors, paupers and criminals, was to be allowed to vote from that time forward, (2) the Governor was to be elected directly by the voters themselves rather than by the General Assembly and his term was to be extended from three to four years, (3) the Council of State was to be abolished, (4) membership in the House of Delegates was to be selected upon the basis of population, thereby giving the western counties a majority number; membership in the Senate was to be based upon population and property, thereby giving the eastern counties a majority, and (5) the voters were to be allowed to vote for judges, county officials and members of the Board of Public Works. In addition, the General Assembly was to meet every other year instead of annually. The 1851 State Constitution was ratified by the voters by an overwhelming majority at the next election. The western counties of Virginia had finally been recognized as an important area whose ideas and opinions were to be considered seriously. Although the economic and social life of the inhabitants of the western part of Virginia were different from those of the inhabitants of the eastern part of Virginia, this Constitution which granted the western counties most of their desired reforms fostered better unity within the state.

In 1855, a dreadful epidemic of yellow fever spread throughout Norfolk and approximately one tenth of its total population succumbed. A Negro gravedigger, nicknamed "Yellow Fever Jack," was considered the hero of this situation because he painstakingly kept burying the dead until he too died from the fever. A monument has been erected in his honor in the Norfolk Cemetery.

In 1857 James Ethan Allen Gibbs, a native of Rockbridge County, secured a patent to make a "twisted loop rotary hook sewing machine," an invention which he had created as a result of watching his mother sew by hand. He was unaware at the time of Elias Howe's sewing machine invention of 1846. After a few years, James A. Willcox added some improvements to Gibbs' sewing machine, and their combined efforts resulted in the Willcox and Gibbs Sewing Machine.

On October 16, 1859, John Brown, a freesoiler and an ardent white abolitionist of Kansas and Ohio, led his five sons, eight northern white men

and a group of five Negroes on a raid of the federal arsenal at Harper's Ferry, Virginia (now located in West Virginia). Rifles were made and stored here. John Brown had decided to show these slaves how to revolt against their masters. Therefore, he equipped them with arms, ammunition and with steel-tipped pikes which he had brought with him from Kansas. After they had seized the arsenal, he urged them to start an insurrection. They captured many of the gentlemen slaveholders of this area, and then John Brown suggested that they use their pikes to "strike for freedom!" The Negroes of this area and those of the south in general did not respond to his encouragement. His band killed five people including the mayor of Harper's Ferry and a free Negro porter of the Baltimore and Ohio Railroad. On October 18, Colonel Robert E. Lee of the United States Army, who was a native Virginian, was placed in charge of the situation. James Ewell Brown Stuart (later, commonly known as "J. E. B." Stuart) was appointed aide-de-camp to Lee. Stuart was assigned the task of presenting the summons to John Brown to surrender after one hundred United States Marines had surrounded the arsenal and had captured the raiders. Stuart successfully performed his task and was admired by many Americans for his staunch courage in this action because John Brown was such an unpredictable individual. Lee then sent John Brown to Charlestown, Virginia (now located in West Virginia) where he was tried by a Virginia Circuit Court for treason and for murder because of the capture of guns and supplies belonging to the government, was found guilty and was hanged on December 2, 1859. Ten of his followers were also killed. This incident caused hostile feelings between the sections to increase and made the Virginians very angry upon finding out the extent to which some individuals would conspire to incite Negro hatred for their masters.

By 1860, the population of Virginia had reached over one and a half million including 490,865 slaves and 58,042 free Negroes. From 1851 to 1861, four counties were added: Craig (formed from Botetourt, Giles, Monroe and Roanoke Counties and named for Robert Craig, a Virginia Congressman), Wise (formed from Lee, Scott and Russell Counties and named for Henry Alexander Wise, Governor of Virginia, 1856-1860), Buchanan (formed from Tazewell and Russell Counties and named in honor of President James Buchanan) and Bland (formed from Giles, Wythe and Tazewell Counties and named for Richard Bland, a Virginia statesman during the Revolutionary War Period).

S U M M A R Y

After Virginia had furnished many leaders for the First Continental Congress, another special Virginia convention was held in Richmond where a resolution for military preparedness was passed and delegates were elected to the Second Continental Congress. Three additional special conventions were later held in the Virginia colony alone which resulted in the abdication of the last colonial Governor of the colony, the declaration of Virginia as a free and independent State, the writing of the Virginia Declaration of Rights, the adoption of an official State seal and motto, the creation and adoption of a State Constitution establishing the Commonwealth of Virginia, the adoption of the Statute of Virginia for Religious Freedom and the eventual ratification of the United States Constitution. In the political field, the names of Patrick Henry, Peyton Randolph, George Washington, George Mason, George Wythe, Edmund Pendleton, James Madison, Edmund Randolph, Archibald Cary, Henry Lee, Thomas Jefferson and James Monroe suggest numerous contributions made by Virginians during the period, 1775-1860.

Virginians also had major roles in the military history of our country during this same period: George Washington, John Mühlenberg, Henry Lee, Jack Jouett, Andrew Lewis, Daniel Morgan, John Paul Jones, Samuel Houston, William Henry Harrison, Zachary Taylor, Winfield Scott and Robert E. Lee. In the meantime, the capital had been moved from Williamsburg to Richmond, Virginia had ceded its Northwest Territory to the new national government and Yorktown had become internationally famous as the area where the British had surrendered to the Americans. It is a unique historical fact that the site where the British armies were forced to surrender in 1781 was located only a few miles from the site where the first permanent English settlement in America was established.

The Presidency of George Washington started the so-called "Virginia Dynasty" of Presidents. By 1861, the Commonwealth had furnished the United States with seven Virginia-born Presidents: George Washington, Thomas Jefferson, James Madison, James Monroe, William Henry Harrison, John Tyler and Zachary Taylor. For this achievement, Virginia has earned the title of "Mother of Presidents."

During the period of 1775 to 1860, many significant activities of Virginians took place at both the state and federal levels of government: the "Leopard-Chesapeake" Affair, Jeffersonian Democracy, John Marshall's role as Chief Justice of the United States Supreme Court, the consent of Virginia allowing Kentucky County to become an independent state in the Union, the Lewis and Clark Expedition to the Northwest, the role of Norfolk, Hampton and Falls Church during the War of 1812, the Monroe Doctrine, the efforts of Henry Clay ("The Great Compromiser"), the historical connotation of the capital city, Monrovia, in Liberia, the creation of a non-sectarian state university and of the first state military school in the country, the attitude of Virginians toward the sectional issues of tariff, secession and slavery, the inventions of the McCormick Virginia Reaper and the Willcox-Gibbs Sewing Machine and the active participation of Virginians in the Texan Revolt and the Mexican War. John Brown's Raid at Harper's Ferry increased sectionalism and intensified the slavery problem. By 1860, the population of Virginia had reached over one and one-half million people, including approximately 500,000 slaves.

4

Historical Life: 1860-Present

The War Between the States

In November 1860, Abraham Lincoln was elected President of the United States. He represented the Republican Party which strongly opposed slavery, and he had made numerous speeches stating his personal opposition to it. Although Lincoln had declared that he had no desire to interfere with slavery in the states where it already existed, he also had made the following statement: "A house divided against itself cannot stand. I believe this government cannot endure permanently half slave and half free. I do not expect the Union to be dissolved: I do not expect the house to fall; but I do expect that it will cease to be divided. It will become all one thing or all the other." Thus, on December 20, it was not a complete surprise that a special convention held at Charleston, South Carolina, resulted in the secession of South Carolina, a strong pro-slavery state, from the Union. By February 1861, six other southern states had acted likewise. The Confederate States of America was organized at Montgomery, Alabama, with Jefferson Davis as its President.

Until this time, Virginia had not declared herself. Like her neighboring states, she had to make the momentous decision. The Governor of Virginia at this time was John Letcher, later known as the "War Governor" of Virginia. The people of Virginia did not enthusiastically favor secession, that is, they did not have an ardent desire to leave the Union as South Carolina had had. Neither did Virginia believe in the national policy of coercion of a state to return to the Union. In an attempt to bring the seceded states back into the Union and to try to find some solution to the slavery problem, the Virginia legislature invited delegates from all the states to attend a national "Peace Conference" at Washington on February 4. Virginia appointed John Tyler (ex-President), Judge John Robertson, James A. Seddon, William C. Rives and George W. Summers to attend this

conference. There was so much sectionalism bitter with political and economic rivalries at the conference that it was unsuccessful.

On February 13, 1861, a special state convention was held in Richmond to discuss the possibility of secession. When the counties elected the 152 delegates to this special state convention, their choice resulted in several pro-Union, anti-secession residents of the state. John Janney was the presiding officer of the convention. It was evident that the majority of the delegates hesitated to leave the Union because they had very strong ties with the Federal government. Virginia had played an important role in creating the Union and had furnished one-third of all the Presidents, numerous cabinet members, a Supreme Court Chief Justice who held this position for thirty-four years (John Marshall), and other less important Federal officials. The convention delegates sent a committee consisting of William B. Preston, George W. Randolph and Alexander H. H. Stuart to President Lincoln to plead for a peaceful solution to the slavery and secession problems.

On March 10, 1861, the Committee on Federal Relations at the Richmond convention submitted reports consisting of fourteen resolutions to the convention. These resolutions expressed the doctrine of states' rights, criticized slavery interference, advocated the right of secession and resolved that Virginia would be justified in seceding only if the Federal government usurped state powers or if it attempted to force the payment of tax duties from the seceded states or if it recaptured certain Southern forts. The first twelve resolutions had been adopted at the time of the unofficial firing on Fort Sumter, near Charleston, South Carolina on April 12th and the forced surrender of the Federal garrison. The Federal government had sent arms, troops and provisions to the aid of Colonel Robert Anderson at Fort Sumter. The Confederate government had considered the action a hostile act and had acted accordingly. The actual signal for the attack was given by Roger Pryor, a strong secessionist from Virginia; furthermore, the actual shot was fired by another Virginia secessionist, Edmund Ruffin. The ultimate surrender of Fort Sumter to the Confederates resulted in an immediate call from President Lincoln for volunteers to save the Union.

Even as late as April 4, the Richmond convention had rejected secession by a vote of two to one. Some of the minority were strong in their wishes to secede immediately and to join the Confederacy, and they used the issues of

self-government, states' rights and slavery as their points of variance with the national government. Furthermore, these advocates believed that an alliance with the Confederacy would at least remove them from the direct influence of high protective tariffs since a clause prohibiting protective tariffs had been included in the Constitution of the Confederacy. Two days after the firing on Fort Sumter, April 15, President Lincoln called on all the states in the Union to send volunteers, numbering 75,000 total, to invade the seceding states and to coerce them back into the Union.

Two days later, April 17, 1861, the Virginia Convention passed an ordinance of secession by a vote of 88 to 55. Many pre-Union Virginians at this convention preferred to choose secession rather than to send troops to fight against their southern neighbor states. In the previous election, the Virginia people voted overwhelmingly to have the convention submit its results for their voting approval or disapproval via referendum. On May 4, a large majority of the Virginia citizens voted their approval of secession. Nevertheless, although eastern Virginia voted almost solidly for secession, western Virginia voted almost as solidly against secession. Governor John Letcher of Virginia sent the following reply to the United States Secretary of War, Simon Cameron: "In reply to this communication I have only to say that the militia of Virginia will not be furnished to the powers at Washington for any such use of purpose as they have in view. Your object is to subjugate the Southern States, and a requisition made upon me for such an object—an object, in my judgment, not within the purview of the Constitution, or the Act of 1795—will not be complied with. You have chosen to inaugurate civil war, and having done so, we will meet it in a spirit as determined as the Administration has exhibited towards the South."

On April 25, the same convention members passed an act which provided for the adoption of the Constitution of the Provisional Government of the Confederate States of America, and Virginia became the eighth state of the Confederate States of America. Although Montgomery, Alabama, had been the capital of the Confederacy, one month after Virginia joined, Virginia invited the Confederacy to make Richmond its capital. The offer was accepted on May 21. Virginia thus became the focus of major battles of the War between the States during the four-year period: 1861-1865.

Colonel Robert E. Lee was a United States Army officer at this time and had one of the most difficult decisions to make. He was recognized as a

man of great military ability, and the high regard which the Federal government had for him was expressed in the tremendously responsible position offered to him by President Lincoln. Lincoln was familiar with his great military strategy which had been followed in the Mexican War, his efficient administration as Superintendent of West Point, his excellent cavalry supervision on the frontier and his carefully planned capture of John Brown and his raiders at Harper's Ferry. Consequently, on April 18, President Lincoln had offered him the command of the Union forces. Lee realized the wonderful honor for which he had been selected and was deeply appreciative. However, he was a Virginian, and, after his state had seceded from the Union, he believed that there was no choice in the matter. His love of country was great, but the love of his state and his fellowmen was greater. Therefore, he sadly declined Lincoln's offer and stated that "though opposed, to secession and deprecating war, I could take no part in an invasion of the Southern States." Thus, as soon as Virginia seceded from the Union, he resigned his United States Army Commission on April 20 with the words: "Sir: I have the honor to tender the resignation of my commission as Colonel of the first regiment of cavalry. Very respectfully, your obedient servant—Robert E. Lee."

Lee then went to Richmond at the invitation of the convention and was made Major-General and Commander-in-Chief of the Virginia forces on April 23. It should be noted here that Virginia did not have an aggressive, warlike attitude toward the Union. Governor John Letcher is quoted as speaking to Robert E. Lee in the convention itself in the following manner: "Yesterday, your mother, Virginia, placed her sword in your hand upon the implied condition that we know you will keep to the letter and in spirit, that you will draw it only in her defense, and that you will fall with it in your hand rather than that the object for which it was placed there shall fail."

For the first three and a half years of the War between the States, the military actions took place simultaneously in two different areas: a small area in northern and northeastern Virginia and a western area in the region bounded by the Mississippi River, the Cumberland River, and the Appalachian Mountains. For most of the war, the Confederate forces were on the defensive side. With General Robert E. Lee as Commander-in-Chief, the Confederates had unity of command whereas the Union forces actually had five successive generals before appointing Ulysses S. Grant as the

supreme commander. Many of the best military minds were fighting on the Confederate side, and it is believed by several historians that only their great strategic ability and planning against larger military forces with better equipment and clothing kept the war from being concluded at a much earlier date.

The major objective of the Federal government became a clearcut one, namely, to capture Richmond, the capital of the Confederacy. Thus, a chief aim of the military forces in Virginia was the protection and defense of Richmond at all times. Virginia lost Accomack and Northampton Counties on the Eastern Shore at the beginning of the war and was unable to obtain control of Union Fort Monroe.

On May 24, 1861 the Fire Zouaves, a unit of the United States Army, marched from Washington to Alexandria, the first point of invasion in Virginia in the War between the States. They took possession of Alexandria in the name of the United States and found no organized opposition because there were no Southern troops here. Virginia had not been ready for war and had made no preparations for war. The only standing army in the state at the time of her secession was a group of soldiers whose duty had been to guard public property in Richmond. Several volunteer companies had organized in various parts of the state for the first time after John Brown's Raid. One of the first immediate tasks to be done was the training of soldiers in Virginia and the acquiring of cannon and fire-arms. Consequently, it was not unusual for Alexandria not to have had an organized force by May 24, awaiting Federal invasion. As these Fire Zouaves entered Alexandria, they noticed a Confederate flag flying from the top of a small hotel called the Marshall House. Colonel Elmer Ellsworth, the Federal commander, decided to obtain this flag. He entered the hotel, ran up the stairs to the roof and grabbed it. He had started to descend the stairs with his trophy when, at the first landing, he met the hotel owner, James W. Jackson, who had been curious to know who had been rushing up the stairs and invading his hotel. When he saw the Confederate flag in the hands of the Federal officer, he shot him in the breast. Ellsworth died instantly and Jackson was immediately killed by bullets and bayonets used by Ellsworth's troops. This was the first blood shed in Virginia in the War between the States.

A skirmish took place at Fairfax Court House on June 1, 1861, which caused the death of Captain John Quincy Marr of the Warrenton Rifles. His

death is considered the first Confederate battle death.

In the same month, the first land battle of the War between the States took place around and near the town of Philippi located in western Virginia (today, in West Virginia). On June 3, Union troops led by Colonel B. F. Kelly clashed with Confederate troops led by Colonel George A. Portfield. This fighting was not only a victory for the Union forces, but the retreat of the Confederates from the surprise Union attack on a dark, rainy night was exceedingly rapid. The Confederates fled more than thirty miles in one day to a town called Beverly, thereupon earning for their action the title, the "Philippi Races."

On July 21, along a creek called Bull Run, near Manassas, approximately twenty-five miles from Washington, some Union forces under the leadership of General Irvin McDowell met Confederate forces under the leadership of General Pierre G. T. Beauregard. Manassas was the site of a key railroad junction, an important line of supply and communication. Although the Union forces were at first successful, the firm stand taken by the Confederate forces on Matthews Hill and on Henry Hill led by General Thomas Jonathan Jackson and a counter-attack led by Confederate General Joseph E. Johnston's forces resulted in chaos in the Union army and a panicky retreat to Washington. This was a most unexpected defeat for the Union forces. "J. E. B." Stuart served under Joseph Johnston at this time and led a successful mounted charge against the Federal infantry. He also helped create disorder and panic in their lines. This first Battle of Bull Run or Battle of Manassas was the occasion for T. J. Jackson's famous nickname: "Stonewall." General Bernard E. Bee, a South Carolinian, headed some troops which had become panicky, and, as he saw T. J. Jackson's brigade in correct line formation, he is said to have made the following comment to his group: "Look! There is Jackson and his brigade standing like a stone wall. Rally behind the Virginians." From that time on, T. J. Jackson was called "Stonewall" Jackson. As the Union forces neared Manassas, Captain Alexander, a Confederate officer, spotted their coming from his lookout station. He relayed their approach by wigwagging signals with flags. This action is believed to be the origin of semaphoring. This battle caused the North to realize that the conquering of the South was not the easy task that it had predicted or had assumed. Their military slogan

"On to Richmond" became a military challenge rather than an accepted conclusion.

President Lincoln had declared a blockade of the Southern ports as soon as the war had started. The Federal Navy Yard at Norfolk was captured by the Confederates without resistance. The United States ships were only twelve in number at the beginning of the war, but others were quickly constructed. The Confederates hoped to keep the James River open at all times. They needed ships badly, having had no navy to draw upon for ships. When the Federal employees had abandoned the Norfolk Navy Yard, they had sunk a wooden frigate called the "Merrimac." Governor Letcher of Virginia ordered that this ship be raised and be converted into an effective, usable frigate. Lieutenant John M. Brooke, John L. Porter, W. P. Williamson and others planned together for a converted ship. Finally, the hull of the old ship was covered with pine, oak and iron plates from the famous Tredegar Iron Works of Richmond. It was equipped with ten guns and an inexperienced crew under the ex-United States Naval Commander, Franklin Buchanan. This iron-clad vessel was renamed the "Virginia," and it traveled to Hampton Roads to attack the Federal fleet on March 8, 1862. When it first received gunfire from a Federal ship, the shots surprisingly glanced off its sides. The vessel moved very slowly. When at close range, it pierced the "Cumberland" with its iron ram causing it to sink. The next day, much to its surprise, it was matched by a Union ship, the "Monitor," designed by John Ericsson, which was ironclad, smaller, more agile and newly constructed throughout. The ships fired upon each other, but they could not inflict serious damage. The Battle of the "Monitor" and the "Virginia" (formerly "Merrimac") was a draw or indecisive from a victory point of view. However, it is important historically as the first battle of ironclad vessels in the United States. The "Virginia" was later blown up when the Confederates evacuated Norfolk.

On March 23 of the same year, "Stonewall" Jackson became the aggressor and attacked a Union force at Kernstown, near Winchester. However, when one of his brigade became short of ammunition, he had to retreat southward. This battle was the beginning of Jackson's "Valley Campaign."

Beginning on April 5 and continuing for approximately one month, an important siege took place at Yorktown. After a line of fortifications had been erected across the Peninsula from the Warwick River to Yorktown by

the Confederate Commander John B. Magruder, General Joseph E. Johnston entrenched his army here. Union General George B. McClellan coming from Fort Monroe besieged the area for weeks and finally mounted his large size guns. With this action, Johnston withdrew since he was not equipped for such heavy fighting. As General Johnston's forces were retreating from Yorktown, they met an advance section of McClellan's army about one mile east of Williamsburg. Johnston was forced to fight at this time because he did not want them to capture his wagon train. Both armies fought valiantly, and neither side could get the advantage of the other. When night came, after a rainy day of fighting, Johnston retreated westward toward Richmond under cover of darkness. Two days later, Union General W. B. Franklin attempted to intercept Johnson on his retreat toward Richmond by landing just south of West Point on the eastern bank of the York River. However, General G. W. Smith came to Johnston's rescue and successfully drove Franklin forces back to the York River in order that Johnston could continue on his way to Richmond.

On May 8, 1862, "Stonewall" Jackson decided to prevent two Union generals, John C. Fremont and Nathaniel P. Banks, from combining their forces. He selected a position on a mountain top near McDowell, a village in Highland County. When Fremont's troops arrived under the leadership of General R. H. Milroy, they rushed up the sides of the mountain, only to be attacked by the Confederate forces under Jackson and driven back to a retreating position.

On May 23, Jackson successfully captured the town of Front Royal located in Warren County—an important area which had been held by Union forces under General Banks. This was a great blow to Banks as well as to his troops who rapidly retreated to Winchester. A unique feature of this battle was that among the opposing forces was the First Maryland Regiment, U. S. A. being attacked by the First Maryland Regiment, C. S. A. (Confederate States of America).

Two days later, Jackson rushed Banks at Winchester and surprised his troops to such an extent that they were routed from the town and driven across the Potomac in panic. Jackson who had been ordered by Lee to strike at Banks unexpectedly and to create the impression that it would be utterly impossible for him to converge with Fremont had carefully and

painstakingly carried out such an order. Jackson is considered by many as second in military stature only to Lee himself.

On May 31-June 1, 1862 the Battle of Seven Pines or Fair Oaks took place. The left wing of the Union army under McClellan was attacked by Confederate General Joseph E. Johnston at Fair Oaks Station and Seven Pines, located just east of Richmond. The Confederates won at Seven Pines but were driven back at Fair Oaks. The Battle of Seven Pines was considered indecisive. General Johnston was wounded seriously in this battle, and, at this time, General Robert E. Lee was put in command of the Army of Northern Virginia.

On June 8-9, Jackson was slowly retreating up the Shenandoah Valley when he decided to prevent two Union generals, John C. Fremont and James Shields, from combining forces by checking or holding back Fremont and then attacking Shields. He sent part of his troops under General Richard S. Ewell to attack the forces under Fremont at Cross Keys in Rockingham County. General Ewell defeated the forces of Fremont very badly and kept Fremont's help completely away from Shields. Jackson then led his remaining forces north of Port Republic and encountered Shields there. Bitter fighting followed. Shields was eventually defeated and driven down the Shenandoah Valley. This was the final engagement of the so-called Valley campaign. Jackson had proven himself a great military man who had fought on both sides of the Shenandoah Valley and who had marched approximately 700 miles in seven weeks in almost continuous fighting with one or more of the Federal fighting forces. This campaign included five major engagements: Kernstown, McDowell, Front Royal, Winchester and Port Republic. Jackson suffered defeat only at Kernstown by the Union General James Shields. Jackson then proceeded toward Richmond to prevent General McClellan from entering there.

On June 11, General Lee dispatched General James Ewell Brown ("J. E. B.") Stuart with 1200 cavalry and infantrymen from Richmond to obtain information behind the lines of the enemy concerning the specific position of McClellan. In three days, Stuart and his contingent had courageously ridden completely around the army of McClellan, acquiring much valuable information for General Lee. Only one of Stuart's men was killed during the assignment. Based upon the information furnished by General "J. E. B." Stuart, General Lee decided to advance his army on June 26. The Union

forces under General Fitz-John Porter had outposts near Richmond just north of the Chickahominy River in the town of Mechanicsville. Confederate General Ambrose P. Hill successfully occupied Mechanicsville and then continued to attack General Fitz-John Porter's troops along Beaver Dam Creek where he severely defeated them.

From June 26 to July 2, the Seven Days' Battle occurred. This included the fighting at Mechanicsville and at Gaines' Mill. In these two skirmishes, Lee, after severe fighting, drove the right wing of McClellan's army under General Porter across the Chickahominy River. At Glendale, Confederate Generals James Longstreet and Ambrose Hill fought terrific hand-to-hand skirmishes with gun butts and bayonets against the rearguard of the forces under McClellan. At nightfall, the Confederates retreated to Malvern Hill. On the following day, the forces under McClellan set up infantry fire with cannon fire just preceding it at the top of the hill. As the separate Confederate detachments charged up the steep hill, they were literally mowed down by the thousands. McClellan retreated during the night to Harrison's Landing. In spite of these military maneuvers, the army under McClellan was finally forced to retreat at the end of the Seven Days' battle, and Richmond, the "City of Seven Hills," still remained in Confederate control.

On August 9, as Jackson was on his way to encounter the Union General, John Pope, who had started southward, he unexpectedly met Union General Nathaniel P. Banks near Cedar Mountain (later called "Slaughter Mountain"), located just south of Culpeper. Severe fighting resulted, and the forces under Jackson had almost been annihilated when they received reinforcements which pushed the Union forces back. Since the number of casualties was extremely high during this battle, Jackson allowed Banks to bury his dead the following day.

On August 30, the Union troops made a second attempt to capture Manassas. Jackson defeated Union General Pope in the Second Battle of Manassas or Second Battle of Bull Run, after destroying large quantities of his supplies. When the Confederate troops had used all their available ammunition, they used stones until reinforcements under General James Longstreet arrived. These soldiers forced the Union troops under Pope to retreat to Centerville and eventually to Alexandria.

On September 5, 1862, General Lee, believing the time was suitable for invading the North, advanced across the Potomac River into Maryland. As they approached Frederick, they sang and marched to "Maryland, My Maryland" but this gesture did not result in large numbers of Marylanders joining the Confederate armed troops as they had hoped. After Jackson had successfully captured Harper's Ferry, Lee moved his remaining troops to Antietam Creek near Sharpsburg, Maryland. Severe fighting with McClellan's troops resulted and the Confederate forces in this area finally were forced to recross the Potomac River into Virginia.

On December 13, the Battle of Fredericksburg took place between Confederate forces under General Lee and Union forces under General Ambrose Burnside. Burnside had supplanted General McClellan. The town itself was used as a battlefield and many of the individual houses were completely destroyed. The city had been evacuated when it was first bombarded by Burnside on December 11. He proceeded to use five pontoon bridges to get his troops across the Rappahannock River. Although this battle resulted in some of the heaviest losses of the war, Burnside with his remaining forces was finally driven back across the Rappahannock River with the Union casualties twice as many as the Confederates.

On March 8, 1863, an unusual incident occurred. At midnight, a group of Confederate raiders, led by Colonel John S. Mosby, made a raid on the Fairfax Court House which had become federally occupied. Noted for its ruthless guerilla actions, this group of raiders then made a daring invasion of the Union lines and continued to the headquarters of Union Brigadier-General Edwin H. Stoughton. After cleverly getting past Stoughton's guards in the middle of the night, Mosby himself quickly captured Stoughton as a choice Confederate prisoner.

On April 30, 1863, the Union army under General Joseph E. Hooker, Burnside's successor, crossed the Rappahannock River again, this time at Chancellorsville, approximately ten miles north of Fredericksburg. "Stonewall" Jackson was in charge of the attack on Hooker at Chancellorsville and his troops were forcing back the troops under Hooker when fate seemed to take a hand. On May 2, "Stonewall" Jackson had ridden beyond his own line of battle and was returning at dusk when he was mistaken for one of the enemy and was fired upon by a group of his own soldiers. He was wounded in the left shoulder, forearm and right hand and

had to have his left arm amputated the next day. He was mortally wounded and died on May 10. His death was a great shock to the Confederate forces. General A. P. Hill had also been wounded at Chancellorsville. "J.E.B." Stuart voluntarily took command of the corps originally under Jackson and by his own audacious actions successfully led them in pursuit of the Union forces under Hooker, as Jackson had originally planned. Attacked by troops from the west under Stuart and by forces from the east under Lee, Hooker and his army were finally driven back across the Rappahannock River.

On June 9, the famous Confederate cavalry leader, "J.E.B." Stuart, met in combat the great Union cavalry leader, General Alfred Pleasanton at Brandy Station, near Culpeper. Stuart had been on a scouting trip between the Union forces and Washington, seeking information for the proposed advance of Lee to Gettysburg; Pleasanton had been seeking Confederate information for General George G. Meade, who had succeeded Hooker in command of the Union Army. Both cavalry groups consisted of approximately 10,000 troops each. Excellent horsemanship was displayed in this action with sabers as the chief weapons. Pleasanton and his men inflicted much damage and then left in orderly fashion. Stuart withstood the surprise attack very well and did not retreat in a panic, as might have been expected. Since the Unionists lost more men than did the Confederates in this practically evenly-matched fighting, the Battle of Brandy Station is considered as a notable victory for "J.E.B." Stuart and his men because Pleasanton had a highly skilled group of infantrymen. This battle was the first real cavalry battle of the War between the States. It is considered by many military strategists as the greatest cavalry battle of the nineteenth century. As soon as his battle ended, Stuart made another famous ride directly behind the Federal fighting lines. He was later criticized for this trip, however, because he had not been ordered to make such a trip and was badly needed by Lee at this time to screen planned operations and to keep Lee informed of the activities of Meade and his troops.

From June 13 to June 15, 1863, a second Battle of Winchester occurred. Union General R. H. Milroy was forced to evacuate Winchester and retreat across the Potomac due to the hard fighting of Confederate General Richard S. Ewell whose troops had captured not only valuable cannon and wagons but also approximately 4,000 Union soldiers.

At the beginning of the War between the States, forty western counties of Virginia preferred not to secede from the Union. Consequently, when Virginia joined the Confederacy, a majority of the residents of the western counties voted to secede from Confederate Virginia at a special Wheeling convention. They formed a separate Unionist Virginia government and selected Francis H. Pierpont as their Governor. They had already chosen two United States Representatives from their Virginia government and they proceeded to elect two United States Senators. State officers of the Unionist Virginia government were required to take an oath of allegiance to the federal government. This Pierpont government was accepted by the President of the United States and Congress as the official government of Virginia. Three months later, at a second Wheeling convention, the strong desire on the part of many residents of this area to become a separate state in the Union resulted in Pierpont's calling together his legislature which gave the necessary consent for the creation of an independent state from within the original state of Virginia government boundaries. The new area was first called "Kanawha" but later the name was changed to West Virginia. On June 20, 1863, West Virginia was admitted as the thirty-fifth state to the Union. Although this procedure was apparently illegal and unconstitutional because the United States Constitution provides that no new state can be formed within the jurisdiction of any other state without the consent of the state legislature so involved, President Lincoln and the United States Congress overlooked this technicality because of a need for military and political expediency in wartime. Governor Pierpont and his Unionist government in August 1863 changed the location of his "restored" or "reorganized" government from Wheeling to Alexandria, which he termed the West Virginia capital city at that time. Alexandria maintained this West Virginia capital city status until the end of the war and the residents of Alexandria were forced to live under the provisions of a Pierpont-drafted "state" constitution. Later, Berkeley County and Jefferson County were annexed to West Virginia by November 1863 and became an official part of the state of West Virginia. Eventually, Virginia lost fifty counties altogether to West Virginia, approximately one-third of its total land area, with their human and natural resources as well as their financial support.

After the victories of Fredericksburg and Chancellorsville, Lee decided to cross the Potomac again and invade the north once more. When Lee found

out that a large Union force under the command of General George G. Meade, who had replaced General Joseph Hooker, was at Frederick, Maryland, Lee decided to center his forces at Gettysburg, Pennsylvania. On July 1, 1863, the Confederate forces attacked Meade's forces and made temporary gains. Two days later, three Confederate brigades commanded by General George E. Pickett advanced to the Federal cannon center, now called Cemetery Ridge, where mass slaughter of the Confederates took place. On July 4, the remaining Confederates returned sadly across the Potomac River into Virginia. Approximately two weeks after the Gettysburg defeat, a surprise attack on Wytheville, Virginia, was thwarted by the courageous efforts of Molly Tyres who rode rapidly over forty miles of mountain road between Tazewell and Wytheville to warn the inhabitants of the coming attack. Thus, did Virginians—military and civilian—strive to help the Confederate cause in which they so strongly believed.

On May 5 and 6, 1864 the so-called Battle of the Wilderness was fought in the heavily forested terrain of Spotsylvania County. As General R. S. Ewell was returning his forces from Fredericksburg to Orange, he encountered General Ulysses S. Grant who had become commander of the Union army. At the same time forces under General Ambrose P. Hill encountered the left wing force under Grant which resulted in terrific fighting within the dense woods of the wilderness. As the left wing force under Grant was breaking through the forces under Hill, General James Longstreet approached and forced the Union troops back to Spotsylvania Courthouse, southwest of Fredericksburg. Grant retreated in this direction in an attempt to keep Lee away from Richmond. However, Lee was ahead of Grant. Although Grant tried repeatedly from May 8 to May 18 to break through the Confederate lines at Spotsylvania with exceptionally heavy musketry fire causing thousands of casualties, he was unable to penetrate Lee's lines. Therefore, he moved southward to the North Anna River.

In the meantime, on May 10, when General Philip Sheridan tried to make an unexpected rush on Richmond, "J.E.B." Stuart, with only part of his cavalry, blocked Sheridan's way at Yellow Tavern and saved the Confederate capital. Stuart was mortally wounded by a close pistol shot in this fighting and he died on May 11, 1864 in Richmond. He is considered by many military strategists as the greatest cavalryman in United States history.

On May 15, General Franz Sigel, a Union leader, decided to capture Staunton in order to ruin the communication system there which Lee had used to be kept informed about activities in the Shenandoah Valley. He arrived as far as New Market, in Shenandoah County, when he met Confederate General John C. Breckinridge who had a comparatively small army consisting mostly of young Virginia Military Institute cadets. They showed the benefits of their military training and successfully captured a Union battery. After this had been done, General Breckinridge advanced, defeated Sigel and drove him down the Shenandoah Valley.

On May 23-27, 1864, the North Anna River in Hanover County became the next area of military concentration. General Lee and General Grant were on opposite sides of the river. Although the forces led by Grant were able to cross the river at various intervals, they were unable to penetrate the forces led by Lee. Consequently, Grant turned southwest and proceeded to march to Cold Harbor, approximately ten miles north of Richmond. When Grant arrived at Cold Harbor, he decided to have an all-out offensive against the forces of Lee at this location. His attempt was in vain, however, and he received very heavy losses on June 3. This caused him to retreat to the James River south of Richmond.

On June 11, 1864 there was an important cavalry battle at Trevillians Station, in Louisa County, between Union General Philip Sheridan and Confederate cavalymen led by Wade Hampton and Fitzhugh Lee. Sheridan had been trying to reach Union General Hunter who was on his way to Lynchburg. After heavy fighting on both sides, Sheridan was defeated and retreated eastward.

In the meantime, after General Grant had found it impossible to penetrate the lines established by Lee north of Richmond, he had crossed the James River south of Richmond and had set up camp on the outskirts of Petersburg. On June 15, 1864, Confederate General Beauregard held the forces under Grant back for three days until reinforcements under Lee arrived. Fighting continued between these two groups until April of the following year. During this siege, the Union forces decided to make a tunnel under the Confederate defenses which surrounded the city of Petersburg and to blow up the fortifications via a mine blast. Some Pennsylvania coal miners in one Union regiment were assigned the task of making the tunnel and laying the mine. On July 30, 1864 the mine was

exploded, and the shape of the area after the explosion resembled a huge crater of a volcano. For this reason, this action is often referred to as the Battle of the Crater. Two hundred Confederate soldiers lost their lives due to the explosion. However, as the Union soldiers were ordered to charge up the sides of the recently carved crater, they found them too steep and while they were struggling to get out of the crater, about 4,000 Unionists lost their lives. The Union men could not see from behind the lines and continued to advance according to their orders into the crater until the crater was practically filled with struggling Union soldiers. The remaining Unionists were driven at the point of bayonets out of the crater back to their own lines.

While the Petersburg siege was taking place, Lynchburg became the next objective of the Union forces. When General Jubal Early reached Charlottesville on his mission to block Union General Hunter, he learned that Hunter was heading for Lynchburg, the chief center of supplies of the Army of Northern Virginia and its center of communications. Early's forces in this battle consisted of two extremes in age: very young men cadets from the Virginia Military Institute and older men whose hair locks were so white that they were nicknamed "Silver grays." The fighting lasted from the afternoon of the 17th to the end of the next day when Hunter withdrew unexpectedly to the west. Early pursued him down the Shenandoah Valley and across the Potomac River to the outskirts of the Federal capital. Since Early, however, was not prepared for a fight on Washington, D. C., he returned to Winchester.

At approximately noon, on September 19, 1864, General Early survived a surprise attack by General Sheridan and his forces near Winchester. Early, in a victorious mood, even turned the tables on the attackers and attacked them. Much to his surprise at three o'clock of the same day, Sheridan returned and badly defeated Early, driving him back to Winchester and eventually to a retreat up the Shenandoah Valley. Sheridan, whose forces had been savagely attacked by some Confederate guerilla bands, now retaliated by destroying houses, barns and foodstuffs and by capturing or killing livestock. The valley was completely devastated by his destructive campaign.

One month later, however, Early made a surprise crossing of a branch of the Shenandoah River and drove the forces of Sheridan northward from Cedar

Creek in Frederick County. As Sheridan and his forces were fleeing, Union reinforcements arrived under the leadership of General Horatio Wright. The combined forces of Sheridan and Wright attacked the troops of Early and drove them from the area in great chaos. This victory was the shortest victory in the War between the States.

During the war, several attempts had been made by the Union forces in the Shenandoah Valley to capture and destroy the Salt Works at Saltville, located in southwestern Virginia. In 1864, the Confederate General John H. Morgan with a small cavalry force successfully repulsed a Union force under General William Averell. On December 18, 1864, however, the salt mines and the Salt Works were destroyed by a small detachment of Union forces who were ordered to Saltville while the Confederates were engaged in severe fighting with the major Union troops at nearby Marion. The destruction of the Salt Works was significant because this location had furnished the principal source of salt supply for the Confederacy.

In spite of the many Unionist casualties at the Crater in 1864, Grant continued to keep his army near Petersburg. Finally, both sides made their camp there for the winter. General William Mahone was the Confederate general in charge of the Petersburg defense at this time. While the winter passed, the Union forces kept receiving reinforcements while the Confederate forces had no reinforcements. As the Union forces were increased over a large area, the Confederates were forced to station their meager forces farther apart. There was a scarcity of food and clothing for the Confederates; the cold climate was most uncomfortable and demoralizing for them. On April 2, General Grant succeeded in breaking through the Confederate lines. Jefferson Davis, President of the Confederacy, was informed while attending services at St. Paul's Episcopal Church in Richmond that Petersburg could be held no longer by the Confederate forces. The Virginians knew that, if and when Petersburg fell, Richmond would fall next because Petersburg was the key to Richmond. The next day, April 3, Richmond fell. As General Richard S. Ewell and his Confederate troops evacuated the city, they burned bridges and large tobacco and cotton warehouses to prevent the Union forces from receiving beneficial goods. However, a surprising wind spread the flames rapidly and resulted in approximately thirty million dollars worth of damage to the City of Richmond.

Three days later, the final battle of the Army of Northern Virginia occurred at Sailor's Creek near Farmville. The rearguard of Lee's Army on the way to Lynchburg was completely surrounded and attacked by Unionists. The Confederates lacked equipment, especially cannon, and were quickly overpowered by artillery fire. In the mass surrender which resulted, two generals were captured: R. S. Ewell and Custis Lee, son of General Robert E. Lee.

While the rearguard of Lee's army was retreating toward Lynchburg, the rest of his army was retreating from Petersburg. On April 8, 1865, two Confederate corps consisting of starved, poorly equipped soldiers under General John B. Gordon and General James Longstreet arrived at a village called Appomattox Court House. When General Lee arrived, he noticed that his men were actually surrounded and far outnumbered by General Grant's Army of the Potomac. He had been corresponding with Grant concerning a surrender ever since the fall of Petersburg. Lee, realizing the futility of the comparatively small group of poorly equipped troops which he now commanded against Grant's large army, asked for an official meeting at Appomattox Court House. The meeting took place at noon on April 9, 1865, on Palm Sunday in the parlor of Wilmer McLean's House. General Lee and Colonel Charles Marshall, one of Lee's staff members and a most distinguished officer, represented the Army of Northern Virginia at the meeting while General Grant and fourteen federal officers including General George A. Custer and Major General Philip H. Sheridan constituted the remaining membership of the famous meeting.

The contrasting appearance of the two leaders was very noticeable: Grant, the victor, appeared straight from the battlefield in a dusty, fatigue uniform of a private without side arms and Lee, the vanquished, appeared in a new dress uniform of a Confederate general—the only one he owned after his personal effects had been burned in a wagon raid during an earlier retreat. Although the two leaders had had only casual meetings in their earlier years, their previous acquaintance seemed to lighten the tenseness of the situation. After an exchange of formal greetings and general conversation, the talks gradually shifted to a discussion of peace terms of surrender.

The terms have been described as most fair and generous and they included the following: parole was given to the Confederate officers and soldiers with the understanding that they were not to take up arms against the United

States during the period of exchange, military weapons were to be relinquished to Union military officers with the exception of the side-arms belonging to the Confederate officers and baggage and privately-owned animals were to be kept for the spring plowing. Thus, after four years of brave fighting, General Robert E. Lee, in the name of the Army of Northern Virginia, graciously accepted with dignity the surrender terms of General Ulysses S. Grant and stated that the terms "will do much toward the conciliation of our people." General Grant then proceeded to furnish food for the starving Confederate forces. The formal surrender took place the next day. When the Union forces began to cheer during the surrendering of Confederate arms, Grant immediately ordered the cheers to cease with the remark: "The war is over; the rebels are our countrymen again." Thus, Virginia, where the first blood of the War between the States was shed, was also the scene where the final negotiations for the conclusion of the war were made.

From April 3 to April 10, 1865, Danville was the capital of the Confederacy. As the evacuation of Petersburg and Richmond took place, Jefferson Davis, President of the Confederacy, and his cabinet moved to Danville. The present Danville Public Library occupies the building known as the Confederate Memorial Mansion where Jefferson Davis held his last cabinet meeting, making Danville the Confederate capital for a few days. At the time of the meeting, this beautiful building was the home of Major W. T. Sutherlin. Governor William Smith of Virginia also evacuated from Richmond to Lynchburg where the state archives had been sent earlier.

After the surrender of the Army of Northern Virginia, Jefferson Davis and his cabinet fled to Greensboro, North Carolina, and eventually, to Washington, Georgia, where they finally dispersed. Davis was later confined for two years at Fort Monroe, Old Point Comfort, Virginia, from May 10, 1865 to May 15, 1867. He was finally released on bail furnished surprisingly by Horace Greeley and other individuals who had strongly opposed Davis and his Confederate ideas a few years previously.

All the remaining Confederate troops had surrendered by the first week of June, and the War between the States had ended. Since a majority of the battles had been fought in Virginia, tremendous damage had been inflicted upon Virginia during the war. The state had been a constant battleground. Virginia troops, however, had distinguished themselves in their excellent

fighting tactics, and the most brilliant military leaders of the Confederacy were Virginia-born.

Not only from a military viewpoint had the Confederacy welcomed the addition of Virginia within its membership, but also from an economic viewpoint. War munitions had been manufactured in huge quantities for the Confederate forces by the Tredegar Iron Works of Richmond. Richmond was also the home of the country's largest flour mills at that time. Because of its plentiful farm products, particularly wheat and corn, the Shenandoah Valley was called the "Granary of the Confederacy."

Even in defeat, the courageous spirit of the Virginians continued. The rôle of women in Virginia as well as in the entire South cannot be overemphasized. They had suffered physically, emotionally and economically during the war. They made military uniforms by hand, stood by helplessly as their homes and, often, life fortunes were burned to the ground, experienced certain types of deprivation such as a lack of proper food (particularly sugar, salt and meat), clothing, shelter and medicinal needs and performed numerous physical household tasks previously done by the Negro slaves although many of these women were unaccustomed to such hard labor.

Individual examples of bravery and courage, far too numerous to mention, were common throughout the entire war. A most unusual contribution of the women was their continuous experimentation in the discovery of food substitutes: the use of blackberry and sassafras leaves for tea; parched wheat, rye and corn for coffee beans; sea water for salt; and corncob ashes for cooking soda. A lack of processed candles and kerosene oil left only grease and wax to be utilized for making handmade candles. Wood was frequently substituted for leather and seeds for buttons. Formal education, of necessity, was almost non-existent; with a few exceptions, like the Virginia Military Institute, education became solely one of family training.

An incident of special interest was the activity of Sally Tompkins of Gloucester who was eventually commissioned by President Jefferson Davis as a Captain in the Confederate Army. She had charge of Robertson Hospital located in Richmond after she had previously used her own money and efforts to get this hospital established because of the urgent need for a hospital in the Richmond area. She influenced Judge Robertson to lend his

house as a hospital headquarters. Later, after the government of the Confederacy assumed control of all the hospitals in the Confederacy, President Davis appointed an army officer as a director for each one. Recognizing the conscientious efforts of Sally Tompkins in establishing this hospital at Richmond, President Davis commissioned her as Captain, the only woman to be commissioned by the Confederate government.

At the end of the war, Virginia was in a devastated condition: private property as well as public property had in many cases been completely destroyed by fire or by ammunition. Practically all the livestock had been carried away. Family members had been decreased in number, and disease and starvation conditions were common throughout the state. Politically, economically, geographically, historically and socially, the South had been affected: Virginia, in the heart of the most severe battleground area, seemed to base its existence for the future upon the "survival of the fittest" theory.

The Reconstruction Period and Its Aftermath

Returning Virginia soldiers found some houses completely destroyed and large sections of land completely laid to waste. With little, if any, livestock left and with farm tools missing, the serious problem of reconstruction and rehabilitation can be easily understood. Railroad tracks and bridges had been demolished; transportation facilities in some areas were almost non-existent. Even fences, so important to livestock raising, had been entirely demolished in most instances. So hopeless did a recovery appear to many Virginians that a few men proposed migration to Mexico rather than to start anew with such poor living conditions.

General Robert E. Lee still showed his leadership qualities when he beseeched several Virginians, including Matthew Fontaine Maury, the brilliant marine cartographer, not to abandon Virginia when the state needed all her sons so badly. Maury was so impressed by the plea of Robert E. Lee that he rejected offers of employment from foreign countries which were familiar with his broad, oceanographic knowledge. Instead, he accepted the chairmanship of the Meteorology Department of the Virginia Military Institute. Robert E. Lee, himself, had been offered various employment opportunities but the honor which he deemed the highest of all was the position offered to him as President of Washington College at Lexington.

Lee's financial gain from this position was to be a sum of \$1500 per year plus a house and a garden. He humbly accepted the position and was allowed to keep his faithful horse, "Traveler," with him in a stable built adjacent to the President's house. From September 1865 until October 1870, Robert E. Lee served as President of Washington College.

Lee had two objectives which he hoped personally to achieve: (1) the lessening of the hatred which then existed between the North and the South so that all Americans might work together in unity for peace and progress, and (2) the education of youth in such a manner as to make them capable of living as successful citizens of the United States. With his deep idealism, Lee was also a practical man. When he recognized the interest of many young men in writing, editing and publishing newspapers, he included a course in journalism at Washington College. This was the first college journalism class offered in the United States. He was also responsible for the origin of the honor system whereby a student is on his personal honor to refrain from cheating and is also honor-bound to report any individual seen violating such code; this system is now used in numerous institutions of learning. Many of the current attributes of this college are traceable to the administration of Robert E. Lee. In 1871, the name of the college was changed to Washington and Lee University in honor of two Virginians who made numerous contributions to American culture.

After the war had ended, a most unusual situation existed in Virginia. The "Restored Government" under Governor Francis Harrison Pierpont claimed to be the official government of Virginia although he and his cohorts were responsible for dividing the State of Virginia and actually had set up an illegal Unionist Virginia government at Wheeling. President Lincoln, however, had at one time stated that "The government that took Virginia out of the Union is the government that should bring her back." He suggested that the present Governor of Virginia at that time, William Smith, should be present to ratify such procedure. However, U. S. Secretary of War Edwin Stanton persuaded Lincoln to withdraw this offer. Lincoln's untimely death on April 14, 1865, when he was assassinated by John Wilkes Booth at the Ford Theater in Washington, was a real blow to the South in general because he was much more conciliatory toward the South than the majority members of the Congress who were radical about their military victory over the South. It is interesting to note that, fifteen days later, John Wilkes Booth

was shot to death in a burning barn on the Garrett Farm near Port Royal, Virginia. On May 9, 1865, President Andrew Johnson officially recognized the "Restored Government" of Virginia, which had relocated in Alexandria, and also recognized Pierpont as the Provisional Governor.

On June 15, 1865, a Freedman's Bureau headed by General Orlando Brown was established in Virginia. The Bureau was supported by the United States Government and had charge of the interests, aid, protection and guidance of the Negroes. This bureau distributed food rations and clothing to the Negroes and provided educational opportunities for them. Originally founded to help newly freed Negroes, the Freedmen's Bureau soon became overshadowed with political activities and severe radicalism with strong racial prejudices resulted.

From June 19 to June 23, 1865, Governor Pierpont had changed his headquarters from Alexandria to Richmond and his "General Assembly" of twelve representatives held meetings there. They endorsed Lincoln's plan of reconstruction and were rejoicing at the comparatively easy way in which Virginia was going to be restored to the Union. In the meantime, the radical Congress in Washington believed that the Confederate States had left the Union voluntarily and should not be allowed to return until they had fulfilled specific conditions. When the State of Virginia sent her officially-elected representatives to Congress, they were refused admission. Nevertheless, Congress did allow the Virginia General Assembly to meet in regular session, and one of the measures passed by this group consisted of a formal appeal to West Virginia to reunite with the original State of Virginia.

On March 2, 1867, Congress under the Reconstruction Act of 1867, divided the ex-Confederate states (with the exception of Tennessee which had ratified the Fourteenth Amendment providing citizenship for the Negroes) into five military districts, each of which was under the command of a Major-General of the United States Army. Later, on March 23, the Commonwealth of Virginia became Military District No. 1, and General John M. Schofield became the first military Governor of District No. 1 in 1867. Since Pierpont had been reelected Governor of Virginia in 1864 for a four-year term, he was accepted as the civilian Governor by the radical Congress, but subject to the authority of the military commander.

On December 3, 1867, a convention was held in Richmond for the purpose of writing a state constitution which would be accepted by the Federal Congress. A large majority of the representatives attending were radicals. Membership included twenty-five Negroes, individuals of foreign birth who had drifted into the State of Virginia after the War between the States, many northerners who had come South to enter politics and a few eligible white men who had changed to Republicanism. White men of the South who had held high public office before the War between the States and those who had helped or participated in the Confederacy in any way were barred from voting or taking part in the Constitutional Convention. Since the chairman or president of this convention was Federal Judge John C. Underwood, the convention is sometimes referred to as the Underwood Convention. The measures passed by these members were so radical that even General Schofield himself appeared personally before the convention and pleaded with the members to repeal a clause, drafted by the convention delegates, which disfranchised approximately 95% of the male white population of Virginia and disqualified them from holding office and from serving on juries. His plea, however, was ignored.

At this time, a Committee of Nine Virginians was formed at the suggestion of Alexander H. Stuart. The chief objectives of this committee were to observe political developments in Virginia and to determine the appropriate time to report to Washington on the state of events in order to obtain a more favorable method for Virginia to re-enter the Union. They bluntly stated that the Virginians were definitely opposed to full Negro suffrage and declared that many states other than the southern states, such as Kansas, Ohio, Minnesota, Michigan and Connecticut, had refused to enfranchise the Negro.

General Schofield prevented the planned election of the Underwood Convention from taking place in June by refusing to appropriate money for election expenses. Such postponement gave the Committee of Nine an opportunity to obtain public opinion backing before the Senate voted for the Underwood Constitution. The House of Representatives had already voted in favor of it immediately before the Christmas recess occurred. A representative of the Committee of Nine stated before Congress that the Committee advocated the acceptance of full Negro suffrage as inevitable in order that constitutional representative government might be restored at

once. Chairman Stuart had already successfully achieved the support of the Boston "Advertiser," the Chicago "Tribune," the New York "Times" and the New York "Tribune." President Grant, who had succeeded President Johnson, suggested that, when the election took place in Virginia, the Underwood Constitution be voted upon first and then the test oath. As a result of the test oath, only individuals who had never taken arms against the Union and had never given aid or comfort to the Confederacy would be eligible to vote or to hold office. Likewise, it was suggested that the extension of the white disfranchisement be voted separately. When the election took place on July 6, 1869, the Underwood Constitution was adopted, but the two separate items mentioned above were defeated.

Gilbert C. Walker, a conservative Republican from New York and Pennsylvania, was appointed on September 21, 1869 as Governor of Virginia by General Canby, a successor of General Schofield. On October 8, 1869 the newly-elected General Assembly ratified the Fourteenth Amendment—"All persons born or naturalized in the United States are citizens of the United States and of the State wherein they reside ..." and the Fifteenth Amendment—"The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any state on account of race, color, or previous condition of servitude." Congress then approved the new state constitution, and Virginia was officially re-admitted into the Union on January 26, 1870.

One of the biggest problems facing Governor Walker was the extremely high debt of approximately forty-five million dollars which faced the state. The Underwood Constitution had provided for numerous additional office positions in an attempt to force the New England Township plan upon the Virginia County plan and to create positions for the many "Carpetbaggers" (northern politicians who came south to gain control of the local governments) and "Scalawags" (southern politicians who helped the "Carpetbaggers" get control). This increased the cost of state government. To remedy this situation, the General Assembly decreased its total membership approximately one-fourth to help reduce expenses.

Prior to the war, Virginia had embarked upon an extensive program of internal improvements which under normal circumstances would have paid for itself eventually and which during the war had accumulated much unpaid interest on the bonded debt. This financial burden would seem

secondary to the tremendous poverty of the Virginians themselves at the end of the war. However, the General Assembly which had met prior to the adoption of the Underwood Constitution pledged the payment of all the ante-bellum debt plus the interest, even though Virginia had lost one-third of its taxable assets because of the separation of West Virginia. Some of the members still hoped and actually believed that West Virginia might return to the fold of Virginia after the war had ended. At the Governor's suggestion, in order to obtain revenue, the state sold its railroad holdings at a great reduction. Another method was the exchange of certain bonds for new ones at six per cent interest for two-thirds of the amount of the old bonds. For the additional third, certificates were issued endorsed against future settlement with West Virginia. Although these attempts were made to obtain necessary revenue, the amount received was very insufficient, and the state actually became more indebted because of them.

Another grave problem which faced the state at this time was the establishment of a state system of free public schools. This action was based upon a provision of the Underwood Constitution of 1869 and although having a most worthy purpose, the action was a costly one. Schools were to be furnished for the Negroes (approximately 30% of the total Virginia population) as well as for the whites, and this condition made the problem more difficult since there was a large number of illiterate Negroes. Dr. William H. Ruffner of Lexington, the first State Superintendent of Public Instruction, was elected by the General Assembly when the new state public school system was organized in 1870. The formidable task facing him can be better appreciated when one considers the creation of an entire public school system with very little money and few trained teachers available. The interest from the Literary Fund, all the capitation or poll tax, a new state property tax and a new one dollar annual tax on each male citizen twenty-one years and older were to constitute the financial support of the public school system. Local school and capitation taxes were optional with each county and public school district. Dr. Ruffner received much help from Dr. Benjamin Mosby Smith who helped him formulate a program and at the end of the first year, twenty-nine hundred schools were in operation with three thousand teachers employed to teach one hundred and thirty thousand students. From time to time, the schools were seriously threatened when the interest on the state debt was so high that there was little surplus left for educational purposes. Dr. Ruffner fought

not only to keep the school funds from being used for other state activities but also to encourage Virginians themselves to favor a free public school system.

In 1868, General Samuel Chapman Armstrong was responsible for the founding of the Hampton Institute at Hampton, an educational institution whose primary objective was the education of the ex-slaves. The American Missionary Society, at the suggestion of General Armstrong, purchased a farm in Hampton where the Federal Government had established a hospital during the War between the States. The school began with General Armstrong as the principal, two additional teachers and fifteen students. Two years later, it became the Hampton Normal and Industrial Institute. Since General Armstrong believed in education of the "head, the heart, and the hands," training of the mind, character training, and vocational training were emphasized with the over-all objective of preparing the students to earn a living. The now-famous Hampton singers, originally led by General Armstrong, made their first tour through England and New England in 1870.

In the same year, Richmond was the scene of a dreadful disaster. When a sensational political case was about to be tried by the Virginia Supreme Court of Appeals which held its sessions above the Old Hall in the State Capitol, the gallery in the court room collapsed due to the weight of the spectators. It crashed so hard that it broke through the ceiling of the Old Hall of the House of Delegates causing the death of sixty-two persons and injury to two hundred and fifty-one other individuals. This tragic incident focused attention on the need for more careful supervision of the construction and maintenance of buildings, especially where crowds are likely to congregate.

In the following year, the United States Supreme Court, which has original jurisdiction in the settlement of disputes between two or more states of the Union, was asked to settle a controversy between Virginia and West Virginia concerning the joint boundary line. The Supreme Court held that the new State of West Virginia was valid and agreed with West Virginia as to the territory within her jurisdiction. At the same time, the Virginia General Assembly passed an act whereby the state debt of approximately forty-five million dollars was to be funded. West Virginia was to be

responsible for funding one-third of this amount since she had helped accumulate this debt before her separation from Virginia.

In 1872, the Virginia General Assembly appropriated money to establish an agricultural college at Blacksburg. This college was created as a result of the Morrill Act of Congress whereby federal funds were appropriated by Congress and awarded to colleges which emphasized the teaching of agriculture and of mechanical arts. The federal funds were received from the money collected from the sale of public lands. Therefore, such colleges were called "land-grant" colleges. The college of Blacksburg, originally known as Virginia Agricultural and Mechanical College, was the first land-grant college in Virginia and is now known as the Virginia Polytechnic Institute.

The recessions which took place in the United States in 1867 and in 1869 and the Panic of 1873 indirectly helped Virginia because, instead of devoting much time and effort to Virginia's internal problems as had been planned upon its re-admission to the Union, the Congressmen at Washington were busy with the national problem of getting the United States in a more prosperous economic condition.

When the political parties held their gubernatorial conventions in Virginia in 1873, the Conservatives nominated General James L. Kemper and the Republicans nominated Robert W. Hughes. Kemper won, and the chief issue in the election was the debt problem. The Conservatives had advocated payment of the debt in order to maintain the credit of Virginia in the eyes of the public and to assume what they considered a proper obligation. However, some of the Conservatives believed that the debt would have to be lowered somewhat if it were ever to be paid in full and that, from a practical standpoint, it would have to be adjusted to the ability of the state to pay. This group of Conservatives was called the "Readjusters." In 1870, the state had been gerrymandered (districted politically) in an effort to create Negro majorities which would guarantee "carpetbagger" rule because the "carpetbaggers" seemingly had been very helpful to the Negro. The Conservatives who had won the election then enacted some reapportionment laws which resulted in the restoration of white rule in the cities. They also took it upon themselves to abolish approximately one-third of the local jobs created by the Underwood Constitution. In 1876, a law was passed which required the payment of a

poll tax before voting in the state of Virginia. Although originally this tax was levied for revenue purposes, it automatically kept some of the Negroes from the voting polls because they could not afford to pay this tax. At the same time another law was passed, disfranchising all voters who had been found guilty at any time of petty larceny. Since this method had been commonly used by the Negroes directly after their emancipation, this law was criticized by some individuals as discriminatory toward the Negroes and contrary to the Fourteenth Amendment.

As time passed, the old question of the state debt loomed more important and more controversial than ever. The problem had two types of backers: one group called the "Readjusters" who believed that the debt should be drastically reduced or practically repudiated; the other group called the "Funders" who believed that Virginia was honor-bound to pay the original debt in full. The "Funders" surprisingly enough consisted of the planter and merchant class men whose financial losses had been the greatest during the war. The "Readjusters" persuaded the Negroes to adhere to their ideas primarily for political reasons. The arguments centered around such issues as: (1) whether the interest on the debt should have been cumulative during the War between the States, (2) whether Governor Walker had greatly overestimated the potential resources of Virginia in considering the capacity of the ability of the people to pay, (3) whether the payment of a debt primarily because the honor of a state is involved is a major factor in an economic world, (4) whether the Federal government had regarded the State of Virginia as "conquered territory" and hence should assume the ante-bellum debts of this "conquered territory," (5) whether the debt itself should be reduced in all fairness because of the severe war property destruction in Virginia and because one-third of Virginia's entire state area had been reduced by the creation of West Virginia as a separate and permanent state, (6) whether Virginia had been forced by the Federal government to have the status of Military District No. 1 from 1865 to 1870 and hence would the state be held responsible for debts incurred during this period, and (7) whether local state government debts should be paid before payment should be made to outside debtors such as those in New York and London. In 1877 Colonel Frederick W. M. Holliday, the Conservative or "Funder" candidate, defeated General William Mahone, the "Readjuster" candidate for the Governorship.

Mahone subsequently succeeded in getting himself elected to the United States Senate in 1879. He became so politically influential that he eventually secured the nomination and the election of a "Readjuster" Governor for Virginia in 1881 and a Republican Lieutenant-Governor. At this time, he publicly declared himself a Republican. His "Readjuster" friends gained control of the General Assembly and removed several state government officials solely for political reasons. Mahone was considered responsible for the use of the "Spoils" System throughout the State of Virginia. During the administration of a Readjuster Governor, the debt of Virginia, as could be expected, was re-adjusted to approximately \$23,000,000. Since many of the Readjuster party members consisted of Negroes, the poll tax was repealed also. The public school system and even the court system became infiltrated with politics. Often the responsible positions in these fields were filled by employees of political ability or affiliation rather than by employees with qualifications pertinent to such positions. After much rioting and corruption, Mahone's political machine finally lost control of the state in 1883.

A permanent reminder of the "Readjuster" Party was formulated in 1880 with the creation of Dickenson County from Russell, Wise and Buchanan Counties. It was named for one of the leaders of the "Readjuster" Party, William J. Dickenson. This county has the distinction of being the youngest county in Virginia.

In 1892, the state debt problem was settled more satisfactorily when the balance of the debt was established at a figure lower than the original but higher than the "Readjuster" figure and the rate of interest was lowered. The creditors and the debtors cooperated in this situation, and the credit of Virginia was gradually re-established.

During the Reconstruction Period, a great majority of the Republican Party members in the South were Negroes. Lincoln, himself, had been a Republican. Since it was during his administration that the war started and that the Emancipation Proclamation had been issued, the word "Republican" in the South had for many individuals the connotation of a moral and social stigma. So permanent were the scars of events of the Republican Reconstruction era that until 1920, the former seceded states never cast an electoral vote for a Republican candidate in a national

election. Thus, a vote solidly or unanimously for the Democratic Party resulted and the term "Solid South" came into existence.

In the Spanish-American War of 1898, many Virginians fought valiantly for their country. The outstanding contributions of such Virginians as Dr. Walter Reed (birthplace, Gloucester County) and his colleague, Dr. Robert Powel Page Cooke, in discovering that yellow fever was transmitted to human beings by the bite of mosquitoes, Major-General Fitzhugh Lee (nephew of General Robert E. Lee) who served as United States Consul-General to Cuba in 1896 and who was given the command of the Seventh Army Corps in the Spanish-American War and Robley Dunglison Evans (Floyd) who was Commander of the U.S.S. Iowa at the Battle of Santiago Harbor helped considerably in the efforts of the United States to win this war.

By 1900, although Virginia's population (both white and Negro) had increased at a rapid rate, Virginia ranked seventeenth in population in comparison to the other forty-four states in the Union. Virginia had approximately 1,854,000 people including approximately 661,000 Negroes. However, one-third of the area of the state—which had become West Virginia—was permanently separated. In addition, Kentucky had been carved from within the original boundaries of Virginia with the consent of the state government.

Twentieth Century Developments

On June 12, 1901, a state constitutional convention was held in Richmond at the request of Carter Glass, an outstanding Virginia statesman from Lynchburg. The major issue of this convention was the discovery of a method of reducing the large number of illiterate Negro votes which in the 1900 election had outnumbered the white votes in one-third of the counties of the state. Since there was a large number of illiterate whites in the western mountain regions of Virginia, careful consideration had to be given to any proposed restrictions on suffrage so that these inhabitants whose ancestors had fought bravely in the Revolutionary War and in the War between the States would not be severely penalized. Consequently, the Constitution of 1902 included the requirement that a poll tax of one dollar and fifty cents had to be paid as a qualification for voting. Furthermore, a

constitutional requirement demanded payment of three years' poll taxes six months before general elections. Since the Negroes were financially very poor at this time, this requirement indirectly caused a great decrease in the total number of Negro votes cast.

This constitution also included an "understanding clause" provision which required voters to prove in written statements their understanding of the government of Virginia. This provision was to be replaced in 1904 by the requirement of each potential voter passing an intelligence test proving that he could properly interpret the constitution. Such provisions prevented many uneducated Negroes from participating in elections.

A State Corporation Commission was created for the first time in the Commonwealth to control corporations such as the public transportation companies and the telephone and telegraph companies. Other governmental changes provided for in this constitution were: the direct election of the Secretary of the Commonwealth, the State Treasurer, the Commissioner of Agriculture and Immigration and the Superintendent of Public Instruction by the qualified voters; the replacement of County Courts by Circuit Courts; the constitutional requirement for the political status of a city: an incorporated community with a minimum population of 5,000 inhabitants is eligible to become an independent city, and, as the name implies, such cities are not subject to county administration; the establishment of racial segregation in the public schools of Virginia; a considerable extension of the powers of the State Board of Education, and a change in the age range used to determine school population as a basis for distributing the common school fund from 5-21 years to 7-20 years.

On May 29, 1902, the Constitution of 1902 was "proclaimed" by the convention members, whose delegates voted for its adoption. Although this Constitution was never ratified by the voters themselves, it was later approved by the state legislature. With certain revisions which were added later, this Constitution of 1902 is the present Constitution of the Commonwealth.

In spite of the political influence which had been prevalent in the public school system of Virginia in the 1880's, by the early 1900's numerous educational improvements had resulted: the local general public began to favor a public school system; professional teacher training methods were

developed; a Virginia State Education Association was formed; simultaneous examinations for teacher certification throughout the state were standardized; state summer normal schools were organized; teacher scholarships were created, and education conferences were held.

The oft-called "renaissance" in Virginia education occurred in 1905. A New York educator had encouraged various educational conferences to be held in the South in an attempt to improve education in the South which had lagged far behind the rest of the nation. The Virginia Cooperative Education Commission and the leaders of the May Campaign of 1905 (so-called because the intensive campaigning took place in the month of May) demanded improved schools, better school regulations, an increase in the number of secondary schools and institutions of higher learning and a revised curriculum. The State Superintendent of Public Instruction at this time was Dr. Joseph Dupuy Eggleston whose leadership contributed greatly to the success of a movement to modernize and improve the educational standards of the State of Virginia. Vocational training (examples, agricultural, educational, manual training and domestic economy classes) which had long been discussed by certain educators became a reality, specific legislative appropriations for public high schools were made, public school libraries were established, health checkups for abnormalities were instituted in the school program and the number of teacher-training schools was increased.

Such educational progress was observed that, after five years of the new education planning and of the execution of such plans, a spokesman for the Carnegie Foundation remarked that "Probably no educational development in any State of the Union is more remarkable than that which is represented in the Old Commonwealth of Virginia." Practical education as well as theoretical education was offered with opportunities also available to study improved farming methods.

In 1906, Virginia filed suit against West Virginia in the United States Supreme Court concerning a judicial determination of the amount of money which Virginia should rightfully receive from West Virginia as partial assumption of the state debt accumulated while West Virginia was still a part of Virginia. Eight additional separate actions were filed against West Virginia by Virginia which finally resulted in an investigation of the financial status of each area, the debts incurred and the suggestion of a

conference between the two states. West Virginia originally evaded such a conference but, later, appointed a commission to represent the state. More deliberation and delay occurred until 1915 when the indebtedness of the State of West Virginia to the State of Virginia was declared by the United States Supreme Court as \$12,393,292.50. Finally, after continuous postponement and more court judgments, in 1919 a special session of the West Virginia state legislature passed a law which provided for the payment of the sum due Virginia. Over a million dollars was paid during 1919, and, by issuing twenty-year bonds, the balance of the debt with interest was paid by 1939.

In 1908, the first municipality in the United States to adopt the City Manager form of government was Staunton. After this form of government had been successfully employed, many additional cities in Virginia and in the other states proceeded to adopt the City Manager Plan of local government.

On March 4, 1913, Thomas Woodrow Wilson, a native of Staunton, was inaugurated as the twenty-eighth President of the United States. He was the eighth Virginia-born individual to attain this high office, although he had left the state for a college teaching position and later a gubernatorial post. From his experiences as a professor of history and as the governor of New Jersey, he had formulated a personal brand of political philosophy which he entitled "The New Freedom." He believed that government leaders should act through the people as well as for the people. During his first administration, he signed the famous Federal Reserve Bank Act, authored by U. S. Senator Robert Owen, a native Virginian, and Carter Glass, a U. S. Representative at that time from Lynchburg. Although he was re-elected President in 1916 as a peace candidate, Wilson soon had to wage an intensive war against Germany as conditions warranted such action. He stated his idealism in his famous words "to make the World safe for Democracy" and "a War to end all Wars." His famous "Fourteen Points" Speech before Congress concerning the war aims of the Allied Powers was constantly referred to during the Armistice negotiations and is still quoted in international conferences. His personal visit to the peace conference at Versailles Palace near Paris, France—the first personal visit of a President of the United States to such a conference—was history-making in itself. He will always be remembered for his idea of "A League of Nations," the

forerunner of the United Nations, a project for international peace which is believed to have caused or, at least, to have hastened his death due to his strenuous speaking tour on behalf of the League.

In 1914, the General Assembly voted for a state-wide law providing for the prohibition of liquor. This law went into effect on November 1, 1916. At the federal level, the Eighteenth Amendment to the Constitution of the United States which prohibited the "manufacture, sale or transportation of intoxicating liquors" throughout the United States and its territories was submitted to the states by Congress on December 18, 1917. Virginia was the second state to ratify it.

During World War I, the state contributed 91,623 men to the armed forces, many of whom participated in the Somme, St. Mihiel and Meuse-Argonne Forest campaigns. Most of the Virginia troops fought with the 80th Infantry Division of the American Expeditionary Forces. This division was called the Blue Ridge Division because the Blue Ridge Mountains are located in the home states of the men from Virginia, West Virginia and Pennsylvania who made up this division. Noted for their bravery, this division was the only division to enter the front lines three times during the offensive and the only one to advance a maximum distance of twenty-two miles against the enemy between the first offensive and the Armistice. Many members of the 29th Infantry Division were Virginians who served in France, particularly during the Meuse-Argonne Forest campaigns. Thirty-six Virginians received the Distinguished Service Medal of the United States Army, the French Legion of Honor or the Croix de Guerre.

On the home-front, World War I caused a tremendous increase in business and, in some instances, prompted the construction of war camps in various parts of the state. Camp Lee, near Petersburg, was used as an infantry training base for 50,000 soldiers; Camp Stuart at Newport News was used chiefly as an embarkation point and Camp Humphreys, near Alexandria, was used as a training center for engineers. Langley Field, near Hampton, was used as training grounds for pilots; the Hampton Roads area was utilized for construction of numerous United States ships and as naval and military bases.

The present city of Hopewell actually owes its city status and growth to World War I and the construction of a huge munitions plant on Hopewell

Farm by the E. I. DuPont de Nemours Company. As a matter of fact, the manufacture of fertilizer from nitrogen in the air still accounts for the great industrial activity at Hopewell at the present time. During World War I also, the famous Tredegar Iron Works in Richmond manufactured projectiles, explosives, shrapnel shells and other war materials of necessity.

Among prominent Virginians who played a major role during World War I was Admiral David Watson Taylor. Admiral Taylor was chief of the Naval Bureau of Construction and Repair (1914-1922) at Washington. He had responsibility for the design and construction of naval aircraft and he developed a type of flying boat during World War I. His contributions were later acknowledged by the establishment of the David Taylor Model Basin, a naval activity at Carteret, Maryland, near the Virginia border.

Health, too, was a critical problem on the home front during the war. For example, a dreadful influenza epidemic occurred followed by a severe fuel shortage due to a railroad strike. This condition caused many "flu" patients to develop pneumonia and to die. In Richmond alone, approximately eight hundred people succumbed during this epidemic period.

As a reminder of the sacrifices of Virginians during World War I, at William Byrd Park in Richmond, is a 240-foot tower constructed of pink brick. It is called the Carillon Tower and was erected in 1932 as a memorial to the war dead.

In 1918, women received special recognition in the state. For the first time, women were admitted to the College of William and Mary and to the graduate and professional schools of the state university, the University of Virginia. It is interesting to note that, in contrast to the educational status accorded women, the state refused to ratify the proposed Nineteenth Amendment to the United States Constitution. Contrary to this negative attitude expressed in Virginia toward giving women the right to vote, the Constitutional Amendment was officially ratified and adopted nationwide in 1920. One of the first effects of this amendment in Virginia was a legislative enactment requiring all women to pay the poll tax.

Virginia continued to play a key role in international events during this period. For example, in 1926, Navy Lieutenant-Commander Richard Evelyn Byrd, a native of Winchester, made the first polar flight by flying over the North Pole and back in fifteen and a half hours. He then flew over

the Atlantic Ocean the following year with Bert Balcher, Bert Acosta and George Noville. In 1929, he made the first return flight over the South Pole. Rear Admiral Byrd led four expeditions to the Antarctic and, just prior to his death in 1957, he was the leader of another expedition to Antarctica called "Operation Deepfreeze" at which time he was consulted concerning many ideas of importance to the safety and progress of the expedition. During World War II, he did secret work for the United States Government and furnished much valuable information concerning terrain of the land which he had mapped on his third Antarctic expedition. He wrote "Skyward," "Little America," "Discovery," "Exploring with Byrd" and "Alone" describing his various explorations. Richard Evelyn Byrd will always be remembered as one of the greatest explorers in United States history. An eight-foot high bronze statue of the late Admiral Richard E. Byrd was recently erected on the Virginia side of the Potomac River between the Arlington Cemetery and the Memorial Bridge. The statue depicts him in his middle thirties when he was at the height of his exploration career. He is clad in a fur outfit and is mounted on a four foot pedestal with fitting carved maps of the Arctic and Antarctic regions and an eagle as a background symbolizing his achievements.

In 1926, the famous project now known as the Restoration of Williamsburg began. The original purpose of the restoration was to benefit the people of the present in "That the Future May Learn from the Past." Dr. W. A. R. Goodwin, the late Rector of Bruton Parish Church in Williamsburg, was responsible for interesting John D. Rockefeller, Jr. in such a project. To date, not only have 350 buildings been reconstructed, 82 buildings been restored and 619 buildings been torn down, but also many of the early crafts such as wigmaking, millinery-making, silversmithing, printing, shoe-making and repairing, cabinetmaking, blacksmithing and glassmaking have been revived. These craft shops are open to the public. A visit to the Wren Building at the College of William and Mary, the Bruton Parish Church (Episcopal), the Public Gaol, the Magazine, the Raleigh Tavern, the Capitol or the Governor's Palace provides an appreciation of life as it existed in the colonial period.

During the early 1920's there was much discussion within the state concerning the need for government reorganization at the state level. During the governorship of Harry F. Byrd (1926-1930), considerable effort

was made to reorganize the state government with the objective of increasing its efficiency. The Reorganization Act of 1927 provided that only the executive offices of Governor, Lieutenant-Governor and Attorney-General were to be elected by popular vote; that the state legislature was to have the authority to elect the auditor and that the Governor was to appoint other executive officials with confirmation by the General Assembly. The structure and functions of the various state departments were also changed by this act to make each department more effective. Twelve administrative departments were created, and, in most instances, department heads were made appointive positions rather than elective ones. The twelve departments created were: Finance, Taxation, Agriculture and Immigration, Workmen's Compensation, Corporations, Highways, Conservation and Development, Health, Public Welfare, Education, Law, and Labor and Industry.

During this same period, the "Pay-as-You-Go" system for roadbuilding was adopted. This system means that, instead of floating large bond issues to raise revenue for roadbuilding, the state pays for the roads as they are built, with some of the revenue obtained from gasoline taxes and fees from motor vehicle licenses. During the first few years of the system while adequate funds were being accumulated, the state did not have the total mileage of modern roads which would have been built more rapidly through borrowing; however, as the funds increased, the state was able to develop an excellent system of state and local highways. The "Pay-as-You-Go" system has reflected favorably on the state's financial reputation.

Virginia made national headlines in the Presidential election of 1928. For the first time since 1872, the Republican set of electors in Virginia was chosen by a majority of the Virginia voters. Consequently, the Republican Presidential candidate that year, Herbert Hoover, received the twelve electoral votes of Virginia.

Virginia was fortunate in escaping the most severe pangs of the depression years of the 1930's. The great variety of industries and occupations kept the Commonwealth from becoming severely economically stricken as was the case of states having one specialized type of economic activity. Surprisingly enough, some industries such as the tobacco industry and the rayon and cellophane industries expanded considerably. In conjunction with the federal government's construction program during the depression years as

an attempt to create new job opportunities, numerous bridges, public school buildings and other structures—such as the Museum of Fine Arts in Richmond—were built. Economy in government administration was stressed and Governor John G. Pollard (1930-1934) reduced his own salary ten per cent for one year as a part of the economy program. Virginia was one of the three states which was successful in maintaining a balanced budget in the depression years of the 1930's. Although the relief cost in Virginia was below the national average relief, at one point during the depression, over 50,000 families and single individuals had become dependent upon the dole system—especially industrial workers in the cities. Job-finding committees were organized in many sections of the state to stimulate re-employment.

After the national census of 1930 had been taken and the results had been tabulated, the state legislature of Virginia passed an act dividing the Commonwealth into nine Congressional districts instead of its previous ten districts. This decrease took place because of a smaller increase in population in Virginia in proportion to other states of the United States. This act was found to be objectionable by some residents who stated that the new seventh district was disproportionately large. After suit had been filed, the Virginia Court of Appeals declared the act invalid on the grounds that it did not provide for equal representation as required by the United States Constitution. As a result, in the 1932 national election, all the United States Representatives from Virginia were elected at-large by the whole state electorate rather than by particular districts. Subsequently, the legislature redistricted properly, and at the next election Congressmen from Virginia were chosen by, and represented, particular Congressional districts. Like a large majority of the states in the 1932 national election, Virginians gave Franklin D. Roosevelt a victory at the polls with a plurality of 114,343 popular votes.

During Governor Pollard's administration, the General Assembly passed the Optional Forms Act. Under this act, two types of county government were made available for selection according to local preference: the county-manager form, usually preferred by urban and large rural county areas and the county-executive form, generally preferred by small rural areas. As a result of this act, several county administrative offices were merged for more efficient and economical management.

In August 1933, a special session of the Virginia legislature was held to select delegates for a special convention to vote on the repeal of the Eighteenth Amendment to the United States Constitution. Although Governor Pollard at first refused to summon the extra session, he was forced by petition of two-thirds of both houses of the General Assembly to do so. Subsequently, the delegates favored the repeal of the amendment by a vote of 96 to 54. The vote by the people was actually a referendum vote, but ballots for repeal automatically elected a slate of thirty delegates-at-large who were pledged to a repeal vote. Later, at a special convention, the delegates voted to repeal the Eighteenth Amendment by favoring the Twenty-First Amendment. The General Assembly then created its own regulations for the sale of liquor and provided for the establishment of Alcoholic Beverage Control Boards throughout the Commonwealth.

When President Franklin D. Roosevelt appointed Claude A. Swanson of Virginia as the first Secretary of the Navy in his cabinet, ex-Governor Harry F. Byrd was appointed to succeed Swanson as United States Senator. Harry F. Byrd was elected United States Senator at the next national election. Thus, in 1933, Senator Byrd began one of the longest periods of continuous service in the United States Senate.

In 1935, the first national park in Virginia and the second national park east of the Mississippi River was established. It was called the Shenandoah National Park and was dedicated by President Franklin D. Roosevelt. This very scenic park, which now includes the famous Skyline Drive, was made possible by the combined efforts of many people: Governor E. Lee Trinkle who publicly advocated the establishment of parks, numerous citizens who willingly donated property (because Virginia had been informed by the federal government that it would have to furnish the land), the state which also contributed land after it had purchased it or condemned it and the federal government which helped financially with appropriations and with physical labor furnished by the Civilian Conservation Corps. This park has attracted tourists from throughout the nation with its breath-taking mountain scenery and diversity of trees and wild flowers.

Virginia made a very significant contribution to World War II. When the nation began to mobilize for war, Governor James H. Price created the Virginia Defense Council. Dr. Douglas Southall Freeman, a noted author, was appointed chairman of this council, the first in the United States. As in

previous wars, the Hampton Roads area became strategically important; navy activities increased rapidly in this area; various camps including Camp Lee and Langley Field were re-opened; and production, transportation and consumption activities created new records in quantity and speed. Activities at Camp A. P. Hill, Camp Pickett, Newport News, Norfolk, Alexandria, Williamsburg, Quantico and Hampton Roads reflected much of the war effort of Virginians in this conflict. The Tredegar Iron Works in Richmond was consigned again to make munitions for the armed conflict. Richmond along with Madison, Wisconsin, was selected as a test city for a scrap aluminum drive. The test proved most successful, and the scrap aluminum drives were soon extended throughout the nation. Various federal government offices were temporarily moved to Virginia, such as the United States Patent Office which was moved from Washington to Richmond. Since Richmond is located within a one hundred mile radius of the national capital and is geographically and strategically situated from a military viewpoint, it was designated as a "critical area." During the 1940-1945 period, Virginia furnished 137,000 men and 3,757 women to the Army (including the Air Force) and 71,091 men and 2,055 women to the Navy (including the Marines). Civilians in Virginia, as in all other states, contributed much physical, mental and financial effort during the war in their desire to bring peace again to the world.



VIRGINIA STATE CHAMBER OF COMMERCE

Shrine of Memory: Virginia War Memorial

One impact of World War II upon state government was action during Governor Colgate W. Darden's term to modify the poll tax requirement as applied to Virginia members of the armed forces on active duty. A special session of the Virginia legislature in 1944 attempted to exempt those persons from poll tax requirements but the judiciary nullified this measure as contrary to constitutional provision. Subsequently, by referendum, the voters of the state favored the calling of a limited constitutional convention

to accomplish the objective. A condition of the referendum restricted the delegates to this convention to act solely upon the soldier vote and to agree not to consider, adopt or propose any other law, amendment or revision. The constitutional convention approved a measure which became the seventeenth article of the Virginia State Constitution: this new article allowed service men and women on active duty, otherwise eligible to vote, to vote without payment of a poll tax or without fulfillment of the registration requirement.

Since the end of World War II, war memorials have been erected in various communities as an expression of appreciation for war sacrifices. The most famous such memorial constructed through state or local action has been the state memorial erected in Richmond. A million dollar white marble edifice known as the "Shrine of Memory" consists of a structure twenty-two feet high and includes the names, etched on glass panels and marble columns, of approximately 10,340 Virginians who died in combat in World War II or in the Korean conflict. The memorial, located on a four-acre site overlooking the James River near the north end of the Robert E. Lee Bridge, is also a tribute to the 360,000 Virginians who participated in the armed forces during these two conflicts and to the 100,000 Virginia volunteer civilian workers who contributed much in their various types of activities. At the base of the statue to "Memory" is a gas-fed torch, called the "Torch of Liberty," which burns perpetually. Embedded in the floor of the "Shrine of Memory" are memorial coffers which contain authentic, labeled ground and sea battle mementos from battleground areas. The leading sculptor for this unusually beautiful memorial was Leo Friedlander.

The sites of two battles which took place during the War between the States within the geographical area of Virginia have been accorded official national recognition within the past few years. Specifically, the Appomattox Court House National Historical Monument was granted National Historical Park status in 1954. This area of approximately 968 acres includes a reproduction of the Wilmer McLean House in which the Confederate General, Robert E. Lee, surrendered the Confederate Army of Northern Virginia to the Union General, Ulysses S. Grant. The grounds where the two armies opposed each other for the last time are also included in this park. In the same year, the Manassas Battlefield of approximately

1,719 acres was given the status of a National Battlefield Park. This area was the site of the famous Battles of Bull Run or Manassas.

During the 1950 session of the General Assembly, a bill was passed which provided for a state tax reduction of approximately one million dollars whenever the tax revenue exceeded the estimates by certain amounts, the amount depending upon the state budget. This law was later revised to the effect that if the general fund revenue received from income taxes exceeded the estimates by five percent, a tax reduction would automatically result. Since passage of the act, Virginia taxpayers have benefitted considerably through its provisions. On the other hand, several attempts have been made to repeal the general poll tax. The United States Supreme Court has upheld the legality of the poll tax by refusing to review a suit against some local officials who had barred individuals from voting because of non-payment of the poll tax.

At the Democratic National Nominating Convention held in Chicago in 1952, the Virginia delegates under the leadership of Governor John S. Battle refused to accept the "loyalty" pledge adopted by voice vote in the convention. This "loyalty" pledge or "majority rule" pledge required that each delegate agree to "exert every honorable means" to have the names of the Democratic Party's Presidential and Vice-Presidential nominees included on the Democratic ballot of each state. President Harry S. Truman had encouraged federal measures dealing with fair employment practices, the passage of federal non-segregation laws and the enforcement of a strong federal civil rights program. Some of the delegates who knew that many of the Southern states did not approve of the Democratic legislative program believed that the states of Virginia, South Carolina and Louisiana would refuse to accept the "loyalty" pledge because of this program. Consequently, when delegates from these states refused to accept the pledge, they were not initially seated at the convention. Southern delegates, however, protested that state party rules or state laws prohibited them making such a commitment. Governor Battle, the leader of the 28 member delegation from Virginia, stated that a state law assured the inclusion of the names of the Democratic Party nominees on the Virginia Democratic ballot and that they rejected the pledge only as a matter of principle. Ultimately, Virginia delegates as well as those of South Carolina and Louisiana were given seats and full voting rights at the convention.

The Republican nominee for the Presidency in 1952, 1956 and 1960 carried the state, contrary to previous usual voting results in the state. In the 1952 election the Republican candidate, Dwight D. Eisenhower, received 349,037 popular votes from Virginia and the Democratic candidate, Adlai Stevenson, received 268,677 popular votes. Thus, the Republican Party won the twelve electoral votes of the state. In 1956, 386,320 popular votes from Virginia were cast for the Republican electors and 264,110 popular votes for the Democratic electors who represented the same Presidential candidates as in 1952. In the 1960 election the Republican nominee, Richard M. Nixon, won the popular vote of the state over the Democratic nominee, John F. Kennedy. Virginia again cast her twelve electoral votes for the Republican candidate. However, during this period, the Governor, the two United States Senators from Virginia, eight of the ten Virginia members of the United States House of Representatives and a majority of the General Assembly continued to be members of the Democratic Party, illustrating the traditional role of the Democratic Party in the state since the Reconstruction Era.

Public education has received much attention in Virginia, especially since 1950. On several occasions, for example, the General Assembly has approved million dollar appropriations of state funds for school construction projects. The tremendous influx of youth in the public schools during the decade of the 1950's accentuated the need for more teachers as well as classrooms throughout the state. Hence, rising costs of education have become a key matter at each recent session of the General Assembly. During the last few years, however, the question of integration of white and of Negro students in the public schools of the state has been a paramount education issue.

When the United States Supreme Court on May 17, 1954 handed down its decision which in effect outlawed racial segregation in the public schools of the nation, Virginia faced a very serious problem because the State Constitution has required separate public schools for white and for Negro children in the Commonwealth. Governor Thomas B. Stanley soon appointed a commission of thirty-two state legislators, under the chairmanship of State Senator Garland Gray, to advise him concerning a course of action to be taken by the Commonwealth. The commission conducted a study and subsequently transmitted to the Governor its report,

known as the Gray Plan. The plan recommended consideration of an amendment to the constitutional provision requiring separate schools and suggested that local communities be enabled through their school boards to assign students to schools for a variety of reasons other than race. Subsequently, a special session of the General Assembly authorized a referendum election on the calling of a constitutional convention. The referendum question was worded as follows: "Should a Constitutional Convention be called with authority to revise Section 141 of the State Constitution so as to permit the General Assembly to appropriate public funds to further the education of Virginia students in non-sectarian private schools as well as in public schools?" A majority of the voters voted in the affirmative at the referendum election held in January 1956. In March 1956 a Constitutional Convention was held in Richmond and these delegates rewrote Section 141; hence it became permissible under the Constitution of the Commonwealth to use public funds for tuition grants for pupils in private non-sectarian schools. Later, at a special session of the General Assembly in September 1956, a pupil placement program was adopted under which the Governor appointed a pupil placement board whose chief function was to handle all student assignments in the state; under the program, parents of all children entering the public schools were required to fill out assignment applications which, in turn, were ultimately processed through the board.

In 1958, legislation provided for the automatic closing of any school which might be policed by the federal government and permitted the Governor to close any school in a locality in which another school was already being so policed. The admission of any Negro student to a public school for white students required the Governor to close the school and assume full control. Subsequently, federal court orders directed school boards in Arlington, Charlottesville and Norfolk to admit students without regard to race, effective September 1958; following state law, the pupil placement board denied admission to Negro applicants in the localities mentioned previously; the local school boards in these areas and in Warren County initiated action to admit Negro students, pursuant to federal court order. However, the Governor announced the closing of the high school in Warren County, and similar action was taken in Charlottesville and in Norfolk. During the Fall semester of 1958, a total of nine schools (one in Warren County and eight in Norfolk and Charlottesville) were closed to 13,000

students, many of whom transferred elsewhere. When court decisions in January 1959 voided the school closing law, the law cutting off state funds and the law providing tuition grants of public funds for segregated private schooling, the Governor stated that he could take no further action to prevent the opening of public schools on an integrated basis. Some public schools in Arlington, Charlottesville and Norfolk, as well as in Alexandria, began integrated classes in the Spring semester of 1959. Since that time, the number of integrated schools has increased. The implications of the United States Supreme Court decision of May 17, 1954 upon the public school system of Virginia have presented to the Commonwealth one of its most difficult problems of the Twentieth Century.

As the population of Virginia cities and towns has grown during the past two decades, persons have moved to the suburbs and surrounding territory—sometimes at a faster rate than the increase in new population in the urban centers. The 1960 census confirmed such declines from the previous growth of cities in nearly all parts of the nation. Attractions to persons who move from the urban centers include larger amounts of available land, newer homes, shopping centers with comparatively easy parking, and initial lower real estate taxes. After these persons have lived in the suburbs or surrounding territory for a while, various needs such as adequate streets, police protection, schools, sewerage facilities, water and building and zoning codes sometimes develop or become more apparent. Often county governments are not equipped to provide for all of these services; if county governments do establish such services, the initial costs may be very high for the taxpayers.

To counterbalance the move to suburbs and nearby rural areas, urban local units of government seek to annex surrounding land from counties or nearby cities. In Virginia, annexation is determined by a panel of three judges, only one of whom is a resident of the county involved. No referendum is held to ascertain the wishes of the residents of the area under consideration because of the belief that annexation should be based on the need of the majority of the people concerned. While annexation may be an answer to the urban government's need for extending its tax base, county units lose their prime tax property. Over a period of time, the continued growth of the metropolitan area causes persons to locate outside of the revised boundaries and the process of annexation starts over again.

In addition to annexation, another method available whereby an urban unit may extend its boundaries is consolidation of local units. An example is the merger of a city government unit and a county government unit into a revised city government unit. In Virginia, consolidation statutes are relatively flexible: officials of both units negotiate between themselves to reach an agreement on the authority of the new local unit of government, in contrast to annexation where the county government is often forced against its will to give up valuable real estate.

The growth of metropolitan areas has raised a serious challenge to the ability of local units of government to provide adequate government services to their residents at reasonable costs. Unless further understanding is developed among the citizenry involved, the impact of metropolitanism will continue to result in serious inequities among individual local units of government.

S U M M A R Y

By April 1861, the Commonwealth of Virginia had furnished one-third of all the Presidents of the United States, had had numerous other Virginian leaders in high federal positions, had been responsible for the calling of a "Peace Conference" in the nation's capital and had been most reluctant to vote for secession from the Union. However, the inhabitants of Virginia believed in the doctrine of "States' Rights," in non-interference of slavery by the federal government and in not coercing neighboring seceded states back into the Union via invasion. Consequently, Virginia joined the Confederacy, and Richmond soon became the Confederate capital and the State of Virginia a huge battlefield.

The brilliant military tactics of General Robert E. Lee, Thomas Jonathan Jackson and "J.E.B." Stuart will always be worthy of military study. Virginia helped the Confederacy, economically as well as militarily, especially with the food products of the Saltville area and of the Shenandoah Valley and the manufactured arms equipment of the Tredegar Iron Works in Richmond. When West Virginia became an independent state without the consent of Virginia, it reduced the area and population of the Commonwealth considerably. The ending of the War between the States, like that of the American Revolutionary War, took place in Virginia. The

magnificent courage and fervor of the Virginians as members of the Confederacy will always be cherished by posterity. When one is well-informed of the deeds, hardships and activities which occurred during the War between the States in Virginia and in other southern states, one can easily understand the ever-present pride which the Confederate Flag does, and always will, inspire. This era of American history, although one of the darkest periods in our national history when even brother sometimes fought brother on the battlefield, will forever remain one of the most dynamic and heroic periods in human civilization.

After enduring a harsh Reconstruction Program enforced by a radical United States Congress and by "Carpetbagger" and "Scalawag" governments, Virginia officially returned to the Union on January 26, 1870. Then the Commonwealth began settling some of its local problems: the extremely high state debt, the educational program, the joint boundary line between Virginia and West Virginia and the "Readjuster" Movement. The newest county in Virginia—Dickenson County—was created in 1880. By 1900, Virginia ranked seventeenth in United States state population and seemed prepared to meet the challenging events of the Twentieth Century with renewed confidence.

A new state constitution, still in effect today, was "proclaimed" in 1902. It provided for a poll tax and an "understanding clause" provision as a voting requirement; later, the latter was changed to an intelligence test requirement. The unusual political status of a city, completely independent of county jurisdiction, was originated at this time also. Racial segregation in the public schools of Virginia was provided for in the Constitution of 1902.

Other events and activities concerning Virginia and Virginians during the Twentieth Century include the payment to Virginia by West Virginia of the state debt which West Virginia had accumulated while she was part of Virginia, the operation of the first City-Manager form of local government at Staunton, outstanding participation in two World Wars and in the Korean conflict, the "Restoration of Williamsburg" Project, a reorganization of state governmental departments, the comparatively small economic dislocation during the "Great Depression," the establishment of the Shenandoah National Park, the opportunity afforded service men and women on active duty to vote without payment of a poll tax, the constant increase in the growth of industry, the victory for the Virginia delegates at the 1952

Democratic National Nominating Convention, Republican Presidential victories in Virginia in 1928, 1952, 1956 and 1960, developments in education including the problems of school integration and the expansion of school facilities and the continuing growth of metropolitanism.

As our nation's history unfolds, issues of state, national and international scope will continue to face the Commonwealth. The history of Virginia has furnished Virginians with a proud heritage, an appreciation for the noble deeds of the past and an understanding of the courage and wisdom required to solve successfully current and future problems. Virginia—a vital area of the United States—will undoubtedly play a major role in the fulfillment of the destiny of the United States.

5

Economic Life

The Work Force

A variety of geographical resources and of human resources results in diversity in the economic life of the state. The proportion of the population engaged in gainful occupation at the present time is significant. Approximately 38% of the total population in Virginia is included in the work force. The group outside the work force includes individuals who are thirteen years of age or younger, homemakers, students age fourteen and over, the physically and mentally handicapped who are unable to work, and persons who are retired.

Census enumerations since 1890 indicate that total employment in Virginia has expanded continuously. During the seventy year period 1890-1960, the work force increased from approximately 552,000 to approximately 1,473,000. This represents an increase of 176%, or an average annual increase of 13,137 workers.

Three phases in the trend of employment are observable: from 1890 to 1910, 1910 to 1940 and 1940 to 1960. The first phase coincides with the Industrial Revolution in the United States; the increase in employment in Virginia during this time was 44%. In the second phase, from 1910 to 1940, the rate of increase slackened although the total number in the work force grew; the increase amounted to 14% during this period. The third phase of employment began in 1940 as needs of World War II became clear; unprecedented peacetime demands started in 1945 and have continued to the decade of the 1960's; in this phase, for the first time, Virginia outpaced the United States as a whole in growth of employment, with an increase of 63%.

Types of Employment

Government Employment—Government employees make up the largest number of workers in any particular type of occupation in the state. The term "government employees" includes all civilians working directly for federal, state and local governments plus military personnel stationed in Virginia. Nearly one-fourth of the total Virginia employment is found in this group. Government employment is the greatest single source of personal income in the state.

Approximately 65% of the government employment in Virginia, as defined above, is engaged in activities of the federal government. The number of military personnel in the state is slightly more than twice the number of federal civilian employees. Although federal employment is scattered throughout the state—every community has postal employees, for example—there is a concentration of federal employees in two areas of the state, namely, Northern Virginia (Arlington and Fairfax Counties and the cities of Alexandria and Falls Church) and the Hampton Roads area. Within the federal civilian group, approximately 70% are employed by the Department of Defense. Following the Department of Defense, the next largest numbers of federal civilian employees work for the Post Office Department and for the Veterans Administration. In addition to the federal employees working in the state, a substantial number of persons who live in Northern Virginia commute daily to the District of Columbia and nearby Maryland for federal employment.

Approximately 35% of the government employees in Virginia work for the state (11%) and for local (24%) governments. Since more than half of the government employment in the United States is found in state and local governments, the number of such employees in Virginia is relatively smaller. The state and local group in Virginia is nearly equally divided between school and non-school personnel. Although the number of state and local employees in Virginia has grown during the past decade, the percentage of increase has not been as great as that for the United States as a whole.

Employment in Manufacturing—Excluding military personnel from the total government group, employees engaged in manufacturing rank first in number. However, when civilian government and military personnel are combined, government employment surpasses manufacturing employment. Approximately 20% of the total work force is engaged in manufacturing.

During the decade of the 1940's manufacturing in Virginia surpassed agriculture for the first time, and the growth of manufacturing continued progressively through the decade of the 1950's. Manufacturing as a whole is diversified.

Expenditure for new manufacturing plant and equipment exceeded one billion dollars in one recent seven-year period. Additional millions of dollars have been spent recently for expanding existing facilities. Fabricated metals (example, swimming-pool type atomic reactors) and machinery and electrical equipment (examples, motors, calculators) groups of industries have grown substantially within the past few years. The four manufacturing industries having the largest number of employees are textile, chemical and chemical products, food and kindred products, and lumber and wood products. The employees in these four industries constitute nearly 50% of all workers engaged in manufacturing.

Textile employment leads all other manufacturing employment. The textile industry in Virginia includes the spinning and processing of yarn and the weaving and finishing of material. Cotton and rayon broad-woven fabrics are the major ones. Approximately 60% of Virginia's textile employment is found in this category. The cities of Danville, Fieldale and Roanoke are especially noted for their textiles. Knitting mills constitute the second type of textile activity, and approximately two-thirds of employment in the knitting mills is engaged in making full-fashioned and seamless hosiery. Lynchburg is a key center of knitting mills for men's and ladies' hosiery.

The second largest employer of workers engaged in manufacturing in Virginia is the chemical industry. Approximately two-thirds of such chemical employees are found in the synthetic fiber field. In 1917, the first large rayon plant was established. This industry has developed rapidly, and Virginia now plays an important part nationally in this production. Virginia now has approximately 30% of the total employees in the United States engaged in synthetic fibers. There are at present large synthetic fiber plants in Richmond, Martinsville, Roanoke, Waynesboro, Narrows and Front Royal. Virginia has been regarded as the geographical center of this industry in the United States. Another type of chemical production involves industrial inorganic chemicals including alkalies—soda ash, bicarbonate of soda, caustic soda—and chlorine (Saltville and Hopewell), sulfuric acid (Norfolk and Richmond) and ammonia (Hopewell). The manufacturing of

fertilizer is also important in the state because of the agricultural need for it in the South and because Virginia is conveniently located with respect to the raw materials necessary for making fertilizer (namely, potash, nitrogen and phosphate rock). Hopewell and Norfolk are two cities which have large plants for the manufacture of fertilizers. Both Fredericksburg and Richmond have a large cellophane company and certain medicinal drugs such as streptomycin and thiamine hydrochloride are manufactured at Elkton. In addition, dyes, wood turpentine, dry ice and various insecticides are produced in Virginia.

The third largest employer of workers engaged in manufacturing is the food and kindred products industry. This industry may be conveniently divided into two groups based upon the factors which determine their location:

- 1) those food industries whose products originate and are marketed in a population center—for example, bakery products (Richmond, Norfolk and Roanoke), beverages (Norfolk and Richmond), meat products (Richmond and Smithfield), dairy products (Richmond, Roanoke, Alexandria and Fredericksburg) and manufactured ice (Richmond and Alexandria);

- 2) those food industries which find it desirable to locate close to the source of supply—usually a perishable commodity—for example, seafood canneries (Norfolk, Hampton and Reedville), vegetable canneries (Walkerton and Urbanna), poultry dressing plants (Broadway, Harrisonburg and Winchester), fruit processing plants (Berryville, Mount Jackson, Winchester and Front Royal), confectionery plants (Suffolk and Norfolk), meatpacking companies (Suffolk and Smithfield) and frozen foods (seafood—Norfolk; poultry—Broadway; fruits and vegetables—Exmore).

The fourth largest employer of workers engaged in manufacturing is the lumber and lumber products industry. In the latter part of the Nineteenth Century and the early Twentieth Century, this industry had the greatest number of employees in the manufacturing field. Gradually its importance declined until the 1930's when it increased rapidly as the demand for lumber production increased until, at present, it has reached fourth place. Approximately 77% of Virginia's total lumber industry employees is found

in the sawmills and planing mills, especially in mills located in Franklin, Petersburg, Norfolk and Richmond. Whereas the synthetic fibers mentioned previously are manufactured primarily in seven large plants with numerous employees per plant, the lumber industry in Virginia consists of approximately 1700 establishments—only approximately 200 of which employ at least twenty employees. Veneer mills, excelsior mills, mill-work plants, plywood plants and companies which make fruit and vegetable baskets, boxes and crates also furnish diverse types of wood products for the Virginia lumber industry.

The fifth largest employer of workers engaged in manufacturing is the apparel industry. Approximately one-half of all such employees are engaged in making men's and boys' clothing: suits, coats and overcoats are made in large quantities in Richmond, Staunton and Norfolk; shirts, pajamas and underwear at Danville, Radford, Lynchburg and Marion; trousers, overalls and sports jackets at Martinsville, Richmond and Staunton. Women's and misses' dresses are manufactured at Roanoke, maids' and nurses' uniforms and sports jackets at Lynchburg, lingerie at Staunton and Roanoke, gloves at Lynchburg, children's and infants' dresses and play clothes at Newport News and Shenandoah. Supplementary textile products include sheets and pillow cases (Danville), towels (Fieldale), hassocks, canvas awnings and automobile seat covers (Richmond).

The sixth largest employer of workers engaged in manufacturing is the transportation equipment industry. Most of this employment is found in shipbuilding at the Hampton Roads area where aircraft carriers, atomic submarines, ocean liners—such as the "Constitution" and the "United States"—and numerous smaller vessels are constructed. Other employees of this industry work in numerous truck and bus body companies scattered throughout the state, in railroad equipment companies—for example, brake shoes (Roanoke); railroad bearings (Petersburg) and in a wagon company (Lynchburg).

Furniture-making ranks seventh in number of employees engaged in manufacturing. Most of Virginia's furniture workers are engaged in the manufacture of unupholstered wooden house furniture. Such furniture includes bedroom, living room and dining room suites (Bassett, Martinsville, Staunton, Marion, Stanleytown, Roanoke and Pulaski), cedar chests (Alta Vista) and radio and television cabinets (Bristol). Living room

upholstered furniture including chairs, sofa beds, studio couches and furniture frames are manufactured at Salem, Christiansburg, Norfolk, Roanoke and Galax. Chrome dinettes and plastic furniture are manufactured in plants located at Marion. Office equipment including floor cabinets and metal filing cabinets is made at Crozet. There is also an extensive fixture industry—bank, office and store fixtures—plus such items as literary bookstacks, metal partitions, doors and movable partitions primarily at Orange, Norfolk and Richmond.

The eighth largest employer of workers engaged in manufacturing is the tobacco industry. Although the national consumption of tobacco has increased considerably, the rapid mechanization added to the manufacturing process has resulted in a decline in the total number of employees. Although only approximately six workers per 1,000 engaged in manufacturing in the United States are in the tobacco industry, in Virginia approximately 56 workers per 1,000 are so engaged. The chief locations for the tobacco industry are Richmond, Petersburg, Danville and South Boston. These workers are engaged primarily in the manufacture of cigarettes and in tobacco stemming and redrying. Richmond is the largest cigarette manufacturing center in the world. Petersburg has an exceptionally large cigarette manufacturing plant. Cigars, chewing and smoking tobacco and snuff are also manufactured in Richmond. Danville has the largest number of tobacco stemming and redrying workers. Approximately half of the tobacco industry workers are women.

The ninth largest employer of workers engaged in manufacturing is the paper and allied industries. The greatest number of such workers is engaged in the manufacturing of pulp. The largest pulp mills are located at Covington and Franklin. Approximately one-half of the nation's supply of wood pulp is furnished by the South and Virginia ranks fifth among the southern states in its production. The newly developed methods of utilizing southern pine for producing kraft paper and newsprint have caused considerable increase in this type of production. Kraft paper is usually dark brown in color and is a most durable type of wrapping paper. Such paper is manufactured at Covington, Franklin, West Point, Hopewell and Richmond. Other paper products such as gummed and waxed paper (Richmond), varied types of commercial envelopes and church collection envelopes (Richmond), multi-wall paper bags (Richmond, Franklin and Newport

News) and paperboard containers—corrugated shipping cases, cartons, boxes of varied sizes and shapes (Richmond, Lynchburg) are likewise produced in abundance.

Over 9,000 employees are engaged in the printing and publishing industry. Approximately one-half of these employees work in the printing and publishing of newspapers. These newspaper companies are scattered throughout the state. In addition, there are other companies which publish books, engage in commercial printing in general, in lithographing, bookbinding, plate printing, engraving and in photo engraving. These companies also are located in several areas with Richmond, Norfolk and Newport News having the greatest number of employees.

Another industry important to Virginia's economic expansion is the stone, clay and glass production industry. Half of the employees in this industry are engaged in the manufacture of concrete and plaster products. An increase in local construction has resulted in an increase in the production of cinder blocks and other building materials. The following products are included: purchased glass products (example, mirrors)—Galax, Bassett, Richmond, Martinsville; hydraulic cement—Fordwick and Riverton; structural clay (brick and hollow tile)—Roanoke; pottery and china (lusterware)—Abingdon; flower pots and pans—Richmond; asbestos (automatic brake linings)—Winchester; stone products (marble and granite monumental stones)—Burkeville, Richmond, Roanoke and Danville; concrete products—Roanoke and Richmond; gypsum products—Plasterco and Norfolk; lime—Austinville and Kimballton; mineral wool—Riverton; soapstone and stone products—Schuyler; abrasives—Petersburg; and mica—Newport News.

Other manufacturing industries in Virginia include (1) leather and leather products—with tanneries at Luray, Bristol, Pearisburg, Buena Vista and Salem; luggage-making at Petersburg and footwear-making at Lynchburg, Fredericksburg, Farmville and Halifax; (2) primary metals industry—with gray-iron foundries at Newport News, Lynchburg and Radford; (3) fabricated metals industry—with the manufacture of structural metal and structural and ornamental products at Richmond, Norfolk, Bristol and Alexandria; pressure vessels at Newport News; locks at Salem; swimming-pool type atomic reactors at Campbell County (near Lynchburg), and (4) non-electrical machinery industry—with hydraulic turbines, textile wool

cards, pulp and papermaking machinery at Newport News, Crozet, Bristol and Richmond.

Employment in Agriculture—A persistent trend in Virginia's economic picture is the continuous decline in agricultural employment, a condition characteristic of agriculture in the United States in general. Approximately 10% of the total employment is presently found in agricultural pursuits. Although the demand for agricultural commodities has increased, the output per worker in agriculture has increased more rapidly. The greater output has occurred as a result of improved methods of farming, technological advances and larger agricultural investments. This situation has resulted also in a greater variety of crops, improved breeds of livestock, and better control of insects and pests.

In the past twenty years there has been a gradual shift in Virginia's agriculture from the production of crops to the production of livestock and livestock products. As a matter of fact, Virginia is a leader in the South in the relative importance of livestock and livestock products. Poultry and poultry products lead the distribution list, followed by meat animals (cattle and calves, hogs, sheep and lambs) and dairy products. Virginia ranks third in the production of turkeys in the United States and sixth in production of broiler chicks in the United States. Rockingham County is famous for its turkeys and chickens. "Cut-up chicken" meat, as well as broilers and eggs, constitutes important poultry products. Culpeper and Loudoun Counties have the greatest number of milk cows per square mile. Large manufacturing plants in the southwestern part of Virginia produce evaporated and condensed milk. Beef cattle are raised in almost every county in Virginia but the Southwest, the Shenandoah Valley and Northern Virginia are the three chief regions. In addition to the meat itself, by-products such as soap and fodder are manufactured and hides and skins are utilized in the making of miscellaneous articles. Hogs and pigs are found in great numbers in Southampton, Nansemond and Isle of Wight Counties and sheep and lambs in large numbers in Augusta, Russell, Rockingham and Highland Counties.

In field crops, tobacco leads the list. One of the nation's largest tobacco producers, Virginia has four types of tobacco: (1) flue-cured—the most extensive one—grown largely in Pittsylvania, Halifax and Mecklenburg Counties with Danville and South Boston the chief markets; (2) burley

tobacco grown mostly in the southwest area—Washington, Scott and Lee Counties—with Abingdon the leading market; (3) fire-cured tobacco grown in Appomattox, Charlotte and Campbell with Lynchburg and Farmville important markets and (4) sun-cured tobacco grown in central Virginia—Louisa, Caroline and Hanover Counties—with Richmond the largest market in this area.

Virginia ranks first in the amount of peanut yield per acre and third in peanut production in the United States. The peanut acreage is located in southeast Virginia—Southampton, Isle of Wight, Nansemond and Sussex Counties; Suffolk is often referred to as the "Peanut Capital of the World." Corn is grown in practically every county with most acreage in Southampton, Loudoun and Pittsylvania Counties. The growing of wheat, particularly winter wheat, is widespread also, with Augusta, Rockingham and Loudoun Counties having the greatest harvest. Irish potatoes are grown extensively on the Eastern Shore (Accomack and Northampton Counties) and in the Norfolk area. Virginia ranks third in sweet potato production in the United States and Accomack, Northampton and Princess Anne Counties are the chief growers of these potatoes. Soy beans are cultivated in Norfolk, Princess Anne, Accomack, Northumberland and Hanover Counties. Hay is grown in various parts of Virginia and consists of six types: clover and timothy hay, lespedeza hay, alfalfa hay, peanut hay, soybean hay and cowpea hay. Cotton is grown in the southeast, particularly in Southampton, Greenville, Brunswick and Mecklenburg Counties. Virginia leads all the states in the production of orchard grass seed. Some oats, barley and buckwheat are grown but only in small quantities.

Truck farming is extremely important. Lima beans, snap beans, beets, broccoli, cabbage, cucumbers, sweet corn, kale, onions, green peas, green peppers, spinach, strawberries, tomatoes and watermelons are grown extensively. The truck farming region is located primarily in Accomack, Northampton, King and Queen, Nansemond, Princess Anne and Norfolk Counties. Much of the truck farming crop is sent to New York City, Philadelphia, Baltimore, Boston, Washington and Atlanta.

In fruit production, apples are first; in total production, apples follow two field crops, tobacco and peanuts. Virginia ranks fourth in apple production in the United States. The chief apple producing counties are Frederick, Clarke, Augusta and Nelson and the types of apples produced are York

Imperial, Winesap, Stayman, Delicious, Grimes Golden, Albemarle Pippin or Yellow Newton, Ben Davis and Gano, Black Twig, Golden Delicious, Rome Beauty and Jonathan. Peaches are grown in abundance in Nelson, Albemarle, Frederick, Roanoke, Rockingham and Botetourt Counties, making Virginia tenth in peach production in the United States. Pears and grapes are grown on a small scale. In addition to the full-time agricultural employment, there is much seasonal agricultural employment, particularly for fruit and truck farming.

Thus, although agricultural employment has been surpassed by employment in government, in manufacturing occupations and in wholesale and retail trade, the products grown and the livestock raised are numerous and excellent in quality. Thus, Virginia with approximately 135,000 farms, contributes significantly to the agricultural economy of the United States.

In addition to employers engaged in government employment, manufacturing and agriculture, additional groups of employees in Virginia are engaged in a series of diversified economic activities. Among such occupations are those concerned with trade, services, public utilities, construction, finance, mining and forestry and fishing.

Employment in Wholesale and Retail Trade—Employment in wholesale and retail trade has increased in Virginia to such an extent that it ranks third, following government employment and manufacturing employment, in non-agricultural employment. Approximately 22% of the civilian non-agricultural employees are engaged in trade. The shift from an agricultural to an industrial economy has resulted in a greater demand for wholesale and retail goods. During the decade of the 1950's wholesale and retail trade employment increased its relative share of total state employment by approximately one-third. The greatest number of persons in retail trade work in the food trades and in general merchandising.

Employment in Services—Services industries are located throughout the state; approximately 11% of the civilian non-agricultural employees are engaged in such activity. This category includes domestic help and other forms of personalized aid.

Employment in Public Utilities—Employment in public utilities constitutes approximately 9% of the total civilian non-agricultural employment. This occupational group is extremely important because of the key role of

transportation, communication and local utilities in the state. About one-half of these workers are employed in taxicab service, local transit service, telephone and telegraph service, radio broadcasting and television service, electric, gas, water and sanitary service utilities. Half of the workers included in this category consist of railroad and water transportation workers.

Employment in Construction Activities—Approximately 7% of the total civilian non-agricultural employment is concerned with construction. More than three-fourths of all construction during the past decade has been for private use, approximately half of this construction involving private residences. The tremendous increase in the population of Virginia during the past twenty years has caused the rate of private residential building to be higher than that for the entire nation. Privately-owned public utility buildings, public highways and private non-residential buildings rank high in kinds of construction projects undertaken.



VIRGINIA STATE CHAMBER OF COMMERCE

A Modern Manufacturing Plant

Employment in Finance—Finance, including bank, insurance and real estate activity, affects all geographical areas of the state but, in terms of numbers, these activities are primarily located in or near urban centers. Approximately 7% of the civilian non-agricultural employees are so engaged.

Employment in Mining Operations—Approximately 2% of the total civilian non-agricultural employees in Virginia are engaged in mining. More than 80% of Virginia's mining employment is in bituminous coal which is the chief mining product of the nation as a whole. Virginia furnishes approximately 3% of the total annual output of this product in the United States. Such mining is extremely important in Buchanan and Dickenson Counties where more than half of all the civilian employees are miners. Pocahontas, Big Stone Gap, Dante and Tazewell have huge bituminous coal mines. Stone quarrying rates second in mining employment. Crushed stone granite quarries are found in Roanoke, Richmond, Fredericksburg, Red Hill and Leesburg and crushed limestone quarries are found in Kimballton, Riverton, Leesburg, Stephens City and Buchanan. Employment in crude petroleum, natural gas and in metal mining, which accounts for one-third of the nation's total mining employment, is less than 3% of Virginia's total mining employment.

Employment in Forestry and Fisheries—Current employment in forestry and fisheries constitutes slightly less than 1% of the total civilian non-agricultural work force. Commercial fishermen far outnumber the foresters. However, as described previously, the lumber and lumber products industry, the paper and allied products industry and the furniture industry which are based upon the forestry industry have experienced great increases in their employment. Employees engaged in forest products industries now constitute one-fourth of the total employment in manufacturing. Although fishermen outnumber foresters at the present time, the number of fishermen has been decreasing. Nevertheless, the fisheries supply additional employment to processing and wholesale employees. A few localities such as Mathews, Northumberland, Lancaster, Gloucester, York and Middlesex Counties have a comparatively high percentage of their workers engaged in fisheries.

Employment in Travel Trade—The number of employees engaged in travel trade employment is unknown. Two characteristics of this type of employment should be noted: (1) in addition to full-time employees, there is an indeterminate number of part-time employees; and (2) employees engaged in travel trade are, for the most part, seasonal workers. The greatest number of such workers are found in hotels, motels and other tourist lodgings, in restaurants and cafes, in gasoline service stations and in recreational and entertainment activities. Approximately 94% of Virginia's travel trade comes to Virginia via the automobile; out-of-state tourists constitute about 70% of the travel trade in Virginia. It has been estimated that about half of these travelers are on vacations and the other half are mainly on business trips. About half of the vacationers are usually passing through Virginia on the way to or from specific destinations outside the state. The other half usually have selected Virginia as their particular destination to visit relatives or friends, to tour historical and scenic places and to enjoy the recreational attractions found here. The travel trade has increased considerably during the past few years. As a direct result of the increase, the number of hotels, motels and other lodging places in Virginia has likewise rapidly increased. Williamsburg and Virginia Beach illustrate the singular importance of travel trade in causing widespread growth in total employment in a community.

Importance of Transportation

The economic activity of any region depends greatly upon its transportation facilities. Without an efficient transportation system, goods—either raw materials or finished products or farm produce—cannot be moved from one point to another, workers cannot reach their jobs and consumers cannot reach their markets. Virginia is particularly fortunate in having a network of key railroads, excellent highways, deep harbors and modern airports. Trains, buses, trucks, passenger cars, boats, ocean vessels and aircraft—all play a basic role in the economic life of the state.

Numerous railroads provide interstate as well as intrastate service: the Richmond, Fredericksburg and Potomac Railroad connects Washington with Richmond; running over the R.F.&P. tracks and continuing in a north-south direction between Richmond and the North Carolina border are the

Atlantic Coast Line and Seaboard Air Line railroads; the Southern Railway runs diagonally from Washington across Virginia to the North Carolina border near Danville, with another route from West Point through Richmond and Danville; the Atlantic and Danville Railroad operates between Danville and Norfolk; the Chesapeake & Ohio Railroad runs diagonally from Washington to Gordonsville where it connects either in a westerly direction with West Virginia near Covington or in an easterly direction with Newport News; the Norfolk and Western Railroad operates in an east-west direction from Norfolk through Lynchburg and Roanoke to West Virginia; and the Virginian Railway (now a branch of the N. & W.) connects Suffolk with Roanoke and West Virginia. The Pennsylvania Railroad has a branch line crossing the Eastern Shore from Maryland to Cape Charles while the Baltimore & Ohio has a branch through the Shenandoah Valley.

Virginia has a very modern system of primary and secondary roads which permit quick and comfortable motor transportation between urban, suburban and rural points. In addition, Virginia has within its borders several vital links in the national system of interstate and defense highways scheduled for final completion throughout the United States by 1972. In Virginia, the national system involves one link cutting across the western part of the state in a southwesterly direction (Interstate Number 81); a second link cutting across the eastern part of the state in a north-south direction (Number 85 and Number 95) to supercede U. S. Routes 1 and 301; a third link running east-west between Norfolk, Richmond, Staunton and the West Virginia border (Number 64); a fourth link running east-west between northern Virginia near Washington and West Virginia via Strasburg (Number 66) and a fifth link crossing the southwestern part of the state in a north-south direction (Number 77). In terms of total designated mileage of the whole interstate system, Virginia is one of 16 states to have over 1000 miles within its borders. Although most of the interstate system in Virginia will not be completed for a few more years, some portions of the five Virginia links are already open for traffic.

A series of bridges, many toll-free, help the growth of transportation. Construction plans for one of the most difficult water crossings are underway in connection with a \$200,000,000 bridge-tunnel to run 17½ miles across the mouth of the Chesapeake Bay in the Hampton Roads area.

This crossing will run from Chesapeake Beach near Norfolk to Cape Charles on the Eastern Shore. When completed in 1964, the bridge-tunnel crossing will replace ferryboats, the only type of public transportation heretofore available between these points.

Five major commercial air lines serve Virginia: American, Capital, Eastern, National and Piedmont Lines. In addition to the Washington National Airport near Alexandria and the Dulles International Airport at Chantilly, which serve the northern Virginia area, airports contributing to the economic progress of the state are located at Richmond, Bristol, Danville, Lynchburg, Newport News, Norfolk-Portsmouth and Roanoke.

S U M M A R Y

An unusually large number of individuals in the Commonwealth—civilian and military—work in either federal, state or local government employment. In proportion to the total population of a state, the greatest concentration of federal government employment within a single state is found in Virginia.

If one considers civilian employees solely, the largest number of employees in the state is engaged in manufacturing. The number of employees in manufacturing first surpassed the number of employees in agriculture in the 1940's. The manufacturing industries which have the largest number of employees are textile, chemical and chemical products, food and kindred products, and lumber and wood products; these employees constitute nearly 50% of all workers engaged in manufacturing.

Other important manufacturing industries include apparel, transportation equipment, furniture, tobacco, paper and paper products, printing and publishing, stone, clay and glass production, leather and leather products, primary metals, fabricated metals, and non-electrical machinery. As Virginia has changed from a predominantly agricultural state to a predominantly manufacturing state, wholesale and retail trade has increased proportionately.

Although agriculture is no longer the leading occupation, Virginia has a variety of important crops and livestock. Poultry and poultry products, meat animals, dairy products, tobacco, peanuts, corn, winter wheat, sweet

potatoes, hay, cotton, orchard grass seed, truck farming crops and fruit (especially apples, peaches, strawberries and watermelons) are leading farm products.

Significant numbers of workers in Virginia are engaged in wholesale and retail trade, services, public utilities, construction (especially construction of private houses, buildings and public highways), finance, mining (especially bituminous coal and quarry stone), forestry and fisheries, and travel trade.

An efficient transportation system, consisting of a network of key railroads, excellent highways, deep harbors and modern airports plays a basic role in the economic life of the state.

A survey of the major occupations reveals a diversified economic life which provides the citizens of Virginia with broad opportunities for employment.

6

Cultural Life

Culture has been defined as the "training, improvement and refinement of the mind." Since literature, art, sculpture, architecture, music, drama and education are factors which influence, as well as reflect, the culture of a group, a survey of some of the outstanding contributors to these fields will reveal the broad, cultural heritage of the residents of the Commonwealth.

Literature

Even with the hardships and difficulties facing early settlers in Virginia, writings in the form of diaries and journals appeared during the colonial period. George Percy describes his explorations in the New World in "Observations gathered out of a Discourse of the Southern Colonie in Virginia by the English." Captain John Smith, the leader of the early colony, is believed to have used both fact and fiction in his writings. "A True Relation of Virginia," which he wrote in Virginia and sent to England in an attempt to attract more settlers to the colony, describes his explorations up the James River. His "Map of Virginia" was based primarily upon observations which he made while exploring the Chesapeake Bay region. In 1624, he wrote "The General History of Virginia," which is considered his literary masterpiece. Under modern literary standards, he would probably be classed generally as a Romanticist.

William Strachey, who left England as the first secretary of the Virginia Colony at Jamestown and who experienced in his journey separation of his ship from the rest of the small fleet, was shipwrecked on the Islands of Bermuda and eventually arrived at Jamestown. Strachey, who had written some poetry before coming to America, used his shipwrecked experiences described earlier as background for a most descriptive letter concerning a tempest at sea. The original title of Strachey's manuscript was "A True Repertory of the Wrecke, and Redemption of Sir Thomas Gates" (Gates, Governor of the colony, was also a passenger on the same ship with

Strachey). It is believed by some literary critics that William Shakespeare who read this letter selected much of its contents as background material for his play, "The Tempest." Another writer who left a vivid description of his voyage from England to Virginia is Henry Norwood: his work entitled "A Voyage to Virginia" is regarded as one of the best realistic, detailed accounts of early voyages to America.

Only two poets are remembered for their writings in Virginia during the early period: Richard Rich and George Sandys. Rich utilized his journey from England to the New World as the basis for his poem, "A Ballad of Virginia," sometimes entitled "Newes from Virginia." George Sandys, an Oxford gentleman, did not write concerning Virginia but while he was in Jamestown as the treasurer of the colony, he completed a most unusual translation of Ovid's "Metamorphoses." An anonymous elegy found in the "Burwell Papers" is considered one of the finest literary attempts during the colonial period: entitled "Bacon's Epitaph, Made by His Man," it eulogizes the courage and steadfastness of purpose of Nathaniel Bacon who dared to revolt against the autocratic rule of Governor Berkeley and to lead Bacon's Rebellion. Bacon's untimely death from fever caused many Virginia settlers to feel, as the author of this elegy felt, that the loss of the champion of their cause was a severe one.

A different type of writing was furnished by Reverend James Blair, founder of the College of William and Mary at Williamsburg and president of the second oldest educational institution in the United States for over fifty years. Reverend Blair wrote a scholarly article on the organization of churches in Virginia in an account called "Concerning the Church and Religion." Another minister, Reverend Hugh Jones, who held the position of professor of mathematics at the College of William and Mary and who had a strong personal interest in history, wrote "The Present State of Virginia" in 1724. His writing was characterized by seriousness of purpose, accuracy and keen observations. He later authored the first English grammar book written in America.

When Robert Beverley, a native-born Virginian of Middlesex County, was visiting in London, he was asked by a London bookdealer to review a manuscript which had been submitted concerning the American colonies. Beverley disagreed with much of the information included in the manuscript and decided to write a book himself on Virginia. Consequently,

he wrote "The History of Virginia." This book was considered such enjoyable reading that it was later published in French. Robert Beverley is considered the first Virginia formal history author.

The man whose writings are usually classified as the best writings in Virginia before the Revolutionary Period was William Byrd II. He was born on a plantation along the James River and was sent to England for his education at the age of ten. He traveled in Holland, studied law and was admitted to the bar at the age of twenty-one. After returning to Virginia, he was elected to the Virginia Assembly. He built a beautiful home, Westover, became a leading figure in politics and in Virginia society and instituted a personal library in his home which exceeded 3,000 volumes, the largest library in the colonies. He returned to England as the legal representative of the Virginia Assembly where he enjoyed the companionship of the socially elite in England. When his father died, he returned to Virginia and inherited 25,000 acres, political supremacy and a high place in social circles. Byrd's writings did not appear publicly until more than two hundred years after his death. Three papers are believed to be his best literary achievements: "The History of the Dividing Line" (concerning the boundary line established between Virginia and North Carolina), "A Progress to the Mines" (concerning a journey to some iron mines) and "A Journey to the Land of Eden" (concerning a journey to the Dismal Swamp area). These chronicles were combined and included in the "Westover Manuscripts." Notes from Byrd's personal diary, which was kept in code and later translated by Mrs. Marion Tingle, have been published and reveal many human-interest incidents in his eventful life.

Another colonial Virginia historian is Reverend William Stith. He used colonial records, personal papers of his uncle, Sir John Randolph, London Company official records and material available in the Byrd Library to write a most comprehensive history of Virginia entitled "The History of Virginia from the First Settlement to the Dissolution of the London Company." Although it has been criticized for its extreme length and detailedness, this history is a scholarly, authoritative source still used by researchers for knowledge of this period of history.

As the colonists in America were beginning to rebel against the mother country, were gradually learning the feeling of freedom and democracy and were becoming more settled in their mode of living, their interests changed

from problems of existence to serious thoughts concerning government, rights of individuals and political theories. The changing thoughts of the colonists were reflected in the type of writings which began to appear prior to the Revolutionary War.

George Washington, who is usually remembered foremost as the first President of the United States and as the great military leader of the Revolutionary War, must not be overlooked in the literary field. Washington left numerous addresses, official documents, orders and letters of various types. However, one of his finest literary works is a personal diary kept by him, at the age of sixteen, while on a surveying trip in the Shenandoah Valley of Virginia. It has become famous for its human quality and is simply named, "Journey over the Mountains, 1748." Washington's acceptance as Commander-in-chief of the United States Army, his "Farewell Speech" to the soldiers at the end of the war, his acceptance of the Presidency and his "Farewell Address"—all reveal the literary qualities which he possessed.

Patrick Henry of Hanover County spoke in dramatic fashion about ideas and ideals which abounded in the minds of many other Americans. Henry's arguments in the "Parsons' Case," his authorship of the Virginia Resolutions prefaced by his famous "Caesar-Brutus" Speech, his pleading address at the Continental Congress for the arming of Virginia and his famous "Give me Liberty or Death" Speech—all these words, written or spoken, are recorded for posterity in the literature of the times.

Thomas Jefferson, the "Monticello Wizard" of multi-talents, made considerable contributions to the historical, social and educational fields. His "A Summary View of the Rights of British America," although considered radical in part, was a pamphlet which brought widespread attention to the important issues of allegiance and natural rights. Jefferson's language predominates in the Declaration of Independence, and, as some authors of history and of literature have asserted, Jefferson's fame would have been international from this one document alone even if he had died at the conclusion of this task. Jefferson rated his "Act for Religious Freedom in Virginia" as one of the three greatest personal achievements of his lifetime. After Jefferson retired to his home at Monticello upon the completion of his Governorship, he wrote his famous "Notes on Virginia."

George Mason, a native of Fairfax County, used a literary style that is described as frank often to the point of bluntness, clear, democratic and unassuming yet distinguished. An illustration of this type of writing is a group of resolutions called the "Fairfax Resolves"—so-called because they were presented at a meeting in Fairfax County. George Mason was selected later at the Virginia State Constitutional Convention at Williamsburg to pen a declaration of aims for a State constitution. The Virginia Bill of Rights which he proceeded to describe consists of the fundamental rights of man which he believed must be guaranteed if happiness and peace are to be attained. These ideas were considered so necessary to mankind that eventually they were drawn upon for the Bill of Rights in the United States Constitution and Bills of Rights in various other State constitutions. Thus, the influence of George Mason of Gunston Hall will be forever enshrined in the literary field as well as in the political field.

Richard Henry Lee of Westmoreland County is included in a survey of literary contributors because of his carefully worded public addresses, his well-written "Leedstown Resolutions" and his introduction of the famous resolution "that these united Colonies are, and of right ought to be, free and independent States ..." at the Philadelphia convention.

Excellent information about life on a Southern plantation is found in "The Journal of Philip Vickers Fithian." This manuscript was written in the form of a one-year diary and includes a description of the life of Philip Fithian as a tutor to the children of Robert Carter at Nomini Hall, Westmoreland County. His various letters and a second diary describing a mission tour in Virginia taken after he had become a Presbyterian minister also make enjoyable reading. His untimely death at the age of twenty-eight while he was working as a chaplain in a Revolutionary Army camp ended a literary career which had begun most successfully.

Besides his political career, James Madison developed persuasive writing techniques as illustrated in his contributions to "The Federalist" papers. He wrote twenty articles in an effort to encourage ratification of the United States Constitution. "The Federalist" remains the greatest single written influence which persuaded Americans who were doubtful about the Constitution to decide finally in favor of it. Another example of his written powers of persuasion is "A Memorial and Remonstrance to the Virginia General Assembly" wherein he successfully defeated a proposal to provide

state support for the teaching of religion in Virginia. He was an ardent believer in the separation of church and state. The voluminous, lucid notes which Madison recorded during the Philadelphia Constitutional Convention are still the sole source of detailed, accurate information about this historical meeting.

St. George Tucker, a student and later a law professor at William and Mary College and a Virginia judge, wrote two lyrical poems, "Resignation" and "Days of My Youth," in addition to an annotated edition of Blackstone's "Commentaries" consisting of five volumes. Principles of government and of the Federal Constitution included in the appendix of these works are regarded as legally significant. Tucker showed his versatility by writing drama and political satires as well as poetry. He is probably remembered best in literary circles for "A Dissertation on Slavery: With a Proposal For the Gradual Abolition of It in the State of Virginia."

John Taylor, a statesman, who served in the House of Delegates and in the United States Senate, wrote many economic and political treatises. His most widely-read work was "An Inquiry into the Principles and Policy of the Government of the United States." His strong advocacy of Jefferson's agrarian program gained him a reading audience of farmers as well as statesmen.

John Marshall, a famous Virginian in the federal judiciary, published in 1804-1807 a five-volume scholarly biography of George Washington: "The Life of George Washington."

Mason Locke Weems, often called "Parson" Weems, was a native of Maryland who married a Virginian and spent much of his life in Virginia. In 1800, he published "A History of the Life and Death, Virtues and Exploits of General George Washington, With Curious Anecdotes Equally Honorable to Himself and Exemplary to His Young Countrymen." He combined fact and fiction at his own discretion and had a highly imaginative mind. He is believed to have introduced the method of anecdote writing; the cherry tree episode and the throwing of the Spanish dollar across the Rappahannock were included in his biography of Washington. He later wrote biographies of Francis Marion, Benjamin Franklin and William Penn. Weem's biographies are enjoyable reading rather than accurate accounts of the lives of these individuals.

Henry Lee, father of Robert E. Lee and widely known as "Light Horse Harry" Lee, was selected as the individual to deliver the funeral oration of George Washington. His "Tribute to Washington" is a literary masterpiece which included the oft-quoted lines, in referring to Washington, as "first in war, first in peace and first in the hearts of his countrymen." Later, during his imprisonment for an unpaid debt, he wrote "Memoirs of the War in the Southern Department."

James McClurg, a delegate from Virginia to the Philadelphia Constitutional Convention, enjoyed writing light verse. "The Belles of Williamsburg" illustrates his type of poetry.

Although William Wirt is usually associated with law, his name is also associated with literature. His best known work is "The Letters of a British Spy" in which he included the oratorical ability of the blind Presbyterian evangelist, James Waddell. Wirt published two series of essays, called "The Rainbow" and "The Old Bachelor." He also wrote a biography, titled "Sketches of the Life and Character of Patrick Henry," which has been both favorably and unfavorably criticized.

An individual whose original remarks, both written and oral, have been classified as literarily significant is the famous political leader, John Randolph of Roanoke. He is believed to have symbolized the turning-point of the minds of Virginians from democratic and international viewpoints to aristocratic and states rights' beliefs. His stepfather was St. George Tucker who influenced him in his youth to become intellectually acquainted through reading with some of the great writers of the world: Shakespeare, Voltaire, Pope and Goldsmith. In the literary field, he became noted for his clever, though often sarcastic, epigrams, particularly those referring to political leaders of the times. Although he himself did not publish any material, his remarks have been recorded and were later printed in a two-volume biography, entitled "John Randolph of Roanoke 1773-1833" by William Cabell Bruce.

Nathaniel Beverly Tucker was the half-brother of John Randolph of Roanoke and the son of St. George Tucker. Born in Chesterfield County, he became a lawyer, a judge and a professor of law at William and Mary College. Although he was never able to attain economically and socially this high planter type of social status, he taught the necessity of an

aristocracy. He expounded the doctrine of secession, defended slavery in spite of his father's energetic campaign against slavery and disliked practically everything outside of Virginia. In 1836, he wrote "The Partisan Leader" under the assumed name of Edward William Sidney. Since he strongly disliked Martin Van Buren, he wrote this book in direct opposition to Van Buren. He placed the time of the story as 1856 and then proceeded to describe the happenings of a "dictatorship" which had been established by Van Buren and the eventual secession of the Southern states from the Union with a civil war as the result. Peculiarly enough, this book was reprinted in 1861 as a propaganda technique by both the North and the South: the North used it as an illustration that the theory of secession had been planned and discussed for years in the South and the South used it as an illustration that the theory of secession had been justified and accepted for years. Two major literary works of Tucker are "A Discourse on the Importance of the Study of Political Science" and "The Principles of Pleading."

Francis Walker Gilmer, a native of Albemarle County and a brilliant student at William and Mary where he prepared himself for a law career, wrote an anonymous volume entitled "Sketches of American Orators." His "Sketches, Essays and Translations" were published posthumously.

William Alexander Caruthers was a medical doctor who enjoyed writing. His most well-known book is "The Knights of the Horse-Shoe; a Traditional Tale of the Cocked Hat Gentry in the Old Dominion." He also wrote "The Kentuckian in New-York, or the Adventures of Three Southerners," "The Cavaliers of Virginia, or the Recluse of Jamestown" and "An Historical Romance of the Old Dominion."

The greatest literary genius of Virginia is generally considered to be Edgar Allan Poe. Although born in Boston, Poe was adopted just prior to his third birthday by the John Allan family of Richmond. He is said to have once remarked to a friend: "I am a Virginian. At least I call myself one." His early years were spent in Richmond, and his early education was acquired in Richmond. Upon the death of his stepmother, his stepfather arranged to get him appointed to West Point. He had published two sets of poems before he was twenty: "Tamerlane and Other Poems" and "Al Aaraaf, Tamerlane, and Minor Poems." After he had been dismissed from West Point one year later, he decided to dedicate his life to writing. His third volume of poetry entitled "Poems" was published by the age of twenty-two.

Poe spent the rest of his life combatting mental sickness, poverty and loneliness. At the age of twenty-four, he began writing prose work. He created the modern short story, the detective story and wrote critical essays for the Southern Literary Messenger which thrived through his writings. He became editor of this publication in 1835. Other works written by Poe include "The Narrative of Arthur Gordon Pym," "Tales of the Grotesque and Arabesque," "The Murders in the Rue Morgue and The Man That Was Used Up," "Tales," "The Raven and Other Poems" and "Eureka: A Prose Poem." He died at the age of forty, the greatest literary purist the country had yet produced.

Another writer who contributed much to the Southern Literary Messenger was Philip Pendleton Cooke of Martinsburg, Virginia (now West Virginia). Although a lawyer by career, he spent much of his time writing. His best-liked poem is "Florence Vane," a memorial lyric. He wrote several poems and prose during his comparatively short life of thirty-three years.

A survey of outstanding Virginia authors of the Mid-Nineteenth Century Period would not be complete without mentioning the name of Matthew Fontaine Maury who is not only recognized for his broad knowledge of science and his unique ability of mapping winds and ocean currents but also for his numerous articles on scientific information. His "Physical Geography of the Sea" (1855) is the first textbook written on modern oceanography and two other books, a "Manual of Geography" and "Physical Geography," were well received by the public.

Robert E. Lee became famous in a literary sense for his sincere, humble, cleverly worded letters, particularly those concerning his declining the command of the Federal army, his acceptance of the command of the Virginia forces, his farewell to his Confederate colleagues at the end of the War between the States and his acceptance of the Presidency of Washington College after that war.

More books have been written about the period of the War between the States than about any other similar period in United States history. One writer who kept a detailed daily account of personal happenings from May 1861 to May 1865 was Judith W. McGuire of Richmond. Her "Diary of a Southern Refugee, During the War, by a Lady of Virginia" was written originally for the benefit of younger members of the family who at that time

were not old enough to understand what was happening but would presumably appreciate a first-hand report when they were older. Mrs. McGuire's husband was a chaplain in the Officers' Hospital in Richmond, and she served as a nurse in Richmond after fleeing from their home in Alexandria. She later authored a brief biography of Lee, entitled "General Robert E. Lee, the Christian Soldier."

Individuals today are still writing biographies about military leaders who participated in the War between the States. The first important biography of "Stonewall" Jackson, however, was written by an army chaplain, Robert Lewis Dabney. Although he had written several articles on theology and religion, his most remembered work is "Life and Campaigns of Lieutenant-General Thomas J. Jackson." Since Dabney served as a Major on Jackson's staff, he had access to first-hand information and personal observations of Jackson and proceeded to utilize such information advantageously.

John Reuben Thompson, who was editor of the Southern Literary Messenger from 1847 until 1860, was an author and a poet. He wrote a description of his travels in Europe entitled "Across the Atlantic," but his literary reputation was based upon his pro-Confederate articles and his war poems.

George William Bagby was an essayist and humorist of Buckingham County. He succeeded Thompson as editor of the Southern Literary Messenger. Although educated as a doctor, he preferred writing for a career; six years after his graduation, he pursued his literary interest. He contributed several articles to leading magazines of the times: Harper's, Appleton's, Lippincott's, and Putnam's. His sketches of everyday living are characterized by his human interest touch and his unique technique of realism at that time. His lofty idealism was supplemented by the ability to admit weaknesses as well as strength of whatever or whomever he was discussing. The work which is usually associated with his name is "The Old Virginia Gentleman," a series of talks which he delivered to raise money for historical societies of the state. He was an ardent devotee of the Commonwealth and his writings exemplify this affectionate feeling.

James Barron Hope, a native of Norfolk, is another poet who also contributed newspaper articles. He published "Leoni de Monote and Other Poems," "A Collection of Poems" and "An Elegaic Ode," but his most

famous poem was created in 1882 when he wrote "Arms and the Man: A Metrical Address" upon the invitation of Congress in honor of the 100th anniversary of the surrender of Cornwallis at Yorktown. He also wrote a novel, "Under the Empire," and numerous stories for children.

An author who was as strongly a romanticist as George Bagby was a realist was John Esten Cooke. He was a native of Winchester and a brother of Philip P. Cooke. He exemplifies the many Virginians who—even after the Confederacy had ended, the plantation system had been transplanted by the merchant class system and the States' Rights theory had dissolved into a type of nationalism—still clung to the idea of rebuilding or establishing another similar social system in the late 1880's. Cooke used his literary talents to glorify the plantation type of living and the heroic, military deeds of the war itself. He is sometimes regarded as an author who looked "backward" rather than at the present or toward the future. By the age of twenty-four, Cooke had completed and had published a two-volume novel, "The Virginia Comedians," a historical romance, "Leather Stocking and Silk" and another historical, romantic novel, "The Youth of Jefferson." He also contributed several newspaper and periodical articles. His biography, "Life of Stonewall Jackson," was later increased in scope and published under the new title, "Surry of Eagle's-Nest." He wrote novels with extreme rapidity and, consequently, he did not take time for literary refinement as many authors do. His other written works include "Virginia: A History of the People," "Stories of the Old Dominion," "Mohun" and "The Virginia Bohemians." However, he is usually considered the outstanding historical novelist and biographer of the period directly following the War between the States.

Moncure Daniel Conway, a native of Stafford County, may be classified as a writer for the minority. He used forceful language to arouse interest in reforms in which only a minority of the Virginians believed at the time. He wrote a pamphlet in 1850 entitled "Free Schools in Virginia" in which he voiced a strong appeal for public education. He became a minister and used the pulpit as a place to advocate anti-slavery movements to such an extent that he was dismissed from his position as pastor of the Unitarian Church in Washington. He wrote many short articles in pamphlet form about anti-slaveryism. In 1861, he published a volume of similar information entitled, "The Rejected Stone, by a Native of Virginia." He spent the rest of his life

writing more than seventy books and traveling in Europe where he made his home in England. Among his best-known books are "Life of Thomas Paine," "Omitted Chapters of History: Disclosed in the Life and Papers of Edmund Randolph," "George Washington and Mount Vernon" and "Barons of the Potomac and the Rappahannock."

Father Abram Joseph Ryan of Norfolk is considered the greatest Virginia poet of the period immediately following the War between the States. He is often referred to as the "Laureate of the South." Using his pen name, "Moina," he specialized in war lyrics which were soon memorized by Southerners in general. His two most popular poems were "The Conquered Banner" and "Sword of Robert E. Lee."

Virginius Dabney, a native of Gloucester County, was an ex-lawyer who taught and wrote. His most famous novel was "The Story of Don Miff" which described the life of the plantation owners prior to the War between the States. His last novel before his death was "Gold That Did Not Glitter."

Father John Banister Tabb was a native of Amelia County who became a personal friend of the poet, Sidney Lanier. His "Poems," "Lyrics," "Child Verse" and "Later Lyrics" are still popular reading for poetry-lovers.

Christopher P. Cranch should be mentioned for his translation of Virgil's "Aeneid" into English in 1875. Like George Sandys who translated Ovid's "Metamorphoses," Cranch's translation promoted better understanding of the "Aeneid" on the part of Americans.

Thomas Nelson Page, a native of Hanover County, became famous from a literary viewpoint when he published in 1887 six stories in a book called "In Ole Virginia." The first story is called "Marse Chan," and is written in Negro dialect. Page, like John Cooke, wrote pleasingly, though not entirely accurately, about conditions in the South after the War between the States. His writings served as a tonic to the depressed and hard-struggling Virginians who were striving to rebuild their state to its former prosperous status. Page also wrote "Two Little Confederates" for juvenile reading and non-fiction articles as well as fiction ones. Some of the non-fiction ones include "The Old Dominion: Her Making and Her Manners," "The Old South" and "Robert E. Lee: Man and Soldier."

Mary Johnston, born at Buchanan, is sometimes classified as a transitional writer as she wrote at the end of the Nineteenth Century and also at the beginning of the Twentieth Century. She is considered a writer of historical realism although originally she began writing as a romanticist. Her writings included "To Have and To Hold," "Prisoner of Hope," "Cease Firing," "The Long Roll," "The Slave Ship," "The Great Valley," "Hagar," "Silver Cross," "Croatan," "Michael Forth" and "The Exile." She lived near Warm Springs when she wrote the last six books, and she utilized the style of mysticism in these works. Her style was a great contrast to the earlier hero-worshipping and glorification of ante-bellum days in Virginia.

John Fox, Jr. of Big Stone Gap used the Cumberland Mountain residents for the characters of his novel, "The Trail of the Lonesome Pine." A visitor to Bound Gap may view the countryside described in this book and still see the spot where the evergreen tree, reputed to be the original Lonesome Pine, stood. The activities of the mountain folk themselves and his own mining experiences in West Virginia mines furnished John Fox, Jr., with most of his plot sequences. His other two most well-known novels are "The Kentuckians" and "The Little Shepherd of Kingdom Come."

Virginia Hawes Terhune, a native of Dennisville, Amelia County, and mother of Albert Payson Terhune, used the nom-de-plume of "Marian Harland." She wrote newspaper articles about household activities and travel books, fiction books and a famous cookbook. Her last book was "The Carringtons of High Hill."

William Cabell Bruce, a native of Charlotte County, was a distinguished author who was editor of the "University of Virginia Magazine" and who won the Pulitzer Prize for biography in 1918. His prize-winning biography was "Benjamin Franklin, Self-Revealed."

Ellen Glasgow, a native of Richmond, was one of the most distinguished modern American novelists. She wrote her first novel at the age of eighteen and chose this type of work for her career. In an era of sentimental and romantic writing, she dared to inject severe realism. She has sometimes been characterized as a romantic realist having no hesitation in frankly portraying weaknesses as well as the strength of her beloved Virginia. Her novels depicted scenes of the South and featured a broad background, rather than a comparatively small segment of people or a few isolated places. In

her novels, Miss Glasgow presents a social history of Virginia from about 1851 to 1945. Her writings include "The Voice of the People," "The Battle-Ground," "The Deliverance," "The Romance of a Plain Man," "The Miller of Old Church," "Virginia," "Life of Gabriella," "Barren Ground," "The Romantic Comedians," "They Stooped to Folly," "The Sheltered Life," "Vein of Iron" and "In This Our Life." She published her first two volumes anonymously: "The Descendant" and "Phases of an Inferior Planet." Her last novel, "In This Our Life," won the Pulitzer Prize in 1942.

Another native of Richmond, James Branch Cabell, was the author of thirty books classified as satirical fiction and essays. He had a tremendous imagination which, coupled with his constant use of symbolism and ridicule, resulted in a most unusual style of writing: literature of disillusionment. In eighteen volumes he created an imaginary land of Poictesme and traced the "Biography of Don Manuel." After Cabell finished this lengthy biography, he omitted the name, James, from his name and simply used the name, Branch Cabell. An autobiography, "These Restless Heads," was signed in this manner. Later he wrote autobiographical essays entitled "Quiet, Please" and once more began to use his full name, James Branch Cabell.



VIRGINIA STATE CHAMBER OF COMMERCE

White House of the Confederacy

Douglas Southall Freeman, a native of Lynchburg, is considered the greatest Virginian biographer. He was editor of the Richmond "News-Leader" from 1915 to 1949. In 1935, Dr. Freeman won the Pulitzer Prize for his four-volume biography, "R. E. Lee." He also wrote a supplement of three volumes, entitled "Lee's Lieutenants," which was exceptionally well received. He wrote "The South to Posterity" and was in the process of completing the sixth volume of his biography of "George Washington" at the time of his death in 1953. In this same year another Virginian, David J. Mays, won the Pulitzer Prize for the biography, "Edmund Pendleton, 1721-1803."



RICHMOND CHAMBER OF COMMERCE

***Virginia State Library Building
(Including Supreme Court of Appeals)***

Emily Clark, a native of Richmond, founded and edited a literary, monthly magazine entitled "Reviewer." Her most well-known work is "Innocence Abroad," written in 1931. Craddock Edmunds, a native of Halifax, specialized in poetry with such titles as "Ulysses and Other Poems," "Mass," "Geese Are Swan," "Poems," "The Renaissance" and "Five Men."

Virginius Dabney, grandson of the earlier author, Virginius Dabney, was born at Lexington. He is known for outstanding editorial writing for the Richmond "Times-Dispatch" and was awarded the 1948 Pulitzer Prize for this field of literature. In addition to his editorials, he also wrote "Liberalism in the South" and "Below the Potomac."

Julian R. Meade, a native of Danville, became a literary figure through publication of his book entitled, "I Live in Virginia." Since his style was characterized by romanticism combined with realism, this book caused

much controversy among its local readers. Having horticulture as an avocation, Meade wrote a witty yet sarcastic book on gardening called "Adam's Profession and Its Conquest by Eve" and a novel on gardening called "Bouquets and Bitters."

Clifford Dowdey, a native of Richmond, started his literary career as an editorial writer in New York City. One of his first best sellers was "Bugles Blow No More" which resulted in his being awarded a Guggenheim Fellowship. As he traveled throughout the United States, he wrote "Gamble's Hundred," "Sing for a Penny," "Tidewater," "Where My Love Sleeps," "Experiment in Rebellion" and "Weep for My Brother." He also wrote a book, "The Land They Fought For: The Story of the South as the Confederacy, 1831-1865."

It is difficult to select the outstanding writers of a contemporary period because of the effect of the passage of time, the varied reaction of the reading public, and the detailed factors included in a keen analysis of types of literature. Numerous current Virginians have been accepted by the reading public with some of the best known being Dr. Thomas Jefferson Wertenbaker, Dr. Robert Douthat Meade, Agnes Rothery, Arthur Kyle Davis, Jr., John Wayland, Thomas T. Waterman, Mary Thurman Pyle, Murrell Edmunds, John H. Gwathmey, Leigh Hanes, M. Clifford Harrison, Helen Jones Campbell, Robert Selph Henry, Colonel William A. Couper and Dr. Charles Turner.

The "Commonwealth" Magazine, published monthly by the Virginia State Chamber of Commerce, the "Virginia and the Virginia County" Magazine, published monthly by the League of Virginia Counties and the "Virginia Cavalcade" Magazine, published quarterly by the Virginia State Library furnish excellent articles on domestic problems and progress in the Commonwealth.

The Virginia State Library located in Richmond was founded for the free use of the residents of Virginia as a general library with primary emphasis upon reference service. The library houses an extensive collection of books, maps, public documents, private papers and manuscripts in a variety of subject matter areas. The State Library also provides an interlibrary loan plan and includes Administration, Publication, General Library, Archives, Extension and Historical Divisions. The present library structure was

dedicated in 1941 and cost one and one-half million dollars. It includes a photographic laboratory, a work facility for restoring rare books and worn manuscripts, a facility for cleaning and fumigating reading materials, individual study nooks and rooms, an attractive entrance hall with a mural and several display cases as well as the typical reading rooms, offices, and book stacks. The Virginia State Library is well-equipped staff-wise and facility-wise for rendering unusual cultural services for the Commonwealth.

Art and Sculpture

Art—The early colonists found little time for engaging in the arts. Nevertheless, a beginning in art was made. For example, John White (sometimes referred to as Johannes Wyth), the grandfather of Virginia Dare, made water color sketches portraying the life of the native Indians in the area.

Various handicrafts were pursued from time to time. When Sir Christopher Newport came to Virginia, he included in his group some Polish and Dutch glassmakers. When the terrible winter of 1610 caused the death of a majority of the colonists at Jamestown, glassmaking came temporarily to an end. Another early attempt was the making of glass beads as a bartering item for the Indians, but the massacre of 1622 ended these ventures. Other handicrafts generally introduced in the colony included weaving, pottery-making, wig-making, tanning, pewter making and cobbling. Williamsburg eventually became the center of such handicrafts.

In the Eighteenth Century, numerous European artists visited America. As they toured from one colony to another, they often made prolonged visits in communities where their artistic talents were appreciated. Not only did they sometimes sell their personal paintings, but they were often hired to paint important personages in such communities and members of individual families. In 1734, Charles Bridges, an English artist, arrived in Williamsburg: his reputation for portrait painting spread rapidly after he had painted portraits of the children of William Byrd II. He also painted a picture of Reverend James Blair, the first President of the College of William and Mary.

John Wollaston, Jr., another British artist, came to Williamsburg and earned the title, "The Almond-Eyed Artist," because he painted the eyes of his

subjects with a peculiar slant toward the nose. Portraits of Betty Washington Lewis, sister of George Washington, and her husband, Colonel Fielding Lewis, and of Lawrence Washington, half-brother of George Washington were drawn by Wollaston.

In 1785, Jean Antoine Houdon, a distinguished French sculptor, arrived at Mount Vernon to fulfill a commission of the Virginia State Legislature to make a statue of George Washington. After a year of personal observation of Washington at Mount Vernon and an analysis of Washington's facial characteristics, he created a life mask of Washington's face and made specific measurements of his body. Washington was 53 years old at this time and was six feet, two inches in height. Houdon then returned to France and proceeded to carve a Carrara marble statue of his subject. In 1796, the "Figure of George Washington" was placed beneath the dome of the rotunda of the State Capitol. This statue portrays Washington dressed in military uniform with small battle weapons and a plowshare located at his feet and with his left arm on a fasces (a bundle of rods enclosing an ax to symbolize power or authority). This particular pose is believed to have been selected by Houdon after he had observed Washington in a bargaining bout for a yoke of oxen. When Washington heard what he considered an outrageous price requested for the oxen, he exclaimed loudly his opinion of this proposal with his arm outstretched on a fence post. Houdon is said to have witnessed this incident and to have tried immediately to capture this pose of Washington's facial characteristics for his statue. A statue of LaFayette sculptured by Houdon is also included in one of the niches in the encircling wall of the rotunda section and a bust of Washington by Houdon is also located at Mount Vernon.

After Washington had become a member of the Masonic Lodge in Alexandria, the lodge members asked William Williams, a New Yorker, to paint Washington "as he is." The pastel portrait which he painted caused much controversy: some individuals considered it cruel and unartistic, others considered it realistic and the only true likeness of Washington. Williams had even included the scars on Washington's face which were remnants of a scarlet fever siege which Washington had endured. This portrait is in the Masonic Museum in the Masonic Temple Lodge in Alexandria. Williams also made a portrait of "Light Horse Harry" Lee, but this one did not cause controversy as did the one of Washington.

After the Revolutionary War had ended in America, the artists of Virginia and the other ex-colonies of England were influenced by classicism in art in Europe. Many of America's foremost artists of this time traveled to Europe to study this new art movement and were taught by Benjamin West who had set up a school in London. One of his best known students was Charles Willson Peale, who painted a full-length portrait of William Pitt. Peale came to Virginia and soon became well known for his individual and group portraits, silhouettes and miniatures of outstanding Virginians. His portraits of William Henry Harrison and of Lafayette are considered artistic gems. Peale's most famous portrait is his painting of George Washington, clothed in the military garb of a colonel.

Gilbert Stuart is usually considered the finest American painter of the post-Colonial period. Important Virginians whom he painted were George Washington, Colonel John Tayloe, John Randolph of Roanoke and James and Dolly Madison. Most of his paintings were done at Washington soon after it became the national capital city.

In 1807, a Frenchman, Julien F. de Saint-Memin, visited Richmond for approximately one year. He used a machine called a physionotrace which enabled him to make profile drawing in white chalk and in crayon. He acquired the technique of getting these drawings etched on copper plates which allowed him to make fine miniature engravings. One of his most famous art works is an etched view of the waterfront at Richmond.

Benjamin West Clinedinst, a native of Woodstock, is particularly remembered by Virginians for his great panorama painting of the Battle of New Market. Since he had received his education at the Virginia Military Institute, he had a very strong esprit de corps for this battle in which 257 cadets from V. M. I, helped General John Breckinridge at the cost of ten students killed and forty-seven wounded. Over the rostrum of the Stonewall Jackson Memorial Hall at the Virginia Military Institute is a huge canvas painting by Clinedinst portraying a panorama of the charge of the cadet corps at this historic Battle of New Market. In addition to his portrait painting, Clinedinst furnished numerous book and magazine illustrations.

Sculpture—Sculpture did not really develop fully in Virginia until the Nineteenth Century. Alexander Galt of Norfolk was one of the earliest sculptors in this region. Although he died before his artistic ability had been

fully developed, his memorable life-size white marble figure of Thomas Jefferson is located inside the Rotunda at the University of Virginia.

In 1865, Edward Virginius Valentine, a native of Richmond who had traveled and studied throughout Europe, came back to his home town. He created not only great sculptures but many unusual sculptures: the bronze figure of General Hugh Mercer in Fredericksburg, a bronze bust of Commodore Matthew Fontaine Maury located in the Virginia State Library at Richmond, a bust of John Jasper, a Negro preacher, located in the Sixth Mt. Zion Baptist Church in Richmond, a marble statue of Thomas Jefferson in the lobby of a Richmond hotel, an ornate bronze statue of Jefferson Davis in a speaking position on Monument Avenue in Richmond and a bronze statue of "Stonewall" Jackson at the grave of "Stonewall" Jackson in the Lexington Presbyterian Cemetery. At Washington and Lee University located in Lexington is the Lee Memorial Chapel. Behind the altar in this chapel is an internationally famous white marble, recumbent "Figure of Lee" which Valentine created. Because of its recumbent position, symbolic of General Lee resting on a battlefield cot, this statue is considered most unique. For thirty years, Valentine used the original carriage house of the Mann S. Valentine House in Richmond as an art studio. When the Valentine House was acquired by the City of Richmond and was finally opened to the public for visitation, many of Valentine's original sculptures were grouped in the collection, including the plaster cast of his famous recumbent statue of Robert E. Lee.

Sir Moses Ezekiel, a sculptor and a soldier, was a native Virginian, but he studied and maintained his residence abroad for most of his life. However, there are many examples of his fine artistic talent in his native state. In the center of the Rotunda at the University of Virginia is a bronze figure of Thomas Jefferson placed upon a pedestal which is in the shape of the Liberty Bell; thus, the work of Sir Ezekiel is called the Liberty Bell Statue of Thomas Jefferson. Ezekiel has another bronze statue on the same campus known as the Statue of Homer which portrays a boy with a lyre sitting against the knee of Homer. Major John Warwick Daniel was a United States Senator from Virginia who was noted for his great oratorical ability. After he was severely wounded in the Battle of the Wilderness, he became a cripple and was nicknamed "The Lame Lion of Lynchburg." Ezekiel designed a statue located at Lynchburg in honor of Major Daniel which

shows him seated and holding a crutch. Ezekiel, like Clinedinst, was a cadet at the Virginia Military Institute during the War between the States and was present at the Battle of New Market in which the V. M. I. Cadets participated. In front of the Nichols Engineering Hall at the Virginia Military Institute is a bronze seated figure of "Virginia Mourning Her Dead," known also as the "New Market Monument." Ezekiel is buried in Arlington National Cemetery, not far from the "Confederate Memorial" monument of bronze which he created.

William Ludwell Sheppard, a sculptor, created numerous well-known statues, including a bronze one of Governor William Smith located on the north side of Capitol Square in Richmond, "The Color-Bearer," a bronze haut-relief, the "Soldiers' and Sailors'" Monument and the Statue of General A. P. Hill—all located in Richmond.

Augustus Lukeman, a Richmonder who later moved to New York City, made the portrait bust of Jefferson Davis in the United States Capitol. A Norfolk native, William Couper, molded a bronze statue of Captain John Smith at Jamestown and a bronze statue of Dr. Hunter H. McGuire, a brilliant Winchester doctor, on the north side of Capitol Square in Richmond. He also designed a Norfolk Confederate Soldier Monument.

Many sculptors who were born outside of Virginia have used events and personalities of Virginia as their subjects. Charles Keck executed a bronze group of statues of Meriwether Lewis and William Clark, the two explorers of the Northwest, which may be seen at Charlottesville. Lewis and Clark are shown gazing at the horizon, with their famous woman guide, Sacajawea, not far behind them. At Monument Terrace in Lynchburg is another bronze statue designed by Keck, "Statue of a Doughboy," representing the forty-seven soldiers from Lynchburg killed in World War I. Keck also created the statue of John Tyler located in the Capitol Rotunda at Richmond.

There is a George Rogers Clark Memorial in Charlottesville designed by Robert Aitken. It consists of a bronze equestrian statue of George Rogers Clark surrounded by a group of Indians and scouts.

Six statues depicting the Virginia-born Presidents of the United States found in the Capitol Rotunda are "William Henry Harrison" carved by Charles Beach, "Woodrow Wilson" by Harriet Frishmuth, "James Monroe" and

"Thomas Jefferson" by Attilio Piccirilli and "James Madison" and "Zachary Taylor" by F. William Sievers.

Piccirilli also created a 16-foot marble "Statue of Monroe" located at the entrance of Ash Lawn, the home of James Monroe, near Charlottesville. An interesting fact about this statue is that, after the government of Venezuela had commissioned Piccirilli to create this statue of Monroe, a revolution occurred in Venezuela which caused a new slate of officials to succeed in office. Since some of these officials were not pro-Monroe in their regard for the Monroe Doctrine, the statue remained in a studio in New York City from the latter part of the 1800's until 1931. Sievers also designed the bronze figure of "Stonewall" Jackson astride his horse, Little Sorrel, for the "Stonewall" Jackson Monument on Monument Avenue in Richmond.

Sculptural contributions of Thomas Crawford and Randolph Rogers, both New Yorkers, may be found in Capitol Square, Richmond. The Washington Monument here is considered an outstanding sculptural group. Robert Mills designed the base and pedestal. The monument depicts a bronze equestrian statue of George Washington on a stone base surrounded by huge figures of Patrick Henry, Thomas Jefferson, General Andrew Lewis, John Marshall, George Mason and Thomas Nelson. Female figures are seated on trophies of victory around the base of the monument. All the figures were created by Crawford except Lewis and Nelson which were created by Rogers after Crawford had died.

Virginians were encouraged to appreciate the Fine Arts even as early as 1786 when a Frenchman, Chevalier de Beaupaire, founded in Richmond the Academy of Sciences and Fine Arts of the United States of America. This organization marked the formal beginning of Richmond as a cultural center in Virginia. In 1936, the Virginia Museum of Fine Arts in Richmond became the first state-supported art museum in the United States. At present, the Museum Building, its equipment and the salaries of the staff are provided by the Commonwealth; other sources of revenue come from endowments, gifts, membership, rental and admission fees. There are numerous traveling exhibitions, slide sets, films and filmstrips, permanent famous art collections, temporary loan exhibits and an Art-mobile equipped with a comprehensive art display which travels to specific areas on a scheduled basis. There is also a Museum Theater where a variety of

performances in the Fine Arts including the dance, music, drama and motion pictures is presented.

In 1913, the Battle Abbey was constructed in Richmond. It is noted for its large wall murals painted by the French artist, Charles Hoffbauer and portraying the key battles of the War between the States. Battle Abbey also includes valuable collections of paintings of Confederate leaders, of battle flags and of military weapons used during the War between the States.

The White House of the Confederacy in Richmond, known also as the Confederate Museum, is the beautiful old Brockenbrough Mansion leased for the home of Jefferson Davis and his family during the War between the States. In 1893, the Confederate Memorial Literary Society established the house as a Confederate historical museum. Such historical treasures as the sword of Robert E. Lee, military equipment of "J. E. B." Stuart, T. J. Jackson and Joseph E. Johnston and individual sections housing battle mementoes of each Confederate State are located in this structure.

The Valentine house in Richmond, bequeathed to the city by Mann S. Valentine in 1892, was opened to the public as a museum in 1930. In addition to its specialized exhibits on Richmond historical treasures, this museum has some of the original casts of Edward V. Valentine (the sculptor), several rare books concerning Virginia and exhibits on world history and civilizations. Another famous museum which was constructed in 1930 is the Mariners' Museum at Newport News. A personal comprehensive collection of over 45,000 nautical articles (including ship models, figureheads and pictorial material) owned by Archer M. Huntington is housed in this museum.

The skills and techniques of painting are currently taught in the schools, colleges and art clubs, as well as by private tutors, throughout Virginia. Thus, the Commonwealth offers excellent opportunities for the encouragement of, and appreciation for, meaningful art and sculpture.

Architecture

Architecture is often defined as the science and art of designing and constructing buildings or structures. Historically, architecture in Virginia is considered to have begun in 1611-1615 with the building of the first frame

row houses at Jamestown and at Henrico. Previous to this period, only crude dwellings had been constructed. The typical early row house, however, was a timber structure usually two stories high with an upper garret often included. Some of the early colonists were bricklayers, brickmakers and carpenters. Often, the Virginia colonists built a typical English timber cottage as similar as possible to those in their homeland insofar as the availability of materials in Virginia would allow. A gabled shingled roof was commonly used; wherever they could be afforded, dormer windows were added. Such a frame house usually measured one room deep and two rooms wide or two rooms deep and a passage-way wide. In the latter type, huge chimneys were usually constructed at each end.

One of the first types of Seventeenth Century brick houses is exemplified by the "Adam Thoroughgood" House built between 1636 and 1640 in Princess Anne County near Cape Henry. It has one complete story topped by a steep gabled roof with dormers and with two T-shaped chimneys. Like many of the early houses in Virginia, its interior is finished in pine paneling. Winona, in Northampton County, is another illustration of the early architectural house in Virginia. It consists of a story and a half structure with brick walls. One of the unique features of the house has been hidden from public view by a frame addition: a buttressed chimney surpassed by three extremely tall stacks.

The houses in Virginia whose construction is believed to have been directly affected by the English Renaissance or Georgian Period of architecture were built after 1720. Since the College of William and Mary had been established at Williamsburg and the colonial capital had been changed from Jamestown to Williamsburg, this area had become the greatest cultural center as well as the seat of government of Virginia. It is commonly believed that the important buildings in Williamsburg in 1720—namely, the Wren Building at the College of William and Mary, the Governor's Palace and the Capitol—actually set the pattern for architectural designs for private homes and public buildings throughout the colony.

The Wren Building is the only structure in America designed by the great Sir Christopher Wren and is the oldest academic hall in the United States. The original design of Wren had to be altered slightly because of the terrain of the country-side. The building, consisting of the commonly used sandy

pink brick foundation material, is a two-and-one-half storied rectangular building with a steep roof which includes twelve dormer windows. The roof is topped by a plain cupola in the center with two huge chimneys on either side. Although the Wren Building was burned and rebuilt on three different occasions, in 1928 some of the original walls were used as the basis for the restoration and repair of the Wren Building as part of the Williamsburg Restoration Project.

The Governor's Palace illustrates another Georgian architectural design in Williamsburg. It consists of two stories rising to a cornice topped by a steep, many-dormered roof. Atop the roof is a platform with a lantern-cupola. There are narrow sash windows on the façade and a plain square-transomed doorway with a center wrought-iron balcony overhead. There are separate buildings for the smokehouse, dairy, kitchen and laundry. Above the doorway of the Governor's Palace is the carved coat of arms of George II and Britain's Royal Lion and Unicorn. The fine paneled woodwork in the interior of the palace and the antique tooled leather walls of the library are also noteworthy.

The Capitol at Williamsburg, originally completed in 1704 and later reconstructed on the original foundations, is a two-storied H-shaped brick structure with semicircular bays on either end and a connecting gallery in the center over an arched porch. The roof of the gallery is topped with a cupola which has the arms of Queen Anne, a clock and the Union Jack, one above the other. The Capitol was restored in 1920.

The George Wythe House in Williamsburg is considered one of the purest Georgian Colonial architectural structures in America. George Wythe was the first law professor at the College of William and Mary. The house was a gift from his father-in-law. Although this structure was a town house, it had numerous separate buildings—kitchen, smokehouse, laundry, stable—similar to a plantation. The house is rectangular in shape, constructed of brick and has two built-in chimneys. Under the restoration project, the original paint colors in many of the rooms have been matched, and it is now furnished with appropriate furniture of that period.

Other houses built about this time reveal the similarity of designs of private estates to the Governor's Palace. Westover (1733), home of Colonel William Byrd II on the James River, is considered by many historians and architects

as the finest example of colonial grandeur and Georgian stateliness in Virginia. English wrought-iron gates are fastened to posts at the top of which are two leaden eagles with half-spread wings. The mansion house is constructed of red brick with a center section two stories high. On either side of the center section is a wing a story and a half high connected by passageways. At both ends of the house are pairs of tall chimneys. Elaborate entrances, paneled walls, an open-string staircase and black and white marble mantels imported from Italy are some of the elegant features still found in the mansion at the present time.

Christ Church in Lancaster County was erected about the same time as Westover. This structure is an example of a Greek-cruciform colonial church. The church is constructed of brick, has three wide brick doors, oval windows and has the unusual history of having been built solely with funds furnished by one individual, the wealthy "King" Carter.

Stratford Hall (1725-1730) in Westmoreland County, the home of Thomas Lee and the birthplace of Robert E. Lee, exemplifies another H-shaped house of beauty and grandeur. Constructed of brick and dominated by two groups of four chimneys, Stratford consists of the H-plan with four large attached buildings at the corners. A unique feature of this house is its exceptionally long flight of stairs which one must ascend before reaching the main floor. The main floor consists of five large rooms with a huge hall which forms the bar of the "H." Each wing also has a pair of rooms connected by passages.

Carter's Grove (1751) in James City County is another Georgian type house, planned and partially constructed by Carter Burwell in 1751. The main unit of the mansion was constructed by the English builder, Richard Bayliss, and another Britisher, David Minitree. The mansion consists of two-and-a-half stories with wings on each side of one story. It is particularly noteworthy for its almost perfect symmetry. The main unit has a very high roof with a pair of large square chimneys. There are several dormer windows and the entire structure is 200 feet long. The interior as well as the exterior is beautiful with extensive pine paneling, a graceful arch across the middle of the main hall and exquisitely carved walnut railings along the stairway. Some officers of Lt. Col. Banaster Tarleton's troops used this place as headquarters in 1781. When Tarleton suddenly needed his troops,

he rode horseback up the beautiful carved stairway. The horse's hoofprints are still observable on the stairway steps.

Mount Airy in Richmond County was constructed by Colonel John Tayloe in 1758. This house is unusual because it was built entirely of stone, a rarity because the Tidewater area did not have an extensive amount of stone. Mount Airy is built of brown stone and trimmed with light stone furnishing a colorful contrast.

The architecture of churches in Virginia is likewise varied. St. Luke's Church, originally known as the Brick Church in Isle of Wight County, is believed to be the oldest church still in existence in the original thirteen colonies. It is easily recognizable from its square tower and gabled nave. The brick Jamestown Church Tower (1639) is a Gothic structure also. The famous Bruton Parish Church in Williamsburg (1715) is an example of the change in architecture due to Governor Spottswood's planned improvement program for Williamsburg. This is the oldest Episcopal Church continuously in use in Virginia. Its cruciform construction of red brick is unusual with its numerous high, white shuttered windows. The square tower was built at a later date and seems to add dignity to the structure. Christ Church in Alexandria, constructed in 1767-1772, has characteristics of the late Georgian Colonial Period: red brick, a square tower with an octagonal-shaped belfry having a dome cupola, a trimming of white stone and a crown of Wrennish pepperpots.

Thomas Jefferson contributed much to original Virginia architecture. Jefferson was devoted to the classical style, yet followed new trends of his own. For example, the Capitol at Richmond was planned by Jefferson. Jefferson used the famous Roman temple at Nîmes in southern France, the Maison Carrée, as the basic design and modified it according to his wishes. He had a plaster model of it made in Paris and sent to Virginia to be used as the pattern for the new Capitol. The original building is the central building which was constructed from 1785 to 1788. Later, the brick was covered with stucco and the wings and the long flight of steps were added in 1904-1906. The revival of classicism in architecture is traced to the individual efforts of Thomas Jefferson. His contacts with many of the outstanding architects of the time, including Robert Mills, helped spread the classic ideas throughout the nation. Thus, the dignity of the great plantation houses constructed during this period is attributed to the style advocated by

Jefferson. He not only favored this style but proceeded to utilize the style which he advocated. Monticello, Jefferson's home at Charlottesville, was built of red brick. Its dome, its Doric columns, its symmetrical arrangement, its circular windows, its octagonal bay and stately porticos, its wedgewood mantelpiece—all characterize the Early Republican type of architecture in Virginia.

Jefferson carried out a similar classical style when he founded the University of Virginia. The Serpentine Walls of red brick which surround most of the gardens were designed and built by Jefferson, following a type he had seen in France. The walls are approximately six feet high and one brick thick and constructed on a wavelike plan for added strength. Jefferson also designed the five two-story temple-like pavilions including porticos and had them constructed of red brick walls with white trim and white classic columns. Bremo, near Fork Union, and Poplar Forest, near Lynchburg (where Jefferson used to spend quiet weekends in retreat) are two other houses designed and built by Jefferson.

Robert Mills, who received architectural instruction from Jefferson and whose name is associated with the colonnade of the Treasury Building in Washington and with the Washington Monuments in Washington and in Baltimore, also contributed to the development of architecture in Virginia. Mills designed the Monumental Episcopal Church in Richmond with its structure of stuccoed brick and brown sandstone, its octagonal domes and its columns. Mills' stuccoed houses in Richmond are considered most unique. The front of this type of house which faced the street is comparatively plain and simple, but the back of the house which faced the river usually had a graceful, tall, columned portico with a hanging balcony. Thus, Mills' houses had the appearance of a regular city house in the front and a country house in the back. The Valentine Museum, formerly the John Wickham House, and the White House of the Confederacy, formerly the Jefferson Davis Mansion, located in Richmond were both designed by Robert Mills.

Sherwood Forest, located on the James River, was the home of John Tyler, tenth President of the United States, after he retired from the Presidency. He enlarged the originally-built dwelling twofold and also had a closed-in colonnade constructed to connect the main house with the kitchen and the laundry. After a ballroom and an office had also been added, the entire

structure was 300 feet long, one of the longest houses in the country. The original house was built in 1780 with additions made in 1845.

When Jefferson with his great fervor for originality died, Virginia architecture seemed to lose its original character. For many years afterwards, Virginia tended to follow the architecture fashion of the nation rather than to create any particular architectural characteristics of its own. Following the War between the States and its resulting poverty, many of the skills of the earlier craftsmen seemed to disappear. There was a lack of artistic brickwork and handcarved woodwork; imitation and copying of designs throughout the nation seemed to dominate the architectural scene. The influence of much of the foreign architecture of this period seemed to crowd the American scene and to stifle American originality. Experimentation, not often beautiful in appearance or graceful in lines, resulted in an era of architecture with mediocre dwellings and a lack of symmetry and of balanced proportions in design.

Near the close of the Nineteenth Century, an event occurred which influenced American architecture to a great extent. When the Chicago World's Fair was held in 1893, visitors suddenly became reminiscent about the numerous reconstructed American architectural designs of colonial buildings: the rich-looking red brick buildings with graceful, tall white columns and with porticos and pediments. Architects in the United States as well as the American public in general found a new interest in the construction designs, techniques and materials of the Colonial Era. Several visits were made to Virginia and other southern states in an attempt to rediscover the true Colonial style which still has so much to offer in the way of beauty, simplicity and grandeur.

As in the other states, Virginia architects have been busy recently drawing up plans to meet the ever-increasing demand for private dwellings as well as for public buildings. Some of the structures in Virginia which have received nationwide attention are the five-sided, five-floored Pentagon Building in Arlington with 17½ miles of corridors, the Iwo Jima Memorials—one at Quantico and one in Arlington County—and numerous houses, apartment buildings, schools, churches and business establishments.

The greatest architectural restoration project in the United States is the Restoration of Colonial Williamsburg in Virginia. Intense, careful research

has made this restoration authentic and appealing to the American public. John D. Rockefeller, Jr. made the project possible through financial backing and, to date, over 400 colonial public buildings, homes, shops and taverns have been restored or reconstructed on a 216 acre section of land. Many of the restored buildings—the Capitol, the Governor's Palace, the George Wythe House, the Raleigh Tavern, the Public Gaol, the Ludwell-Paradise House, the Brush-Everard House and the Magazine and Guardhouse—are now furnished properly according to the Eighteenth Century style. Additional atmosphere is created by the colorful, colonial costumes worn by the guides themselves. The restoration continues, and visitors from various parts of the world, as well as from all of the fifty states, delight in viewing authentic colonial architecture. The Williamsburg Project has had, and will continue to have, a definite influence upon American architecture.

In retrospect, Virginia is usually accredited professionally with two distinct types of individual architecture: the Colonial type brought directly from England and adapted to American surroundings (with a slight variation in Early Colonial and Late Colonial due to the results of the European Renaissance) and the Jeffersonian type distinguished by the creativeness and superb artistic traits of Thomas Jefferson.

Music and Drama

Music—The early Jamestown settlers left no record of their music. They apparently sang the same songs current in England at the time of their departure and probably made up verses pertaining to their environment as time passed. There is evidence that unusual instruments were occasionally used. Even though organs were very expensive in colonial days, by 1700 the Episcopal Church at Port Royal owned the first pipe organ brought to America from Europe. By 1755, the Bruton Parish Church at Williamsburg had also received one.

The wealthy inhabitants usually paid instrumentalists, often foreign musicians, to play at various social functions. String players were particularly popular, not only for chamber music concerts but also for private balls. In 1788, Francis Hopkinson, considered by many historians as the first American composer, dedicated his most ambitious published work, "Seven Songs," for the harpsichord or forte piano to George Washington,

his personal friend. Although Washington himself did not play an instrument he was an active patron of the arts including music. The harpsichord which he bought for Nellie Custis is still at Mount Vernon. Hopkinson also had written in 1778 a musical manuscript called "Toast" commemorating Washington's position as Commander-in-Chief of the Continental Army. After Hopkinson had made improvements on the harpsichord, he contacted Thomas Jefferson, beseeching him to acquaint craftsmen with his new, musical instrumental idea. Jefferson was a great devotee to music and was considered by many as an accomplished violin player as was Patrick Henry before him.

The musical talents of the Negroes are usually associated with Southern music. From time to time, collections of slave songs, plantation and cabin songs and religious spirituals have been published by William F. Allen, Lucy M. Garrison, Charles P. Ware, Natalie Burlin and Thomas Fenner. The Hampton Singers from Hampton Institute still preserve the musical beauty of such Negro Spirituals as "Swing Low, Sweet Chariot," "Go Down Moses," "Deep River," "Steal Away to Jesus" and "O'er the Crossing." Reverend James P. Carrell of Harrisonburg and Lebanon published two spiritual song books: "Songs of Zion" and "Virginia Harmony." James A. Bland, a Negro originally from South Carolina but educated in Washington, wrote the song: "Carry Me Back to Ole Virginny." This song was adopted by the legislature as the official state song in 1940. Two other famous songs written by Bland were "Dem Golden Slippers" and "In the Evening by the Moonlight."

Musical publishers and choral groups also encouraged active participation in the musical field. Joseph Funk, a German immigrant, came to Singer's Glen near Harrisonburg near the beginning of the Nineteenth Century. He established a singing school where he taught vocal music and published "Choral Music," a collection of German songs. Aldine Kieffer, a grandson of Funk, created a monthly musical publication, "Musical Millions," consisting of rural music and musical hints for singing schools. Kieffer wrote the words and B. C. Unseld the music to a song which became very popular in the rural areas of the South: "Twilight Is Falling." In 1883, Theodore Presser of Lynchburg founded the well-known music publication for music teachers and pianists called "The Etude." Scholars and music lovers in various parts of the world have enjoyed the contents of this

publication. F. Flaxington Harker was a Scotsman who came to America and served as an outstanding choral director in Richmond. He composed organ compositions, choruses, sacred and secular songs, anthems and cantatas. A collection of Virginia Folklore Songs, called "The Traditional Ballads of Virginia," has been compiled by Arthur Kyle Davis, Jr. and C. Alphonso Smith.

Jenny Lind, "The Swedish Nightingale," afforded Richmonders a thrill when she appeared in person at the Marshall Theater in 1850. She was considered an outstanding singer by Virginia music lovers. In 1876, Thomas Paine Westendorf of Bowling Green wrote the song, "I'll Take You Home Again, Kathleen," presumably for his wife while she was mourning the death of her son: she had traveled away from home with her husband and had become very homesick, prompting him to write the song as words of encouragement to her.

The composer who is professionally considered as the greatest native Virginian contributor to the music field is John Powell of Richmond and Charlottesville. He was an accomplished pianist and studied in Vienna as well as in the United States. He wrote "Sonata Virginianesque" for violin and piano (a sonata consisting of the happy aspects of plantation life before the War between the States), several overtures and folk-songs. He became nationally famous for his "Rhapsodie Negre" for piano and orchestra. His varied talents included the writing of fugues and concertos as well as the creation of the Virginia State Choral Festival. Powell was also an enthusiastic participant in the annual White Top Folk Music Festival. No description of musical contributions of Virginians would be complete without reference to Joe Sweeney, a native of Appomattox who invented the five-stringed banjo.

Richard Bales, a native of Alexandria, is a composer-conductor who arranged a cantata, "The Confederacy," consisting of music and literary compositions of the Confederate States during the War between the States. This cantata was so well received that it inspired him to compose a second one called "The Union" which consists of music and literary comments concerning the Union forces during the War between the States. He also composed "The Republic" which consists of prominent European and American musical trends of the Eighteenth Century.

Regional festivals and a State Festival for public school bands and choral groups are held each year. Symphony orchestras furnish superb musical entertainment regularly in Richmond, Norfolk and Roanoke. Numerous Virginians have been, and are, active in the music field as singers of classical, semi-classical and popular tunes of the day. Thus, contributions to vocal music, instrumental music and musical forms have been made by natives and residents of Virginia.

Drama—Unlike residents of many of the thirteen original colonies, Virginia residents delighted in the drama. An Accomack County record states that a group of non-professionals performed in a play, "Ye Beare and Ye Cub," as early as 1655. This record is believed to be the earliest available evidence of an English-speaking play presented in the American colonies.

Virginia is also proud of the fact that the very first theater called a playhouse was constructed by William Levingston at Williamsburg in 1716. Its purpose was to present "Comedies, Drolls, and other kind of stage plays ... as shall be thought fitt to be acted there." In spite of its lofty origin, it soon became a financial loss and, in 1745, the original structure was allotted to Williamsburg to be used as a town hall.

Six years later, however, a second theater was constructed behind the Capitol at Williamsburg. The opening play was "Richard III" and its performers subsequently enacted this play also at Petersburg and at Fredericksburg. It was at the Williamsburg Playhouse that the famous Hallams (London Company, later known as the American Company) first performed in America. The Hallam family—father, mother and two children—and their supporting cast landed at Yorktown where they were welcomed by Governor Dinwiddie and a group of his personal friends. They later traveled to Williamsburg where the playhouse had received appropriate improvements and alterations in keeping with the occasion. Their performance was a success as evidenced by the fact that their play, "The Merchant of Venice," played for eleven months in Williamsburg.



VIRGINIA STATE CHAMBER OF COMMERCE

Virginia Museum of Fine Arts

Other plays including tragedies and comedies, famous and not so famous, were acted at the Williamsburg Playhouse. Most of the plays during this period were European plays or American imitation of European plays. The playhouses themselves were usually wooden structures with crude benches for the average customers and a few "less uncomfortable" boxes for the aristocrats. In the winter, the heat was usually furnished by one stove in the center of the end of the barn-like structure where the spectators congregated between the acts. Often, spectators carried their individual footwarmers with them to assure themselves of comfort during the play. Candles at first were the sole means of illumination. A custom which was practiced for many years consisted of the Negro servants arriving at the playhouse hours before the six o'clock curtain time and reserving seats for their masters by sitting in the most desirable areas until the arrival of the masters.

The early drama companies were often organized and managed as a regular stock company with the importance of the dramatic role determining the number of shares received by an actor. Another common method of paying outstanding actors was the holding of a "benefit" night near the end of the season whereby the receipts of that night would be given to the individual actor.

The playhouse provided one of the most popular types of amusement and it soon became a colorful place for gay, social gatherings. Since Williamsburg was the capital of the colony of Virginia, during legislative sessions the playhouse was particularly crowded with important personages of the government and their friends. George Washington enjoyed dramatic presentations very much and on numerous occasions visited the Williamsburg Playhouse. Just before the American Revolution, however, as political, economic and social relationships between the Americans and the British were being severely strained, most forms of entertainment including the playhouse were prohibited. Consequently, the Virginia playhouses eventually closed and most of the actors and actresses traveled to foreign shores.

After Governor Thomas Jefferson and numerous other Virginians believed that Williamsburg was no longer a safe or central location, the capital of Virginia was moved to the Town of Richmond in 1779. Seven years later, a new theater in Richmond was opened on Shockoe Hill. For twenty-five years, this theater was a social gathering place and a stage background for numerous plays during this period. On December 26, 1811, tragedy struck this theater when it was crowded with holiday festive guests at a benefit performance for the actor, Placide, and his daughter. The entertainment in the theater usually consisted of a prologue, a feature play, a short afterpiece and, sometimes, singing or dancing. On this fateful date, the feature had been completed and the afterpiece was being enacted. Suddenly, a lamp which was used for creating overhead light was mistakenly jerked by a pulley, causing it to swing fully lit into the oil-painted scenery back-drop. Soon the entire theater was a flaming mass. Seventy-three persons were killed in this tragedy including Governor George William Smith. This incident caused many theater-goers to refrain from attending theater performances for several years because of fear for their personal safety.

Drama in Virginia, consequently, received a serious setback from this tragedy, but in 1818, a new theater was built through subscription at Seventh and Broad Streets in Richmond. It was called the Marshall Theater and was named in honor of Chief Justice John Marshall who was one of the theater's greatest patrons. Although this new structure was larger, more conveniently situated and more safely constructed, fear still kept the large crowds of the earlier theater from attending. The theater for a time had to depend upon a famous performer to assure patronage by large numbers. In July 1821, one of these celebrated performers was Junius Brutus Booth—father of the American actor, Edwin Booth—who made his American debut at the Marshall Theater in "Richard III."

By the middle of the Nineteenth Century, Virginia began to experience the "Golden Age" of its theater. Richmond still was the center of the drama in Virginia and one of the outstanding dramatic centers in the United States. The opinion and reaction of Richmond audiences and critics became respected and noticed throughout the country. Such well-known actors as Edwin Forrest, William C. Macready and James W. Wallack played here. On January 2, 1862, the Marshall Theater burned, but its owner immediately had a new one called the Richmond Playhouse built on the same site. Its opening premiere was "As You Like It" starring Ida Vernon and D'Orsay Ogden. Even though the War between the States was being fought, contrary to the Revolutionary War period, the theater furnished amusement and relaxation. Jefferson Davis, President of the Confederacy, and many of his cabinet members attended this theater and viewed many of its tragedies which strangely enough seemed to be the type of play preferred over comedies at this time. One of the favorite actresses of the soldier audiences was Sally Partington.

As the years passed, additional theaters were built in Virginia including the Theater of Varieties in Richmond where vaudeville was first introduced. By the end of the Nineteenth Century, two native Virginians had become dramatic character actors of national fame: Wilton Lackaye of Loudoun County and George Fawcett of Fairfax County. At the turn of the century, Bill Robinson, a native of Richmond, began his ascent to national and international fame for his superb dance style and routines, not only in vaudeville but also in New York plays and, later, in moving pictures.

Early in the Twentieth Century, Francis Xavier Bushman of Norfolk was one of the early moving picture lead actors. As the movies improved and increased in their scope, Virginians such as Jack Hall of Winchester, James H. Bell of Suffolk, Margaret Sullavan of Norfolk, Randolph Scott of Orange County, Richard Arlen of Charlottesville, Lynn Bari of Roanoke, Joseph Cotten of Petersburg, Henry King of Christiansburg, John Payne of Roanoke, Charles Gilpin of Richmond and Freeman F. Gosden of Richmond became nationally known for their acting.

Although strong competition of vaudeville, moving pictures, radio and television undoubtedly has affected the legitimate theater, the strong desire for legitimate acting still remains and has resulted in the formation of summer stock companies and numerous Little Theater groups throughout Virginia. Such groups have become very active and are found in many cities including Alexandria, Danville, Lynchburg, Norfolk, Petersburg, Richmond and Staunton. Virginia colleges and universities also keep the theater alive by sponsoring dramatics classes, workshops and plays.

Two recent developments of the theater in Virginia are the formation of the Barter Theater Group and the presentation of historical plays. The Barter Theater is part of the Barter Colony located at Abingdon, and this colony consists of the theater, a workshop, an inn and a dormitory. The colony was established by Robert and Helen F. Porterfield in 1932 as an attempt to create renewed interest in legitimate play-acting. An original, unique feature of the theater and the activity which was directly responsible for its name was the original ticket purchase price which could be obtained in exchange for produce or edible commodities—similar to the old-fashioned barter system of exchange; at present, however, theater patrons pay money rather than produce for their tickets. During the winter months, the cast travels in other nearby states as well as in Virginia. An annual Barter Theater award was established by Robert Porterfield in 1939 for the "finest performance by an actor or actress on the current Broadway stage." Such well-known individuals as Laurette Taylor, Dorothy Stickney, Mildred Natwick, Ethel Barrymore, Tallulah Bankhead, Louis Calhern, Helen Hayes, Henry Fonda, Frederic March, Shirley Booth, Cornelia Otis Skinner, David Wayne, Rosalind Russell, Mary Martin, Ethel Merman and Ralph Bellamy have received this award. The Barter Theater Award consists of an acre of land located near Abingdon, a world-famed Virginia ham and a silver octagonal

platter "to eat it off." In addition, the recipient is given the opportunity to nominate two young dramatic actors at New York City auditions for acting positions at the Barter Theater. The Barter Theater, now recognized as the State Theater of Virginia, is believed to be the only professional theater in the United States which receives financial aid from a state budget.

Since 1947, an outstanding play, "The Common Glory," written by Pulitzer Prize Winner Paul Green, has been presented in the summer at the Lake Matoaka Amphitheater in Williamsburg. The theme of "The Common Glory" is based upon important historical events from 1774 through 1783 with the famous comments of such American statesmen as Thomas Jefferson, Benjamin Franklin, Robert Livingston and Patrick Henry. The realistic performance of this theme in the historical outdoor, natural setting in Williamsburg near historical Jamestown and Yorktown is an experience the audience long remembers. Paul Green also wrote "The Founders," another historical drama in honor of the three hundred and fiftieth anniversary of the founding of Jamestown.

Music and drama—from both the creative sense and the participation sense—still remain an active phase of culture in Virginia.

Education

In colonial days in Virginia, education was considered a personal family matter. A public school, as the term is understood now, was non-existent. Since England had no national public system of education until 1833, the Virginia colonists, of whom a majority were of English descent, did not have any heritage for schools for the general public. Later, the geographical distances between the plantations and the gradual development of social classes tended to discourage public education. The typical child who received formal education was taught by the family members, privately tutored, apprenticed for farming, attended a "Pay School" or "Old Field School" (a community school taught by a teacher paid either by the individual parents or by a particular patron and located on relatively poor agricultural land), enrolled in a Latin Grammar School or attended a fashionable school in London. Only the boys received the formal education and the girls learned the proper techniques of performing household tasks

and of being a gracious hostess. Many poor children had no formal education of any kind.

In 1634, the Syms Free School in Elizabeth City County was organized as a local, free school as a direct result of provisions of a will whereby two hundred acres of land were provided and free milk and income from eight cows were included for the support of the school. Twenty-five years later, Dr. Thomas Eaton of the same county also endowed a free school and left a five hundred acre estate with buildings and livestock as the endowment. The endowment also provided for the maintenance of an "able schoolmaster to educate and teach the children born within the County of Elizabeth." Later, the two schools were combined and, by the beginning of the Twentieth Century, they had been incorporated into the public school system as the Syms-Eaton Academy.

A few church schools were organized, but they reached a very small number of children with their enrollment. Orphans and poor children often received the benefits of apprenticeship training in trade or industrial schools and eventually had an opportunity to learn to read and write. By 1775, there were nine free schools endowed by private philanthropists for the poor and needy. Public schools at this time in Virginia were considered as schools for paupers, orphans and needy financial cases rather than schools for the benefit of the general public. Community tax-supported schools for the children of the general public were practically unknown.

Until the beginning of the Nineteenth Century, the slaves—both Negro and Indian—were usually taught religious training and some primary learning, the amount and type of training depending upon the individual master. After certain sensational articles tended to cause discontent and confusion in the minds of some of these individuals which resulted in sporadic raids and open dissatisfaction with living conditions, the legislature of Virginia passed a law making it illegal to teach any slave how to read, write or do arithmetic.

By the middle of the Nineteenth Century, private academies and seminaries (for girls) began to replace the early Latin-Grammar schools. The subjects of English, Latin, science, mathematics, public speaking, spelling and penmanship were taught. The fine arts subjects such as painting and music were stressed in the seminaries. Some of the early academies included

Prince Edward Academy (later became Hampden-Sydney Academy and, eventually, Hampden-Sydney College), Liberty Hall Academy (later, Washington College and, eventually, Washington and Lee University), Fredericksburg Academy (later, Fredericksburg College), Alexandria Academy, Shepherdstown Academy (later, Shepherdstown College and, eventually, State Normal School in West Virginia), Central Academy (later, Central College and, eventually, the University of Virginia), Richmond Seminary (later, Richmond College), Salem Academy (later, Roanoke College), Monongahela Academy (later, West Virginia University) and Marshall Academy (later, Marshall College and, eventually, a State Normal School in Huntington, West Virginia). These academies are considered forerunners of public high schools in Virginia because, even as late as the period immediately prior to the War between the States, there were very few public schools of any type in Virginia.

Henrico University was the first attempt in Virginia at an institution for higher learning. The Indian Massacre of 1622 ruined these conscientious efforts. The first two colleges actually founded in Virginia were William and Mary College at Williamsburg founded in 1693—the second oldest college in the thirteen original colonies—and Washington and Lee University at Lexington founded in 1749. William and Mary College was founded for the purpose of providing an opportunity for higher education within the colony itself; Washington and Lee University—originally known as Augusta Academy, then Liberty Hall, and, eventually, Washington College before being renamed Washington and Lee University—was founded to educate young men in Virginia in a similar fashion to the academies in England at that time. In 1819, the General Assembly passed a law allotting \$15,000 annually from the Literary Fund to be used for a state university, the University of Virginia, to be located in Charlottesville.

As in most states, the early private colleges were usually founded by religious groups. By the end of the Nineteenth Century, colleges had been established in Virginia by Presbyterians, Episcopalians, Catholics, Baptists, Methodists, Lutherans and the Brethren Sect. The following institutions were in existence at this time: the Protestant Episcopal Theological Seminary in Alexandria, the University of Richmond (Baptist), Hampden-Sydney College at Hampden-Sydney (Presbyterian), St. Vincent's Seminary and College at Richmond (Catholic), Emory and Henry College at Emory

(Methodist), Roanoke College at Salem (Lutheran), St. John's Catholic Academy and Seminary at Norfolk, Mary Baldwin College at Staunton (for women—Presbyterian), Randolph-Macon College at Ashland (for men—Methodist), Bridgewater College at Bridgewater (Brethren), St. Paul's Polytechnic Institute at Lawrenceville (Episcopalian), the Virginia Theological Seminary and College at Lynchburg (for Negroes), Randolph-Macon College at Lynchburg (for women—Methodist), Union Theological Seminary in Virginia at Richmond (Interdenominational) and Virginia Union University at Richmond (for Negroes—Baptist).

Other colleges founded in the Nineteenth Century include the Hampton Institute at Hampton (private—Negro), Medical College of Virginia at Richmond (state), Hollins College at Hollins (private), Longwood College at Farmville (state—women), Virginia Military Institute at Lexington (state), Virginia Polytechnic Institute at Blacksburg (private) and Virginia State College at Petersburg (Negro). Madison College was founded in 1908 at Harrisonburg as a private institution of higher learning and, nine years later, Eastern Mennonite College was also chartered in Harrisonburg.

The increase of women in colleges became apparent by the Twentieth Century with the organization of Sweet Briar College at Sweet Briar (private), Mary Washington College at Fredericksburg (women's division of the University of Virginia—state), Randolph-Macon Woman's College at Lynchburg, Lynchburg College at Lynchburg (coed—Disciples of Christ) and Radford College at Radford (women's division of the Virginia Polytechnic Institute—state). In addition, there are seven junior colleges: Stratford at Danville, Averett at Danville, Southern Seminary and Junior College at Buena Vista, Sullins at Bristol, Marion at Marion, Virginia Intermont at Bristol—all colleges for women only. These additional junior colleges—Shenandoah at Dayton, Bluefield at Bluefield and Ferrum at Ferrum—are coed institutions.

Public schools were initially supported by a Literary Fund and by one-half the capitation tax. Gradually, all the capitation or poll tax money was transferred to the Literary Fund. After the middle of the Nineteenth Century, some cities and counties in Virginia began to adopt a system of free schools for the general public. For the first time, a favorable attitude toward public education on the part of a majority of the Virginians became apparent. The long-assumed idea that public schools were charity schools tinged with a

social stigma faded into the background and public education for all the children began to be widely encouraged. Before much actual progress along this line was achieved, however, the War between the States took place. As a result, most of the academies were forced to close and education for a time became a comparatively minor issue.

After the War between the States, the Underwood Constitution included a provision requiring public education through the establishment of a uniform system of free public schools in all counties of the state. The deadline date for organizing and establishing such a system was 1876. A State Superintendent of Public Instruction was elected by the General Assembly, a State Board of Education was formed, and public education itself was financed by interest on the Literary Fund, capitation tax revenue, revenue from state and local property taxes and a state tax on each male twenty-one years old or over. Reverend William H. Ruffner of Lexington was the first State Superintendent of Public Instruction in Virginia.

Racial segregation in the public schools of Virginia was constitutionally established in the Underwood Constitution of 1902. Section 149 stated that white and colored children were not to be taught in the same schools. This idea had been in existence in statute law since 1869-1870, and the Constitution of 1902 also specifically stated that public funds were to be restricted, with a few exceptions, to public school use.

Gradually, teacher training courses were offered and improved and teacher scholarships were created in the attempt to organize a large number of new schools with qualified teacher personnel. Eventually, specialized courses were offered in the elementary and secondary schools: vocational courses including agricultural and industrial arts courses and household arts courses, Bible Study, Music, Drawing, Art and commercial subjects such as bookkeeping, shorthand and typing were introduced. These courses coupled with the original fundamental courses provided a rich curriculum for the public school children of Virginia. By 1920, health examinations, health instructions and physical training were required of each student. Early State Superintendents of Instruction faced tremendous problems in their attempts to organize and develop a whole new school system.

The importance of education in Virginia by 1918 is ascertained by the fact that the state legislature at that time passed an act ordering the State Board

of Education to appropriate a fund of not more than \$10,000 to be used for a scientific evaluation study of the Virginia schools by a special Survey Commission. Both the Inglis Survey of 1919 (named after Dr. Alexander Inglis, Director of the survey) and the O'Shea Survey of 1927 (named after Dr. M. V. O'Shea, Director of the survey) resulted in considerable improvements in the organization and administration of the educational system and in curricular offerings. Some of the recommendations included the appointment of the State Board of Education by the Governor with confirmation by the State Senate, the appointment of the State Superintendent of Public Instruction by the State Board of Education, the selection of a variety of basic textbooks by the State Board of Education, an increase in vocational education courses of study, a minimum nine month academic year, compulsory school attendance, improvement in teacher certification standards, the county unit plan (rather than the district plan) of school organization and a substantial increase in the salaries of teachers.

When the depression occurred in the late 1920's and early 1930's, Virginia was affected but to a lesser degree than most of the other states. One of the first items drastically reduced in the local and state budgets was school expenditures. Regardless of its financial hardship, however, the educational system continued to improve. A new Division of Instruction headed by a Director of Instruction was created in the State Department of Education to assume the responsibility of improving the instruction program in the Virginia public schools. Later, a Supervisor of Elementary Education and a Supervisor of Music was added to the State structure and a Supervisor of Secondary Education, a Supervisor of Negro Education and a Supervisor of Physical and Health Education were selected. Course content has been revised and new subjects added as needs warranted. Recent progress includes the development of audio-visual aids, rehabilitation education courses for disabled veterans, special education for the "exceptional" child and for the mentally retarded child, distributive education and adult education courses. Most of the public schools in the Commonwealth now have a twelve-year basic plan with the seven-five system predominating: seven years in grade school (elementary) and five years in high school (secondary).

Some of the outstanding public educators in Virginia have been James Blair, Reverend William H. Ruffner, R. R. Farr, Dr. F. V. N. Painter, John L.

Buchanan, John E. Massey, Joseph W. Southall, Joseph D. Eggleston, Dr. R. C. Stearnes, Harris Hart, Sidney B. Hall, Dabney S. Lancaster, G. Tyler Miller, Dowell J. Howard, Dr. Davis Y. Paschall, Dr. Woodrow W. Wilkerson—State Superintendents of Public Instruction—George Wythe, Edwin Alderman, Edward Armstrong, Samuel C. Armstrong, George Denny, Thomas R. Dew, William H. McGuffey, Benjamin S. Ewell, John Langston, John T. Lomax, Booker T. Washington, William Morton, William Pendleton, Thomas R. Price, Francis Henry Smith, William Waugh Smith, Charles E. Vauter, William Wilson, Milton Humphreys, Ed Joynes, Lyon Tyler and J. L. Blair Buck. Countless individual teachers, state and local administrators, and parent-teacher organizations have also contributed ideas which have influenced and improved the educational facilities throughout the state.

Education has become one of the greatest problems in the Commonwealth and a field of paramount interest to the citizens as well as to state and local officials, the students, the parents, and the professional educational staff directly involved. As the enrollments have rapidly increased, the governors, state legislators and local officials have increased their concern and support, causing the educational facilities to improve and expand. Such actions provide opportunities for the residents of Virginia to obtain a well-rounded education.

S U M M A R Y

Literature reveals the everyday experiences of people as well as their dreams and aspirations. Personal diaries, journals and letters were frequently used during colonial days to describe ideas and events. Poetry was scarce but many scholarly articles, often historically inclined, were written. Political thinking soon became a favorite topic for written expression and biographies and essays became numerous. Edgar Allan Poe, a resident of Virginia from his adoption at the age of three, is considered the most original author for his creation of the modern short story and the detective story. Virginians also have contributed several historical and romantic novels. The distinguished history and picturesque setting of Virginia has furnished innumerable topics of interest for written or oral expression.

Art has flourished in Virginia from the handicraft of the early days to the plastic sculpturing of the present. In the colonial period, European artists often visited Virginia and used Virginia and her residents as their subjects. Later, Virginia artists began to study abroad and, upon their return home, engaged primarily in portrait and panorama painting. Edward Valentine created unusual, as well as fine, sculptures. Foreign artists as well as native artists have often used Virginia personalities and scenes as sources for their inspiration.

Although Virginia can claim only two separate types of original architecture—the Colonial type influenced by England and altered to fit the environment of Virginia and the Jeffersonian type originated through the artistic efforts of Thomas Jefferson himself—Americans and foreigners still visit and study these architectural types in an effort to imitate or perpetuate such desirable styles. The Commonwealth has a variety of standard forms of architecture.

Organs, harpsichords and violins were popular musical instruments in colonial days in Virginia. Gradually, American folk music, Negro spirituals, the founding of the "Etude" music magazine and the invention of the five-stringed banjo tended to increase and popularize music in Virginia. John Powell of Richmond is considered Virginia's greatest single contributor to the musical composition field.

From the Williamsburg Theater of 1716 to the Barter Theater of the present, Virginians have shared the spotlight, the hardships and the fame of plays, vaudeville, moving pictures, radio and television. The annual production of "The Common Glory," an historical drama, at Lake Matoaka Theater in Williamsburg attracts thousands of patrons.

Education, the "backbone" of cultural activities, is one of the most challenging current problems facing Virginia. Personal training in the home, apprenticeship training outside the home, the church and church school education, private tutoring and private and public institutions of education of the elementary, secondary and higher education level—all are significant milestones along the educational paths of Virginia. With the educational facilities expanding on all levels to meet the rapidly increasing enrollment, with teacher training becoming more specialized, with the improvement in standard courses and the addition of new courses of study and with larger

legislative appropriations for education, education in Virginia provides more students with better opportunities for effective learning.

The changing pattern of everyday living can be recognized by observation and analysis of the literature, art, architecture, music, drama and education of a people. The inhabitants of the Commonwealth, consequently, have woven a particular pattern of their own from their contributions to these various phases of Cultural Life.

7

Political Life

Background of Present State Constitution

The original Constitution for the State of Virginia was written at a special convention held in Williamsburg from May 7, 1776 to July 5, 1776. The Constitution itself was officially adopted on June 29, 1776, making this date the birth date of the State. The individual who was primarily responsible for most of the content in the original Constitution was George Mason. The creation of the first Constitution was unusual in two respects: at the time it was written, the convention members decided upon specific powers which the newly-formed government should not have before it determined those powers which it should have; furthermore, the Constitution was adopted officially by the convention members without the usual procedure of submitting it to the voters for final ratification.

As years pass and conditions vary, it becomes necessary to make changes in the framework of a government to meet such needs. Consequently, on four specific occasions, the Constitution of Virginia has been rewritten: namely, in 1829-1830, 1850, 1867 and 1901.

In 1816, the residents west of the Blue Ridge Mountains demanded more representation in their state government and fewer suffrage restrictions. After many years of discontent, these individuals finally encouraged enough residents throughout the state to vote for a constitutional convention to be held in Richmond in 1829. At the convention, suffrage was extended slightly although all non-real estate owners still could not vote. The term of the Governor was extended to a three-year term with an increase in his powers, and representation was reapportioned to benefit the inhabitants living west of the Blue Ridge Mountains. However, in the redistribution of seats in the House of Delegates, the residents in the Trans-Allegheny section lost some seats. When the proposed Constitution was submitted to the people of Virginia for ratification, 26,055 voted for it and 15,166 voted against it. In this vote, for the first time, the Valley people of the western

part of the state joined the residents of the east rather than their Trans-Allegheny neighbors who had strongly opposed it. The new Constitution was officially adopted in 1830.

After the national census of 1840 had been taken, it revealed an unfair numerical representation of the white people west of the Blue Ridge Mountains in comparison with the representation of the number of white people living east of the Blue Ridge Mountains. Such unfair representation existed in both houses of the General Assembly to the extent that some residents even suggested that the people of the western part of Virginia create a separate state and call it Appalachia. Special local meetings were held and a referendum was finally suggested to determine the need of a constitutional convention as an attempt to correct this unfair condition. Finally, a state-wide vote in 1850 recommended such a convention be held in Richmond in the same year. After numerous arguments among the delegates had been voiced over a four months' period, a compromise was eventually adopted. The national census of 1850 was to be used as the official white population count and legislative representation was to be based upon this count: the effect of the compromise was to give the counties west of the Blue Ridge Mountains a majority in the House of Delegates and the counties east of the Blue Ridge Mountains a majority in the State Senate. Additional reforms were adopted which resulted in this 1850 convention sometimes being referred to as "the reform convention": suffrage was extended considerably to white male citizens; oral balloting was to be maintained; the Governor, the Lieutenant Governor, the Attorney General, certain judges, county clerks and sheriffs were to be elected directly by the qualified voters; the tenure of the Governor was extended to a four-year term; and the General Assembly was to meet once every two years instead of annually. A capitation or poll tax was to be levied upon each voter and half of the revenue from this tax was to be used for school purposes. The General Assembly was given additional power to control slavery by the passage of certain restrictions which were to be imposed upon slaveowners. This third Constitution for Virginia was officially adopted in 1851 after it had been ratified by the voters of the state.

After the War between the States had ended and the Reconstruction Period had begun, Virginia became Military District Number One in March 1867 with General John M. Schofield as its chief executive. The United States

Congress demanded that Virginia and the other nine former seceded states rewrite their state constitutions. When the delegates of the constitutional convention met on December 3, 1867, they consisted of 32 Conservative Party members, 25 Radical Republican Negroes, 14 native Virginia Radical Republicans and 31 Carpetbaggers, Scalawags and aliens. The constitution which resulted from this convention is known as the Underwood Constitution because the chairman of the convention was Judge John C. Underwood, a Radical Republican. Some of the provisions of this constitution included the division of each county into townships, the establishment of a county court with a single judge in each county, the appointment of a Board of Supervisors in each county to carry out the executive powers, the levying of a high tax rate on landed property, the compulsory creation of a public school system, the denial of suffrage to many former Confederate leaders and a restriction of allowing only former non-supporters of the Confederacy to hold office or act as a juror. In 1869, upon the recommendation of President Ulysses S. Grant, the United States Congress allowed Virginia voters to vote at a popular referendum on the Underwood Constitution itself and then to vote separately on the sections which denied suffrage rights and office-holding rights to former Confederates. On July 6, 1869, the qualified voters of Virginia ratified the Underwood Constitution and rejected the other two sections.

In 1897, an attempt to hold a constitutional convention was defeated but three years later, the people of the Commonwealth voted in favor of a constitutional convention. This fifth constitutional convention began in June 1901 and continued for approximately one year. As a result of this convention (described in Chapter Four), numerous changes were made which were considered so important by the delegates at the convention that they decided to "proclaim" this Constitution of 1902 as the fundamental law of Virginia rather than to submit it to the voters for ratification. Consequently, on May 29, 1902, the Constitution of 1902 was voted by the convention delegates for adoption and this is the present Constitution of the Commonwealth, with certain subsequent revisions.

Like the Constitution of the United States, the Virginia Constitution is divided into major areas called articles and into subdivisions called sections. There are seventeen articles and two hundred and one sections. The following topics found in the articles indicate the broad range of

subjects included: the Bill of Rights, Elective Franchise and Qualifications for Office, Division of Powers, Legislative Department, Executive Department, Judiciary Department, Organization and Government of Counties, Organization and Government of Cities and Towns, Education and Public Instruction, Agriculture and Immigration, Public Welfare and Penal Institutions, Corporations, Taxation and Finance, Miscellaneous Provisions—Homestead and Other Exemptions, Future Changes in the Constitution, Rules of Construction, and Voting Qualification of Armed Forces.

The Virginia Bill of Rights

Article I is the Bill of Rights. Such rights are prefaced by an introductory paragraph in the article which states that this series of rights form the backbone of the governmental structure in Virginia: "A declaration of rights made by the good people of Virginia in the exercise of their sovereign powers, which rights do pertain to them and to their posterity, as the basis and foundation of government." The famous Declaration of Rights which follows the introductory paragraph was written by George Mason and introduced at the Williamsburg Convention by Archibald Cary. It was unanimously adopted by the convention members on June 12, 1776, and its principles were considered so significant that they were later used as the basis for the Bill of Rights in the Constitution of the United States as well as for many other state bills of rights. The importance attached to these provisions has resulted in the Virginia Bill of Rights often being called the "Magna Charta of Virginia."

In seventeen different sections, the Virginia Bill of Rights guarantees various underlying principles of government:

- (1) "That all men are by nature equally free and independent and have certain inherent rights, of which, when they enter into a state of society, they cannot, by any compact, deprive or divest their posterity, namely, the enjoyment of life and liberty, with the means of acquiring and possessing property, and pursuing and obtaining happiness and safety"—Thus, freedom and equality of every individual is recognized, and one's rights of life, of liberty, of owning property and of achieving happiness and safety are guaranteed.

(2) "That all power is vested in, and consequently derived from, the people; that magistrates are their trustees and servants, and at all times amenable to them"—Thus, a principle of democracy is expressed that the right to rule comes from the people themselves and that office-holders are representatives of the people and are responsible to the people.

(3) "That the government is, or ought to be, instituted for the common benefit, protection and security of the people, nation or community; of all the various modes and forms of government, that is best which is capable of producing the greatest degree of happiness and safety, and is most effectually secured against the danger of maladministration; and, whenever any government shall be found inadequate or contrary to these purposes, a majority of the community hath an indubitable, inalienable and indefeasible right to reform, alter or abolish it, in such manner as shall be judged most conducive to the public weal"—Thus, the objective of a government is to benefit, protect and preserve security for the people. The best type of government is that which results in the greatest happiness and safety of all those whom it governs. Whenever a majority of those being governed consider such government as not attaining such an objective, they have a right to change it, reform it, or, if deemed wise, to abolish it as long as it is done in a legal manner considered for the good of all involved.

(4) "That no man, or set of men, is entitled to exclusive or separate emoluments or privileges from the community, but in consideration of public services; which not being descendible, neither ought the offices of magistrate, legislator or judge to be hereditary"—Thus, the amount of financial profit or gain received by an office-holder in any community is to be based solely upon his rendering public service to the community. Consideration of birth, influence or wealth is to be ignored, and office-holding itself cannot be automatically inherited or handed down from father to son.

(5) "That the legislative, executive and judicial departments of the State should be separate and distinct; and that the members thereof may be restrained from oppression, by feeling and participating the burthens of the people, they should, at fixed periods, be reduced to a private station, return into that body from which they were originally

taken, and the vacancies be supplied by regular elections, in which all or any part of the former members shall be again eligible, or ineligible, as the laws may direct"—Thus, the principle of the separation of powers is set forth, that is, the legislative, executive and judicial departments are organized as three separate, independent departments. Officials should have specific terms of office and should be elected for designated periods of time at the end of which time they should return to their former private status and be eligible for re-election if the law provides for such an opportunity.

(6) "That all elections ought to be free; and that all men having sufficient evidence of permanent common interest with, and attachment to, the community, have the right of suffrage, and cannot be taxed, or deprived of, or damaged in, their property for public uses, without their own consent, or that of their representatives duly elected, or bound by any law to which they have not, in like manner, assented for the public good"—Thus, all elections should be free and open, and all men who have become regular residents of a community should be allowed to vote. Property cannot be taxed, disposed of or damaged for public use without the consent of the people involved or that of their representatives. Neither can the people be forced to abide by any law unless it has been voted upon by them or by their elected representatives.

(7) "That all power of suspending laws, or the execution of laws, by any authority, without consent of the representatives of the people, is injurious to their rights and ought not to be exercised"—Thus, no office-holder should have the authority to suspend a law or to carry out a law, independent of the legal representatives of the citizenry.

(8) "That in criminal prosecutions a man hath a right to demand the cause and nature of his accusation, to be confronted with the accusers and witnesses, to call for evidence in his favor, and to a speedy trial by an impartial jury of his vicinage, without whose unanimous consent he cannot be found guilty. He shall not be deprived of life or liberty, except by the law of the land or the judgment of his peers; nor be compelled in any criminal proceeding to give evidence against himself, nor be put twice in jeopardy for the same offense...."—Thus, any man accused of a crime is entitled to certain rights: to be informed

of the charges placed against him, to meet face to face with the witnesses and accusers, to defend himself in a fair and speedy trial with an impartial or unprejudiced jury. He cannot be deprived of life or liberty except by legal judicial action; he cannot be made to testify against himself; and he is ineligible to be tried twice for the same crime.

(9) "That excessive bail ought not to be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted"—Thus, bails, fines and punishments must be reasonable.

(10) "That general warrants, whereby an officer or messenger may be commanded to search suspected places without evidence of a fact committed, or to seize any person or persons not named, or whose offense is not particularly described and supported by evidence, are grievous and oppressive, and ought not to be granted"—Thus, a search warrant should state specifically the exact place to be searched or the exact individual to be seized and the offense should be specified.

(11) "That no person shall be deprived of his property without due process of law; and in controversies respecting property, and in suits between man and man, trial by jury is preferable to any other, and ought to be held sacred. The General Assembly may limit the number of jurors for civil cases in courts of record to not less than five in cases cognizable by justices of the peace, or to not less than seven in cases not so cognizable"—Thus, since man has a right to own property, he cannot be deprived of it without due course of law. In certain types of lawsuits, trial by jury is believed the best legal procedure.

(12) "That the freedom of the press is one of the great bulwarks of liberty, and can never be restrained but by despotic governments; and any citizen may freely speak, write and publish his sentiments on all subjects, being responsible for the abuse of that right"—Thus, the right of the freedom of press and of the freedom of speech is advocated as long as an individual assumes the responsibility for same.

(13) "That a well-regulated militia, composed of the body of the people, trained to arms, is the proper, natural and safe defense of a free State; that standing armies, in time of peace, should be avoided as dangerous to liberty; and that in all cases the military should be under

strict subordination to, and governed by, the civil power"—Thus, a militia promotes the safety of the people. There are dangers of a standing army of professional men in peacetime, and, even in wartime, the military group should be subject to civilian authority.

(14) "That the people have a right to uniform government; and, therefore, that no government separate from, or independent of, the government of Virginia, ought to be erected or established within the limits thereof"—Thus, the people in the State should be governed by the same rules and regulations. No other separate or independent government within Virginia other than the one established by the State Constitution can be organized.

(15) "That no free government, or the blessings of liberty can be preserved to any people, but by a firm adherence to justice, moderation, temperance, frugality and virtue, and by frequent recurrence to fundamental principles"—Thus, government, like men, must be guided by moral principles: namely, justice, moderation, temperance, frugality and virtue. Without repeated adherence to these moral precepts, free government cannot survive.

(16) "That religion or the duty which we owe to our Creator, and the manner of discharging it, can be directed only by reason and conviction, not by force or violence; and, therefore, all men are equally entitled to the free exercise of religion, according to the dictates of conscience; and that it is the mutual duty of all to practice Christian forbearance, love and charity toward each other"—Thus, the right of the freedom of religion is advocated and guaranteed.

(17) "The rights enumerated in this bill of rights shall not be construed to limit other rights of the people not therein expressed"—Thus, since there are other rights not included in this Bill of Rights, this last section reminds the people that there are additional rights not specifically included in this article.

An understanding of the natural fundamental rights of a people as individuals, as guaranteed by the Virginia Bill of Rights, causes one to appreciate deeply the guarantees of liberty and freedom provided for the people of the State.

Election Requirements, Offices and Procedures

The extreme importance which the early Virginians attached to suffrage is recognizable by the location of the voting qualifications in the Virginia Constitution. Such qualifications directly follow the Bill of Rights as Article II and include the following requirements:

- (1) a citizen of the United States
- (2) at least twenty-one years of age
- (3) a resident of Virginia at least one year
- (4) a resident of the county, city or town at least six months
- (5) a resident of the voting precinct at least thirty days prior to the election
- (6) the payment of an annual state capitation or poll tax of one dollar and fifty cents to the county or city treasurer at least six months prior to the election; the receipt of such payment is necessary for registration before voting. A resident who, although eligible to vote at the age of twenty-one, has refrained from doing so must pay a poll tax assessable against him for a maximum three years before being able to vote. A new resident must pay only for each year or part of a year spent in Virginia.
- (7) the passing of a literacy test to prove one's ability to read and write in English and to understand the functions of government
- (8) proper registration at least 30 days before the election at the office of the local Registrar of Elections which includes the presentation of one's poll tax receipt, the filling in of certain required forms pertaining to personal history and the swearing under oath of the truth of one's statements. Registration in Virginia is now permanent so that after a resident citizen has properly registered, he does not have to repeat this process unless he moves. A noteworthy provision of the Constitution allows any person who is an active member of the United States Armed Forces to be exempt from paying a poll tax and from registering as a prerequisite to voting. Likewise, his poll taxes are cancelled and annulled for the three years next preceding if he has an honorable discharge.

Certain persons are excluded by Article II from registering and voting: idiots, insane persons, paupers, persons disqualified by crime or specific

disabilities which have not been removed, persons convicted of treason, felony, bribery, petit larceny, obtaining money or property under false pretenses, embezzlement, forgery or perjury. The General Assembly has the power, by a two-thirds vote, to remove such disabilities.

Qualified citizens of Virginia have the opportunity to elect three types of officials:

(1) national officials—the President and the Vice-President of the United States (every four years), two United States Senators (normally, every six years) and ten United States Representatives (normally, every two years).

(2) state officials—the Governor, Lieutenant-Governor, Attorney-General (every four years), forty State Senators (every four years) and one hundred House of Delegates members (every two years).

(3) local officials—County: Treasurer, Sheriff, Commonwealth Attorney, Commissioner of the Revenue (every four years), County Clerk (every eight years) and Assembly members or members of the Board of Supervisors; City: Treasurer, Sergeant, Mayor, Councilmen, City Attorney for the Commonwealth, City Commissioner of the Revenue (every four years) and Clerk of the City Courts (every eight years).

All elections by the people are by secret ballot. Generally, election officials are sworn in office the day of the election; one of the judges opens the ballot box publicly, turns it upside down to prove its emptiness, locks it and keeps it locked until the voting polls are closed. At the beginning of the election day, the election judges receive the registration books and the list of those citizens whose past three years poll tax has been paid. The election clerk receives a poll book, a blank book to be used for the official listing of the voters who come to the polls. After all election officials have received their necessary clerical supplies and their instructions, the polls are opened for voting. Thus, a citizen is immediately checked for his proper registration and poll tax payments when he comes to vote. He then receives a ballot which he alone marks secretly in a voting booth. Voting must be performed carefully because a defaced, improperly marked ballot may be challenged and thrown out. He folds his ballot to maintain secrecy and hands it to an

election judge who places it immediately in the ballot box. It is illegal for a voter to be approached concerning a possible candidate any nearer than 100 feet from the polling place. Fifteen minutes before closing time for the polling place, one of the election judges will loudly proclaim this fact in front of the polling place. Exactly fifteen minutes later, the voting officially ends and only ballot holders at this time are allowed to cast their vote.

After the polls are closed, all the unused ballots are placed in a special envelope marked accordingly. The used ballots are tipped out of the ballot box onto the table. All the election officials present check the complete emptiness of the box. Representatives of each of the political parties are allowed to watch the correct counting of the votes. The election clerks make two sets of tally sheets which include the names of all the candidates which appeared on the ballot and each clerk keeps personal tally as the ballots are counted and the names of the candidates voted for are called off by the election judges. The usual tally method is used, and the word "tally" is spoken by each clerk as the diagonal fifth line is drawn so that any mistakes in the count made by either clerk can be caught quickly. Any time there is disagreement between the tally scores of the two clerks, a complete recounting of the ballots for the candidate whose score disagrees must take place. In case of a tie vote for a Congressman, Assemblyman, or county or city official, the outcome is determined by the Election Board, often by the flip of a coin. When all the votes have been tallied, an official written report is prepared on the back of each poll book: it includes the number of votes cast individually and totally for each candidate. This report is signed by the election judges and the election clerks. These poll books plus the used ballots and the unused ballots are submitted to the county or city clerk and later reviewed by the Board of Elections. The successful candidates then receive a certificate of election which makes them officially elected to their respective offices.

Every person qualified to vote is eligible to any office of the State, county, city or other subdivision of the State wherein he resides except as stated otherwise in the State Constitution. Persons eighteen years of age are eligible to the office of notary public. The terms of all officers elected begin on the first day of February after their election unless otherwise stated. The members of the General Assembly and all officers, executive and judicial, elected or appointed, take the following oath or affirmation: "I do solemnly

swear (or affirm) that I will support the Constitution of the United States, and the Constitution of the State of Virginia, and that I will faithfully and impartially discharge and perform all the duties incumbent on me as —, according to the best of my ability, so help me God."

Any person who is registered and qualified to vote at the next succeeding regular election is eligible to vote at any legalized primary election held for the nomination of any candidate for office.

Legislative, Executive and Judicial Departments

The separation of powers theory in government is considered so important that Article III of the Virginia State Constitution concerns solely this underlying principle: namely, that the legislative, executive and judicial departments are to be separate and distinct. To emphasize this idea, the Constitution further states that neither department shall "exercise the powers properly belonging to either of the others nor may any person exercise the power of more than one of them at the same time."

The Legislative Department—Since one of the chief functions of a government is to make laws, it is logical for Article IV of the Constitution to consist of a detailed description of the Legislative Department: its composition, membership, qualifications, powers and limitations.

The State legislature or legislative branch is called the General Assembly. It is a bicameral legislature composed of an upper house, the Senate, and a lower house, the House of Delegates. This legislative body has been in continuous existence since 1619 and is believed to be the oldest one in the Anglo-Saxon world and the second oldest Parliament in the entire world.

The Constitution requires that the Senate consist of not more than forty and not less than thirty-three members, elected quadrennially (once every four years). There are forty members in the present State Senate, and their term of office is four years. They are elected to office by the qualified voters of the State Senatorial Districts on the first Tuesday following the first Monday in November of every other odd-numbered year in which the Governor is not elected. Therefore, they are elected during the mid-term of the Governor. The State Constitution requires that the House of Delegates consist of not more than one hundred and not less than ninety members. In

the present House of Delegates, there are one hundred members, and their term of office is two years. Members of the House are elected to office by the qualified voters of the State House districts on the Tuesday following the first Monday in November of every odd-numbered year. Both the Senatorial and House of Delegates Districts are set up by the General Assembly in that a special commission is appointed by the governor to do the districting: this commission membership must be approved by the General Assembly. The Constitution requires that reapportionment or redistricting take place every ten years to offset population changes. The last reapportionment was made in 1952; therefore, the next reapportionment or redistricting is due in 1962. There are now thirty-six State Senatorial Districts, thirty-three of which are entitled to one Senator each and seventy-six House of Delegates' districts, sixty-two of which are entitled to one Delegate each.

Any qualified voter living in a Senatorial or in a House district is eligible for election from that district to the General Assembly. However, no General Assembly member can hold any other public office at the same time or be elected by this assembly to any civil office of profit in the state during his term of office. Likewise, an individual who holds a federal government or state government salaried office or employment or the position of court judge, Commonwealth attorney, sheriff, sergeant, treasurer, assessor of taxes, commissioner of revenue, collector of taxes, or court clerk cannot be a member of either house of the General Assembly during his continuance in office. If such an individual is elected to either house of the General Assembly, his former office must be vacated. Two Constitutional requirements are necessary: the individual must be a qualified voter and must live in the district he represents.

The salaries of the members of the General Assembly are fixed by law and are paid from the public treasury. Any act passed which provides for an increase of legislative salary cannot take effect until the end of the term for which the members voting thereon were elected. The present salary is \$1080 per regular sixty-day biennial session (plus \$720 for expenses) for the House of Delegates members and for the State Senators and \$1,260 for the Speaker of the House of Delegates and the President of the Senate.

The General Assembly meets at Richmond in regular session once every two years on the second Wednesday in January in even-numbered years,

directly following the election of the members of the House of Delegates. The maximum number of days in the regular session is sixty, but a session may be extended not longer than thirty days if three-fifths of the members of each house concur. The usual session, however, is sixty days in length. A special session may be called at any time by proclamation of the Governor on his own initiative or by him at the request of two-thirds of the members of both houses. Neither house can, without the consent of the other, adjourn to another place nor for more than three days while a session is still in progress. A quorum is necessary to do business and a majority of the members of each house is considered as a quorum. However, a small number may adjourn from day to day and they have the power to compel the attendance of members according to the rules established by each house individually. The House must organize itself at the outset of each session because its members have been elected the preceding November. The Clerk of the previous House serves until a new chairman has been chosen. Therefore, the Clerk calls the House to order, calls the roll, and officially swears in the members.

The chairman of the House of Delegates is called the Speaker: he is chosen by the House of Delegates members after a party caucus. The chairman of the Senate is called the President of the Senate and the Lieutenant-Governor automatically serves as chairman. In the absence of the Lieutenant-Governor or whenever he finds it necessary to carry out the office of Governor, the Senate chooses a president pro tempore (president for-the-time-being) from its own membership. Each house of the General Assembly selects its own officers (Clerk, Sergeant-at-Arms, two Door Keepers), settles its rules of procedures and directs writs of election for filling vacancies which may occur during the General Assembly's session. If vacancies occur during the recess period when the General Assembly is not in session, the Governor may issue writs of election as prescribed by law. Each house is responsible for determining its own rules and for judging the election, qualifications, and returns of its own members; each house may punish its members for disorderly conduct and may expel a member whenever two-thirds of its members so concur.

The members of the General Assembly are entitled to certain privileges. They are free from arrest during the session of their particular house except in cases of treason, felony (a serious crime) or breach of the peace. They

cannot be questioned in any other place for any speech or debate in which they participate in either house. Furthermore, they are free from arrest under any civil process during the regular sessions of the General Assembly and during the fifteen days directly preceding or directly following the session.

Each house of the General Assembly must keep a journal of its proceedings and must publish it from time to time. Whenever one-fifth of the members present express a desire to have the "yeas" and "nays" of their members on a specific question recorded, such information must be entered in the journal. The Clerk of each house has this important duty of journal-keeping. In addition, the Clerk also prepares the payroll, keeps the docket and supervises the printing of the legislative acts—hence, he is often called the "Keeper of the Rolls" of the Commonwealth.

As mentioned earlier, the chief purpose of any legislative body is to make laws. In Virginia, every law must be introduced in the form of a bill. There are six major steps in the process whereby a bill becomes a law:

- (1) A bill may originate in either house. The legislator who sponsors it is called the "Patron." It is customary for all appropriation bills to be introduced in the House of Delegates; the Clerk of the house in which it originated assigns a number to it. No regular bill can be introduced after the beginning of the last three weeks of a session.

- (2) The bill is then referred to the proper committee of each house. There are twenty-one standing committees in the Senate and thirty-four standing committees in the House of Delegates. In addition, there are a few joint standing committees—Senators and Delegates serving together on a committee—including an auditing committee, nominations and confirmations committee, printing committee and a library committee. The bill is considered carefully by the proper committee and then reported back to the Clerk of the House.

- (3) The bill is then printed by the house in which it originated. The original bill is sent directly to the printer, and the copies are usually then printed and distributed to the members the next day. When the Clerk, having received the committee report, places the bill on the calendar, it is called the first reading and only the title of the bill is read at this time.

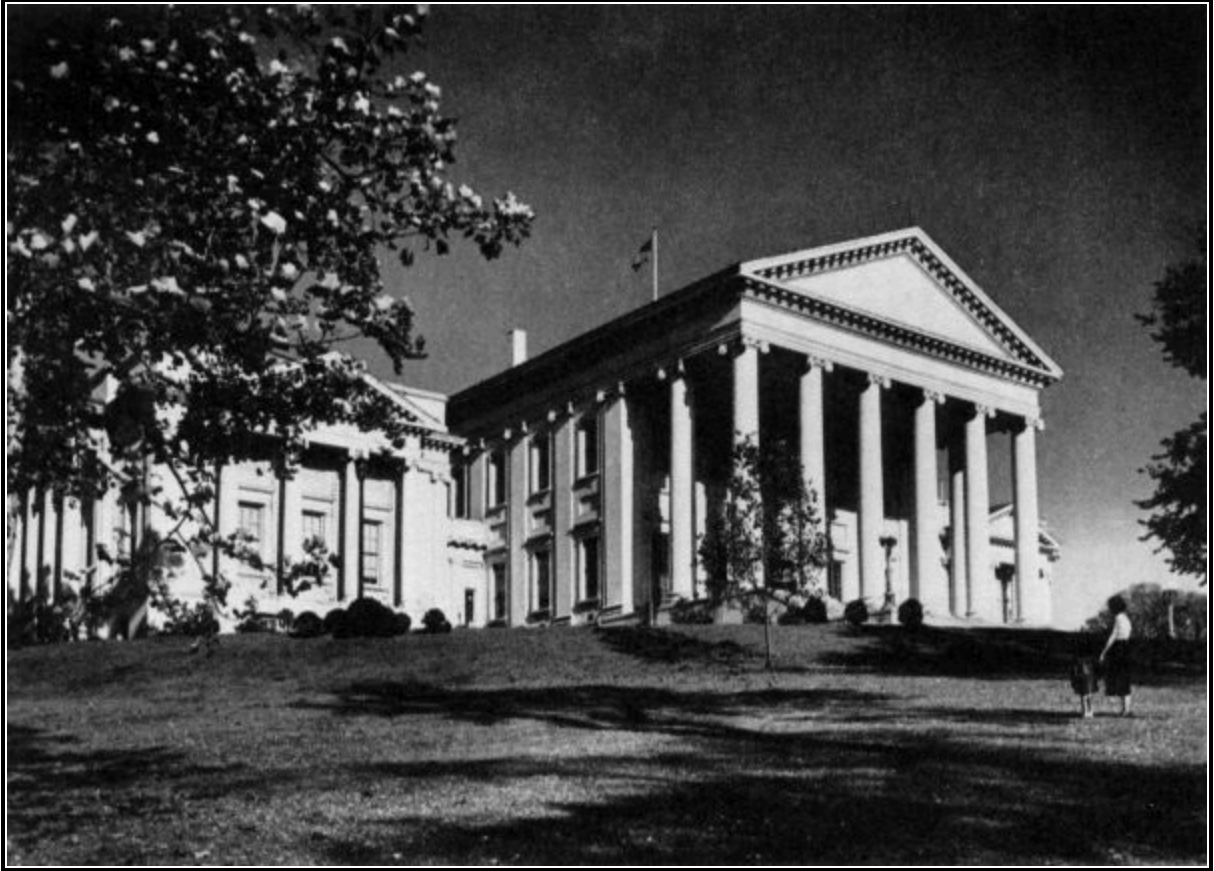
(4) The bill is read in its entirety when its turn comes on the calendar and the "Patron" explains carefully its contents. Detailed discussion may take place and amendment, rejection, referral to another committee for further study or approval occurs. If the bill is approved, it is then sent to be engrossed—the contents of the bill is pasted on a large sheet of paper with the amendments or suggestions included in the proper place for final examining. This entire procedure is called the second reading.

(5) The third reading takes place when the bill is being considered for final passage. The bill must be passed in both houses in a recorded vote of "aye" or "nay" on a roll call with a majority of "ayes" from those voting: at least two-fifths of the members elected to each house must be participants in the voting. This is performed in Virginia by an electric voting machine. The names of the members voting for and against must be entered on the official journal of each house. Thus, a bill may be approved or rejected by either house. Frequently, a conference committee has to be appointed to smooth out differences between the two houses in regards to the details of a bill.

(6) After the bill has been passed by both houses, it is enrolled—that is, printed in final form—and signed by the presiding officer of each house in the presence of the house members. The bill is then sent to the Governor for his consideration. (See Article V concerning the Executive Department.)

Either house may amend a bill by an approved "aye" vote of a majority of those voting (at least two-fifths of the total membership in each house is a required minimum for voting).

In case of an emergency measure, a recorded "aye" vote in the official journals of four-fifths of the members voting in each house may result in the omission of the usual required printing and reading of the bill on three different calendar days.



VA. DEPT. OF CONSERVATION AND ECONOMIC DEVELOPMENT

State Capitol at Richmond

A recorded affirmative vote by a majority of all the members elected to each house is necessary for the passing of any bills which create or establish a new office, which create, continue or revive a debt or charge, or which concern public monies or taxes. All tax bills must specifically state the tax requirements clearly.

Each law can include only one subject or object, and such subject or object must be expressed in its title. In order to revive or amend a law, the title reference alone cannot be used; the act revived or the section amended must be re-enacted and published at length. After a bill has been successfully passed, it generally cannot take effect until at least ninety days after the adjournment of the General Assembly session during which it was enacted. Two exceptions to this restriction exist: a general appropriation law and an emergency law. In these two instances, the General Assembly by an official

"aye" recorded vote, by a vote of four-fifths of the members voting in each house, has the power to state the time such laws are to take effect.

The House of Delegates has the right to bring impeachment charges against the executive or judicial officers of the state. Impeachment charges may be brought for malfeasance (unlawful or wrongful action) in office, corruption, neglect of duty, or other high crimes or misdemeanors. Such charges are prosecuted before the Senate which has the sole power to try impeachments. A two-thirds affirmative vote of the senators present is necessary for conviction. If an individual is convicted of impeachment charges, he is subject to the following penalties: removal from office and disqualification from further office-holding under the State. In addition, the individual is subject to indictment (a formal charge of crime presented by a grand jury), trial, judgment and punishment according to law. It is possible in Virginia for the Senate to try impeachments during the recess of the General Assembly if the charges are preferred before adjournment.

In addition to passing state laws, the General Assembly also has the responsibility of electing (1) the judges of the Supreme Court of the State where terms have expired and (2) the judges of all circuit, corporate and chancery courts. Although the Governor appoints all the executive department heads, appointments generally must be approved by the General Assembly and likewise, all commission member appointments must be confirmed or rejected by the General Assembly.

According to the Federal Constitution, each state is represented in the United States Senate by two senators usually elected directly by the qualified voters of the state. The number of representatives from each state in the United States House of Representatives is based upon the proportional population of each state to the others. According to the last national census, the state of Virginia is entitled to ten members in the United States House of Representatives, based upon its population in proportion to the other states. In order to determine the sections of the state each member will represent, the state legislatures usually are given the power to divide their states into Congressional election districts as well as state election districts. Therefore, the Virginia General Assembly has the power to apportion the State into Congressional districts. Virginia has, at the present time, ten Congressional election districts. The state Constitution provides that these districts must "be composed of contiguous (adjacent)

and compact territory containing as nearly as practicable, an equal number of inhabitants."

Section 58 of Article IV of the Virginia Constitution is considered so significant that it is required by the General Assembly to be included in the subject matter of all schools in the state. Its significance lies in the provisions included in this section which guarantee added protection to individual liberties by a series of prohibitions on the General Assembly itself. These prohibitions include the following:

(1) The General Assembly cannot suspend the writ of habeas corpus unless when, in case of invasion or rebellion, such action is required for public safety. Habeas corpus, literally, is a Latin expression meaning "You have the body"; a writ is a written legal command or order. Therefore, a writ of habeas corpus is an official order commanding a person who has another person in custody to produce the body of such person who is being detained before a court; thus, any person arrested or otherwise detained upon suspicion of crime has the right to demand an immediate hearing in court with a view to determine officially whether or not there is adequate ground for his detention. If the prisoner is then believed to have been detained on insufficient grounds, he will be given his freedom; otherwise, he will be held for trial, with or without release on bail. Consequently, the writ of habeas corpus acts as a protection for each individual against possible illegal or unlawful imprisonment.

(2) The General Assembly cannot pass a bill of attainder. In English law, a bill of attainder was an act of Parliament which pronounced the sentence of death against an accused person with consequent complete destruction of his civil rights without even a trial being conducted. In the Seventeenth Century these bills were commonly used in England. The writers of the Virginia Constitution did not believe in having an individual punished or convicted of a crime without a trial by jury in a court with proper jurisdiction. This prohibition guarantees a fair trial and means that an individual is "not guilty" until proven "guilty" of violating some law or constitutional provision.

(3) The General Assembly cannot pass an ex post facto law. "Ex post facto" literally means "after the fact." An ex post facto law is defined by the United States Supreme Court as one which "makes an action done before

the passing of the law, and which was innocent when done, criminal, and punishes such action." Therefore, the legislature cannot pass criminal legislation after an alleged crime has been committed that, if brought to bear against an accused person, would be to his disadvantage. Retroactive criminal legislation which is not detrimental to an accused person is permissible (for example, a law reducing a penalty). Therefore, only those individuals who violated a law after a law has been passed are subject to punishment.

(4) The General Assembly cannot pass a law impairing the obligation of contracts. A contract is a formal agreement between two or more persons binding them to a particular action. Such contracts play a most important role in society today and must be regarded with utmost sincerity. The United States Constitution specifically prohibits the states from passing any law which would impair the obligation of contracts, would weaken their effect or would make them more difficult to enforce.

(5) The General Assembly cannot pass a law abridging the freedom of speech or of the press. Individuals are granted the right to participate in political discussion and criticism and in the interchanging of ideas and opinions in general. This, however, does not guarantee absolute freedom: one cannot utter or publish untruths, incite insurrections, encourage the disobedience of laws, defame the government, or give aid and comfort to foreign countries involved in war against the United States. One can easily understand the necessity for such limitations to freedom.

(6) The General Assembly cannot enact a law whereby private property would be taken or damaged for public uses without just compensation. The General Assembly has the authority to define the term "Public Uses." Originally in Virginia, the courts decided this definition, but an amendment later transferred this power from the courts to the General Assembly, making it a legislative rather than a judicial decision. The sovereign power of a state to take private property for public purposes with proper compensation is called the "right of eminent domain." The General Assembly must abide by such a right. Therefore, a resident in Virginia is guaranteed protection from having his private property seized from him for unfair or unjust compensation. In case of a dispute over the fair value of such property, the court decides the fair amount.

(7) The General Assembly cannot compel an individual to frequent or support a particular religious place of worship and cannot force an individual to suffer because of his religious beliefs or opinions. All individuals are to be guaranteed their religious freedom and the General Assembly cannot require religious tests, bestow certain privileges or advantages to a particular sect or denomination and cannot pass any law requiring or authorizing any official church within the state. Likewise, the General Assembly cannot levy taxes on the people forcing them to support the activities of a particular church or the building program of any house of worship. The General Assembly, therefore, is forbidden to interfere with the religious belief and worship of the inhabitants within the state. Another section of the Constitution forbids the General Assembly from incorporating churches or granting charters of incorporation to any religious denomination.

These religious safeguards for a person's individual beliefs are primarily repetitions of the provisions of Thomas Jefferson's "Statute of Virginia for Religious Freedom." Since it is more difficult to change a provision of a constitution than a statute or a law, these provisions were included in the Virginia Constitution for emphasis and for a more enduring effect.

The General Assembly is also forbidden to authorize lotteries (the distribution of prizes determined by chance or by lot) or to allow the residents of the state to buy, sell, or transfer lottery tickets or chances.

An extremely important power of every state legislature is the creation of political subdivisions within the state itself: namely, the counties. The Virginia Constitution specifically provides for the formation, division and consolidation of counties. A new county must have a minimum area of 600 square miles and the county or counties from which it is formed cannot be less than 600 square miles after the new county has been formed. No county can be reduced in population below 8,000 people. Whenever any county has a length three times its breadth, or has a length exceeding fifty miles, it may be divided at the discretion of the General Assembly. Such added length can occur as a result of boundary changes or the annexation of territory. The General Assembly may consolidate existing counties upon the approval of a majority of the qualified voters of each of these counties voting as a result of an election held for this specific purpose. If the majority do not vote approval of consolidation, such consolidation cannot take place.

Virginia had eight counties originally, dating from 1634: Accawmack (now known as Accomack and Northampton), Charles City (now known as Prince George County), Charles River (now known as York County), Elizabeth City (ceased as a county in 1952), Henrico, James City (now known as Surry County), Wamosquyoake (no longer in existence—existed only from 1634-1637) and Warwick River (known as Warwick but ceased as a county in 1952). In 1648, an Indian district called Chickacoan was formed into the County of Northumberland. From these nine counties eventually 172 counties were created, with the largest number, 116, created from Northumberland. The last change in the number of counties occurred in 1952 when both Elizabeth City County and Warwick County became first class independent cities, thus relinquishing county status. At the present time, there are 98 counties in Virginia. Furthermore, since 1788, nine counties became part of the present state of Kentucky, fifty counties became part of the present state of West Virginia and fifteen counties (including the two mentioned previously) went out of existence through consolidation or other methods. The General Assembly has exercised and will continue to exercise its power of county-making in Virginia.

In the Virginia Supreme Court case of Moss versus County of Tazewell, the decision stated that "the power of the legislature of the State is supreme, except so far as it is restrained by State or Federal Constitution." Therefore, a State constitution is usually considered as a restraining agreement whereby the Federal Constitution is considered as a granting agreement. Thus, the legislative body of a State has all the powers not prohibited to it by the State or Federal Constitution. A State constitution is often, therefore, a summary of what the state legislative body may not do. The Virginia Constitution specifically states that "the authority of the General Assembly shall extend to all subjects of legislation, not herein forbidden or unrestricted; and a specific grant of authority in this Constitution upon a subject shall not work a restriction of its authority upon the same or any other subject." The principles described are further emphasized in this quotation from the Virginia Constitution which follows: "The omission in this Constitution of specific grants of authority heretofore conferred shall not be construed to deprive the General Assembly of such authority, or to indicate a change of policy in reference thereto, unless such purpose plainly appear."

There are several limitations placed upon the General Assembly by the Constitution: the General Assembly cannot enact any local, special or private law in the following instances (but can enact general laws in the same instances):

- (1) for the punishment of crime,
- (2) for providing a change of venue (the place where a trial is held) in civil or criminal cases,
- (3) for regulating the jurisdiction of, or changing the rules of, evidence in any judicial proceeding,
- (4) for changing county seats,
- (5) for assessing and collecting taxes and for extending the time for assessment or collection of taxes,
- (6) for exempting property from taxation,
- (7) for postponing or diminishing any obligation or liability of any person, corporation or association to the State or to any local unit of government,
- (8) for refunding money lawfully paid into the treasury of the State or the treasury of any local unit of government,
- (9) for granting from the treasury of the State any extra compensation to any public officer, servant, agent or contractor,
- (10) for conducting elections or designating places of voting,
- (11) for regulating labor, trade, mining or manufacturing, or the rate of interest on money,
- (12) for granting any pension,
- (13) for creating, increasing or decreasing fees, salaries, percentages, or allowances of public officers during the term for which they are elected or appointed,
- (14) for declaring streams navigable or authorizing the constructions of booms or dams or the removal of obstructions from such streams,
- (15) for regulating fencing or the boundaries of land, or the running at large of stock,

(16) for creating private corporations, or amending, renewing, or extending their charters,

(17) for granting to any private corporation, association or individual any special or exclusive right, privilege or immunity,

(18) for naming or changing the name of any private corporation or association,

(19) for forfeiting the charter of a private corporation.

General laws pertaining to the above subjects may be amended or repealed as long as they do not have the effect of enactment of a special, private, or local law.

The General Assembly also has the power, by means of general law, to confer upon boards of supervisors of counties and the councils of cities and towns powers of local and special legislation insofar as the delegation of power is not inconsistent with constitutional limitations.

Each time the regular session of the legislature is held, the General Assembly appoints a standing committee, called the auditing committee which consists of two members of the Senate and three members of the House of Delegates. The chief function of this committee is to examine, at least once a year, the books of the State Treasurer and other government executive officers whose duties concern auditing or accounting for the State revenue and of the public institutions. This committee reports the results of its investigations to the Governor and must arrange for publication of results in two newspapers of general circulation. The Governor himself submits such reports to the General Assembly at the beginning of each session. The members of this committee have the right to employ accountants to assist them in carrying out their investigations.

The Executive Department—Article V of the Virginia Constitution concerns the Executive Department. The chief function of the Executive Department is to enforce or carry out the laws. The highest executive officer in the State is the Governor. He receives his position by direct election of the qualified voters on the Tuesday following the first Monday in November of every

other odd-numbered year—at the same time and place as the election of the General Assembly members. The term of office for a Governor is, therefore, four years. He is not eligible for re-election to the same office during the succeeding term; in other words, a Governor cannot succeed himself.

The Governor's term begins on the third Wednesday in January on the first year after his election and ends on the Tuesday following the second Wednesday in January of his fourth year. This timing allows a new Governor to come into office one week after the General Assembly has convened for its regular session and has had the opportunity to organize. The interval also affords an opportunity for the outgoing Governor to present his opinions and experiences to the state legislature before his departure.

After the votes have been cast for the State gubernatorial (Governor) candidates, the returns of the election are usually sent, under seal, to the Secretary of the Commonwealth. He delivers the returns to the Speaker of the House of Delegates on the first day of the next session of the General Assembly. Within three days, the Speaker of the House of Delegates must open the returns in the presence of a majority of the Senate and of the House of Delegates. Then the votes are counted. The person who receives the highest number of votes is declared elected. If there is a tie, however, the two houses of the General Assembly jointly vote for the Governor.

In order to be eligible for the governorship, a candidate must have three qualifications: (1) he must be a United States citizen (if not a native-born citizen, he must have been naturalized for at least ten years preceding his election), (2) he must be at least thirty years of age and (3) he must have been a resident in the State of Virginia for at least five years directly preceding his election.

The Governor must live in the city of Richmond, the capital of Virginia, during his term of office. He resides at the Executive Mansion and receives at the present time a salary of \$20,000 per year. Such compensation cannot be increased or diminished during his term of office. He cannot receive any other emolument (money) while in office from the state government or from any other government and he cannot hold any other position while he is Governor of the State.

The chief duty or power of the Governor is to faithfully administer or execute the laws. Other powers include:

- (1) reporting to each session of the General Assembly the condition of the State in a message known as the "Governor's Message"
- (2) recommending to the General Assembly for consideration measures which he believes are beneficial to the State
- (3) convening the General Assembly whenever two-thirds of the members of both houses request it
- (4) convening the General Assembly into special session whenever, in his opinion, the interest of the State requires it
- (5) acting as the commander-in-chief of the State land and naval forces
- (6) calling out the State militia or State Police whenever necessary to repel invasion, suppress insurrection and enforce the execution of the laws
- (7) conducting all relations with other states
- (8) during the recess of the General Assembly, suspending from office for misbehavior, incapacity, neglect of official duty, or acts performed illegally, any executive officer in Richmond except the Lieutenant-Governor (whenever he exercises this power, however, he must report to the General Assembly, at the beginning of the next session, the fact that he suspended an officer or officers and the cause for such suspension: then the General Assembly itself determines whether or not such individuals are to be restored or finally removed from office).
- (9) during the recess of the General Assembly, appointing pro tempore (temporary) successors to all individuals suspended (as described previously)
- (10) likewise, during the recess of the General Assembly, filling pro tempore vacancies in all offices of the State if such filling is not otherwise provided for by the Constitution or by laws. (Such appointments must be by commissions which automatically expire at the end of thirty days after the beginning of the next session of the General Assembly).
- (11) remitting fines and penalties under rules and regulations as prescribed by law

(12) granting reprieves and pardons after conviction except those in which the House of Delegates carried on the prosecution

(13) removing political disabilities resulting from conviction for offenses committed prior to or subsequent to the adoption of the State Constitution



VIRGINIA STATE CHAMBER OF COMMERCE

Executive Mansion

(14) commuting sentences of capital punishment

(15) informing the General Assembly, at each session, of the details of each case of fine or penalty remitted, of each reprieve or pardon granted, and of punishment commuted, plus his reason for doing so.

(16) requiring information in writing, under oath, from the officers of the executive department and superintendents of State institutions upon any subject relating to the duties of their respective offices and institutions (Likewise, he may inspect at any time their official books, accounts and

vouchers, and ascertain the conditions of the public funds in their charge and he may employ accountants for this purpose)

(17) requiring the opinion in writing of the State Attorney-General concerning any question of law affecting his official duties as Governor or relating to the affairs of the Commonwealth

(18) legally certifying all commissions and grants in the name of the Commonwealth of Virginia and affixing each with the official seal of the Commonwealth

(19) supervising the activities of all State Executive Departments, Divisions, Boards and Commissions and appointing all the chief officers and members of such groups with the consent or confirmation of the General Assembly

(20) appointing certain officials, subject to confirmation by the General Assembly (for example, the Secretary of the Commonwealth, the State Treasurer)

(21) considering all bills passed by the General Assembly

The Governor's responsibility in the law-making process is significant. After a bill has passed both houses of the General Assembly, it is sent to the Governor who has four choices of action:

(1) He may approve the bill by signing it; it becomes a law.

(2) He may disapprove the bill by vetoing it; he then returns it with his objections to the house in which it originated. This house enters such objections on its journal and reconsiders the bill in view of such objections. If, after careful consideration, two-thirds of the members present (at least a majority of the membership of that house is required as a minimum present for voting) still approve the bill, it is sent with the Governor's objections to the other house. After careful consideration here, if it is approved by two-thirds of all the members present (at least a majority of the membership of this house is also required as the minimum present for voting), it will become a law over the Governor's disapproval. This process is called

"Over-riding the Veto." The Governor also has the power to veto any particular item or items of an appropriation bill without vetoing the entire bill. Such veto affects only the particular item or designated items. In such a case, the item or items must be considered by the same methods described previously. If the Governor favors the general purpose of any bill but opposes a part or certain parts, he may return it with recommendations for amending it to the house in which is originated with the same procedures described previously being used. One exception, however, exists: a vote of only a majority of the members present in each house is required to amend a bill.

(3) He may do nothing about the bill; after five days have passed, Sundays excepted, and if the General Assembly is still in session, the bill automatically becomes a law.

(4) He may do nothing about the bill; after ten days have passed, if the General Assembly has adjourned in the meantime, making it impossible to return the bill, the bill does not become a law. Such procedure is called a "pocket veto."

With such a wide range of power, the tremendous responsibility and authority which the Governor of Virginia possesses is readily apparent.

The second highest ranking state executive is the Lieutenant-Governor. He is elected to office by the qualified voters at the same time as the Governor for the same four-year term of office. His qualifications and election procedure are identical to those of the Governor. In case the Governor of the state dies, fails to qualify, resigns, is removed from the State or is unable to discharge the powers and duties of his office, the Lieutenant-Governor then assumes the Governorship with its duties, powers and compensation. Normally, the chief duty of the Lieutenant-Governor is to act as permanent chairman of the State Senate. While presiding over same, he is called the President of the Senate. In such capacity, he has no vote except in case of a tie. His salary consists of \$1260 for each biennial session of the legislature plus \$3,000 per year for traveling expenses. Hence, he receives the same salary as the Speaker of the House of Delegates.

Two major administrative officials appointed by the Governor and subject to the approval of the General Assembly are the Secretary of the Commonwealth and the State Treasurer. Their terms of office are coincident with the Governor who appoints them. The Secretary of the Commonwealth acts as the official secretary to the Governor and is the head of the Division of Records where all records of the official acts of the Governor are kept. The Secretary of the Commonwealth is also the custodian of the official State Seal and is responsible for affixing same to all the official documents signed by the Governor. The State Treasurer has custody of the funds of the state in the payment of bills. He makes deposits of all revenue belonging to the Commonwealth in certain specified banks and withdraws such money by check only upon the State Comptroller's warrant.

Another important state official is the Auditor of Public Accounts. He is elected by the joint vote of both houses of the General Assembly for a four-year term. His powers and duties include the auditing of all accounts of each state department, institution and agency, and he acts as chief auditor and accountant of the Auditing Committee of the General Assembly. In addition, he is responsible for exposing unauthorized, illegal or unwise handling of state funds to the Governor, the Auditing Committee of the General Assembly and the Comptroller. He is also required by law to audit all city and county officials' accounts unless such accounts are audited annually by a certified public accountant according to the State Auditor's instructions.

All state officials who collect, keep in custody, handle or disburse public funds must give bond for the faithful performance of these duties. The amount of the bond varies with the amount of revenue involved in carrying out such duties.

Any individual who is appointed to any office by the Governor which requires confirmation by the General Assembly and who does not receive such necessary confirmation cannot start or continue in office and is ineligible for reappointment during the recess of the General Assembly to fill a vacancy caused by such refused confirmation.

To assist the Governor in carrying out his executive duties, numerous departments and agencies have been established by the Constitution or by legislative act. Most of the department names suggest the particular type of

work for which each is responsible: the Department of Military Affairs, the Department of Law including the Division of Motion Picture Censorship and the Division of War Veterans' Claims, the Department of Accounts, the Department of Purchases and Supply, the Department of the Treasury, the Department of Taxation, the Department of State Police, the Division of Motor Vehicles, the Department of Corporations, the Department of Alcoholic Beverage Control, the Department of Labor and Industry, the Department of Agriculture and Immigration, the Department of Workmen's Compensation, the Department of Conservation and Economic Development, the Department of Education, the Department of Highways, the Department of Health, the Department of Welfare and Institutions, the Department of Mental Hygiene and the Department of Professional and Occupational Registration. The Division of Personnel, the Division of the Budget, the Division of Records and the Office of Civilian Defense are all located in the Governor's Office. Additional specialized commissions such as the Advisory Council on Virginia Economy, the Art Commission, the Safety Codes Commission, the State Library Board, the State Water Control Board, the Commission on Constitutional Government, the Potomac River Basin Commission and the Commission on Interstate Cooperation also participate actively in the carrying out of the financial, law enforcing, service rendering, conservation, preservation, and regulation functions of the executive department of the Commonwealth.

The Judicial Department—Article VI concerns the Judiciary Department whose chief purpose is to interpret the laws properly. The State Constitution in Virginia provides for a Supreme Court of Appeals, Circuit Courts, City Courts and other inferior courts. The jurisdiction of these courts is regulated by law with the exception of jurisdiction granted specifically by the State Constitution itself. The General Assembly authorizes by law the appointment of judges pro tempore by the Governor.

The highest State Court is the Supreme Court of Appeals, located in Richmond. It consists of seven members: one Chief Justice and six associate justices. The Chief Justice is always the Senior Justice in years of continuous service; in case the total years of service are equaled by two or more justices, seniority is then determined by age. The term of office of the justice is twelve years, and they are elected by a joint vote of the Senate and the House of Delegates. Their sole constitutional qualification is that they

must have held a "judicial station" in the United States or have practiced law in Virginia or some other state for five years previously. The annual salary of a justice of the Court of Appeals is \$15,500 with the Chief Justice receiving an additional \$4,500 or a salary of \$20,000.

When meeting in court session, the members of the Supreme Court of Appeals may sit as an entire group or may sit in two divisions consisting of not less than three justices each. By sitting in two such divisions, it is possible to hear more cases at a rapid pace. Whenever convening in this manner, each division has the full power and authority on the determination of causes, in the issuing of writs, and in the exercise of all powers authorized by the State Constitution for the Supreme Court of Appeals or provided by law. Each division is subject, however, to the general control of the Supreme Court of Appeals and is subject to any rules and regulations which this court may make. Likewise, the decision of either division does not become the judgment of the Supreme Court of Appeals unless concurred in by at least three judges. Any case which involves a construction of the State Constitution or of the Constitution of the United States must be decided upon by the Supreme Court of Appeals in toto and, furthermore, the assent of at least four of the judges is necessary for the court to determine that any law is or is not contrary to the State Constitution or the Constitution of the United States. If, in such a case, it is impossible for more than three of the judges to agree on the constitutional questions involved and if the case cannot be determined without passing on such questions, the case must be reheard by a full court. Whenever the judges within either division differ as to the judgment to be rendered in any cause, or whenever any judge of either division within a time and in a manner fixed by the court rules certifies that in his opinion any decision of any division of the court is in conflict with a prior decision of the court, the cause must be considered and adjudged (decreed) by the full court or at least a quorum of the full court.

There are two types of court jurisdiction: original and appellate. Original jurisdiction exists whenever a court has the legal right to hear a case for the first time. Appellate jurisdiction exists whenever a court is hearing a case which is being appealed or brought to it from a lower court. The Virginia Supreme Court of Appeals has original jurisdiction in cases of habeas corpus, mandamus and prohibition. Habeas corpus is a court order which

commands a person having another individual in custody to bring before the court the individual detained for the purpose of determining the legality of detention. A mandamus is a court order directed to subordinate courts, corporations, or the like, commanding them to do something therein specified. A prohibition is a writ or court order which legally restrains someone from doing some particular action. In all other cases in which the Supreme Court of Appeals has jurisdiction, it has appellate jurisdiction only. The General Assembly has the power to provide, from time to time, for a Special Court of Appeals whose chief purpose is to assist the Supreme Court of Appeals.

Whenever a judgment or decree is reversed, modified or affirmed by the Supreme Court of Appeals, the court must state in writing the reasons for same and must keep such record on file with the case. In criminal matters, the court may direct a new trial. If the court believes that the accused should be discharged from further prosecution, in such instance, it has the right to order the case ended, thereby discharging such an individual from further prosecution. This court has no power, however, to increase or decrease the punishment of an accused person. In civil cases, the court may enter a final judgment.

The courts which rank second highest in the Virginia judiciary are the Circuit Courts. The General Assembly has the power to arrange and rearrange the judicial circuits of the state and to increase or diminish their number. However, no new circuit can be created containing less than forty thousand inhabitants according to the most recent census nor if such creation would result in reducing the number of inhabitants in any existing judicial circuit below forty thousand. There are thirty-seven judicial circuits in Virginia. The geographical composition of the circuit ranges from one county or city to five counties and one city. Each circuit has one judge chosen by the joint vote of both houses of the General Assembly for a term of eight years. He must possess the same qualifications when chosen as judges of the Supreme Court of Appeals and must live in the circuit area where the circuit court is located while he is in office. The number of sessions of the circuit courts to be held for each county and city is prescribed by law and the judge of one circuit may be required or authorized to hold court in another circuit or city. Circuit courts usually

have original and appellate jurisdiction in (1) all civil cases involving twenty dollars or more and (2) certain criminal cases.

Below the circuit courts in the court structure in Virginia are the city Hustings or Corporation Courts. They are courts of record also and have original jurisdiction except in cases of appeals from justices. These courts have the sole power to appoint electoral boards in cities where they are located. They have much concurrent jurisdiction with the circuit courts. They are criminal courts and can try cases of felonies committed within one mile of the corporation limits. There are sixteen such courts: Corporation Courts located in Alexandria, Bristol, Charlottesville, Danville, Lynchburg, Newport News, Norfolk (2), South Norfolk, Staunton, and Winchester; Hustings Courts located in Petersburg, Portsmouth, Richmond (2) and Roanoke. These city court judges must live in the city where the court is located.

The Virginia Constitution divides the cities of Virginia into two classes as far as the judicial system is concerned: (1) cities having a population of at least ten thousand according to the last official census are called cities of the first class; (2) cities having a population of less than ten thousand according to the last official census are called cities of the second class. In each first class city there may be a corporation court in addition to a circuit court. In any city containing at least thirty thousand inhabitants, the General Assembly may provide additional courts with the number of judges it deems necessary for the public interest.

In a second class city, there may be a corporation or hustings court. The circuit court of the county in which the city is situated and the corporation or hustings court have concurrent jurisdiction in actions at law and suits in equity unless otherwise provided by law. Therefore, the General Assembly has the power to confer exclusive original jurisdiction upon a corporation or hustings court in all cases involving residents of any such city; this setup is much more convenient to the residents who live a considerable distance from the county seat. This type of court may be abolished by a vote of a majority of the qualified voters of the particular city in which the court is located at a special election held for this purpose. Another method by which a court may cease to exist is by having the office of judge of such a court whose annual salary is less than eight hundred dollars become vacant and remain vacant for ninety days consecutively. Automatic abolishment of

such court results. In each case in which such court is abolished, the city immediately comes within the jurisdiction of the circuit court of the county wherein it is geographically situated unless otherwise provided for by law. The records of the abolished corporation or city court immediately become records of the aforementioned circuit court and are transferred accordingly.

For each city court of record there is a judge chosen for an eight-year term by a joint vote of both houses of the General Assembly. He must have the same qualifications as Supreme Court of Appeals judges and must live within the jurisdiction of the court over which he presides while he is in office. However, the judge of a corporation court of any corporation having a city charter and having less than ten thousand inhabitants may live outside the city limits. Such an individual may be judge of such corporation court and also judge of a corporation court of some other city having less than ten thousand inhabitants. The judges of city courts may be required or authorized to hold the circuit or city courts of any county or city.

The General Assembly has the power also to establish courts of land registration for the administration of any law it may adopt for the purpose of the settlement, registration, transfer, or assurance of titles to land in the State.

Judges are commissioned by the Governor of the State. Their salaries and allowances are prescribed by law and cannot be diminished during their term of office. Their term of office begins on the first day of February succeeding their election by the General Assembly. Whenever there is a judgeship vacancy, the successor is elected for the unexpired term. The General Assembly also has the authority to retire judges and to provide their compensation. The General Assembly has the power to pass laws giving duties to retired judges such as substitute judge work. The salaries of judges are paid out of the State treasury but the State is reimbursed for one-half of the salaries of each of the circuit judges by the counties and cities composing the circuit, based upon their population and of each of the judges of a city of the first class by the city in which each judge presides. The one exception is the judge of the Circuit Court of the city of Richmond whose entire salary is paid by the State. A city may increase the salary of its circuit or city judges if the city assumes the entire increase and guarantees that such salary will not be diminished during the entire term of office. A

city which has less than ten thousand inhabitants pays the salary of its city judge.

Judges may be removed from office in Virginia for cause by a concurrent vote of both houses of the General Assembly. A majority of all the members elected to each house must concur in such vote, and the cause of removal must be entered on the journal of each house. The judge against whom the General Assembly is about to proceed for removal must have notice of same accompanied by a copy of the alleged causes at least twenty days before the actual voting takes place. Typically, no judge can practice law within or without the State of Virginia nor hold any other office of public trust while he is in office.

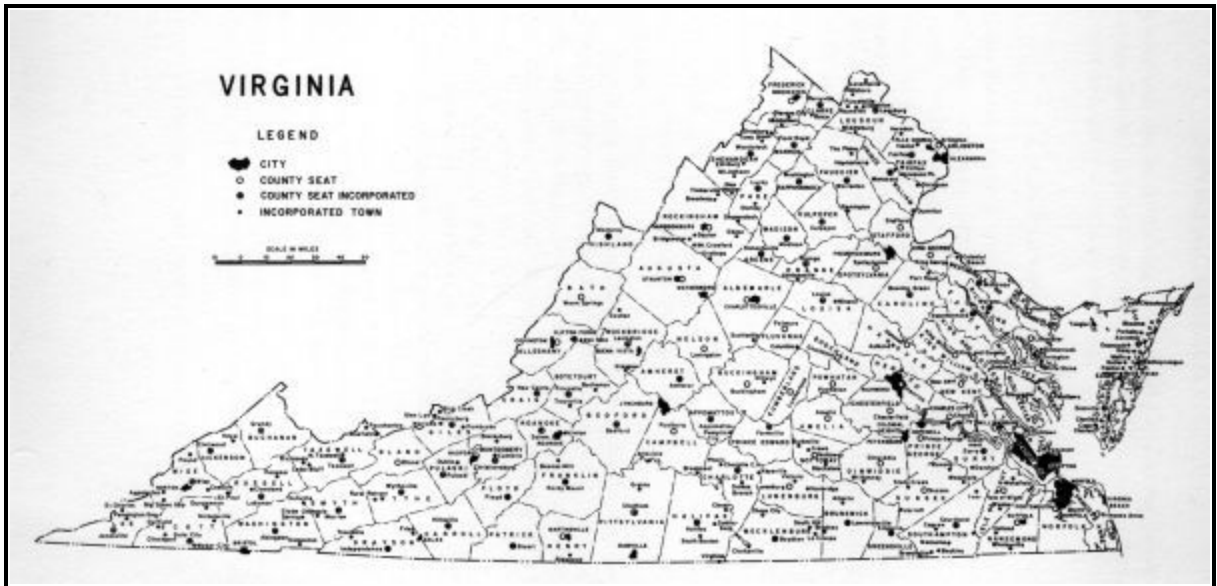
Writs (court orders) must be issued in the name of the "Commonwealth of Virginia" and must be certified by the clerks of the various courts. The Constitution requires that indictments (a formal charge of crime presented by a grand jury) conclude "against the peace and dignity of the Commonwealth."

The General Assembly provides for the appointment or the election of justices of the peace and establishes their jurisdiction. Authority of justices of the peace includes civil suits which involve limited amounts. In addition, Virginia also has police justices, trial justices, civil justices, civil and police justices, juvenile and domestic relations courts and mayor's courts. Their jurisdiction is usually limited, however, and appeals from them are heard by city and circuit courts.

All cities and counties and many towns have local courts called Magistrate Courts or Justice of the Peace Courts. Their jurisdiction includes misdemeanors and civil cases involving small amounts of money.

The Commonwealth also has two Law and Chancery Courts, one located in Roanoke and one in Norfolk. Their jurisdiction includes the probating of wills and the settling of estates. There is a special Chancery Court located in Richmond which has complete charge of wills to be probated and the settling of estates in that part of "Richmond north of the south bank of the James River." There is also a special Law and Equity Court located in Richmond.

The Juvenile and Domestic Relations Court, located in Norfolk, is a special state court which has jurisdiction over cases involving dependent, neglected and delinquent children and in cases involving crimes—except manslaughter—against a family member.



Virginia

The State Attorney-General is elected by the qualified voters of the State at the same time and for the same term as the Governor and Lieutenant-Governor of the State (a four-year term of office). He must have the same qualifications as the Governor but he is eligible for re-election. His chief duty is to serve as the attorney-at-law for the State; he renders opinions concerning the interpretation and application of laws upon the request of the Governor or of various Department heads, he presents cases to the Supreme Court of Appeals if the State's interest is involved and he represents the State of Virginia before the Supreme Court of the United States. The numerous problems arising in the carrying out of these responsibilities make it desirable and necessary for him to have legal assistants who may aid him in furnishing aid to local Commonwealth attorneys. The State Attorney-General is subject to removal from office in the same manner as judges. His present salary is \$17,000 annually.

Local Governmental Units

The State Constitution not only establishes state government organization, but it also includes rules concerning local governmental units which are found in Article VII. Local charters are granted by the General Assembly. The political level immediately below the state government level is the county. Virginia is divided into ninety-eight counties at the present time. The last original county to be created is Dickenson County, formed in 1880. The largest county in the state in area is Pittsylvania with 1,022 square miles and the smallest county in area is Arlington with 24 square miles. Fairfax County is currently the most populated county in Virginia, surpassed in population only by the city of Norfolk.

Legally, a county is a corporation. Its main functions, in general, are the preservation of order, the protection of life and property, the establishment of public schools, the administration of justice, the registration of legal documents, the maintenance of highways and bridges outside the cities and the care of the poor and the criminal.

Counties of Virginia are divided into magisterial districts, the number of districts varying from three to ten. Provision is made in the state constitution that additional districts may be made by law only if the new district contains at least 30 square miles. Each district has one supervisor elected by the qualified voters. Thus, the Board of Supervisors of the county consists of one representative elected from each magisterial district in the county with the exception of Arlington County where the Board of Supervisors is elected at-large from the county. Therefore, the number of members of each Board of Supervisors varies among the counties. A chairman for this group is selected by the members themselves. Their meetings are usually held once a month at the Court House located at the County Seat. The Board of Supervisors carries out various duties such as: (1) supervises county affairs, (2) establishes and levies county taxes, (3) prepares the county budget, (4) audits claims against the county, (5) erects and maintains county buildings, (6) acts as a legislative and executive body by issuing and carrying out ordinances on such subjects as sanitation, health and police, (7) approves saluary scales for county workers, (8) controls county property, (9) furnishes care for the mentally and physically handicapped, and (10) borrows money.

There are five county officials of importance who are elected to office by the qualified voters on the first Tuesday after the first Monday in November

and take office on January 1 following their election. These officials are:

(1) Attorney for the Commonwealth—a lawyer who acts as a legal adviser to the Board of Supervisors and to the county officials and who acts as legal representative of the people of the county; he also acts as prosecutor for all civil and criminal cases in which the county is interested; he is elected by the qualified voters for a four-year term.

(2) County Clerk—an officer who serves as a clerk to the County Board of Supervisors and to the County Circuit Court; as the main county recording official, he records all types of county documents (such as deeds, wills, judgments, mortgages, births, divorces, deaths, elections, court trials and marriages); attends meetings of the Board of Supervisors and has custody of property records; he is elected by the qualified voters for an eight-year term.

(3) Commissioner of the Revenue—an official who assesses property values for taxation purposes, assesses State personal income taxes, prepares personal property tax books and land books and assesses and collects all professional and business licenses; he is elected by the qualified voters for a four-year term.

(4) County Treasurer—an officer who collects the county taxes assessed by the Commissioner of Revenue, collects the state taxes, keeps the county funds and disburses money upon order of the Board of Supervisors; he is elected by the qualified voters for a term of four years.

(5) Sheriff—an officer who is the chief executive officer of the county; he and his assistants, called deputies, form the county police force; the Sheriff serves warrants of arrests, summons witnesses and jurors whenever necessary, preserves peace in the county, has charge of prisoners, cooperates with the State Police and acts as a Bailiff at meetings of the Board of Supervisors and at Trial Justice and Circuit Court sessions; he is elected for a four-year term.

Other significant county positions include County School Board members, County Superintendent of Schools, County Health Board members, County Surveyor, Welfare Board members, Planning Commission and Highway Commission members, Game Wardens and Election Board members. A state official who exerts strong influence upon the county is the State Circuit Judge. Since he tries cases in various counties within his own

circuit, he comes in contact with many county officials and has the authority to appoint certain county officials within his own circuit such as (1) a Trial Justice who tries the less important civil and criminal cases in the county and holds hearings of cases to be tried by the circuit judge and (2) the Coroner who makes investigations and reports concerning sudden, violent or suspicious deaths in the county. The Circuit Judge also appoints the School Trustee Electoral Board which in turn appoints the County School Board.

There are three types or forms of County Government in existence in Virginia: the County Executive Form, the County Manager Form and the County Board (often called the "Traditional") Form. Two counties, Albemarle and Fairfax, have adopted the County Executive Form and two counties, Arlington and Henrico, have adopted the County Manager Form. Arlington County was the first county in the United States to adopt the County Manager form of government by popular vote (1932). The major difference between the County Executive and the County Manager Forms of government is found in the fact that, in the former type, the Board of Supervisors makes all key appointments upon the recommendations of a county executive who is employed to act as the administrative head of the county whereas, in the latter form, the Board of Supervisors employs a manager for the county and gives him authority to name and appoint his own department heads. The remaining 94 counties are operated under a County Board: under this form, the Board of Supervisors exercises not only legislative but full executive authority as well.

The county form of government, therefore, acts not only as a local government unit but also as an administrative agent of the state.

Cities and towns make up the next political level of government organization in Virginia as described in Article VIII of the constitution. A city is defined in the constitution as an incorporated community which has within defined boundaries a population of five thousand or more; a town is an incorporated community which has within defined boundaries a population of less than five thousand. In determining such population, the last census of the United States or an enumeration made by authority of the General Assembly must be used as the basis. Any incorporated community which had a city charter when this section of the State Constitution was adopted in 1902, regardless of its numerical population at the time, was

allowed to keep its city charter. The General Assembly has the authority to enact general laws for the organization and government of cities and towns in Virginia. In special instances, the Circuit Court may issue such charters. Whenever an area has a population of at least five thousand, it may apply, but is not required to apply, for city status. Unlike many of the other states in the United States, Virginia does not have any village type of government.

Cities having at least ten thousand persons are eligible to be classified as cities of the first class; cities having less than ten thousand persons are eligible to be classified as the second class. Cities in Virginia have generally followed a three-fold plan or pattern of development: first, an area is established, then incorporated as a town and finally elevated to city status as an independent municipality. During the colonial period, there were only two towns actually incorporated: Williamsburg and Norfolk. By 1800, only six additional towns were incorporated: Alexandria, Winchester, Fredericksburg, Richmond, Petersburg and York (Yorktown). Yorktown is the only town incorporated before 1800 which has not become a city.

A unique characteristic about cities in Virginia is the fact that an incorporated city is politically separate from the county in which it is geographically located. There are thirty-two independent cities: Alexandria, Bristol, Buena Vista, Charlottesville, Clifton Forge, Colonial Heights, Covington, Danville, Falls Church, Fredericksburg, Galax, Hampton (formerly, a second class city; now combined with the town of Phoebus and Elizabeth City County into a first class city since 1952), Harrisonburg, Hopewell, Lynchburg, Martinsville, Newport News, Norfolk, Norton, Petersburg, Portsmouth, Radford, Richmond, Roanoke, South Boston, South Norfolk, Staunton, Suffolk, Virginia Beach, Waynesboro, Williamsburg and Winchester. When Newport News and Warwick became the city of Newport News on July 1, 1958, this was the first city to be consolidated in the Commonwealth since Richmond and Manchester combined in 1910.

There are three types or forms of City Government in existence in Virginia: Mayor-Council form, Commission form and City Manager form. The city charter bears a similar relation to the city that the Virginia Constitution bears to the state. The citizens within the city area may decide for themselves the type of city government they prefer when they apply for their city charter.

Although there are three forms of local government available, there are certain characteristics common to all three types:

(1) A bicameral City Council (unless authorized by the General Assembly to have only one branch) is elected by the qualified voters of the city on the second Tuesday in June. The term of office of the councilmen begins on the following September 1. The council acts as the legislative body by passing city or municipal laws called ordinances. Cities are usually divided into various sections called wards. Since representation from each ward is primarily based upon population of the ward, the city council has the power to change ward boundaries. Since 1933, after every ten-year period, the city council is required by the Virginia Constitution to re-apportion such representation accordingly. Usually, there is one councilman from each ward.

(2) The following officials are required by the Constitution to be elected to office by the qualified voters: City Court Clerk, City Commonwealth's Attorney, City Commissioner of Revenue, City Treasurer and City Sergeant (Sheriff). All these officials (with the exception of the City Court Clerk whose eight-year term of office begins at the same time as the city judges' term) are elected on the first Tuesday after the first Monday in November and their term of office begins on the following January 1. Under a constitutional amendment proposed in November 1960, certain elected officials of a city (or county) could serve as such officials in two or more cities (or counties, or city and counties) if a majority of the voters of the local units affected so decided; however, the amendment was defeated.

(3) Every city has a mayor who is the chief executive and who is elected by the people for a four-year term. Depending upon the form of city government adopted, the mayor may be essentially a figurehead or a key official. The chief duties of a mayor usually include the following:

- a. enforcing ordinances, by-laws and orders,
- b. ascertaining that duties of various city officials are carried out properly,

- c. suspending city officials upon the authorization of the General Assembly for misconduct in office or for neglect of duty,
- d. considering ordinances, resolutions, and other measures and approving or disapproving them,
- e. presiding at city council meetings (unless a special provision already has provided for a council president) and voting only in case of a tie
- f. appointing key officials with the approval of the city council (for example, the Chief of Police, the Fire Chief, the City Attorney) and members of certain boards (Planning, Health, Zoning Boards).

Every resolution or ordinance must be presented to the Mayor of a city after it has been passed by the City Council. The Mayor has three choices:

- (1) He may approve the ordinance by signing it; it then becomes operative.
- (2) He may disapprove the ordinance by vetoing it; he then returns the ordinance to the clerk of the council with his written objections. The council then enters the detailed objections in its journal and reconsiders the original resolution or ordinance in view of such objections. If, after due consideration, two-thirds of the membership of the council still wishes the original ordinance to pass, it is passed over the Mayor's veto.
- (3) He may do nothing about the ordinance; after five days have passed, Sundays excepted, if the Mayor is still in office and the term of office of the members of the city council has not expired, it automatically is passed. If, however, during these five days, either the term of office of the Mayor or the term of office of the members of the city council ends, the ordinance is not passed but is considered "killed."

Like the Governor of the state, the Mayor can veto a particular item or more than one item in an appropriation ordinance or resolution without affecting the rest of the resolution or ordinance. Any ordinance or resolution which concerns the appropriation of money for an amount over one hundred dollars, the levying of taxes or the authorizing of the borrowing of money can be passed only by a recorded affirmative vote of a majority of all council members.

The oldest form of city government in Virginia is the Mayor-Council Form. Under this form, the Council and the Mayor are elected by the qualified

voters. The Mayor, therefore, is the chief executive officer of the city and he either appoints solely, or with the consent of the city council in some instances, the city officers not constitutionally required to be elected. He also has the authority to supervise all city departments and to suspend any officer or employee for cause. Under this system, the council is the legislative body only.

Another form is the Commission form of local government. Of the three different types mentioned previously, this form is used in Virginia the least. According to this plan, the city council itself, elected at large, assumes the legislative and administrative or executive powers. A mayor is elected from council membership but he has very limited powers. He is chairman at the council meetings and may suggest recommendations as possible legislative measures as he sees fit. The city itself is divided into various administrative departments by the council and each department is assigned to a different council member who becomes the head executive or administrative official of that department. Thus, each council member acts as an administrator individually and as a legislator collectively. The city council according to this plan carries out the usual functions of the legislative body and of the executive department, including such functions as determining the powers of each department and the rules and regulations of each office holder and employee.

The City Manager form of government was first adopted in the United States by the city of Staunton in 1908. This is the most widely-used plan found in Virginia cities at the present time and in many other large cities throughout the United States. Under this plan, the Council members are elected at large by the voters. The Council is the legislative body which makes the local laws. The City Council selects the City Manager who may or may not be an inhabitant of the town, city or state involved. He not only acts as the chief adviser to the City Council but also becomes the chief executive in this plan. His term of office is at the discretion of the City Council members and he is responsible directly to them. Charles E. Ashburner was the first City Manager in the United States.

The City Council usually elects its own chairman from among its own membership; this chairman automatically becomes the Mayor of the city. He is the official titular head of the city and represents the city upon various public occasions. He presides at Council meetings, has regular Council

powers and can vote but cannot veto a proposed law. In contrast, the City Manager has the power to appoint the chief officials of the various city government departments, the responsibility for enforcing city ordinances and resolutions, the obligation of attending City Council meetings and of making suggestions and recommendations to the Council, the duty of keeping the City Council informed of general and specific activities of the city including its financial status, the task of preparing and submitting a proposed budget to the City Council and the duty of carrying out miscellaneous functions assigned to him by the City Council.

These three forms—Mayor-Council, Commission and City Manager—exemplify the variety of local government organization available to cities and towns located in Virginia.

Towns in Virginia in order to be incorporated must have at least 300 inhabitants and must receive approval of the local circuit judge. Towns still remain part of the county after their incorporation. At present, there are approximately two hundred incorporated towns whose functions are carried out and services furnished by the County and the Town governments. Every town has a Council and a Mayor and in the large towns, usually a Town Manager. Three other town officials are a Treasurer, a Clerk (called a Secretary or Recorder) and a Town Attorney.

Residents of Virginia, consequently, are governed daily by either Town, City or County levels of government in addition to State and National levels.

Education and Public Instruction

Article IX concerns education. The Constitution specifically states that "The General Assembly shall establish and maintain an efficient system of public free schools throughout the State." Therefore, as in all states in United States, the management of the schools is basically the responsibility of the state. There is a State Board of Education consisting of seven members appointed for four-year terms by the Governor with the approval of the General Assembly. The Governor with the approval of the General Assembly also appoints an experienced educator to the chief educational position known as the Superintendent of Public Instruction. His term of office parallels that of the Governor who appoints him. The duties and

powers of the State Board of Education are constitutionally described as follows:

- (1) to divide the State into school divisions or districts; to certify to the local school boards within each division a list of persons who have reasonable academic and business qualifications for division superintendent of schools (the local school board has the authority to select from this list the individual whom they wish to hold the position of superintendent of their division for a four-year term),
- (2) to manage and invest the school fund, according to legal regulations,
- (3) to make rules and regulations for the management and conduct of the schools, upon the authority of the General Assembly,
- (4) to select textbooks and educational appliances for school use with the General Assembly itself prescribing the time when textbooks are to be changed by the State Board of Education.

According to the Constitution, each magisterial district is a separate school district, and the magisterial district furnishes the basis of representation on the county or city school board. In cities which have a population of at least one hundred and fifty thousand, school boards have the authority to decide for themselves, with the approval of the local legislative body, the number and the boundaries of their school districts. The General Assembly has the right to consolidate into one school division, if it deems it advisable, one or more counties or cities with one or more counties or cities. Each division school board is empowered to select the superintendent of schools for its own division or district. In case a local school board fails to make such an appointment within a prescribed time, the State Board of Education then appoints the superintendent in that district.

In 1810 a Literary Fund was created as a permanent fund to be used to defray educational expenses in Virginia. This money originally came from the proceeds of public lands donated by Congress for public free school purposes, from unclaimed property, from property which the state received through forfeiture, from fines collected for offenses against the state and from other funds appropriated by the General Assembly. The only money in the fund which must, by constitutional requirement, be apportioned on a

basis of school population for the benefit of the primary and grammar school levels is the annual interest on the Literary Fund, one dollar of the State capitation tax (total State capitation tax, \$1.50) and an amount equal to an annual tax on property of not less than one nor more than five mills on the dollar. The school population in this instance refers to the number of children in each school district between the ages of seven and twenty years.

Each school district has the authority to raise additional sums of money for educational purposes by levying a school tax on property, a maximum amount being established by the law. The Board of Supervisors in the county area and the Council in the town or city areas have the authority to levy and collect local school taxes.

The General Assembly has the right to establish agricultural, normal, manual training and technical schools as well as other schools deemed desirable for the public welfare. Virginia colleges under State control at present are the College of William and Mary at Williamsburg, Longwood College at Farmville, Madison College at Harrisonburg, Mary Washington College (women's division of the University of Virginia) at Fredericksburg, Medical College of Virginia at Richmond, Radford College, (Women's division of Virginia Polytechnic Institute) at Radford, the University of Virginia at Charlottesville, Virginia Military Institute at Lexington, Virginia Polytechnic Institute at Blacksburg and Virginia State College at Petersburg. The State also controls the Richmond Professional Institute of the College of William and Mary in Richmond, the Norfolk Division of the College of William and Mary in Norfolk and the Norfolk Division of Virginia State College in Norfolk. The Virginia School for the Deaf and the Blind at Staunton and the Virginia State School for Colored Deaf and Blind Children at Newport News are State operated.

The General Assembly also establishes compulsory education. At the present time, school attendance is not compulsory on a state basis but many communities have passed local compulsory attendance laws. Whenever a parent or guardian is financially unable to furnish public school children with necessary textbooks, the local school system provides free textbooks to such individuals. The Virginia Constitution has required that there be segregation of white and colored children in the schools of Virginia. However, as a result of a U. S. Supreme Court ruling in 1954, the segregation of colored and white children became illegal and

unconstitutional. Consequently, local and state officials throughout Virginia have been compelled to reconsider the state constitutional provision concerning segregation in the public schools and to integrate the school population in some areas.

Members of the Board of Visitors and Trustees of educational institutions are appointed by the Governor with the approval of the Senate for four-year terms. They regulate the policy of state-operated institutions of higher learning.

Miscellaneous Provisions

Article X concerns the Department of Agriculture and Immigration which is headed by a State Board of Agriculture consisting of one practical farmer from each Congressional district. The president of the Virginia Polytechnic Institute is also automatically an ex-officio member of this board. The chairman of this board is the Commissioner of Agriculture appointed by the Governor. The Department of Agriculture and Immigration has three chief functions: to encourage the production and sale of Virginia farm products, to protect the Virginia farmers and consumers by carrying out various state laws concerning food products, and the improvement of such products. The major divisions of this department include the Division of Chemistry, of Statistics, Dairy and Food, Markets, Animal Industry and of Plant Industry. The immigration function is now non-existent. This function was added when a severe labor shortage existed in the latter part of the 1800's: at that time the Commissioner traveled to Ireland, Holland, Belgium and Denmark in an attempt to get agricultural workers. The department still retains the name of Agriculture and Immigration but no longer has authority over immigrants.

Article XI relates to Public Welfare and Penal Institutions. The General Assembly has the authority to establish and operate public welfare, charitable, sanitary, benevolent, reformatory or penal institutions. As mentioned in the Executive section of the Constitution, there is a Department of Welfare and Institutions which includes a six-member Board of Welfare and Institutions appointed for a four-year term by the Governor with the approval of the General Assembly. The Director of this department is the Commissioner of Public Welfare. The Department of Welfare and

Institutions consists of four divisions: the Division of Corrections which controls the State Penitentiary, the State Farm, the State Industrial Farm for Women, the Southampton Farm, the State Convict Road Force and the Bland Correctional Farm; the Division of General Welfare which helps needy children, elderly individuals, persons who are permanently disabled physically or mentally, and other miscellaneous cases; the Virginia Parole Board which has charge of granting parole, revoking parole, releasing qualified persons on parole and actually discharging individuals considered no longer necessary on parole; and the Division of Youth Services which supervises children placed in boarding homes and which operates and controls training schools for minors who have committed crimes and have been sent to these schools by court order: the Beaumont School for Boys (white), the Hanover School for Boys (Negro), the Bon Air School for Girls (white) and the Janie Porter Barrett School for Girls (Negro).

Article XII provides that the creation of corporations, as well as amendment to their charters, be provided by general laws which may be amended or repealed by the General Assembly. The General Assembly is not permitted to regulate the affairs of any corporation or to give it any rights, powers or privileges by special act. The State Corporation Commission is the unit of the state government through which all charters and amendments are issued. Therefore, the State Corporation Commission carries out all the provisions of the Constitution and of the laws for the creation, visitation, supervision, regulation and control of corporations chartered by, or doing business in, the state. The State Corporation Commission consists of three members elected by members of the General Assembly for a six-year term. Among other duties, the commission prescribes rates of railroads and telephone companies. Because of the numerous incorporated businesses operating in Virginia, this commission exercises broad, economic authority on behalf of the welfare of the state.

Article XIII concerns Taxation and Finance. The General Assembly has the authority for levying taxes, for appropriating revenue, and, in most instances, is empowered to specify and determine which goods and services shall be taxed by state and/or local government. All state, local or municipal taxes must be uniform and must be levied and collected according to general laws. State income taxes are levied on incomes over six hundred dollars per year. License taxes and state franchise taxes are levied upon

businesses. A state capitation or poll tax of one dollar and a half is levied on every resident of the state at least twenty-one years of age; one dollar of which is to be used exclusively for public free schools and the remainder returned to the county or city treasurer to be used for local purposes. Local taxes are also levied on real estate and personal property. Property exempt from taxation by Article XIII includes property owned directly or indirectly by the Commonwealth or any local unit of government, buildings, land and furnishings owned and used exclusively for religious organizations or for benevolent or charitable organizations and private or public burying grounds or cemeteries. Before any money can be paid from the State Treasury, appropriations must be made by law. No such appropriation can be made which is payable more than two and a half years after the end of the session of the General Assembly at which the law is enacted.

Article XIV primarily pertains to Homestead Exemptions. Certain homestead exemptions are authorized. Furthermore, this Article prohibits the General Assembly from passing a law staying the collection of debts. The General Assembly is authorized to provide the conditions on which a householder may set apart for himself and family a homestead on certain property.

The Amendment Process

Article XV describes the Amendment Process. An amendment may be proposed in either house of the General Assembly: the Senate or the House of Delegates. It is then voted upon for approval or disapproval. If a majority of the members of each house vote in favor of the proposed amendment, the amendment is then referred to the General Assembly at its first regular session held after the next general election of members of the House of Delegates. The amendment must then be published for three months previous to election time. Whenever a majority of all the members in each house vote in favor of the amendment either in a regular session or in an extra session, the amendment must then be submitted for approval by the people. If a majority of the qualified voters approve the amendment at this time, the amendment becomes effective.

Article XV also includes the procedure necessary for calling a constitutional convention in Virginia. Whenever a majority of the members of each house

of the General Assembly vote for a convention to revise or amend the Constitution, the question of calling such a constitutional convention must be submitted to the qualified voters. If a majority of the voters favor such a convention for the specific purpose included in the original question submitted to the voters, the General Assembly at its next session must provide for the election of delegates to the special convention. The qualified voters elect the specific delegates to such constitutional convention.

Article XVI concerns rules of construction within the constitution itself pertaining to word usage. Article XVII, already described in this chapter under Article II, provides for poll tax exemption for members of the armed forces on active duty.

The original Virginia Constitution of 1776 consisted of 3,000 words. In 1830, the number of words was doubled with numerous revisions. In 1870, the number of words was increased six times the number in the original constitution. The present Constitution which was written in 1902 contains approximately 35,000 words. Consequently, as living becomes more complex, the constitution has become more lengthy.

State Symbolism

Certain symbols and emblems are approved by various state legislatures which indicate a particular idea or belief which is soon recognized or identified with a specific state. The official symbols of the Commonwealth are the State Seals, the State Motto, the State Flag, the State Flower, the State Song and the State Bird.

There are two state seals: the Great Seal and the Lesser Seal. The official seals now used in the Commonwealth were adopted and approved by a legislative act on March 24, 1930. The Great Seal consists of two discs, metallic in nature and two and one-fourth inches in diameter; there is an ornamental border one-fourth of an inch in width. On the front or obverse side of the Great Seal is engraved the figure of Virtus, goddess of courage, garbed as an Amazon representing the "genius of the Commonwealth." In her right hand, Virtus holds a spear which points downward toward the earth and upon which she appears to be resting; in her left hand, she holds a parazonium or sheathed sword which points upward. The head of Virtus is erect and her face upturned. The left foot of Virtus is placed on a prostrate

figure of a man who represents Tyranny. The head of this symbol of Tyranny is to the left of Virtus with his distorted tyrannical symbols close by: a fallen crown, a broken chain and a scourge. At the top of this obverse side is the word, "Virginia," and at the bottom of the seal in a curved line is engraved the state motto: "Sic Semper Tyrannis" which translated means "Thus ever to tyrants," implying that such will be the fate of all tyrants.

On the reverse or opposite side of the Great Seal is engraved a group of three figures: Libertas, goddess of liberty and freedom, in the center with a wand and pileus in her right hand, Aeternitas, goddess of eternity, on her right with a globe and phoenix (a sacred bird) in her right hand and Ceres, goddess of grain and the harvest, on her left with a sheaf of wheat in her right hand and a cornucopia (horn of plenty symbolizing peace and prosperity) in her left one. At the top of the reverse side of the seal in curved line appears the word, "Perseverando." Originally, the reverse side of the Great Seal had engraved the motto: "Deus Nobis Pace Olim Fecit" meaning "God gave us this freedom" (Virgil's "Eclogues") but the motto was changed to the brief word, "Perseverando" in October 1779. George Wythe proposed the original design of the seal and George Mason originally recommended the motto for the seal at the Williamsburg Convention in 1776.

The Lesser Seal is one and nine-sixteenths inches in diameter and it consists of the figures and inscriptions found on the obverse side of the Great Seal.

On March 24, 1930, the present Flag of the Commonwealth was officially adopted. It consists of a deep blue field with a circular white center—all of bunting or merino material. Within this white circle is embroidered or painted, in such a manner as to appear alike on both sides, the official coat-of-arms of the Commonwealth: namely, the identical design of figures and inscriptions which appears on the observe side of the Great Seal of Virginia. The outer edge of the flag, the one farthest from the flag-staff, is bounded by a white silk fringe.

On March 6, 1918, the General Assembly declared the American Dogwood, known technically as the *Cornus Florida* or Flowering Dogwood, as the official state flower in Virginia.

It was not until 1940 that the state legislature officially adopted its state song. At this time, "Carry Me Back to Ole Virginny," written by James A.

Bland, a South Carolina Negro, was declared the state song although it had been widely recognized and sung by many generations of Virginians. The Cardinal, known technically as the *Cardinalis Virginianus*, is considered the official State Bird.

S U M M A R Y

Fundamental state laws for Virginia are found in a written constitution, originally adopted in 1776. The United States Constitution provides not only the framework for our national government but also the relationships between the national government and the individual states. With the exception of these restrictions, the state constitution determines the political structure or organization within the state area and the various powers and functions granted to each governmental agency. Like all governments established by state constitutions, the state government of Virginia consists of three departments: the legislative, executive and judiciary departments.

The Virginia Bill of Rights, written by George Mason, furnished a pattern for the Bill of Rights in the United States Constitution as well as for numerous state bills of rights. The significance attached to voting even in the early post-Revolutionary period is obvious by the location of the voting qualifications in the Virginia Constitution directly following the Bill of Rights.

Some unique features about government in Virginia include Section 58 of Article IV which lists a series of prohibitions on the General Assembly as a protection for individual liberties, the fact that the Governor cannot succeed himself (only sixteen states have this restriction), the existence of three types of county government (the County Executive, the County Manager and the County Board), the lack of a village form of local government, the existence of thirty-two independent cities and the existence of three forms of city government (Mayor-Council, Commission and City Manager).

Other articles in the Constitution concern suffrage, education, public welfare and penal institutions, taxation and finance, corporations and local government. Since constitution writers realize that living conditions change from time to time, the method of making changes in a constitution whenever necessary is included in the amendment process. Thus, a recent constitutional change was a revision of Section 141 making it legally

permissible to permit the use of public funds for tuition grants for pupils in private non-sectarian schools. Virginians, like the residents of other states, will undoubtedly continue to make necessary revisions when conditions so warrant in order to keep the state governmental structure a practical, adjustable foundation for a progressively changing society.

When one understands the meaning of the various symbols used by a state in order to create a specific identity or a particular recognition of its inhabitants and their ideas, the state seal, motto and flag become more significant to the citizen. Thus, it is with pride that Virginians show reverence and respect to their HALLOWED HERITAGE.

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